

Authorised Version No. 145
Drugs, Poisons and Controlled Substances
Act 1981

No. 9719 of 1981

Authorised Version incorporating amendments as at
1 July 2026

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1 July 2026

An Act to re-enact with Amendments the Law relating to
Drugs, Poisons and Controlled Substances, to amend the **Health**
Act 1958 and the **Crimes Act 1958** and for other purposes.

BE IT ENACTED by the Queen's Most Excellent Majesty by
and with the advice and consent of the Legislative Council
and the Legislative Assembly of Victoria in this present
Parliament assembled and by the authority of the same as
follows (that is to say):

1 Short title and commencement

- (1) This Act may be cited as the **Drugs, Poisons and Controlled Substances Act 1981**.
- (2) The several provisions of this Act shall come into operation on a day or on the respective days to be fixed by proclamation or successive proclamations of the Governor in Council published in the Government Gazette.

*	*	*	*	*	S. 1(3) amended by No. 10002 ss 5(2)(a), 6(2), 7(2), 11(2), repealed by No. 101/1986 s. 55(1)(a).
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Part I—Introductory and transitional

2 Repeals and revocations

- (1) The Acts and enactments mentioned in the table to this subsection, to the extent to which they are therein expressed to be repealed are hereby repealed accordingly.

TABLE

<i>Number of Act</i>	<i>Title of Act</i>	<i>Extent of Amendment or Repeal</i>
6889	Poisons Act 1962	So much as has not already been repealed.
7065	Statute Law Revision Act 1963	Items in Schedule relating to the Poisons Act 1962 .
7588	Poisons (Amendment) Act 1967	The whole.
7703	Abolition of Bailiwicks Act 1968	Item in Schedule relating to the Poisons Act 1962 .
8181	Statute Law Revision Act 1971	Item in Schedule relating to the Poisons Act 1962 .
8233	Poisons (Amendment) Act 1971	The whole.
8247	Crimes (Powers of Arrest) Act 1972	Item in Schedule relating to the Poisons Act 1962 .
8266	Poisons (Amendment) Act 1972	The whole.
8287	Dentists Act 1972	Section 45(2).
8424	Medical Practitioners (Amendment) Act 1973	Section 12.
8456	Poisons (Fees) Act 1973	The whole.
8961	Poisons (Drugs of Addiction) Act 1977	The whole.

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<i>Number of Act</i>	<i>Title of Act</i>	<i>Extent of Amendment or Repeal</i>
9023	Health Commission Act 1977	Item 16 of Part A of Schedule One.
9294	Poisons (Amendment) Act 1979	The whole.
9427	Statute Law Revision Act 1980	Item in Third Schedule relating to the Poisons Act 1962 .
9576	Crimes (Classification of Offences) Act 1981	Item in the Schedule relating to the Poisons Act 1962 .

- (2) All proclamations made under the **Poisons Act 1962** and amending any of the Schedules to that Act are revoked.

3 Savings

* * * * *

S. 3(1)
repealed by
No. 42/1993
s. 34.

- (2) On and from the commencement of this section in any order, proclamation, regulation, licence, permit, warrant, authority, Order in Council or other instrument or document made, issued or given under the **Poisons Act 1962** before the commencement of this section and deemed to have been made, issued or given under this Act or continued in force under this Act—

- (a) a reference to a pharmaceutical chemist shall be deemed and taken to be a reference to a pharmacist;

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S. 3(2)(b)
repealed by
No. 42/1993
s. 34.

* * * *

S. 3(3)
repealed by
No. 10087
s. 3(1)(Sch. 1
item 39).

* * * *

S. 3(4)
amended by
No. 10087
s. 3(1)(Sch. 1
item 39).

- (4) Subject to subsection (2), nothing in this Act shall affect the continuity of status, operation or effect of any permit issued under section 11 of the **Poisons Act 1962** before the commencement of this section and in force immediately before that commencement, and that permit shall, on and from the date of commencement of this section, be deemed to have been issued under the provisions of this Act that corresponds to section 11 of the **Poisons Act 1962**.

S. 3(5)(6)
repealed by
No. 42/1993
s. 34.

* * * *

- (7) Except as is in this Act expressly or by necessary implication provided—
- (a) all persons, things and circumstances appointed or created by or under the **Poisons Act 1962** or existing or continuing under that Act immediately before the commencement of this section shall under and subject to this Act continue to have the same status, operation and effect as they respectively would have had if that Act had not been repealed; and

(b) in particular and without limiting the generality of paragraph (a), the repeal of the **Poisons Act 1962** shall not disturb the continuity of status, operation or effect of any order, proclamation, regulation, recommendation, certificate, proceeding, appointment, notification, writ, summons, award, judgment, decree, fee, suspension, revocation, renewal, enquiry, registration, document, panel, submission, remuneration, approval, disapproval, refusal, decision, report, investigation, requirement, forfeiture, direction, analysis, examination, liability or right made, effected, issued, granted, given, instituted, imposed, accrued, incurred or acquired or existing or continuing by or under the repealed Act before the commencement of this section.

*	*	*	*	*	S. 3(8) repealed by No. 42/1993 s. 34.
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4 Definitions

(1) In this Act unless inconsistent with the context or subject-matter—

*	*	*	*	*	S. 4(1) def. of <i>aged care service</i> inserted by No. 17/2006 s. 3, repealed by No. 37/2025 s. 4(2).
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<i>analogue</i> , of a drug specified in column 1 of Part 1 or column 1 of Part 3 of Schedule Eleven, means a substance, however obtained, that is—	S. 4(1) def. of <i>analogue</i> inserted by No. 9/2014 s. 3(2).
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- (a) a structural modification of the drug obtained in one or more of the following ways—
 - (i) by the replacement of one or more of its functional groups with another;
 - (ii) by the replacement of up to 2 ring structures with any other ring structure;
 - (iii) by the addition of hydrogen atoms to one or more unsaturated bonds; or
- (b) a homologue of the drug; or
- (c) a derivative or isomer of a substance referred to in paragraph (a) or (b)—

but does not include a substance that is itself specified in column 1 of Part 1 or column 1 of Part 3 of Schedule Eleven;

S. 4(1) def. of
*animal health
and welfare
emergency
order*
inserted by
No. 22/2022
s. 53.

animal health and welfare emergency order
means an order made under section 22J;

S. 4(1) def. of
*approved
medicinal
cannabis
product*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * * *

authorised police employee means—

- (a) a Victoria Police employee authorised under section 44A; or
- (b) a Victoria Police employee who is a member of a class of Victoria Police employee authorised under section 44A;

S. 4(1) def. of *authorised police employee* inserted by No. 52/2006 s. 4, amended by No. 37/2014 s. 10(Sch. item 47.1(b)).

* * * * *

S. 4(1) def. of *authorised practitioner* inserted by No. 18/2000 s. 96(1), amended by Nos 11/2002 s. 3(Sch. 1 item 16.1), 80/2004 s. 150(Sch. 2 item 2.1(a)), repealed by No. 97/2005 s. 178(1), new def. of *authorised practitioner* inserted by No. 97/2005 s. 178(2), repealed by No. 13/2010 s. 35(1)(a).

authorised supplier means a person who—

- (a) is authorised by the Secretary under section 30C(5) to access the monitored poisons database for a purpose specified in section 30C(5)(a); or
- (b) is authorised by regulations referred to in section 30C(4) to access the monitored poisons database; or
- (c) belongs to a class of person that is authorised as described in paragraph (a) or (b);

S. 4(1) def. of *authorised supplier* inserted by No. 50/2017 s. 4.

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S. 4(1) def. of
*authorised
user* inserted
by No.
50/2017 s. 4.

authorised user means a person who—

- (a) is authorised by the Secretary under section 30C(5) to access the monitored poisons database for a purpose specified in section 30C(5)(b) or (c); or
- (b) is authorised by regulations referred to in section 30C(4) to access the monitored poisons database; or
- (c) belongs to a class of person that is authorised as described in paragraph (a) or (b);

S. 4(1) def. of
*authorized
officer*
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1),
37/2014
s. 10(Sch.
item 47.1(c)),
substituted by
No. 39/2024
s. 85(2).

authorized officer means—

- (a) a person authorized by the Secretary under section 41; and
- (b) other than in Division 18 of Part II, any police officer;

S. 4(1) def. of
*automatic
machine*
amended by
No. 9/1998
s. 10(a)(i).

automatic machine means any machine or mechanical device used or capable of being used for the purpose of selling or supplying goods without the personal manipulation or attention of the seller or supplier or his employee or other agent at the time of the sale or supply;

S. 4(1) def. of
*baseline
sentence*
inserted by
No. 52/2014
s. 17,
repealed by
No. 34/2017
s. 15.

* * * * *

category 1 precursor chemical means a substance prescribed as a category 1 precursor chemical and—

S. 4(1) def. of
***category 1
precursor
chemical***
inserted by
No. 55/2009
s. 7.

- (a) includes—
 - (i) any form of that substance, whether natural or synthetic; and
 - (ii) if specified in the regulations for that category 1 precursor chemical, the salts, derivatives and isomers of that substance and any salt of those derivatives and isomers;
- (b) despite the definition of ***substance*** in this section, does not include that substance when contained in or mixed with another substance;

category 2 precursor chemical means a substance prescribed as a category 2 precursor chemical and—

S. 4(1) def. of
***category 2
precursor
chemical***
inserted by
No. 55/2009
s. 7.

- (a) includes—
 - (i) any form of that substance, whether natural or synthetic; and
 - (ii) if specified in the regulations for that category 2 precursor chemical, the salts, derivatives and isomers of that substance and any salt of those derivatives and isomers;
- (b) despite the definition of ***substance*** in this section, does not include that substance when contained in or mixed with another substance;

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S. 4(1) def. of
*category 3
precursor
apparatus*
inserted by
No. 55/2009
s. 7.

category 3 precursor apparatus means an item or
class of item prescribed as a category 3
precursor apparatus;

S. 4(1) def. of
*certificate of
health and
safety
destruction or
disposal*
inserted by
No. 52/2006
s. 4.

*certificate of health and safety destruction or
disposal* means a certificate given by an
analyst or a botanist under section 91(1)(c);

S. 4(1) def. of
*Chief General
Manager*
inserted by
No. 10262 s. 4,
substituted by
No. 42/1993
s. 35(b),
repealed by
No. 46/1998
s. 7(Sch. 1).

* * * *

S. 4(1) def. of
child
inserted by
No. 66/2017
s. 4.

child, in Part IIA, means a person under 18 years
of age;

S. 4(1) def. of
*class
approval*
inserted by
No. 6/2024
s. 11.

class approval means an authorisation under
section 20A in respect of a class of entity;

S. 4(1) def. of
Commission
repealed by
No. 10262 s. 4.

* * * *

Committee means the Poisons Advisory
Committee constituted under Division 3 of
Part II;

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S. 4(1) def. of
*Common-
wealth
standard*
inserted by
No. 42/1993
s. 35(c),
repealed by
No. 75/2014
s. 10(2)(a).

compound in relation to a poison or controlled substance means a medicament prepared in accordance with a formula and being a combination of—

- (a) a poison or controlled substance; and
- (b) any other substance or substances—

in such a way that the poison or controlled substance cannot be readily separated from the other substance or substances, and ***to compound*** and derivative expressions have corresponding meanings;

consume, in relation to a substance, includes the following—

S. 4(1) def. of
consume
inserted by
No. 40/2017
s. 4.

- (a) ingest the substance;
- (b) inject the substance;
- (c) inhale the substance;
- (d) smoke the substance, or inhale fumes caused by heating or burning the substance;
- (e) apply the substance externally to the body of a person;
- (f) by any other means introduce the substance into any part of the body of a person;

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S. 4(1) def. of
*dangerous
poison*
repealed by
No. 42/1993
s. 35(a).

* * * *

S. 4(1) def. of
*data source
entity*
inserted by
No. 50/2017
s. 4.

data source entity means an entity, or a class of entity, prescribed to be a data source entity for the purposes of the monitored poisons database;

S. 4(1) def. of
date of supply
inserted by
No. 55/2009
s. 7.

date of supply, in Part VB, means the date a category 1 precursor chemical, a category 2 precursor chemical or a category 3 precursor apparatus, as the case requires, leaves the premises of the person who supplied it;

S. 4(1) def. of
*declared
testing facility*
inserted by
No. 9/2014
s. 4.

declared testing facility means a facility declared by the Chief Commissioner of Police under section 97;

S. 4(1) def. of
*delegated
police officer*
inserted by
No. 52/2006
s. 4.

delegated police officer means—

- (a) a person to whom a function under section 91 has been delegated under section 92; or
- (b) a person who is a member of a class to which a function under section 91 has been delegated under section 92;

dentist means a person registered under the Health Practitioner Regulation National Law—

- (a) to practise in the dental profession as a dentist (other than as a student); and
- (b) in the dentists division of that profession;

S. 4(1) def. of *dentist* substituted by No. 26/1999 s. 107(Sch. item 2), repealed by No. 97/2005 s. 178(1), new def. of *dentist* inserted by No. 97/2005 s. 178(2), substituted by No. 13/2010 s. 35(1)(b).

designated place has the same meaning as in the **Victoria Police Act 2013**;

S. 4(1) def. of *designated place* inserted by No. 45/2017 s. 16.

director, in relation to the licensed medically supervised injecting centre, has the meaning given in section 55B;

S. 4(1) def. of *director* inserted by No. 66/2017 s. 4.

drug-checking director means a general drug-checking worker or special drug-checking worker who—

- (a) is engaged by the holder of a drug-checking permit to do the things set out in section 20AA(6); and
- (b) meets the prescribed requirements (if any);

S. 4(1) def. of *drug-checking director* inserted by No. 41/2024 s. 4.

drug-checking permit means a permit issued under Division 4 of Part II in respect of the provision of a drug-checking service;

S. 4(1) def. of *drug-checking permit* inserted by No. 41/2024 s. 4.

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S. 4(1) def. of
*drug-
checking
place*
inserted by
No. 41/2024
s. 4.

drug-checking place has the meaning given by
section 4B;

S. 4(1) def. of
*drug-
checking
service*
inserted by
No. 41/2024
s. 4.

drug-checking service has the meaning given by
section 4C;

S. 4(1) def. of
*drug of
addiction*
repealed by
No. 42/1993
s. 35(a).

* * * *

S. 4(1) def. of
*drug of
dependence*
substituted by
No. 10002
s. 2(a),
amended by
No. 101/1986
s. 58(1)(a),
substituted by
No. 48/1997
s. 36(1)(a),
amended by
Nos 9/1998
s. 10(a)(ii),
74/2004
s. 6(1)(a)–(c),
41/2011 s. 4,
9/2014 s. 3(1).

drug of dependence means a substance that is—

- (a) a drug—
 - (i) specified in column 1 of Part 1 of
Schedule Eleven; or
 - (ii) included in a class of drug
specified in column 1 of Part 1 of
Schedule Eleven; or
- (b) any fresh or dried parts of any plant
specified in column 1 of Part 2 of
Schedule Eleven; or
- (ba) prescribed as a drug of dependence in
accordance with section 132AA
whether specified as included in Part 1,
Part 2 or Part 3 of Schedule Eleven; or
- (c) a drug—
 - (i) specified in column 1 of Part 3 of
Schedule Eleven; or

- (ii) included in a class of drug specified in column 1 of Part 3 of Schedule Eleven—

and includes—

- (d) any form of a drug specified in column 1 of Part 1 or column 1 of Part 3 of Schedule Eleven, whether natural or synthetic, and the salts, analogues, derivatives and isomers of that drug and any salt of those analogues, derivatives and isomers; and
- (e) any—
 - (i) drug specified in, or drug included in a class of drug specified in column 1 of Part 1 or column 1 of Part 3 of Schedule Eleven, whether natural or synthetic; or
 - (ii) salts, analogues, derivatives or isomers of a drug specified in column 1 of Part 1 or column 1 of Part 3 of Schedule Eleven; or
 - (iii) salt of any analogue, derivative or isomer mentioned in subparagraph (ii)—contained in or mixed with another substance;

end user declaration means a declaration required for the purposes of section 80J, 80L or 80M, as the case requires;

S. 4(1) def. of *end user declaration* inserted by No. 55/2009 s. 7.

enforceable undertaking means an undertaking given by a regulated person under section 55AAM;

S. 4(1) def. of *enforceable undertaking* inserted by No. 39/2024 s. 85(1).

S. 4(1) def. of
*enforceable
undertaking
order*
inserted by
No. 39/2024
s. 85(1).

enforceable undertaking order means an order made by the Magistrates' Court under section 55AAR;

S. 4(1) def. of
entity
inserted by
No. 6/2024
s. 11.

entity, in relation to a class approval, means an entity belonging to a class that carries out an activity involving the manufacture, sale, supply, administration or use of a Schedule 2 poison, Schedule 3 poison, Schedule 4 poison, Schedule 7 poison, Schedule 8 poison or a controlled substance;

S. 4(1) def. of
*fixed site
drug-
checking
permit*
inserted by
No. 41/2024
s. 4.

fixed site drug-checking permit means a drug-checking permit issued in accordance with section 19(4A)(a);

S. 4(1) def. of
*functional
group*
inserted by
No. 9/2014
s. 3(2).

functional group, of a drug, means any of the following where attached to an oxygen, nitrogen, sulphur, phosphorous or carbon atom of the drug—

- (a) an aryl, alkoxy, cyclic diether, carbonyl, acyl, carboxylic acid, acyloxy, alkylamino or dialkylamino group with up to 6 carbon atoms in any alkyl residue;
- (b) an alkyl, alkenyl or alkynyl group with up to 6 carbon atoms in the group;
- (c) a hydroxy, nitro or amino group;
- (d) a hydrogen atom;
- (e) a halogen;

funded aged care service has the same meaning as in the Aged Care Act 2024 of the Commonwealth;

S. 4(1) def. of *funded aged care service* inserted by No. 37/2025 s. 4(1).

general drug-checking worker means a person who—

S. 4(1) def. of *general drug-checking worker* inserted by No. 41/2024 s. 4.

- (a) is engaged by the holder of a drug-checking permit to carry out activities under the permit that do not include anything set out in section 20AA(1) or (2) (whether the engagement is under a contract of employment, or as a volunteer, or otherwise); and
- (b) meets the prescribed requirements (if any);

harm reduction information means—

S. 4(1) def. of *harm reduction information* inserted by No. 41/2024 s. 4.

- (a) information about the composition of a substance, including information about the presence of poisons, controlled substances and drugs of dependence in it; or
- (b) information about the use of a substance, including—
 - (i) information about the possible consequences of using the substance; and
 - (ii) information and advice about how to reduce the harm that use of the substance may cause; or
- (c) information and advice about access to health services, welfare services and similar assistance;

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S. 4(1) def. of
*hazardous
substance*
repealed by
No. 42/1993
s. 35(a).

* * * * *

heroin means diacetyl morphine (also known as
diamorphine) and its salts;

S. 4(1) def. of
*improvement
notice*
inserted by
No. 39/2024
s. 85(1).

improvement notice means a notice given under
section 55AA;

S. 4(1) def. of
*information or
document
production
notice*
inserted by
No. 39/2024
s. 85(1).

information or document production notice
means a notice given under section 55AAT;

S. 4(1) def. of
*industrial and
agricultural
poison*
repealed by
No. 42/1993
s. 35(a).

* * * * *

S. 4(1) def. of
*injecting
centre drug*
inserted by
No. 66/2017
s. 4.

injecting centre drug means a drug of
dependence, or a class of drug of
dependence, prescribed as an injecting
centre drug;

S. 4(1) def. of
*internal
management
protocols*
inserted by
No. 66/2017
s. 4.

internal management protocols, in Part IIA,
means the protocols approved under
section 55E by the Secretary, as in force
from time to time;

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label—

- (a) in section 27A, means a statement in writing on a container of a poison or controlled substance; and

- (b) in any other case—

includes any tag brand mark or statement in writing on or attached to or used in connexion with any container or package containing any poison or controlled substance; and ***labelled*** has a corresponding interpretation;

S. 4(1) def. of ***label*** amended by No. 42/1993 s. 35(d).

licence means a valid and unexpired licence under any Part of this Act or under the regulations;

S. 4(1) def. of ***licence*** amended by No. 10002 s. 5(2)(b).

licensed medically supervised injecting centre means the facility for which a medically supervised injecting centre licence is issued;

S. 4(1) def. of ***licensed medically supervised injecting centre*** inserted by No. 66/2017 s. 4, amended by No. 7/2023 s. 19(1).

licensee means the person named in a licence;

manufacture includes the process of refining, manipulating and mixing any poison or controlled substance (including a poison or controlled substance in the raw state); and "manufacturer" has a corresponding interpretation;

* * * * *

S. 4(1) def. of ***medical practitioner*** repealed by No. 23/1994 s. 118(Sch. 1 item 17.1(a)).

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S. 4(1) def. of
*medically
supervised
injecting
centre licence*
inserted by
No. 66/2017
s. 4.

medically supervised injecting centre licence
means the licence issued under section 55C;

S. 4(1) def. of
*medicinal
cannabis*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * *

S. 4(1) def. of
*medicinal
cannabis
cultivation
licence*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * *

S. 4(1) def. of
*medicinal
cannabis
manufac-
turing licence*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * *

S. 4(1) def. of
*medicinal
cannabis
product*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * *

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*	*	*	*	*	S. 4(1) def. of <i>medicinal poison</i> repealed by No. 42/1993 s. 35(a).
<i>mobile bait facility</i> means a trailer or vehicle suitably fitted out or containing equipment and apparatus for the manufacture, sale and supply of a perishable pest animal bait that is a Schedule 7 poison to which a mobile bait facility licence relates;					S. 4(1) def. of <i>mobile bait facility</i> inserted by No. 41/2024 s. 12(1)(a).
<i>mobile bait facility licence</i> means a licence issued under section 19(6);					S. 4(1) def. of <i>mobile bait facility licence</i> inserted by No. 41/2024 s. 12(1)(a).
<i>mobile bait facility location</i> means a location where the manufacture, sale or supply of a perishable pest animal bait that is a Schedule 7 poison authorised under a mobile bait facility licence is carried out;					S. 4(1) def. of <i>mobile bait facility location</i> inserted by No. 41/2024 s. 12(1)(a).
<i>mobile drug-checking facility</i> means a trailer or vehicle suitably fitted out or containing equipment and apparatus for—					S. 4(1) def. of <i>mobile drug-checking facility</i> inserted by No. 41/2024 s. 4.
(a) the provision of a drug-checking service; and					
(b) the carrying out of other activities under a drug-checking permit—					
whether those things are to be provided and carried out from the facility itself or from a structure temporarily used for that purpose;					
<i>mobile drug-checking permit</i> means a drug-checking permit issued in respect of a mobile drug-checking facility in accordance with section 19(4A)(b);					S. 4(1) def. of <i>mobile drug-checking permit</i> inserted by No. 41/2024 s. 4.

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S. 4(1) def. of
mobile facility
inserted by
No. 75/2014
s. 4,
substituted by
No. 41/2024
s. 12(1)(b).

mobile facility means—

- (a) a mobile bait facility; or
- (b) a mobile drug-checking facility;

S. 4(1) def. of
mobile facility
licence
inserted by
No. 75/2014
s. 4,
repealed by
No. 41/2024
s. 12(1)(c).

* * * *

S. 4(1) def. of
mobile facility
location
inserted by
No. 75/2014
s. 4,
repealed by
No. 41/2024
s. 12(1)(c).

* * * *

S. 4(1) def. of
monitored
poison
inserted by
No. 50/2017
s. 4.

monitored poison means—

- (a) a Schedule 8 poison; or
- (b) a monitored supply poison; or
- (c) a poison that is prescribed to be a monitored poison; or
- (d) a poison that belongs to a class of poisons that are prescribed to be monitored poisons;

S. 4(1) def. of
monitored
poisons
database
inserted by
No. 50/2017
s. 4.

monitored poisons database means the database established under Division 9 of Part II;

monitored supply poison means a poison that—

- (a) is prescribed to be a monitored supply poison; or
- (b) belongs to a class of poisons that are prescribed to be monitored supply poisons;

S. 4(1) def. of *monitored supply poison* inserted by No. 50/2017 s. 4.

* * * * *

S. 4(1) def. of *narcotic plant* repealed by No. 10002 s. 2(b).

nurse practitioner means a nurse whose registration is endorsed by the Nursing and Midwifery Board of Australia under section 95 of the Health Practitioner Regulation National Law;

S. 4(1) def. of *nurse practitioner* inserted by No. 94/2000 s. 48, repealed by No. 97/2005 s. 178(1), new def. of *nurse practitioner* inserted by No. 97/2005 s. 178(2), substituted by No. 13/2010 s. 35(1)(c).

Order in Council means an Order made by the Governor in Council published in the Government Gazette;

paramedic practitioner means a registered paramedic who—

- (a) has completed a prescribed postgraduate qualification; and
- (b) satisfies the prescribed experience requirements (if any);

S. 4(1) def. of *paramedic practitioner* inserted by No. 1/2025 s. 4.

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S. 4(1) def. of
*patient
medicinal
cannabis
access
authorisation*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * * *

S. 4(1) def. of
*permitted
quantity of
injecting
centre drug*
inserted by
No. 66/2017
s. 4.

permitted quantity of injecting centre drug means
a prescribed amount of an injecting centre
drug;

S. 4(1) def. of
permitted site
inserted by
No. 66/2017
s. 4.

permitted site means the land described in
Vol. 09195 Fol. 045;

S. 4(1) def. of
pharmacist
substituted by
No. 80/2004
s. 150(Sch. 2
item 2.1(b)),
repealed by
No. 97/2005
s. 178(1),
new def. of
pharmacist
inserted by
No. 97/2005
s. 178(2),
substituted by
No. 13/2010
s. 35(1)(d).

pharmacist means a person registered under the
Health Practitioner Regulation National
Law to practise in the pharmacy profession
(other than as a student);

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poison or controlled substance means—

- (a) a Schedule 1 poison; or
- (b) a Schedule 2 poison; or
- (c) a Schedule 3 poison; or
- (d) a Schedule 4 poison; or
- (e) a Schedule 5 poison; or
- (f) a Schedule 6 poison; or
- (g) a Schedule 7 poison; or
- (h) a Schedule 8 poison; or
- (i) a Schedule 9 poison; or
- (j) a regulated poison other than a Schedule 7 poison;

* * * * *

Poisons Code means the Poisons Code prepared under section 12 as amended or substituted and in force from time to time;

Poisons List means the Poisons List in the Poisons Code;

Poisons Standard means the current Poisons Standard within the meaning of the Therapeutic Goods Act 1989 of the Commonwealth;

police officer has the same meaning as in the **Victoria Police Act 2013**;

S. 4(1) def. of *poison or controlled substance* substituted by No. 42/1993 s. 35(e), amended by Nos 20/2016 s. 101(2)(a)(b), 34/2019 s. 4(2)(a).

S. 4(1) def. of *Poisons Code* inserted by No. 42/1993 s. 35(f), amended by No. 68/1996 s. 9.

S. 4(1) def. of *Poisons List* inserted by No. 42/1993 s. 35(f).

S. 4(1) def. of *Poisons Standard* inserted by No. 75/2014 s. 10(1).

S. 4(1) def. of *police officer* inserted by No. 37/2014 s. 10(Sch. item 47.1(a)).

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S. 4(1) def. of
*potent
substance*
repealed by
No. 42/1993
s. 35(a).

* * * *

S. 4(1) def. of
*practitioner
medicinal
cannabis
authorisation*
inserted by
No. 20/2016
s. 101(1),
repealed by
No. 34/2019
s. 4(1).

* * * *

prescribed means prescribed by this Act or the
regulations;

proclamation means proclamation of the
Governor in Council;

S. 4(1) def. of
*prohibition
notice*
inserted by
No. 39/2024
s. 85(1).

prohibition notice means a notice given under
section 55AAG;

S. 4(1) def. of
*protective
services
officer*
inserted by
No. 43/2011
s. 18,
substituted by
No. 37/2014
s. 10(Sch.
item 47.1(d)).

protective services officer has the same meaning
as in the **Victoria Police Act 2013**;

S. 4(1) def. of
*psychoactive
effect*
inserted by
No. 40/2017
s. 4.

psychoactive effect, in relation to a person,
means—

- (a) stimulation or depression of the
person's central nervous system,
resulting in hallucinations or in a
significant disturbance in, or significant

change to, motor function, thinking, behaviour, perception, awareness or mood; or

- (b) causing a state of dependence, including physical or psychological addiction;

psychoactive substance means—

- (a) a substance that, when consumed by a person, has a psychoactive effect; or
- (b) a substance that is represented as, or in any other way held out to be, a substance that, when consumed by a person, has a psychoactive effect; or
- (c) a substance referred to in paragraph (a) or (b) that is contained in or mixed with another substance—

S. 4(1) def. of *psychoactive substance* inserted by No. 40/2017 s. 4, amended by No. 34/2019 s. 4(2)(b).

but does not include any of the following—

- (d) a drug of dependence;
- (e) a poison or controlled substance;
- (f) a volatile substance within the meaning of Part IV;

* * * * *

- (h) a therapeutic good—

- (i) included in the Register within the meaning of the Therapeutic Goods Act 1989 of the Commonwealth; or
- (ii) exempted from the operation of Part 3-2 of that Act by regulations made under section 18 of that Act; or

- (iii) exempted from Division 2 of Part 3-2 of that Act under section 18A of that Act; or
- (iv) that is the subject of an approval or authority under section 19 of that Act, if used in accordance with that approval or authority; or
- (v) that is the subject of an approval under section 19A of that Act, if used in accordance with that approval;
- (i) food within the meaning of the **Food Act 1984** that complies with the Food Standards Code within the meaning of that Act;
- (j) liquor within the meaning of the **Liquor Control Reform Act 1998**;
- (k) a tobacco product within the meaning of the **Tobacco Act 1987**;
- (l) a chemical product within the meaning of the **Agricultural and Veterinary Chemicals (Control of Use) Act 1992**;
- (m) a plant or fungus or an extract of a plant or fungus;
- (n) a prescribed substance or a substance that is in a prescribed class of substances;

S. 4(1) def. of
*public health
emergency
order*
inserted by
No. 17/2008
s. 4.

public health emergency order means an order made under section 22D and includes an order extended, amended or varied under section 22G;

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public place has the same meaning as it has in the
Summary Offences Act 1966;

S. 4(1) def. of
public place
inserted by
No. 40/2017
s. 4.

registered Chinese herbal dispenser means a
person registered under the Health
Practitioner Regulation National Law to
practise in the Chinese medicine profession
in the division of Chinese herbal dispenser;

S. 4(1) def. of
*registered
Chinese
herbal
dispenser*
inserted by
No. 18/2000
s. 96(1),
repealed by
No. 97/2005
s. 178(1),
new def. of
*registered
Chinese
herbal
dispenser*
inserted by
No. 97/2005
s. 178(2),
substituted by
No. 27/2012
s. 9(a).

registered Chinese medicine practitioner means a
person registered under the Health
Practitioner Regulation National Law to
practise in the Chinese medicine profession
in the division of Chinese herbal medicine
practitioner;

S. 4(1) def. of
*registered
Chinese
medicine
practitioner*
inserted by
No. 18/2000
s. 96(1),
repealed by
No. 97/2005
s. 178(1),
new def. of
*registered
Chinese
medicine
practitioner*
inserted by
No. 97/2005
s. 178(2),
substituted by
No. 27/2012
s. 9(b).

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S. 4(1) def. of
*registered
health
practitioner*
inserted by
No. 50/2017
s. 4.

registered health practitioner means a person registered under the Health Practitioner Regulation National Law to practise in a health profession within the meaning of that Law (other than as a student);

S. 4(1) def. of
*registered
medical
practitioner*
inserted by
No. 23/1994
s. 118(Sch. 1
item 17.1(b)),
repealed by
No. 97/2005
s. 178(1),
new def. of
*registered
medical
practitioner*
inserted by
No. 97/2005
s. 178(2),
substituted by
No. 13/2010
s. 35(1)(e).

registered medical practitioner means a person registered under the Health Practitioner Regulation National Law to practise in the medical profession (other than as a student);

S. 4(1) def. of
*registered
midwife*
inserted by
No. 14/2012
s. 4.

registered midwife means a person registered under the Health Practitioner Regulation National Law—

- (a) to practise in the nursing and midwifery profession as a midwife (other than as a nurse or student); and
- (b) in the register of midwives kept for that profession;

S. 4(1) def. of
*registered
nurse*
inserted by
No. 13/2010
s. 35(2).

registered nurse means a person registered under the Health Practitioner Regulation National Law—

- (a) to practise in the nursing and midwifery profession as a nurse (other than as a midwife or as a student); and

(b) in the registered nurses division of that profession;

registered optometrist means a person registered under the Health Practitioner Regulation National Law to practise in the optometry profession (other than as a student);

S. 4(1) def. of *registered optometrist* inserted by No. 56/1996 s. 100(1), repealed by No. 97/2005 s. 178(1), new def. of *registered optometrist* inserted by No. 97/2005 s. 178(2), substituted by No. 13/2010 s. 35(1)(e), amended by No. 29/2011 s. 3(Sch. 1 item 30).

registered paramedic means a person registered under the Health Practitioner Regulation National Law to practise in the paramedicine profession (other than as a student);

S. 4(1) def. of *registered paramedic* inserted by No. 1/2025 s. 4.

registered podiatrist means a person registered under the Health Practitioner Regulation National Law to practise in the podiatry profession (other than as a student);

S. 4(1) def. of *registered podiatrist* inserted by No. 97/2005 s. 178(2), substituted by No. 13/2010 s. 35(1)(e).

regulated person means—

- (a) a person to whom obligations or offences under Part II or the regulations apply in relation to the person obtaining, possessing, using, administering, prescribing, selling,

S. 4(1) def. of *regulated person* inserted by No. 39/2024 s. 85(1).

supplying or manufacturing a poison or controlled substance and includes—

- (i) a person authorised by section 13 to obtain, possess, use, sell or supply a poison or controlled substance; and
- (ii) a person who is the holder of a licence, permit or warrant issued under section 19; and
- (iii) a person or a person who belongs to a class of person authorised by the regulations to obtain or possess a Schedule 4 Poison, Schedule 8 Poison or Schedule 9 Poison; or

- (b) an entity that belongs to a class of entity for which an approval under section 20A is granted—

but does not include—

- (c) a person for whom a poison or controlled substance is supplied in accordance with this Act or the regulations, if the person is using the poison or controlled substance to the extent and for the purpose for which it is supplied; or
- (d) a person who, in the person's personal capacity, has the care of, or who is assisting in the care of, a person referred to in paragraph (c), if the person referred to in paragraph (c) is using the poison or the controlled substance to the extent and for the purpose for which it is supplied; or

- (e) a person who, in the person's personal capacity, has the care or custody of an animal for which a poison or controlled substance is supplied in accordance with this Act or the regulations;

regulated poison means—

- (a) a Schedule 7 poison; or
(b) a substance included in the Poisons Code in the list of substances that are not for general sale by retail;

S. 4(1) def. of *regulated poison* inserted by No. 42/1993 s. 35(g).

Regulations means Regulations made under this Act or any corresponding previous enactment;

residential aged care home means a residential care home within the meaning of the Aged Care Act 2024 of the Commonwealth;

S. 4(1) def. of *residential aged care home* inserted by No. 37/2025 s. 4(1).

* * * * *

S. 4(1) def. of *restricted substance* repealed by No. 42/1993 s. 35(a).

Schedule 1 Poison means a substance in Schedule 1 in the Poisons List;

S. 4(1) def. of *Schedule 1 Poison* inserted by No. 42/1993 s. 35(h).

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S. 4(1) def. of
Schedule 2
Poison
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(a),
75/2014
s. 10(2)(b).

Schedule 2 Poison means a substance in
Schedule 2 of the Poisons Standard;

S. 4(1) def. of
Schedule 3
Poison
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(b),
75/2014
s. 10(2)(c).

Schedule 3 Poison means a substance in
Schedule 3 of the Poisons Standard;

S. 4(1) def. of
Schedule 4
Poison
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(c),
75/2014
s. 10(2)(d).

Schedule 4 Poison means a substance in
Schedule 4 of the Poisons Standard;

S. 4(1) def. of
Schedule 5
Poison
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(d),
75/2014
s. 10(2)(e).

Schedule 5 Poison means a substance in
Schedule 5 of the Poisons Standard;

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Schedule 6 Poison means a substance in
Schedule 6 of the Poisons Standard;

S. 4(1) def. of
*Schedule 6
Poison*
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(e),
75/2014
s. 10(2)(f).

Schedule 7 Poison means a substance in
Schedule 7 of the Poisons Standard;

S. 4(1) def. of
*Schedule 7
Poison*
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(f),
75/2014
s. 10(2)(g).

Schedule 8 Poison means a substance in
Schedule 8 of the Poisons Standard;

S. 4(1) def. of
*Schedule 8
Poison*
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(g),
75/2014
s. 10(2)(h),
20/2016
s. 101(2)(c),
substituted by
No. 34/2019
s. 4(2)(c).

S. 4(1) def. of
*Schedule 9
Poison*
inserted by
No. 42/1993
s. 35(h),
amended by
Nos 74/2004
s. 6(2)(h),
75/2014
s. 10(2)(i),
20/2016
s. 101(2)(d),
substituted by
No. 34/2019
s. 4(2)(c).

Schedule 9 Poison means a substance in
Schedule 9 of the Poisons Standard;

S. 4(1) def. of
Secretary
inserted by
No. 46/1998
s. 7(Sch. 1),
amended by
No. 46/2008
s. 275(1).

Secretary has the same meaning as in section 3(1)
of the **Public Health and Wellbeing Act
2008**;

sell means sell, whether by—

- (a) wholesale or retail or otherwise, barter,
exchange, deal in, agree to sell, offer or
expose for sale, keep or have in
possession for sale, send forward,
deliver or receive for or for the purpose
of sale or in the course of sale; and
- (b) authorize, direct, allow, cause, suffer,
permit or attempt any of the acts or
things mentioned in paragraph (a)—

and ***sale*** and each of the other derivatives of
sell have corresponding meanings;

S. 4(1) def of
*serious risk to
public health*
inserted by
No. 17/2008
s. 4.

serious risk to public health means a material risk
that substantial injury or prejudice to the
health of human beings has occurred or may
occur having regard to—

- (a) the number of persons likely to be
affected;

- (b) the location, immediacy and seriousness of the threat to the health of persons;
- (c) the nature, scale and effects of the harm, illness or injury that may develop;

special drug-checking worker means a person who—

S. 4(1) def. of *special drug-checking worker* inserted by No. 41/2024 s. 4.

- (a) is engaged by the holder of a drug-checking permit to do a thing set out in section 20AA(1) or (2)—
 - (i) whether the engagement is under a contract of employment, or as a volunteer, or otherwise; and
 - (ii) whether or not the worker's engagement involves them carrying out another activity under the permit; and
- (b) holds the prescribed qualifications; and
- (c) meets the prescribed other requirements (if any);

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*

S. 4(1) def. of *special poison* repealed by No. 42/1993 s. 35(a).

staff means—

S. 4(1) def. of *staff* inserted by No. 66/2017 s. 4, amended by No. 7/2023 s. 34.

- (a) in relation to the licensed medically supervised injecting centre, the persons engaged (whether under contracts of employment, or as volunteers, or otherwise) to provide services for the centre; and

- (b) in relation to the permitted site, the persons engaged (whether under contracts of employment, or as volunteers, or otherwise), to provide services for any facility that is located at the permitted site, including at the licensed medically supervised injecting centre;

Note

Under section 55B(4), the director and each supervisor of a licensed medically supervised injecting centre are taken to be members of the staff of that facility.

S. 4(1) def. of *standard sentence* inserted by No. 34/2017 s. 36.

standard sentence, in relation to an offence, has the same meaning as in the **Sentencing Act 1991**;

S. 4(1) def. of *substance* amended by No. 48/1997 s. 36(1)(b).

substance includes material, preparation, extract and admixture;

S. 4(1) def. of *sufficient proof of identity of receiver* inserted by No. 55/2009 s. 7.

sufficient proof of identity of receiver, for the purposes of Part VB, means proof of identity provided by one of the following—

- (a) a driver licence issued under the **Road Safety Act 1986**, or a licence issued in another State or a Territory that is the equivalent of a driver licence, that displays a photograph of the person; or
- (b) an Australian passport or a foreign passport; or
- (c) a proof of age card issued under the **Liquor Control Reform Act 1998** or a card issued in another State or a

Territory that is the equivalent of a
proof of age card;

supervisor, in relation to the licensed medically
supervised injecting centre, has the meaning
given in section 55B;

S. 4(1) def. of
supervisor
inserted by
No. 66/2017
s. 4.

supply means—

- (a) supply, provide, give or deliver,
whether or not for fee, reward or
consideration or in expectation of fee,
reward or consideration;
- (b) agree or offer for the purpose of supply
as defined in paragraph (a), expose for
the purpose of supply as so defined,
keep or have in possession for the
purpose of supply as so defined, send
forward or receive for the purpose of
supply as so defined; and
- (c) authorize, direct, cause, allow, suffer,
permit or attempt to do any of the acts
or things mentioned in paragraph (a)
or paragraph (b)—

and the derivatives of ***supply*** shall have
corresponding meanings;

therapeutic use means use in or in connection
with—

- (a) the preventing, diagnosing, curing or
alleviating of a disease, ailment, defect
or injury in human beings or animals;
or
- (b) influencing, inhibiting, or modifying of
a physiological process in human
beings or animals; or

S. 4(1) def. of
*therapeutic
use*
inserted by
No. 42/1993
s. 35(i).

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- (c) the testing of the susceptibility of human beings or animals to a disease or ailment;

S. 4(1) def. of *veterinary practitioner* inserted by No. 58/1997 s. 96(Sch. item 3.1).

veterinary practitioner means a veterinary practitioner registered under the **Veterinary Practice Act 1997**;

S. 4(1) def. of *veterinary surgeon* repealed by No. 58/1997 s. 96(Sch. item 3.1).

* * * * *

S. 4(1) def. of *Victoria Police employee* inserted by No. 37/2014 s. 10(Sch. item 47.1(a)).

Victoria Police employee has the same meaning as in the **Victoria Police Act 2013**;

S. 4(1) def. of *voluntary assisted dying permit* inserted by No. 61/2017 s. 122.

voluntary assisted dying permit has the same meaning as it has in the **Voluntary Assisted Dying Act 2017**;

S. 4(1) def. of *voluntary assisted dying substance* inserted by No. 61/2017 s. 122.

voluntary assisted dying substance has the same meaning as it has in the **Voluntary Assisted Dying Act 2017**;

wholesale means—

- (a) sale or supply for the purposes of resale;

- (b) sale or supply to a person for the purposes of supply by that person to another person; and
- (c) sale or supply for the purposes of use in connexion with a trade, business, profession or industry;

wholesale dealer means a person who sells or supplies by wholesale.

- (2) A reference in this Act to ***manufacture*** does not include a reference to the process of refining, manipulating and mixing a poison or controlled substance, where the process is carried out by a pharmacist in the lawful practise of his profession in—

- (a) premises used for sale by retail and registered under Part 3 of the **Pharmacy Regulation Act 2010**; or

S. 4(2)(a) substituted by No. 80/2004 s. 150(Sch. 2 item 2.2), amended by Nos 97/2005 s. 182(Sch. 4 item 16.1(a)), 39/2010 s. 119(a).

- (b) premises used for sale by retail in circumstances approved under Part 3 of the **Pharmacy Regulation Act 2010**; or

S. 4(2)(b) substituted by No. 80/2004 s. 150(Sch. 2 item 2.2), amended by Nos 97/2005 s. 182(Sch. 4 item 16.1(b)), 39/2010 s. 119(b).

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S. 4(2)(c)
inserted by
No. 80/2004
s. 150(Sch. 2
item 2.2),
amended by
Nos 97/2005
s. 182(Sch. 4
item 16.1(c)),
39/2010
s. 119(c).

(c) a pharmacy department approved under
Part 3 of that Act—

in which the pharmacist manufactures
preparations of poisons or controlled substances
for sale or distribution only from those premises
or from such other premises as may be owned and
operated by that pharmacist selling by retail.

S. 4(3)
inserted by
No. 10002
s. 8(2),
repealed by
No. 48/1997
s. 36(2),
new s. 4(3)
inserted by
No. 18/2000
s. 96(2).

(3) A reference in this Act to *manufacture* does not
include a reference to the process of refining,
manipulating and mixing a Schedule 1 poison,
where the process is carried out by a registered
Chinese medicine practitioner, a registered
Chinese herbal dispenser or an authorised
practitioner in the lawful practice of his or her
profession for the purposes of use, sale or supply
by that practitioner or dispenser.

S. 4A
inserted by
No. 54/1997
s. 4.

4A Act does not apply to certain processed products

(1) This Act does not apply to—

- (a) a processed fibre product made from
cannabis if the product—
 - (i) does not contain more than 0·1 per cent
of tetrahydrocannabinol; and
 - (ii) does not contain whole cannabis seeds;
and
 - (iii) is in a form not suitable for ingestion,
smoking or inhaling purposes; or

- (b) a processed product made from cannabis seeds if the product—
 - (i) does not contain more than 0.001 per cent of tetrahydrocannabinol; and
 - (ii) does not contain whole cannabis seeds.
- (2) In this section—
 - cannabis* means a plant or any part of a plant of the genus *Cannabis L.*, whether fresh or dried;
 - processed* means treated by mechanical, chemical or other artificial means but does not include—
 - (a) harvesting; or
 - (b) the natural process of decay.

4B Meaning of *drug-checking place*

- (1) For the purposes of this Act, the *drug-checking place* for a fixed site drug-checking permit is the premises described in the permit.
- (2) For the purposes of this Act, the *drug-checking place* for a mobile drug-checking permit consists of—
 - (a) the areas that are to be included under subsection (3) or (4); and
 - (b) if, under subsection (5), the mobile drug-checking facility in respect of which the permit is issued is to be included, that facility.
- (3) The area within a temporary structure is to be included if the structure is erected for the purposes of—
 - (a) the provision of a drug-checking service under the drug-checking permit; or

S. 4B
inserted by
No. 41/2024
s. 5.

- (b) the carrying out of another activity under the drug-checking permit.
- (4) If an approval under section 22CA(2) is issued to the holder of a mobile drug-checking permit, each area identified in that approval is to be included during the period specified in the approval.
- (5) The mobile drug-checking facility is to be included if—
 - (a) the provision of a drug-checking service under the drug-checking permit; or
 - (b) the carrying out of another activity under the drug-checking permit—is to occur within the facility itself.

S. 4C
inserted by
No. 41/2024
s. 5.

4C Meaning of *drug-checking service*

- (1) For the purposes of this Act, each of the following is a *drug-checking service*—
 - (a) the service of analysing a substance for the purpose of obtaining information about the composition of the substance (including information about the presence of poisons, controlled substances and drugs of dependence in it);

Note

Under a drug-checking permit, the substances in respect of which this service can be provided include substances supplied to the holder of the permit or a special drug-checking worker at the drug-checking place. See section 20AA(1).

- (b) the service of providing harm reduction information.

Note

Harm reduction information includes the information referred to in paragraph (a)—see the definition of *harm reduction information*.

- (2) However, none of the following is a ***drug-checking service***—
- (a) anything done by an authorised police employee under section 44B;
 - (b) anything done under or for the purposes of a poppy cultivation licence;
 - (c) examination or testing of anything taken in accordance with Part IVA or IVB;
 - (d) analysis of a sample of a thing taken—
 - (i) in execution of a warrant; or
 - (ii) under section 91(2);
 - (e) analysis carried out for the purposes of a proceeding for an offence.

5 Meaning of *possession*

Without restricting the meaning of the word ***possession***, any substance shall be deemed for the purposes of this Act to be in the possession of a person so long as it is upon any land or premises occupied by him or is used, enjoyed or controlled by him in any place whatsoever, unless the person satisfies the court to the contrary.

S. 5
amended by
No. 10002
s. 3(a)(b).

6 Meaning of *corresponding law*

- (1) In this Act the expression ***corresponding law*** means any law stated in a certificate purporting to be issued by or on behalf of the Government of—
- (a) any British possession (including any territory which is under His Majesty's protection or which is governed under a trusteeship agreement by the Government of any part of His Majesty's dominions) outside Victoria; or

S. 6(1)(a)
amended by
No. 25/2023
s. 7(Sch. 1
item 10.1).

- (b) any foreign country (including any protectorate thereof or any territory which is governed under a trusteeship agreement by the Government thereof)—

to be a law providing for the control and regulation in that possession or country of the manufacture sale use export or import of drugs in accordance with the provisions of—

- (i) the International Opium Convention signed at The Hague on the twenty-third day of January One thousand nine hundred and twelve; or
 - (ii) the Convention which is referred to as the Geneva Convention in the preamble to the Act of the Parliament of the United Kingdom known as the Dangerous Drugs Act 1925 and as having been signed on behalf of His Majesty on the nineteenth day of February One thousand nine hundred and twenty-five; or
 - (iii) the Single Convention on Narcotic Drugs, 1961 signed at New York on the thirtieth day of March One thousand nine hundred and sixty-one.
- (2) Any statement in a certificate mentioned in subsection (1) as to the effect of the law mentioned in the certificate or any statement in a certificate mentioned in subsection (1) that any facts constitute an offence against that law shall be conclusive.

7 Act not to derogate from provisions of certain other Acts

This Act shall be read and construed as being in aid and not in derogation of the **Public Health and Wellbeing Act 2008**, the **Wildlife Act 1975**, the **Liquor Control Reform Act 1998**, the Health Practitioner Regulation National Law, the **Voluntary Assisted Dying Act 2017**, the **Veterinary Practice Act 1997**, the **Severe Substance Dependence Treatment Act 2010**, the **Agricultural and Veterinary Chemicals (Control of Use) Act 1992** and the **Agricultural and Veterinary Chemicals (Victoria) Act 1994**.

S. 7
amended by
Nos 12/1987
s. 36(5)(a),
97/1987
s. 181(2),
23/1994
s. 118(Sch. 1
item 17.2),
46/1992
s. 78(1)
(a)(b) (as
amended by
Nos 73/1994
s. 56(1)(a)),
74/2000
s. 3(Sch. 1
item 38.1
(a)(b)), 80/2004
s. 150(Sch. 2
item 2.3),
97/2005
s. 182(Sch. 4
item 16.2),
46/2008
s. 275(2),
13/2010 s. 36,
43/2010 s. 45,
27/2012 s. 10,
20/2016 s. 102,
61/2017 s. 123,
34/2019 s. 5.

8 References in other Acts

In any Act other than this Act and in any rule regulation or by-law made under any Act other than this Act—

* * * * *

S. 8(a)
repealed by
No. 42/1993
s. 36.

- (b) a reference to a dangerous drug within the meaning of the **Poisons Act 1958** which was by virtue of section 3(3) of the **Poisons Act 1962** deemed to have been a reference to a specified drug within the meaning of the **Poisons Act 1962** shall, notwithstanding anything in section 3(3) of that Act, be

deemed to be a reference to a drug of dependence within the meaning of section 4 of this Act.

9 Revocation of proclamation etc.

- (1) An Order in Council made for the purposes of this Act may be amended varied or revoked by Order in Council.

S. 9(2)
amended by
No. 10002
s. 16(a)(b),
repealed by
No. 42/1993
s. 37(a).

* * * *

- (3) A proclamation made for the purposes of this Act—

S. 9(3)
amended by
No. 42/1993
s. 37(b).

- (a) shall be published in the Government Gazette; and
(b) may be amended varied or revoked by proclamation published in the Government Gazette.

S. 10
repealed by
No. 10002
s. 5(2)(c).

* * * *

11 Act to bind the Crown

- (1) This Act shall bind the Crown in right of the State of Victoria and, so far as the legislative power of the Parliament permits, shall also bind the Crown in all its other capacities.
(2) Insofar as the Crown in any relevant capacity is bound by this Act, a reference in this Act to a person includes a reference to the Crown in that capacity.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part I—Introductory and transitional

*	*	*	*	*	S. 11(3) repealed by No. 101/1986 s. 55(1)(b).
*	*	*	*	*	S. 11(4) repealed by No. 10002 s. 5(2)(c).

Part II—Poisons and controlled substances

Division 1—Classification

12 Poisons Code

S. 12
substituted by
No. 42/1993
s. 38.

(1) The Minister may prepare a Poisons Code.

(2) The Poisons Code must contain—

(a) a Poisons List; and

S. 12(2)(b)
amended by
No. 75/2014
s. 11(a).

(b) any provisions (including appendices) of the Poisons Standard concerning the labelling, storing, packaging or advertising of poisons or controlled substances that the Minister considers are in a form suitable for inclusion in the Code; and

S. 12(2)(c)
amended by
No. 75/2014
s. 11(b).

(c) any provisions (including appendices) of the Poisons Standard relating to the interpretation of provisions included in the Code under paragraph (a) or (b).

12A The Poisons List

S. 12A
inserted by
No. 42/1993
s. 38.

S. 12A(1)
amended by
No. 74/2004
s. 7(1)(a).

(1) The Poisons List may contain—

S. 12A(1)(a)
substituted by
No. 74/2004
s. 7(1)(b),
amended by
Nos 97/2005
s. 182(Sch. 4
item 16.3),
27/2012 s. 11.

(a) a list of substances that are of plant, animal or mineral origin that in the public interest should be available only from a person registered by the Chinese Medicine Board of Australia under the Health Practitioner Regulation National Law or authorised under another Act, being Schedule 1 poisons; and

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

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| <p>(b) a list of any of the substances in Schedule 1 of the Poisons List or Schedules 2 to 9 of the Poisons Standard or the Appendices to the Poisons Standard that are not for general sale by retail but can only be supplied to persons specifically authorised by this Act or the Regulations, or with a permit or warrant under this Act, to obtain them; and</p> | <p>S. 12A(1)(b)
amended by
Nos 74/2004
s. 7(1)(c),
75/2014
s. 12(1).</p> |
| <p>(c) a list of exemptions from Schedule 1 of the Poisons List or Schedules 2 to 9 of the Poisons Standard.</p> | <p>S. 12A(1)(c)
amended by
Nos 74/2004
s. 7(1)(d),
75/2014
s. 12(2).</p> |
| <p>* * * * *</p> | <p>S. 12A(2)
repealed by
No. 74/2004
s. 7(2).</p> |
| <p>(3) The Poisons List may specify—</p> | |
| <p>* * * * *</p> | <p>S. 12A(3)(a)
repealed by
No. 74/2004
s. 7(3).</p> |
| <p>(b) any substance in the list of substances that are not for general sale by retail by incorporating by reference any provisions (including appendices) in the Poisons Standard relating to that matter, and any provision of that standard relating to the interpretation of any part of the standard so incorporated; and</p> | <p>S. 12A(3)(b)
amended by
No. 75/2014
s. 12(3)(a).</p> |
| <p>(c) any substances in the list of exemptions by incorporating by reference any provisions (including appendices) in the Poisons Standard relating to substances that are wholly or partially exempted from the standard.</p> | <p>S. 12A(3)(c)
amended by
No. 75/2014
s. 12(3)(b).</p> |
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S. 12A(4)
substituted by
No. 74/2004
s. 7(4),
amended by
No. 75/2014
s. 12(4).

- (4) In this Act, a reference to a particular substance in Schedule 1 of the Poisons List or to a particular substance in Schedules 2 to 9 of the Poisons Standard excludes that substance to the extent that it is included in the list of exemptions under subsection (1)(c).

S. 12A Table
amended by
Nos 23/1994
s. 118(Sch. 1
item 17.3),
46/1998
s. 7(Sch. 1),
18/2000 s. 97,
repealed by
No. 74/2004
s. 7(5).

* * * *

S. 12B
inserted by
No. 42/1993
s. 38,
amended by
No. 75/2014
s. 13.

12B Requirements for labelling and other matters

Without limiting section 12(2)(b), in determining for the purposes of that provision whether a provision of the Poisons Standard is suitable for inclusion in the Poisons Code, the matters which the Minister may take into account include but are not limited to—

- (a) whether the provision applies to the State or an individual;
- (b) whether the provision is in the form of a recommendation or suggestion, rather than an obligation;
- (c) whether the provision is in terms sufficiently certain to enable it to be understood and complied with.

S. 12C
inserted by
No. 42/1993
s. 38.

12C What if the Poisons Code conflicts with the Act or regulations?

If there is an inconsistency between the Poisons Code and a provision of this Act or the regulations, the provision of this Act or the regulations prevails.

12D Incorporation of the Poisons Standard

S. 12D
(Heading)
inserted by
No. 75/2014
s. 14(1).

S. 12D
inserted by
No. 42/1993
s. 38.

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|---|---|
| (1) Any part of the Poisons Standard to be incorporated by reference in the Poisons Code may be so incorporated as in force at a particular time or from time to time. | S. 12D(1)
amended by
No. 75/2014
s. 14(2). |
| (2) To the extent that it is incorporated by reference in the Poisons Code, the Poisons Standard forms part of that Code. | S. 12D(2)
amended by
No. 75/2014
s. 14(3). |
| (3) Subject to subsection (4), if any part of the Poisons Standard, as in force from time to time, is incorporated by reference in the Poisons Code the part so incorporated must be taken to include that part as amended, varied, remade or superseded from time to time. | S. 12D(3)
amended by
No. 75/2014
s. 14(4). |
| (4) If part of the Poisons Standard, as in force from time to time, is incorporated by reference in the Poisons Code and that part is amended, varied, remade or superseded, then until the date fixed under section 12K as the date on which the new matter takes effect the matter so incorporated must be taken not to have been so amended, varied, remade or superseded. | S. 12D(4)
amended by
No. 75/2014
s. 14(5). |
| (5) If a provision of the Poisons Standard, as in force from time to time, is incorporated by reference in the Poisons Code and that provision is amended, substituted or revoked under section 12E(1E), then until the date fixed under section 12K as the date on which the amendment, substitution or revocation takes effect, the provision amended, | S. 12D(5)
inserted by
No. 39/2024
s. 86. |

substituted or revoked must be taken not to have
been amended, substituted or revoked.

S. 12E
inserted by
No. 42/1993
s. 38.

12E Amendment of Code

(1) The Minister may at any time amend the Poisons
Code—

(a) to correct—

(i) a clerical error or an error arising from
an accidental slip or omission; or

S. 12E(1)(a)(ii)
amended by
No. 75/2014
s. 15(1)(a).

(ii) an evident material mistake in the
description of the Poisons Standard or a
provision of that standard; or

S. 12E(1)(b)
amended by
No. 75/2014
s. 15(1)(b).

(b) if the Code incorporates a part of the Poisons
Standard as in force at a particular date—

(i) to change that date; or

S. 12E(1)(b)(ii)
amended by
No. 75/2014
s. 15(1)(c).

(ii) to provide that the part of the Poisons
Standard is incorporated as in force
from time to time; or

S. 12E(1)(c)
amended by
No. 75/2014
s. 15(1)(d).

(c) if part of the Poisons Standard is
incorporated as in force from time to time to
provide that the part is incorporated as in
force at a particular time; or

S. 12E(1)(d)
amended by
Nos 74/2004
s. 8(1),
75/2014
s. 15(1)(e).

(d) to alter the heading to Schedule 1 in the
Poisons List so that it corresponds more
closely with the heading of the appropriate
Schedule in the Poisons Standard; or

S. 12E(1)(e)
repealed by
No. 75/2014
s. 15(1)(f).

* * * * *

S. 12E(1A)
inserted by
No. 68/1996
s. 10(1),
amended by
No. 75/2014
s. 15(2).

(1A) To ensure consistency with the Poisons Standard,
the Minister may at any time—

(a) amend the Poisons Code; or

(b) revoke and substitute the Poisons Code.

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No. 9719 of 1981
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- (1B) The Minister may, at any time, amend the Poisons Code to—
- (a) specify the substances to be included in Schedule 1 in the Poisons List; and
 - (b) amend, revoke, substitute or insert substances in Schedule 1 in the Poisons List.
- (1C) The Minister may, at any time, amend the Poisons Code to—
- (a) specify the substances to be included in the Poisons List in the list of substances that are not for general sale by retail but can only be supplied to persons specifically authorised by this Act or the Regulations, or with a permit or warrant under this Act, to obtain them; and
 - (b) amend, revoke, substitute or insert substances in the list referred to in paragraph (a).
- (1D) The Minister may, at any time, amend the Poisons Code to—
- (a) specify the substances to be included in the Poisons List in the list of exemptions from Schedule 1 of the Poisons List or Schedules 2 to 9 of the Poisons Standard; and
 - (b) amend, revoke, substitute or insert substances in the list of exemptions referred to in paragraph (a).

S. 12E(1B)
inserted by
No. 18/2000
s. 98.

S. 12E(1C)
inserted by
No. 74/2004
s. 8(2).

S. 12E(1D)
inserted by
No. 74/2004
s. 8(2).

S. 12E(1D)(a)
amended by
No. 75/2014
s. 15(3).

S. 12E(1E)
inserted by
No. 39/2024
s. 87.

(1E) The Minister, at any time, may amend the Poisons Code to amend, substitute or revoke—

- (a) any provision (including of the appendices) of the Poisons Standard concerning the possession or supply of poisons included in Schedule 4 or Schedule 8; or
- (b) any provision (including of the appendices) of the Poisons Standard relating to the interpretation of a provision amended or revoked and substituted under paragraph (a)—

if the Minister considers that the provision as amended or substituted is suitable for inclusion in the Poisons Code or that it is suitable to revoke the provision from the Poisons Code.

S. 12E(1F)
inserted by
No. 39/2024
s. 87.

(1F) In determining whether a provision of the Poisons Standard as amended or substituted is suitable for inclusion in the Poisons Code, the matters which the Minister may take into account include but are not limited to the following—

- (a) whether the provision applies to the State or an individual;
- (b) whether the provision is in the form of a recommendation or suggestion, rather than an obligation;
- (c) whether the provision is in terms sufficiently certain to enable it to be understood and complied with.

S. 12E(2)
amended by
No. 68/1996
s. 10(2).

(2) The provisions of this Act applying to the preparation, notification, tabling and availability of the Poisons Code apply to an amendment to or revocation and substitution of that Code.

12F Status of the Poisons Code

S. 12F
inserted by
No. 42/1993
s. 38.

- (1) The Poisons Code is not a statutory rule for the purposes of the **Subordinate Legislation Act 1994**.
- (2) The Poisons Code is a subordinate instrument for the purposes of the **Interpretation of Legislation Act 1984** except section 32 of that Act.

S. 12F(1)
amended by
No. 9/1998
s. 10(b).

* * * * *

S. 12F(3)
repealed by
No. 68/1996
s. 11.

12G Procedure for preparation of the Poisons Code

S. 12G
inserted by
No. 42/1993
s. 38.

- (1) As soon as possible after preparing the Poisons Code, the Minister must publish notice of its preparation in a daily newspaper circulating generally throughout Victoria.
- (2) The Minister may do anything else he or she considers appropriate to bring the preparation of the Code to the attention of the public.
- (3) After complying with subsections (1) and (2) the Minister must publish notices of the preparation of the Code in the Government Gazette.
- (4) A notice under this section must—
 - (a) give a brief and general description of the content of the Code; and
 - (b) fix a date, being a date on or after the date of publication of the notice in the Government Gazette, on which the Code takes effect; and
 - (c) state where and when the Code is available for inspection by members of the public; and

- (d) give details of where, when and from whom a copy of the Code can be obtained.

S. 12H
inserted by
No. 42/1993
s. 38.

12H Tabling before Parliament

S. 12H(2)
amended by
No. 75/2014
s. 16(1).

- (1) The Minister must cause a copy of the Poisons Code prepared under section 12 and of the notice of its preparation to be laid before the Legislative Council and the Legislative Assembly on or before the 7th sitting day of that House after the date of publication of that notice in the Government Gazette.
- (2) If the Poisons Code incorporates by reference a part of the Poisons Standard, the Minister must include that incorporated material in the material tabled under subsection (1).

S. 12H(3)
amended by
No. 75/2014
s. 16(2).

- (3) If the Poisons Code incorporates by reference a part of the Poisons Standard as in force from time to time, and that part is amended, varied, remade or superseded, the Minister must, as the case requires—
- (a) cause a copy of the amendment or variation;
or
- (b) cause a copy of any matter superseding or remaking the earlier matter—

to be laid before the Legislative Council and the Legislative Assembly on or before the 7th sitting day of that House after the date of publication in the Government Gazette of notice that the amendment, variation, remaking or superseding of that matter has taken effect.

12I Availability of Code

S. 12I
inserted by
No. 42/1993
s. 38.

- (1) The Minister must ensure that the documents listed in subsection (2) are kept available at the principal office of the Secretary and at any other appropriate public office specified by the Minister by notice published in the Government Gazette, during normal office hours, for inspection by members of the public, without charge.

S. 12I(1)
amended by
No. 46/1998
s. 7(Sch. 1)

- (2) The documents are—

- (a) the Poisons Code as amended or substituted and in force from time to time;

S. 12I(2)(a)
amended by
No. 68/1996
s. 12.

- (b) any matter incorporated by reference in the Poisons Code and, if the Code incorporates matter as in force from time to time, that matter as amended, varied, remade or superseded and in force for the time being;

- (c) if any matter is incorporated in the Code as in force from time to time, a copy of each amendment or variation of the matter;

- (d) a copy of any amendment to the Code;

- (e) a copy of each notice published in the Government Gazette under section 12G.

12J What if documents are not notified or made available?

S. 12J
inserted by
No. 42/1993
s. 38.

- (1) A failure to comply with section 12G, 12H or 12I does not affect the validity, operation or effect of the Poisons Code or any matter incorporated in it.

- (2) Despite subsection (1), a person must not be convicted of an offence against this Act or the regulations, based on any provision in the Poisons Code if, at the time of the commission of the offence, there was, in relation to that provision, a contravention of section 12G or 12I.
- (3) Despite subsection (1), a person is not prejudicially affected or made subject to any liability under this Act or the regulations based on any provision in the Poisons Code, if it is proved that, at the relevant time, in relation to that provision there was a contravention of section 12G or 12I.

S. 12K
inserted by
No. 42/1993
s. 38.

12K Commencement of Poisons Code and incorporated materials

- (1) The Poisons Code or an amendment to that Code takes effect on the date fixed for that purpose by notice under section 12G.
- (2) If the Poisons Code incorporates by reference a part of the Poisons Standard as in force from time to time, and that part is amended, varied, superseded or remade, the amendment, variation or superseding or remaking material takes effect on the date fixed for that purpose by notice published in the Government Gazette.
- (3) On the date of commencement of material incorporated by reference in the Poisons Code that remakes or supersedes any earlier matter, that earlier matter ceases to have effect to the extent that it is part of the Code.

S. 12K(2)
amended by
No. 75/2014
s. 17.

- (4) If the Poisons Code incorporates by reference a provision of the Poisons Standard as in force from time to time, and that provision is amended, substituted or revoked under section 12E(1E), the amendment, substitution or revocation takes effect on the date fixed for that purpose by notice published in the Government Gazette.

S. 12K(4)
inserted by
No. 39/2024
s. 88.

12L Evidence

A document certified in writing purporting to be signed by the Secretary and purporting to be—

- (a) a copy of or an extract from the Poisons Code; or
- (b) a copy of or an extract from any matter incorporated by reference in the Poisons Code; or
- (c) a copy of an amendment of the Poisons Code; or
- (d) a copy of or an extract from any matter amending, varying, remaking or superseding any matter incorporated by reference in the Poisons Code—

is evidence and, in the absence of evidence to the contrary, is proof of the matters stated in the document.

S. 12L
inserted by
No. 42/1993
s. 38,
amended by
No. 46/1998
s. 7(Sch. 1).

* * * * *

S. 12M
inserted by
No. 42/1993
s. 38,
repealed by
No. 74/2004
s. 9.

Division 2—Authorized persons

13 Persons authorized to have possession etc. of poisons or controlled substances

S. 13(1)
amended by
Nos 20/2016
s. 103, 34/2019
s. 6.

(1) Subject to this Act and the regulations—

S. 13(1)(a)
amended by
Nos 10002
s. 4(a)(b),
23/1994
s. 118(Sch. 1
item 17.4),
58/1997
s. 96(Sch.
item 3.2),
18/2000
s. 99(1).

(a) any registered medical practitioner, pharmacist, veterinary practitioner or dentist is hereby authorized to obtain and have in his possession and to use, sell or supply any poison or controlled substance (other than a Schedule 1 poison) or drug of dependence in the lawful practice of his profession as a registered medical practitioner, pharmacist, veterinary practitioner or dentist (as the case may be); and

S. 13(1)(b)
amended by
Nos 10002
s. 4(b),
56/1996
s. 100(2).

(b) any authorized officer is hereby authorized to obtain and have in his possession and to sell or supply any poison or controlled substance or drug of dependence in the exercise or performance of any power, function or duty conferred or imposed upon him by this Act or the regulations; and

S. 13(1)(baa)
inserted by
No. 9/2014
s. 5.

(baa) any person employed or engaged by a declared testing facility is hereby authorised to possess a drug of dependence, a poison or controlled substance or any other thing that has been supplied to the declared testing facility under section 98 to the extent that the possession is required for the purpose for which the drug of dependence, poison or controlled substance or thing has been supplied to the facility; and

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|---|---|
| (bab) any person who is authorised under section 44C is hereby authorised to obtain and possess a drug of dependence, a poison or controlled substance or any other thing in accordance with that authorisation; and | S. 13(1)(bab) inserted by No. 9/2014 s. 5. |
| (ba) any nurse practitioner is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 2, 3, 4 or 8 poison approved by the Minister in relation to the relevant category of nurse practitioner in the lawful practice of his or her profession as a nurse practitioner; and | S. 13(1)(ba) inserted by No. 94/2000 s. 49(1), amended by No. 97/2005 s. 179(1)(a), substituted by No. 13/2010 s. 37(1)(a). |
| (bb) any registered nurse whose registration is endorsed under section 94 of the Health Practitioner Regulation National Law is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 2, 3, 4 or 8 poison approved by the Minister in relation to the relevant category of nurse in the lawful practice of his or her profession as a registered nurse; and | S. 13(1)(bb) inserted by No. 13/2010 s. 37(1)(a). |
| (bc) any registered midwife whose registration is endorsed under section 94 of the Health Practitioner Regulation National Law is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 2, 3, 4 or 8 poison approved by the Minister and specified in the endorsement in the lawful practice of his or her profession as a registered midwife; and | S. 13(1)(bc) inserted by No. 14/2012 s. 5(1). |
| (bd) any paramedic practitioner is hereby authorized to obtain and possess and to use, sell or supply any Schedule 2, 3, 4 or 8 poison approved by the Minister in the lawful practice of the person's profession as a paramedic practitioner; and | S. 13(1)(bd) inserted by No. 1/2025 s. 5(1). |

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S. 13(1)(c)
inserted by
No. 56/1996
s. 100(2),
amended by
Nos 18/2000
s. 99(2),
97/2005
s. 179(1)(b),
13/2010
s. 37(1)(b),
40/2017 s. 5.

(c) any registered optometrist whose registration is endorsed under section 94 of the Health Practitioner Regulation National Law is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 2, 3 or 4 poison for ophthalmic use that is approved by the Minister and specified in the endorsement in the lawful practice of his or her profession as a registered optometrist; and

S. 13(1)(ca)
inserted by
No. 97/2005
s. 179(2),
amended by
No. 13/2010
s. 37(1)(c).

(ca) any registered podiatrist whose registration is endorsed under section 94 of the Health Practitioner Regulation National Law is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 2, 3 or 4 poison approved by the Minister and specified in the endorsement in the lawful practice of his or her profession as a registered podiatrist; and

S. 13(1)(d)
inserted by
No. 18/2000
s. 99(2),
amended by
Nos 97/2005
s. 179(1)(c),
27/2012
s. 12(1).

(d) any registered Chinese medicine practitioner whose registration is endorsed under section 94 of the Health Practitioner Regulation National Law is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 1 poison that is approved by the Minister in accordance with the endorsement in the lawful practice of his or her profession as a registered Chinese medicine practitioner; and

S. 13(1)(e)
inserted by
No. 18/2000
s. 99(2),
amended by
Nos 97/2005
s. 179(1)(c),
27/2012
s. 12(2),
51/2024
s. 71(a).

(e) any registered Chinese herbal dispenser whose registration is endorsed under section 94 of the Health Practitioner Regulation National Law is hereby authorised to obtain and have in his or her possession and to use, sell or supply any Schedule 1 poison that is approved by the Minister in accordance with the endorsement

in the lawful practice of his or her profession as a registered Chinese herbal dispenser; and

- (f) any inspector or licensing inspector (within the meaning of the **Tobacco Act 1987**) is hereby authorised to obtain and have in their possession nicotine in the performance of functions or exercise of powers under—

S. 13(1)(f) inserted by No. 51/2024 s. 71(b), amended by No. 51/2024 s. 45.

- (i) that Act or regulations made under that Act; or

- (ii) the Therapeutic Goods Act 1989 of the Commonwealth or regulations made under that Act.

- (2) Subsection (1)(a) or (b) shall not be construed as authorizing a registered medical practitioner, veterinary practitioner or dentist to sell or supply any poison or controlled substance (other than a Schedule 5 poison, a Schedule 6 poison or a Schedule 7 poison that is not a Schedule 7 poison that is included in the Poisons Code in the list of substances that are not for general sale by retail) or drug of dependence by retail in an open shop unless he is licensed under this Act to do so.

S. 13(2) amended by Nos 10002 s. 4(b), 42/1993 s. 39(1), 23/1994 s. 118(Sch. 1 item 17.4), 58/1997 s. 96(Sch. item 3.2), 56/1996 s. 100(3), 9/1998 s. 5(1).

- (2AA) Subsection (1)(ba) shall not be construed as authorising a nurse practitioner referred to in that paragraph to sell or supply any Schedule 2, 3, 4 or 8 poison by retail in an open shop unless the nurse practitioner is licensed under this Act to do so.

S. 13(2AA) inserted by No. 94/2000 s. 49(2).

- (2AAB) Subsection (1)(bb) shall not be construed as authorising a registered nurse referred to in that paragraph to sell or supply any Schedule 2, 3, 4 or 8 poison by retail in an open shop unless the registered nurse is licensed under this Act to do so.

S. 13(2AAB) inserted by No. 13/2010 s. 37(2).

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

S. 13(2AAC)
inserted by
No. 14/2012
s. 5(2).

(2AAC) Subsection (1)(bc) shall not be construed as authorising a registered midwife referred to in that paragraph to sell or supply any Schedule 2, 3, 4 or 8 poison by retail in an open shop unless the registered midwife is licensed under this Act to do so.

S. 13(2AAD)
inserted by
No. 1/2025
s. 5(2).

(2AAD) Subsection (1)(bd) shall not be construed as authorizing a paramedic practitioner referred to in that paragraph to sell or supply any Schedule 2, 3, 4 or 8 poison by retail in an open shop unless the paramedic practitioner is licensed under this Act to do so.

S. 13(2A)
inserted by
No. 56/1996
s. 100(4),
amended by
No. 97/2005
s. 179(1)(d).

(2A) Subsection (1)(c) shall not be construed as authorising a registered optometrist referred to in that paragraph to sell or supply any Schedule 2, 3 or 4 poison by retail in an open shop unless the optometrist is licensed under this Act to do so.

S. 13(2AB)
inserted by
No. 97/2005
s. 179(3).

(2AB) Subsection (1)(ca) shall not be construed as authorising a registered podiatrist referred to in that paragraph to sell or supply any Schedule 2, 3 or 4 poison by retail in an open shop unless the podiatrist is licensed under this Act to do so.

S. 13(2B)
inserted by
No. 56/1996
s. 100(4),
amended by
No. 74/2004
s. 10(a)–(c),
repealed by
No. 75/2014
s. 18.

* * * * *

S. 13(3)
amended by
No. 10002
s. 4(b).

(3) Where a pharmacist sells or supplies by wholesale to another pharmacist a poison or controlled substance or drug of dependence for use by the other pharmacist in the lawful practice of his profession as a pharmacist, the sale or supply shall for the purposes of subsection (1) be regarded as a sale or supply in the lawful practice of his profession by the first-mentioned pharmacist.

- (3A) If a registered Chinese herbal dispenser sells or supplies by wholesale a Schedule 1 poison to any other registered Chinese herbal dispenser in accordance with an endorsement of that other dispenser's registration under section 94 of the Health Practitioner Regulation National Law for use by the other registered Chinese herbal dispenser in the lawful practice of his or her profession as a registered Chinese herbal dispenser, the sale or supply shall, for the purposes of subsection (1), be regarded as a sale or supply in the lawful practice of his or her profession by the first-mentioned registered Chinese herbal dispenser.
- S. 13(3A) inserted by No. 18/2000 s. 99(3), amended by No. 97/2005 s. 179(1)(e), substituted by No. 13/2010 s. 37(3), amended by No. 27/2012 s. 12(3).
- (4) A person is authorised to sell or supply by retail, subject to and in accordance with the regulations—
- (a) any Schedule 5 poison; or
- (b) any Schedule 6 poison; or
- (c) any Schedule 7 poison that is not a Schedule 7 poison that is included in the Poisons Code in the list of substances that are not for general sale by retail.
- S. 13(4) inserted by No. 42/1993 s. 39(2), substituted by No. 9/1998 s. 5(2).
- (4A) A person is authorised to sell or supply by wholesale, subject to and in accordance with the regulations—
- (a) any Schedule 5 poison; or
- (b) any Schedule 6 poison.
- S. 13(4A) inserted by No. 74/2004 s. 3.
- (4B) A person is authorised to manufacture and sell or supply by retail, subject to and in accordance with the regulations—
- (a) any Schedule 5 poison; or
- (b) any Schedule 6 poison.
- S. 13(4B) inserted by No. 74/2004 s. 3.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
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S. 13(4C)
inserted by
No. 74/2004
s. 3.

(4C) A person is authorised to manufacture and sell or supply by wholesale, subject to and in accordance with the regulations—

- (a) any Schedule 5 poison; or
- (b) any Schedule 6 poison.

S. 13(5)
inserted by
No. 18/2000
s. 99(4),
substituted by
No. 13/2010
s. 37(4),
amended by
No. 27/2012
s. 12(4)(5).

(5) Despite subsection (1)(a), a registered medical practitioner or pharmacist who is also a registered Chinese medicine practitioner or registered Chinese herbal dispenser with an endorsement with respect to Schedule 1 poisons is authorised to obtain and have in his or her possession and to use, sell or supply Schedule 1 poisons in accordance with that endorsement in the lawful practice of his or her profession as a registered medical practitioner or pharmacist.

S. 13(6)
inserted by
No. 80/2004
s. 150(Sch. 2
item 2.4),
amended by
Nos 97/2005
s. 179(1)(f),
39/2010 s. 120.

(6) A person who is licensed to carry on a pharmacy business or pharmacy depot under Part 3 of the **Pharmacy Regulation Act 2010** is authorized to sell or supply by retail, subject to and in accordance with this Act and regulations, any poison or controlled substance or drug of dependence if the sale or supply is under the supervision of a registered pharmacist who is employed or engaged by that person to provide pharmacy services for that pharmacy business or pharmacy depot.

S. 13(7)
inserted by
No. 61/2017
s. 124.

(7) If a registered medical practitioner obtains, has in the registered medical practitioner's possession, uses, supplies, sells or administers a voluntary assisted dying substance to a person who is the subject of a voluntary assisted dying permit in accordance with the **Voluntary Assisted Dying Act 2017** in the lawful practice of the registered medical practitioner's profession as a registered medical practitioner, the obtaining, possession, use, supply, selling or administration is, for the purposes of subsection (1)—

- (a) taken to be the obtaining, possession, use, supply, selling or administration in the lawful practice of the practitioner's profession by the registered medical practitioner; and
- (b) authorised by this Act.

- (8) If a pharmacist obtains, has in the pharmacist's possession, sells or supplies a voluntary assisted dying substance to a person who is the subject of a voluntary assisted dying permit in accordance with the **Voluntary Assisted Dying Act 2017** for use by the person in the lawful practice of the pharmacist's profession as a pharmacist, the obtaining, possession, sale or supply is, for the purposes of subsection (1)—

S. 13(8)
inserted by
No. 61/2017
s. 124.

- (a) taken to be the obtaining, possession, sale or supply in the lawful practice of the pharmacist's profession by the pharmacist; and
- (b) authorised by this Act.

13A Chinese medicine practitioners and herbal dispensers must establish therapeutic need

S. 13A
inserted by
No. 18/2000
s. 100.

- (1) A registered Chinese medicine practitioner must not administer, prescribe, sell or supply a Schedule 1 poison unless—
- (a) the poison is for the therapeutic use of a person who has consulted the practitioner; and
 - (b) the practitioner has taken all reasonable steps to ensure that the person has a therapeutic need for the Schedule 1 poison.

S. 13A(1)
amended by
No. 13/2010
s. 38(a).

Penalty: 100 penalty units.

S. 13A(2)
amended by
No. 13/2010
s. 38(a).

S. 13A(2)(a)
amended by
No. 13/2010
s. 38(a).

S. 13A(2)(b)
amended by
No. 13/2010
s. 38(b).

- (2) A registered Chinese herbal dispenser must not sell or supply a Schedule 1 poison to a person unless—
- (a) the sale or supply is on production of and in accordance with the original written prescription or order of a registered Chinese medicine practitioner; and
 - (b) the dispenser has taken reasonable steps to ensure that the prescription or order is in accordance with any endorsement of the registration of the registered Chinese medicine practitioner.

Penalty: 100 penalty units.

S. 14
(Heading)
inserted by
No. 13/2010
s. 39(1).

S. 14
amended by
Nos 10002
s. 4(a)–(c),
23/1994
s. 118(Sch. 1
item 17.5(a)–
(d)), 18/2000
s. 101 (ILA
s. 39B(1)).

14 Restrictions on authorisations for certain health practitioners

S. 14(1)
amended by
Nos 97/2005
s. 179(4)(a),
13/2010
s. 39(2).

- (1) If, under the Health Practitioner Regulation National Law, the Medical Board of Australia has imposed in relation to the practice of a registered medical practitioner conditions, limitations or restrictions including a condition, limitation or restriction prohibiting the prescription of any drug or substance or class of drugs or substances, being a poison or controlled substance or drug of dependence or poisons or controlled substances or drugs of dependence that registered medical practitioner for the purpose of this Act and the regulations shall be deemed to be not authorized to obtain and have in his possession or to use sell

or supply in the lawful practice of his profession the poison or controlled substance or drug of dependence or the poisons or controlled substances or drugs of dependence to which the condition, limitation or restriction relates.

- (2) If the Chinese Medicine Board of Australia acting under the Health Practitioner Regulation National Law has imposed in relation to the practice of a practitioner registered under that Act a condition, limitation or restriction prohibiting the prescription, ordering or dispensing of any Schedule 1 poison, that registered practitioner for the purposes of this Act and the regulations is deemed to be not authorised to obtain and have in his or her possession or to use sell or supply in the lawful practice of his or her profession the Schedule 1 poison to which the condition, limitation or restriction relates.
- (3) If the Nursing and Midwifery Board of Australia acting under the Health Practitioner Regulation National Law has imposed in relation to the practice of a nurse practitioner, registered nurse or registered midwife conditions, limitations or restrictions including a condition, limitation or restriction prohibiting the prescription of any drug or substance or class of drugs or substances, being a poison or controlled substance or drug of dependence or poisons or controlled substances or drugs of dependence that nurse practitioner, registered nurse or registered midwife for the purposes of this Act and the regulations is deemed to be not authorized to obtain and have in his or her possession or to use sell or supply in the lawful practice of his or her profession the poison or controlled substance or drug of dependence or the poisons or controlled substances or drugs of dependence to which the condition, limitation or restriction relates.

S. 14(2)
inserted by
No. 18/2000
s. 101,
amended by
Nos 97/2005
s. 179(4)(b),
27/2012 s. 13.

S. 14(3)
inserted by
No. 67/2003
s. 3,
amended by
Nos 97/2005
s. 179(4)(c),
13/2010
s. 39(3),
14/2012 s. 6.

S. 14(3A)
inserted by
No. 1/2025
s. 6.

(3A) If the Paramedicine Board of Australia acting under the Health Practitioner Regulation National Law has imposed in relation to the practice of a registered paramedic a condition, limitation or restriction prohibiting the obtaining, possession, use, sale or supply of a Schedule 2, 3, 4 or 8 poison, that registered paramedic for the purposes of this Act and the regulations is taken not to be authorized to obtain, possess, use, sell or supply in the lawful practice of the registered paramedic's profession the poison to which the condition, limitation or restriction relates.

S. 14(4)
inserted by
No. 97/2005
s. 179(5),
amended by
No. 13/2010
s. 39(4).

(4) If the Optometry Board of Australia acting under the Health Practitioner Regulation National Law has imposed in relation to the practice of an optometrist registered under that Act a condition, limitation or restriction prohibiting the prescription, ordering or dispensing of any Schedule 2, 3 or 4 poison, that optometrist for the purposes of this Act and the regulations is deemed to be not authorised to obtain and have in his or her possession or to use sell or supply in the lawful practice of his or her profession the Schedule 2, 3 or 4 poison to which the condition, limitation or restriction relates.

S. 14(5)
inserted by
No. 97/2005
s. 179(5),
amended by
No. 13/2010
s. 39(5).

(5) If the Podiatry Board of Australia acting under the Health Practitioner Regulation National Law has imposed in relation to the practice of a podiatrist registered under that Act a condition, limitation or restriction prohibiting the prescription, ordering or dispensing of any Schedule 2, 3 or 4 poison, that podiatrist for the purposes of this Act and the regulations is deemed to be not authorised to obtain and have in his or her possession or to use sell or supply in the lawful practice of his or her profession the Schedule 2, 3 or 4 poison to which the condition, limitation or restriction relates.

14A Minister to approve scope of prescribing rights or supply of poisons

S. 14A
(Heading)
amended by
No. 13/2010
s. 40(1).

S. 14A
inserted by
No. 97/2005
s. 180 (as
amended by
No. 25/2007
s. 29).

- (1) The Minister may, by notice published in the Government Gazette, approve any Schedule 1, 2, 3, 4 or 8 poison (as the case requires) for the purposes of an authorisation referred to in section 13(1)(ba), (bb), (bc), (bd), (c), (ca), (d) or (e).

S. 14A(1)
amended by
Nos 13/2010
s. 40(2),
14/2012
s. 7(1), 1/2025
s. 7.

- (1A) Without limiting subsection (1), for the purposes of an authorisation under section 13(1)(bb) or (bc), the Minister may approve—

S. 14A(1A)
inserted by
No. 13/2010
s. 40(3),
amended by
No. 14/2012
s. 7(2)(a).

- (a) the health services or class of health services in which the poison or class of poison is to be used, sold or supplied; and

- (b) the clinical circumstances in which a registered nurse or registered midwife or class of registered nurse or registered midwife may use, sell or supply any Schedule 2, 3, 4 or 8 poison or class of Schedule 2, 3, 4 or 8 poison.

S. 14A(1A)(b)
amended by
No. 14/2012
s. 7(2)(b).

- (2) An approval under subsection (1) or (1A) may—

S. 14A(2)
substituted by
No. 13/2010
s. 40(4).

- (a) be expressed generally for all poisons in a specified Schedule; or
- (b) be limited to a particular class, list or type of poison in a specified Schedule; or
- (c) be limited by reference to a specified form of the poison; or

- (d) be limited by reference to the purpose for which the poison is to be used, sold or supplied; or
- (e) be limited by reference to any other matter specified in the approval; or
- (f) apply, adopt or incorporate any matter contained in any document, code, standard, rule, specification or method, formulated, issued, prescribed or published by any other person whether—
 - (i) wholly or partially or as amended by the approval; or
 - (ii) as formulated, issued, prescribed or published at the time the approval is made or at any time before then; or
 - (iii) as formulated, issued, prescribed or published from time to time.

S. 14A(3)
amended by
Nos 13/2010
s. 40(5),
27/2012 s. 14.

- (3) Without limiting the Minister's powers under subsection (1) or (1A), the Minister may grant or refuse to grant an approval under this section on the application of the relevant National Health Practitioner Board established by the Health Practitioner Regulation National Law.

S. 14A(4)
amended by
No. 13/2010
s. 40(6).

- (4) The Minister may amend or revoke an approval under this section.

S. 14A(5)
inserted by
No. 13/2010
s. 40(7).

- (5) An approval made under this section takes effect on the date of publication of the notice in the Government Gazette or on such later date as is specified in the notice.

Division 3—Poisons Advisory Committee

15 Establishment and membership of Poisons Advisory Committee

- (1) There is established a committee to be called the "Poisons Advisory Committee".
- (2) The Committee consists of up to 9 members appointed by the Minister of whom—

S. 15
amended by
Nos 10002
ss 4(d), 16(c),
10262 s. 4,
42/1993
s. 40(1)(a)(b),
23/1994
s. 118(Sch. 1
items
17.6(a)–(d),
17.7), 46/1992
s. 78(2)(a) (as
amended by
No. 73/1994
s. 56(1)(b))(b)
(as amended
by No.
73/1994
s. 56(1)(c)),
substituted by
No. 68/1996
s. 13.

- (a) one is to be the Secretary or his or her nominee who is also to be the chairperson;
 - (b) 2 are to be registered medical practitioners of whom—
 - (i) one must have expertise in clinical pharmacology; and
 - (ii) one must have expertise in the treatment of drug dependence;
 - (c) 2 are to be pharmacists of whom—
 - (i) one must have expertise in community pharmacy; and
 - (ii) one must have expertise in hospital pharmacy;

S. 15(2)(a)
amended by
No. 46/1998
s. 7(Sch. 1).

- (d) 2 are to be persons with expertise in the pharmaceutical industry of whom—
 - (i) one is to be from the manufacturing sector of that industry; and
 - (ii) one is to be from the wholesaling sector of that industry;
 - (e) one is to be a person with expertise in the manufacturing and distribution of poisons for non-therapeutic use;
 - (f) one is to be the nominee of the Chief Commissioner of Police.
- (3) If the Chief Commissioner of Police fails to nominate a person under subsection (2)(f) within 1 month of receiving a request in writing from the Minister to do so, the Minister may appoint a person the Minister considers suitable to that office.

S. 15A
inserted by
No. 68/1996
s. 13.

15A Terms and conditions of appointment

- (1) A member of the Committee holds office for a period not exceeding 3 years and is eligible for reappointment.
- (2) The instrument of appointment of a member of the Committee may specify terms and conditions of appointment.
- (3) A member of the Committee, other than a member who is an employee of the public service, is entitled to receive the fees, travelling and other allowances from time to time fixed by the Minister in respect of that member.

S. 15A(3)
amended by
No. 46/1998
s. 7(Sch. 1).

- (4) The **Public Administration Act 2004** (other than Part 3 of that Act) applies to a member of the Committee in respect of the office of member.

S. 15A(4)
amended by
No. 46/1998
s. 7(Sch. 1),
substituted by
Nos 108/2004
s. 117(1)
(Sch. 3
item 60.1),
80/2006
s. 26(Sch.
item 29).

15B Resignation and removal

- (1) A member of the Committee may resign that office by writing signed by the member and addressed to the Minister.
- (2) The Minister may at any time remove a member of the Committee from office.

S. 15B
inserted by
No. 68/1996
s. 13.

15C Vacancies

- (1) The Minister may fill a vacancy in the office of member of the Committee however arising.
- (2) An act or decision of the Committee is not invalid only because of—
- (a) a vacancy in its membership; or
 - (b) a defect or irregularity in the appointment of any of its members.

S. 15C
inserted by
No. 68/1996
s. 13.

15D Quorum and proceedings

- (1) A quorum of the Committee consists of at least 5 members other than co-opted members of the Committee.
- (2) The chairperson must preside at a meeting of the Committee at which he or she is present.
- (3) If the chairperson is not present at a meeting, the members present may elect a member to preside at the meeting.

S. 15D
inserted by
No. 68/1996
s. 13.

- (4) The person presiding at a meeting has a deliberative vote and, in the case of an equality of votes, a second or casting vote.
- (5) The Committee must meet at least 3 times each year at the places and times appointed by the Minister or the chairperson.
- (6) Subject to this Act, the Committee may regulate its own proceedings.

S. 15E
inserted by
No. 68/1996
s. 13.

15E Co-opted members

- (1) To assist in the consideration of a particular matter or issue, the Committee may co-opt any person as a member of the Committee.
- (2) A person co-opted under this section—
 - (a) may only attend meetings relating to and vote on the matters or issues in relation to which he or she is co-opted; and
 - (b) may be removed at any time by the Committee.
- (3) A person co-opted as a member of the Committee other than a person who is an employee of the public service, is entitled to receive the fees, travelling and other allowances from time to time fixed by the Minister.

S. 15E(3)
amended by
No. 46/1998
s. 7(Sch. 1).

16 Sub-committees

- (1) The Committee may establish any sub-committees that it thinks necessary for the purposes of this Act.
- (2) The Committee may co-opt any person with expertise in any relevant field for the purposes of a sub-committee.

S. 16
amended by
Nos 10262
s. 4, 42/1993
s. 40(2)(a)(b),
substituted by
No. 68/1996
s. 13.

- (3) A person co-opted under this section—
- (a) may only attend meetings relating to and vote on the matters or issues in relation to which he or she is co-opted; and
 - (b) may be removed at any time by the Committee.
- (4) A person co-opted to a sub-committee other than a person who is an employee of the public service, is entitled to receive the fees, travelling and other allowances from time to time fixed by the Minister.

S. 16(4)
amended by
No. 46/1998
s. 7(Sch. 1).

17 Functions of the Committee

- (1) The functions of the Committee are—
- (a) to advise the Minister and the Secretary, having regard to the interests of protecting and promoting public health, on—
 - (i) the availability and presentation of drugs and poisons; and
 - (ii) responses to issues relating to drugs and poisons; and
 - (b) to advise the Minister or the Secretary on any matter referred to the Committee by the Minister or the Secretary, as the case may be.
- (2) The Committee must consult with a nominee of the Minister administering the **Agricultural and Veterinary Chemicals (Control of Use) Act 1992** on any issue relating to agricultural and veterinary chemicals.

S. 17
amended by
Nos 10262
s. 4, 12/1994
s. 8,
substituted by
No. 68/1996
s. 13.

S. 17(1)(a)
amended by
No. 46/1998
s. 7(Sch. 1).

S. 17(1)(b)
amended by
No. 46/1998
s. 7(Sch. 1).

S. 18
amended by
No. 68/1996
s. 14,
substituted by
No. 46/1998
s. 7(Sch. 1),
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 60.2).

18 Officers of committee

A secretary to the committee and any employees that it is necessary and expedient to employ for carrying out the objects and purposes of this Act may be employed under Part 3 of the **Public Administration Act 2004**.

Pt 2 Div. 4
(Heading and
s. 19)
amended by
Nos 10002
s. 16(d)–(g),
10262 s. 4,
42/1993
s. 41(1)(a)–
(d)(2)(a)–(c),
substituted as
Pt 2 Div. 4
(Heading and
ss 19–22C) by
No. 12/1994
s. 9.

Division 4—Licences, permits and warrants

Pt 2 Div. 4
Subdiv. 1
(Heading)
inserted by
No. 41/2024
s. 13(1).

Subdivision 1—Preliminary

S. 18A
inserted by
No. 74/2004
s. 11.

18A Definitions

In this Division—

licence means a licence issued under this Division;

permit means a permit issued under this Division;

warrant means a warrant issued under this Division.

Subdivision 2—Principal provisions

Pt 2 Div. 4
Subdiv. 2
(Heading)
inserted by
No. 41/2024
s. 13(2).

19 Issue of licences, permits and warrants

S. 19
substituted by
No. 12/1994
s. 9.

- (1) A person may apply in writing to the Secretary for the issue of a licence, permit or warrant.

S. 19(1)
amended by
No. 46/1998
s. 7(Sch. 1).

- (2) An application for a licence, permit or warrant must be accompanied by the appropriate prescribed fee.

- (3) Subject to this Act and the regulations, the Secretary may, in his or her discretion—

S. 19(3)
amended by
No. 46/1998
s. 7(Sch. 1).

- (a) refuse to issue a licence, permit or warrant; or

- (b) issue to a fit and proper person a licence, permit or warrant subject to such terms, conditions, limitations and restrictions as the Secretary may determine.

S. 19(3)(b)
amended by
No. 46/1998
s. 7(Sch.).

- (3A) Without limiting subsection (3), a licence, permit or warrant may be subject to a condition requiring the holder to—

S. 19(3A)
inserted by
No. 75/2014
s. 5(1).

- (a) comply with any document, code, standard, guideline, rule, method or specification formulated, issued, prepared, prescribed or published by any person or body; or

- (b) hold any other licence, permit or warrant issued under any law of Victoria or under any law of the Commonwealth.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

S. 19(4)
amended by
Nos 74/2004
s. 12, 75/2014
s. 5(2),
41/2024
s. 6(1).

(4) A licence, permit or warrant (other than a mobile bait facility licence or a drug-checking permit) relates only to the premises described in it, and no such licence, permit or warrant relating to premises in more than one locality can be issued.

S. 19(4A)
inserted by
No. 41/2024
s. 6(2).

(4A) A drug-checking permit may be issued in respect of—
(a) the premises described in the permit; or
(b) a mobile drug-checking facility identified in the permit.

S. 19(4B)
inserted by
No. 41/2024
s. 6(2).

(4B) A drug-checking permit—
(a) is personal to the holder of the permit and is not transferrable to any other person; and
(b) is subject to—
(i) the conditions imposed under subsection (3) or (3A) (including the condition the Secretary is required to impose by section 20AAB(2)); and
(ii) the conditions set out in section 20AAB(1).

S. 19(4C)
inserted by
No. 41/2024
s. 6(2).

(4C) A fixed site drug-checking permit must not be issued in relation to multiple premises.

S. 19(5)
amended by
Nos 46/1998
s. 7(Sch. 1),
75/2014
s. 5(3),
41/2024
s. 6(3).

(5) A licence, permit (other than a drug-checking permit) or warrant cannot be issued unless the Secretary is satisfied that the applicant's premises or mobile facility (as the case requires) are suitable, sanitary and adequately equipped for the manufacture, sale, supply or use of the poisons or controlled substances to which the licence, permit or warrant relates.

- (5A) A drug-checking permit cannot be issued unless the Secretary is satisfied that—
- (a) the applicant's premises or mobile facility (as the case requires); and
 - (b) the other things that the applicant proposes to use in the provision of drug-checking services and the carrying out of other activities under the permit—
- are suitable, sanitary and adequately equipped for that use.
- (6) The Secretary may issue a licence to a person in respect of a mobile bait facility.
- (7) A mobile bait facility licence—
- (a) relates to the mobile bait facility during the period the mobile bait facility is located at a mobile bait facility location; and
 - (b) is personal to the licence holder and is not transferable to another person; and
 - (c) in addition to any conditions imposed under subsection (3) or (3A), is subject to the following conditions—
 - (i) that the licence holder ensures each mobile bait facility is parked at a permanent fixed address specified in the licence during any period that the mobile bait facility is not travelling to or from, or located at, a mobile bait facility location; and

S. 19(5A)
inserted by
No. 41/2024
s. 6(4).

S. 19(6)
inserted by
No. 75/2014
s. 5(4),
amended by
No. 41/2024
s. 12(2).

S. 19(7)
inserted by
No. 75/2014
s. 5(4),
amended by
No. 41/2024
s. 12(3).

S. 19(7)(a)
amended by
No. 41/2024
s. 12(3).

S. 19(7)(c)(i)
amended by
No. 41/2024
s. 12(3).

S. 19(7)(c)(ii)
amended by
No. 41/2024
s. 12(3).

(ii) that the mobile bait facility is registered under the **Road Safety Act 1986** and identified by a number plate bearing a registration number; and

(d) may be issued in respect of one or more mobile facilities if those mobile facilities are usually parked at the permanent fixed address specified in the licence.

New s. 20
inserted by
No. 12/1994
s. 9.

20 What a licence, permit or warrant can authorise

S. 20(1)
amended by
No. 75/2014
s. 6(1).

(1) Subject to subsection (2), a licence authorises a person to do all or any of the following—

(a) manufacture and sell or supply by wholesale any Schedule 8 poison or Schedule 9 poison other than heroin;

S. 20(1)(b)
substituted by
No. 74/2004
s. 4(1).

(b) manufacture and sell or supply by wholesale any Schedule 2 poison, Schedule 3 poison, Schedule 4 poison or Schedule 7 poison;

S. 20(1)(c)
amended by
No. 74/2004
s. 4(2).

(c) manufacture and sell or supply by retail any Schedule 7 poison (other than a Schedule 7 poison included in the Poisons Code in the list of substances that are not for general sale by retail);

(d) sell or supply by wholesale any Schedule 8 poison or Schedule 9 poison other than heroin;

S. 20(1)(e)
substituted by
No. 74/2004
s. 4(3).

(e) sell or supply by wholesale any Schedule 2 poison, Schedule 3 poison, Schedule 4 poison or Schedule 7 poison;

S. 20(1)(f)
substituted by
No. 9/1998
s. 4(1)(a),
amended by
No. 75/2014
s. 6(2).

(f) sell or supply by retail any Schedule 2 poison.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

*	*	*	*	*	S. 20(1)(g) repealed by No. 9/1998 s. 4(1)(b).
(2) A mobile bait facility licence authorises a person to do all or any of the following—					S. 20(2) repealed by No. 9/1998 s. 4(2), new s. 20(2) inserted by No. 75/2014 s. 6(3), amended by No. 41/2024 s. 12(4).
(a) to manufacture and sell or supply by wholesale any perishable pest animal bait that is a Schedule 7 poison (other than a Schedule 7 poison included in the Poisons Code in the list of substances that are not for general sale by retail) at a mobile bait facility location to which the mobile bait facility licence relates;					S. 20(2)(a) amended by No. 41/2024 s. 12(4).
(b) to manufacture and sell or supply by retail any perishable pest animal bait that is a Schedule 7 poison (other than a Schedule 7 poison included in the Poisons Code in the list of substances that are not for general sale by retail) at a mobile bait facility location to which the mobile bait facility licence relates.					S. 20(2)(b) amended by No. 41/2024 s. 12(4).
(3) A permit (other than a drug-checking permit) authorises a person to purchase or otherwise obtain poisons or controlled substances for use for industrial, educational, advisory or research purposes or for the provision of health services.					S. 20(3) amended by Nos 20/2016 s. 104, 34/2019 s. 7, 41/2024 s. 7(1).
Note Section 20AA sets out what is authorised by a drug-checking permit.					Note to s. 20(3) inserted by No. 41/2024 s. 7(2).

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

S. 20(3A)
inserted by
No. 74/2004
s. 13.

(3A) A person who is the holder of a permit issued under subsection (3) authorising the person to purchase or otherwise obtain poisons or controlled substances for the provision of health services is authorised to sell or supply any poison or controlled substance to which that permit relates without obtaining a further licence to do so under this section if that sale or supply—

S. 20(3A)(a)
amended by
Nos 97/2005
s. 179(6) (as
amended by
No. 29/2006
s. 3(Sch. 1
item 14.5)),
75/2014
s. 6(4), 1/2025
s. 8.

(a) is carried out by a person who is authorised under section 13(1)(a), (ba), (bb), (bc), (bd), (c) or (ca) to sell or supply that poison or controlled substance in the lawful practice of his or her profession; and

(b) is for the purposes of the provision of health services.

(4) A warrant authorises a person to purchase or otherwise obtain or use any regulated poison in accordance with the warrant.

S. 20(5)
inserted by
No. 18/2000
s. 102.

(5) A person who sells or supplies by wholesale or manufactures and sells or supplies by wholesale any Schedule 1 poison is authorised to do so without obtaining a licence under this section.

S. 20AA
inserted by
No. 41/2024
s. 8.

20AA What a drug-checking permit authorises

(1) A drug-checking permit authorises the holder of the permit, and each special drug-checking worker engaged by the holder of the permit to do the following things at the drug-checking place to which the permit relates—

- (a) receive a substance that a person supplies so that—
 - (i) a drug-checking service may be provided; or
 - (ii) the substance may be disposed of; and
 - (b) if the substance was supplied so that a drug-checking service may be provided, supply back to the person any amount of the substance that is not required for that purpose; and
 - (c) provide a drug-checking service in respect of the substance; and
 - (d) destroy the substance; and
 - (e) to the extent necessary to do a thing described in this subsection, possess a substance, except after a condition referred to in section 20AAB(2) has required it to be destroyed.
- (2) A drug-checking permit authorises the holder of the permit, and each special drug-checking worker engaged by the holder of the permit to do the following things, whether at the drug-checking place or elsewhere—
- (a) supply a substance received as described in subsection (1)(a) to a person who holds another drug-checking permit, or any other permit, under which receipt of that substance is authorised; and
 - (b) receive a substance from the holder of another drug-checking permit who supplies it as described in paragraph (a) and—
 - (i) provide a drug-checking service in respect of the substance; and
 - (ii) destroy the substance; and

- (c) to the extent necessary to do a thing described in this subsection—
 - (i) possess a substance, except after a condition referred to in section 20AAB(2) has required it to be destroyed; and
 - (ii) transport or deliver a substance; and
 - (d) provide harm reduction information.
- (3) An authorisation under subsection (1) or (2) to receive, possess, supply, destroy, transport or deliver a substance includes an authorisation to do that thing with any poison, controlled substance or drug of dependence contained in the substance.
 - (4) A drug-checking permit authorises each general drug-checking worker engaged by the holder of the permit to provide harm reduction information, whether at the drug-checking place or elsewhere.
 - (5) Nothing in subsection (4) authorises a general drug-checking worker—
 - (a) to receive, possess, or supply a substance; or
 - (b) to provide a drug-checking service other than the service of providing harm reduction information.
 - (6) A drug-checking permit authorises each drug-checking director engaged by the holder of the permit to do the following things, whether at the drug-checking place or elsewhere—
 - (a) oversee the provision of drug-checking services; and
 - (b) perform the prescribed other duties (if any).
 - (7) Nothing in subsection (6) authorises a drug-checking director—
 - (a) to receive, possess, or supply a substance; or

(b) to provide a drug-checking service.

Note

If the drug-checking director is a special drug-checking worker, the director will be authorised to do these things under subsections (1) and (2). Alternatively, if the director is a general drug-checking worker, the director will be authorised to provide harm reduction information under subsection (4).

20AAB Conditions of drug-checking permit

**S. 20AAB
inserted by
No. 41/2024
s. 8.**

- (1) The conditions that a drug-checking permit is subject to under section 19(4B)(b) are—
- (a) that the holder of the permit keeps records of the prescribed matters in accordance with the regulations; and
 - (b) that the holder of the permit provides the Secretary with access to, or copies of, those records in accordance with the regulations; and
 - (c) that, at all times at which drug-checking services under the permit are being provided or offered, there is a drug-checking director on duty for the purposes of doing the things set out in section 20AA(6)(a) and (b); and
 - (d) that, at all times at which drug-checking services under the permit are being provided or offered, the holder of the permit or a special drug-checking worker is available to receive substances supplied for the purposes of disposal.
- (2) Additionally the Secretary must include in a drug-checking permit a condition that specifies when the holder of the permit is required to destroy a substance that comes into the possession of—
- (a) the holder of the permit; or

(b) a special drug-checking worker engaged by the holder of the permit—

in the course of providing drug-checking services, or carrying out another activity, under the permit.

S. 20A
inserted by
No. 6/2024
s. 12.

20A Class approvals

- (1) The Secretary may grant a class approval for a class of entity which would otherwise require a licence, permit or warrant under this Division, authorising an entity belonging to that class of entity to do one or more of the following without a licence, permit or warrant under this Division—
 - (a) manufacture and sell or supply by wholesale any Schedule 2 poison, Schedule 3 poison, Schedule 4 poison, Schedule 7 poison or Schedule 8 poison;
 - (b) manufacture and sell or supply by retail any Schedule 7 poison (other than a Schedule 7 poison included in the Poisons Code in the list of substances that are not for general sale by retail);
 - (c) sell or supply by wholesale any Schedule 2 poison, Schedule 3 poison, Schedule 4 poison, Schedule 7 poison or Schedule 8 poison;
 - (d) purchase or otherwise obtain poisons or controlled substances for use for industrial, educational, advisory or research purposes or for the provision of health services.
- (2) Before granting a class approval under subsection (1), the Secretary must have regard to the public health and safety risk of unauthorised access to poisons or controlled substances arising from the authorisation of a class of entity by a class approval and for that purpose may have regard to the following—

- (a) the type of industry in which a class of entity operates and the degree to which that type of industry has complied with this Act and the regulations;
 - (b) the entities or the persons engaged by those entities and their qualifications;
 - (c) the poisons or controlled substances and the activities to which a class approval applies;
 - (d) whether there are any relevant co-regulators of a class of entity.
- (3) A class approval must be in writing.
- (4) The Secretary must ensure that notice of the granting of a class approval is published in the Government Gazette as soon as practicable after it is granted.
- (5) The Secretary may specify that a class approval is subject to particular terms, conditions, limitations and restrictions, including the following—
 - (a) an entity complying with any document, code, standard, guideline, rule, method or specification formulated, issued, prepared, prescribed or published from time to time by any person or body;
 - (b) an entity holding any licence, permit or warrant issued under—
 - (i) any law of Victoria, other than section 19(3)(b); or
 - (ii) any law of the Commonwealth;
 - (c) the class approval being limited—
 - (i) to a particular poison or controlled substance; or

- (ii) to a particular class, list or type of poison or controlled substance in a specified Schedule; or
- (iii) to a specified form of a poison or controlled substance; or
- (iv) to the purposes for which a poison or controlled substance is to be manufactured, sold, supplied, administered or used; or
- (v) to a set period of time for which the class approval is in force; or
- (vi) by reference to any other matter specified in the instrument granting the class approval.

- (6) A class approval remains in force—
- (a) for the period specified in the approval; or
 - (b) if no period is specified in the approval, until it is revoked by the Secretary.

S. 20B
inserted by
No. 6/2024
s. 12.

20B Revocation or variation of class approvals

- (1) The Secretary, in writing, may revoke or vary a class approval.
- (2) The Secretary must ensure that notice of a revocation or variation of a class approval is published in the Government Gazette as soon as practicable after the revocation or variation.

New s. 21
inserted by
No. 12/1994
s. 9.

21 Duration of a licence, permit or warrant

- (1) A permit or a licence lasts 12 months from its date of issue.
- (2) Despite subsection (1), a licence or permit may be issued for a shorter period to enable that licence or permit and other licences or permits held by that person to expire simultaneously.
- (3) A warrant lasts until it is cancelled or suspended.

22 Renewal of licences and permits

- (1) An application for renewal—
 - (a) may be made up to one month before the expiry of the current licence or permit; and
 - (b) must be in writing and accompanied by the appropriate prescribed fee.
- (2) Subject to this Act and the regulations, on application under subsection (1), the Secretary, in his or her discretion, may renew a licence or permit.
- (3) A renewed licence or permit lasts for 12 months from the date of expiry of the previous licence or permit.
- (4) Despite subsection (3), a licence or permit may be renewed for a shorter period to enable that licence or permit and other licences or permits held by that person to expire simultaneously.

New s. 22
inserted by
No. 12/1994
s. 9.

S. 22(2)
amended by
No. 46/1998
s. 7(Sch. 1).

22A Amendment

- (1) Applications for amendment of licences, permits or warrants must be accompanied by the appropriate prescribed fee.
- (2) The Secretary may, in his or her discretion, amend any particulars, including the terms, conditions, limitations or restrictions of a licence, permit or warrant if the amendment is—
 - (a) in the interests of health and safety; or
 - (b) in the public interest; or
 - (c) at the request of the holder of the licence, permit or warrant.

S. 22A
inserted by
No. 12/1994
s. 9.

S. 22A(2)
amended by
No. 46/1998
s. 7(Sch. 1).

S. 22B
inserted by
No. 12/1994
s. 9,
amended by
Nos 46/1998
s. 7(Sch. 1),
75/2014 s. 7.

22B Inspection

Before issuing, renewing or amending a licence, permit or warrant the Secretary may require the premises or the mobile facility to which the licence, permit or warrant relates to be inspected (as the case requires) under this Act.

S. 22C
inserted by
No. 12/1994
s. 9.

22C Suspension or cancellation

S. 22C(1)
amended by
No. 46/1998
s. 7(Sch. 1).

(1) The Secretary may suspend or cancel a licence, permit or warrant if—

- (a) the holder has not complied with the terms, conditions, limitations or restrictions of the licence, permit or warrant; or
- (b) the holder proves not to be a fit and proper person; or

S. 22C(1)(ba)
inserted by
No. 41/2024
s. 9(1).

(ba) in the case of a drug-checking permit, a drug-checking director engaged in relation to that permit proves not to be a fit and proper person; or

- (c) the holder has been convicted of an offence against this Act or the regulations; or
- (d) the holder requests suspension or cancellation; or

S. 22C(1)(e)
amended by
Nos 75/2014
s. 8, 41/2024
s. 9(2).

(e) the holder ceases to carry on business at or using the premises or the mobile facility (as the case requires).

S. 22C(2)
amended by
No. 46/1998
s. 7(Sch. 1).

(2) If a licence, permit or warrant is suspended or cancelled under subsection (1), it ceases to have effect and any document issued to the former holder of the licence, permit or warrant must be surrendered to the Secretary on demand.

**Subdivision 3—Approval of areas under mobile
drug-checking permits**

Pt 2 Div. 4
Subdiv. 3
(Heading and
ss 22CA,
22CB)
inserted by
No. 41/2024
s. 10.

**22CA Approval of area within permanent structure for
purposes of mobile drug-checking permit**

S. 22CA
inserted by
No. 41/2024
s. 10.

- (1) The holder of a mobile drug-checking permit may apply to the Secretary for approval to temporarily use an area within a permanent structure for the purposes of—
- (a) the provision of a drug-checking service under the drug-checking permit; or
 - (b) the carrying out of another activity under the drug-checking permit.

Note

Section 22CB sets out the requirements for an application under this subsection.

- (2) On an application under subsection (1), the Secretary must, in accordance with this section, either—
- (a) issue an approval; or

Note

Section 22CB sets out the requirements for an approval under this subsection.

- (b) refuse the application.
- (3) In determining whether to issue an approval under subsection (2), the Secretary must have regard to—
- (a) whether the area is sufficiently well defined in the application; and
 - (b) the prescribed other matters (if any).

- (4) On issuing an approval under subsection (2), the Secretary must publish the approval in the Government Gazette.
- (5) The Secretary, by instrument, may delegate the Secretary's powers and functions under this section to—
 - (a) a specified person who is employed under Part 3 of the **Public Administration Act 2004**; or
 - (b) each person of a specified class of persons who are employed under Part 3 of that Act.

S. 22CB
inserted by
No. 41/2024
s. 10.

22CB Form of applications and approvals

- (1) Each of the following things must comply with the requirements specified in subsection (2)—
 - (a) an application under section 22CA(1); and
 - (b) an approval under section 22CA(2).
- (2) The requirements are that the application or approval must—
 - (a) be in writing; and
 - (b) identify the permanent structure that is to be used for the purposes of—
 - (i) the provision of a drug-checking service under the drug-checking permit; or
 - (ii) the carrying out of another activity under the drug-checking permit; and
 - (c) identify each area within that structure that is to be used for those purposes; and
 - (d) specify the period during which those areas are to be used for those purposes; and
 - (e) contain the prescribed information (if any).

**Subdivision 4—Miscellaneous provisions for
drug-checking permits**

Pt 2 Div. 4
Subdiv. 4
(Heading and
ss 22CC–
22CJ)
inserted by
No. 41/2024
s. 10.

22CC Meaning of *client*

S. 22CC
inserted by
No. 41/2024
s. 10.

For the purposes of this Subdivision, a person attends a drug-checking place as a *client* if they attend for any of the following purposes—

- (a) supplying a substance to—
 - (i) the holder of the drug-checking permit;
or
 - (ii) a special drug-checking worker
engaged by the holder of the permit—
either so that a drug-checking service may be
provided or so that the substance may be
disposed of;
- (b) being provided with a drug-checking service.

**22CD Exemption from criminal liability and
authorizations for clients**

S. 22CD
inserted by
No. 41/2024
s. 10.

- (1) Subject to subsection (2), a person who attends a drug-checking place as a client is authorised, at that place, to do the following things—
 - (a) to possess a poison, controlled substance or drug of dependence;
 - (b) to supply a poison, controlled substance or drug of dependence to—
 - (i) the holder of the drug-checking permit
for that drug-checking place; or
 - (ii) a special drug-checking worker
engaged by the holder of the permit;

- (c) to receive and possess a poison, controlled substance or drug of dependence supplied to the person as authorised by section 20AA(1)(b).
- (2) Subsection (1) does not authorise a person to possess or supply a drug of dependence in a quantity that is, or is greater than, the traffickable quantity (within the meaning of Part V) applicable to that drug of dependence.
- (3) A person who is authorised to do a particular thing by subsection (1) is exempt from liability for an offence against Part V or the regulations which is constituted by the doing of that thing.
- (4) Nothing in this section exempts any person from, or otherwise affects, any condition or obligation imposed—
 - (a) by or under any order of, or undertaking given to, a court or tribunal; or
 - (b) by or under any Act or law other than this Act.
- (5) Without limiting subsection (4), the conditions and obligations referred to in that subsection include conditions and obligations under—
 - (a) a sentencing order under the **Sentencing Act 1991**; or
 - (b) a correctional order within the meaning of the **Corrections Act 1986**; or
 - (c) a bail undertaking within the meaning of the **Bail Act 1977**; or
 - (d) an order under the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**; or
 - (e) an order under the **Serious Offenders Act 2018**; or

- (f) a prescribed law, or an instrument of a prescribed class.

22CE Police discretions not affected

Nothing in section 22CD affects any discretion a police officer may exercise in relation to not charging a person with an offence against Part V or the regulations when the person is in the vicinity of a drug-checking place for the purposes of attending it as a client.

S. 22CE
inserted by
No. 41/2024
s. 10.

22CF Exemption for permit holders and drug-checking workers

A person who is authorised by a drug-checking permit to do a thing set out in section 20AA is exempt from liability for an offence against this Act or the regulations constituted by the doing of that thing.

S. 22CF
inserted by
No. 41/2024
s. 10.

22CG Exemption relating to possession under section 5

- (1) Each of the persons specified in subsection (2) is exempt from liability for an offence against this Act or the regulations constituted by the possession of a poison, controlled substance or drug of dependence if the possession—
- (a) arises by operation of section 5; and
 - (b) occurs in the course of a person doing a thing under a drug-checking permit.
- (2) The specified persons are—
- (a) the holder of the drug-checking permit; and
 - (b) a special drug-checking worker engaged by the holder of the drug-checking permit; and
 - (c) each owner or occupier of the land or premises on which the possession occurs.

S. 22CG
inserted by
No. 41/2024
s. 10.

- (3) A person who, under subsection (1), is exempted from liability for an offence constituted by possessing a poison, controlled substance or drug of dependence is taken, for the purposes of this Act, to be authorized by this Act to possess that poison, controlled substance or drug of dependence as described in that subsection.

S. 22CH
inserted by
No. 41/2024
s. 10.

22CH Exemption from civil liability

- (1) This section applies to the following—
- (a) the holder of a drug-checking permit;
 - (b) a drug-checking director;
 - (c) each other—
 - (i) general drug-checking worker; or
 - (ii) special drug-checking worker;
 - (d) an owner or occupier of—
 - (i) a drug-checking place; or
 - (ii) the land or premises on which a drug-checking place is located;
 - (e) each trustee or member of a committee of management or board (however described) of—
 - (i) the holder of a drug-checking permit; or
 - (ii) an owner or occupier referred to in paragraph (d).
- (2) A person to whom this section applies is not subject to any civil liability for an act or omission that is done or omitted to be done—
- (a) in good faith; and
 - (b) under a drug-checking permit; and
 - (c) in the case of an act or omission that is subject to the permit, this Division or regulations made for the purposes of this

- Division, in accordance with the permit, this Division and those regulations.
- (3) Without limiting subsection (2), that subsection applies to an act or omission that—
- (a) relates to the supply or possession of a poison, controlled substance or drug of dependence at a drug-checking place; and
 - (b) satisfies the requirements of subsection (2)(a), (b) and (c).
- (4) Without limiting subsection (2), a person referred to in subsection (1)(a), (b) or (c) who acts or fails to act under the permit, this Division or regulations made for the purposes of this Division in the reasonable belief that the act or omission is in accordance with the permit, this Division or those regulations does not commit—
- (a) unprofessional conduct within the meaning and for the purposes of the Health Practitioner Regulation National Law; or
 - (b) a breach of professional etiquette or any other code of conduct.
- (5) Nothing in this section affects any rights or obligations between the holder of a drug-checking permit and—
- (a) a drug-checking director engaged by the holder of the permit; or
 - (b) any other—
 - (i) general drug-checking worker; or
 - (ii) special drug-checking worker—engaged by the holder of the permit.
- (6) Nothing in this section affects or limits any Crown immunity that applies to a person who exercises a power or function under this Division.

S. 22CI
inserted by
No. 41/2024
s. 10.

22CI Planning permit not required

Nothing in a planning scheme or a planning scheme amendment under the **Planning and Environment Act 1987** is to be taken to require a planning permit for the use or development of premises for the purposes of—

- (a) the provision of drug-checking services; or
- (b) the carrying out of another activity under a drug-checking permit.

S. 22CJ
inserted by
No. 41/2024
s. 10.

22CJ Regulations

- (1) The Governor in Council may make regulations for or with respect to the following—
 - (a) standards for—
 - (i) the provision of drug-checking services; or
 - (ii) the carrying out of another activity under a drug-checking permit;
 - (b) regulating the possession, analysis, supply, storage, destruction, transport or delivery of a substance in the course of—
 - (i) the provision of drug-checking services; or
 - (ii) the carrying out of another activity under a drug-checking permit;
 - (c) standards for a drug-checking place;
 - (d) requirements that a person must meet in order to be a fit and proper person in relation to the issue of a drug-checking permit;
 - (e) approvals and applications under section 22CA.

- (2) Regulations made under this section may—
- (a) be of general or limited application;
 - (b) differ according to differences in time, place or circumstance;
 - (c) confer powers or discretions or impose duties on any person or other entity or on a specified person or other entity or class of persons or other entities;
 - (d) provide in a specified case or class of cases for the exemption of persons, other entities or things or a class of persons, other entities or things from any of the provisions of the regulations—
 - (i) whether unconditionally or on specified conditions; and
 - (ii) either wholly or to the extent specified in the regulations.

Division 5—Public health emergencies

22D When a public health emergency order may be made

The Secretary may make a public health emergency order if the Secretary believes it is necessary to do so to respond to, or prevent, a

Pt 2 Div. 5
(Heading and
s. 20)
amended by
Nos 10262
s. 4, 42/1993
s. 42(1)(2),
repealed by
No. 12/1994
s. 9,
new Pt 2
Div. 5
(Heading and
ss 22D–22H)
inserted by
No. 17/2008
s. 5.

S. 22D
inserted by
No. 17/2008
s. 5.

public health emergency or a serious risk to public health.

Example

A public health emergency order may be made in response to, or for the purposes of preventing, an influenza pandemic or the effects of a bioterrorism incident.

S. 22E
inserted by
No. 17/2008
s. 5.

22E Matters to be specified in a public health emergency order

A public health emergency order must specify—

- (a) the public health emergency or serious risk to public health to which the order relates; and
- (b) if the public health emergency or serious risk to public health has occurred, the location or a description of the location where the public is affected; and
- (c) the persons or class of persons who may obtain and possess, use, sell or supply the poison or controlled substance or class of poison or controlled substance specified in the order; and
- (d) the poisons or controlled substances or class of poison or controlled substance to which the order relates; and
- (e) the date on which the order comes into force; and
- (f) the period during which the order is in force, not exceeding 6 months.

S. 22F
inserted by
No. 17/2008
s. 5.

22F What a public health emergency order authorises

- (1) A public health emergency order authorises a person or class of person specified in the order to obtain and possess, use, sell or supply a specified poison or controlled substance or class of poison

or controlled substance in accordance with the order.

- (2) A public health emergency order authorises a person to whom a specified poison or controlled substance or class of poison or controlled substance has been sold or supplied in accordance with the order to possess and use that poison or controlled substance for the purpose for which it was sold or supplied.

22G Extending, amending and revoking orders

S. 22G
inserted by
No. 17/2008
s. 5.

- (1) The Secretary may, by subsequent order—
- (a) extend or further extend the period for which a public health emergency order is in force for a period not exceeding 6 months;
 - (b) otherwise amend or vary a public health emergency order.
- (2) The Secretary may revoke a public health emergency order by subsequent order.

22H Orders under this Division to be published in Government Gazette

S. 22H
inserted by
No. 17/2008
s. 5.

- (1) An order made under this Division must be published in the Government Gazette.
- (2) An order made under this Division comes into force on the date specified in the order or, if no date is specified, on the date of its publication in the Government Gazette.

Pt 2 Div. 6
(Heading and
s. 21)
amended by
Nos 10002
s. 16(h), 10262
s. 4,
repealed by
No. 12/1994
s. 9, new Pt 2
Div. 6
(Heading and
ss 22I–22O)
inserted by
No. 22/2022
s. 54.

Division 6—Animal health and welfare emergencies

S. 22I
inserted by
No. 22/2022
s. 54.

22I Definitions

In this Division—

chief veterinary officer has the same meaning as
in the **Meat Industry Act 1993**;

Secretary means the Department Head (within the
meaning of the **Public Administration Act
2004**) of the Department of Jobs, Precincts
and Regions.

S. 22J
inserted by
No. 22/2022
s. 54.

22J When an animal health and welfare emergency order may be made

The Secretary may make an animal health and
welfare emergency order if the Secretary believes
it is necessary to do so—

- (a) to respond to, or prevent, an animal health or
welfare emergency; or
- (b) to address a serious risk to the health or
welfare of animals.

Examples

In response to a bushfire or for the purposes of preventing a
biosecurity incident.

22K Matters to be specified in an animal health and welfare emergency order

S. 22K
inserted by
No. 22/2022
s. 54.

An animal health and welfare emergency order must specify—

- (a) the nature of the animal health or welfare emergency or serious risk to the health or welfare of animals to which the order relates; and
- (b) if the animal health or welfare emergency or serious risk to animal health or welfare has occurred, the location or a description of the location that is affected; and
- (c) the persons or class of persons who may obtain and possess, store, use, sell or supply the poison or controlled substance or class of poison or controlled substance specified in the order; and
- (d) the persons or class of persons to whom any poison or controlled substance specified in the order may be sold or supplied; and
- (e) the poison or controlled substance or class of poison or controlled substance to which the order relates; and
- (f) the period during which the order is in force, not exceeding 6 months.

22L What an animal health and welfare emergency order authorises

S. 22L
inserted by
No. 22/2022
s. 54.

- (1) An animal health and welfare emergency order authorises a person or class of persons specified in the order to obtain and possess, store, use, sell or supply a specified poison or controlled substance or class of poison or controlled substance in accordance with the order.

- (2) A person who has been sold or supplied a specified poison or controlled substance or class of poison or controlled substance in accordance with an animal health and welfare emergency order is authorised to possess and use that poison or controlled substance for the purpose for which it was sold or supplied.

S. 22M
inserted by
No. 22/2022
s. 54.

22M Extending, amending and revoking orders

- (1) The Secretary, by subsequent order—
- (a) may extend or further extend the period for which an animal health and welfare emergency order is in force for a subsequent period not exceeding 6 months; and
 - (b) may otherwise amend or vary an animal health and welfare emergency order.
- (2) The Secretary may revoke an animal health and welfare emergency order by subsequent order.

S. 22N
inserted by
No. 22/2022
s. 54.

22N Delegation

The Secretary, by instrument, may delegate any powers or functions of the Secretary under this Division to the chief veterinary officer.

S. 22O
inserted by
No. 22/2022
s. 54.

22O Orders under this Division to be published in Government Gazette

- (1) An order made under this Division must be published in the Government Gazette.
- (2) An order made under this Division commences—
- (a) on the date specified in the order; or
 - (b) if no date is specified, on the date it is published in the Government Gazette.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

* * * *

Pt 2 Div. 7
(Heading and
s. 22)
amended by
Nos 10002
s. 16(i)(i)–(iii),
10262 s. 4,
42/1993
s. 43(a)–(d),
repealed by
No. 12/1994
s. 9.

**Division 8—Manufacture and sale of poisons or
controlled substances**

**23 Manufacture, sale and supply of poisons or
controlled substances by wholesale**

S. 23
amended by
No. 10002
s. 16(j),
substituted by
No. 12/1994
s. 11.

- (1) A person must not manufacture and sell or supply by wholesale any poison or controlled substance unless he or she is authorised by or licensed under this Act to do so.
- (2) A person must not sell or supply by wholesale any poison or controlled substance unless he or she is authorised by or licensed under this Act to do so.

S. 23(1)
amended by
Nos 20/2016
s. 105(1),
34/2019
s. 8(1).

S. 23(2)
amended by
Nos 20/2016
s. 105(2),
34/2019
s. 8(2).

24 Wholesaling of certain poisons

A person must not sell or supply by wholesale any poison or controlled substance (other than a Schedule 1 poison, a Schedule 5 poison, a Schedule 6 poison or a Schedule 7 poison that is not a Schedule 7 poison that is included in the Poisons Code in the list of substances that are not for general sale by retail) to any person who is not expressly authorised by this Act or the Regulations, or by a licence, permit or

S. 24
amended by
No. 10002
s. 16(k),
substituted by
No. 42/1993
s. 44,
amended by
Nos 12/1994
s. 12, 18/2000
s. 103, 20/2016
s. 106, 34/2019
s. 9.

warrant under this Act, to obtain that substance by
wholesale.

S. 25
amended by
No. 10002
s. 16(l) (as
amended by
No. 25/1990
s. 4(2)(b)),
repealed by
No. 42/1993
s. 45(1).

* * * * *

S. 26
amended by
Nos 10002
s. 16(m),
42/1993
s. 45(2),
substituted by
No. 12/1994
s. 13.

26 Retailing of poisons or controlled substances

S. 26(1)
amended by
Nos 9/1998
s. 5(3),
20/2016
s. 107(1),
34/2019
s. 10(1).

- (1) A wholesale dealer must not sell or supply by retail any poison or controlled substance (other than a Schedule 5 poison, a Schedule 6 poison or a Schedule 7 poison that is not a Schedule 7 poison that is included in the Poisons Code in the list of substances that are not for general sale by retail) unless he or she is authorised by or licensed under this Act to do so.

S. 26(2)
amended by
Nos 20/2016
s. 107(2),
34/2019
s. 10(2).

- (2) A person must not manufacture and sell or supply by retail any poison or controlled substance unless he or she is authorised by or licensed under this Act to do so.

S. 27
amended by
Nos 10002
s. 16(m),
42/1993
s. 45(3),
9/1998 s. 5(4),
20/2016 s. 108,
34/2019 s. 11.

27 Sale of poisons or controlled substances by persons other than manufacturers etc.

A person (not being a manufacturer or wholesale dealer) shall not sell or supply any poison or controlled substance (other than a Schedule 5 poison, a Schedule 6 poison or a Schedule 7 poison that is not a Schedule 7 poison that is included in the Poisons Code in the list of

substances that are not for general sale by retail)
unless he is authorized by or licensed under this
Act so to do.

27A Offences concerning labelling and other matters

S. 27A
inserted by
No. 42/1993
s. 46.

- (1) A person must not sell or supply a poison or
controlled substance with a label that does not
comply with the requirements of—

S. 27A(1)
substituted by
No. 74/2004
s. 14(1).

- (a) in the case of a Schedule 1 poison, the
Poisons Code; or
(b) in the case of any other poison or controlled
substance, the Poisons Standard.

S. 27A(1)(b)
amended by
No. 75/2014
s. 19(1).

Penalty: 20 penalty units.

- (1A) A person must not sell or supply a poison or
controlled substance in a container that does not
comply with the requirements of—

S. 27A(1A)
inserted by
No. 74/2004
s. 14(1).

- (a) in the case of a Schedule 1 poison, the
Poisons Code; or
(b) in the case of any other poison or controlled
substance, the Poisons Standard.

S. 27A(1A)(b)
amended by
No. 75/2014
s. 19(2).

Penalty: 20 penalty units.

- (2) A person must not sell or supply a Schedule 1
poison—

S. 27A(2)
amended by
No. 74/2004
s. 14(2).

- (a) which the person has stored or packaged
otherwise than in accordance with the
Poisons Code; or

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

(b) which the person knows to have been stored or packaged otherwise than in accordance with the Poisons Code.

Penalty: 20 penalty units.

S. 27A(2A)
inserted by
No. 74/2004
s. 14(3).

(2A) A person must not sell or supply a poison or controlled substance (other than a Schedule 1 poison)—

S. 27A(2A)(a)
amended by
No. 75/2014
s. 19(3).

(a) which the person has stored or packaged otherwise than in accordance with the Poisons Standard; or

S. 27A(2A)(b)
amended by
No. 75/2014
s. 19(3).

(b) which the person knows to have been stored or packaged otherwise than in accordance with the Poisons Standard.

Penalty: 20 penalty units.

S. 27A(3)
amended by
No. 74/2004
s. 14(4).

(3) A person must not advertise for sale or supply a Schedule 1 poison otherwise than in accordance with the Poisons Code.

Penalty: 20 penalty units.

S. 27A(3A)
inserted by
No. 74/2004
s. 14(5),
amended by
No. 75/2014
s. 19(4).

(3A) A person must not advertise for sale or supply a poison or controlled substance (other than a Schedule 1 poison) otherwise than in accordance with the Poisons Standard.

Penalty: 20 penalty units.

S. 27A(4)
inserted by
No. 18/2000
s. 104,
amended by
No. 97/2005
s. 182(Sch. 4
item 16.4),
substituted by
No. 13/2010
s. 41,
amended by
No. 27/2012
s. 15.

(4) Nothing in this section applies to a Schedule 1 poison that is sold or supplied by a registered Chinese medicine practitioner or registered Chinese herbal dispenser in accordance with the endorsement of that person's registration under the Health Practitioner Regulation National Law.

* * * * *

S. 27A(5)
inserted by
No. 20/2016
s. 109,
repealed by
No. 34/2019
s. 12.

28 House to house sale of poisons or controlled substances prohibited

- (1) A person shall not—
- (a) sell or supply in any street or from house to house; or
 - (b) hawk or peddle, or distribute or cause to be distributed as samples, in any street or public place or from house to house—

any poison or controlled substance.

- (2) A person shall not purchase or accept or offer to purchase or accept any poison or controlled substance offered for sale or hawked or peddled pursuant to subsection (1).

S. 28(2)
amended by
No. 10002
s. 14(a).

Penalty: Two years imprisonment or 50 penalty units.

29 Sale of substances in unauthorised containers

- (1) A person shall not sell or supply any drug or medicine which is for internal use or any food drink or condiment in a container—
- (a) of the like description to that prescribed by the regulations for a container in which any poison or controlled substance intended for external use may be sold; or
 - (b) of such a description as not to be readily distinguishable by sight and touch or by either sight or touch from a container in which a poison or controlled substance intended for external use may be sold.

S. 29(2)
amended by
Nos 42/1993
s. 47(1),
74/2004
s. 14(6),
75/2014 s. 20.

- (2) Nothing in this section shall affect any other requirements of this Act, the Poisons Standard, the Poisons Code or the regulations with respect to the containers in which drugs or medicines which are or contain poisons or controlled substances may be sold.

S. 29(3)
inserted by
No. 20/2016
s. 110,
repealed by
No. 34/2019
s. 13.

* * * * *

30 Vending machines for poisons or controlled substances

S. 30(1)
amended by
No. 41/2024
s. 14(1).

- (1) Subject to subsection (1A), a person shall not—

S. 30(1)(a)
amended by
No. 20/2016
s. 111.

- (a) whether on or about the person's premises or elsewhere—
- (i) install any automatic machine for the sale or supply of any poison or controlled substance; or
 - (ii) sell or supply any poison or controlled substance by means of any automatic machine;

S. 30(1)(b)
amended by
No. 20/2016
s. 111.

- (b) allow permit or suffer any such automatic machine for the sale or supply of any poison or controlled substance to be installed on the person's premises;

S. 30(1)(c)
amended by
No. 20/2016
s. 111.

- (c) place or allow permit or suffer to be placed any poison or controlled substance in any automatic machine on the person's premises or under the person's control; or

- (d) allow permit or suffer any person to purchase or be supplied with or otherwise obtain any poison or controlled substance by means of any automatic machine on the premises or under the control of the first-mentioned person.

(1A) Nothing in subsection (1) prohibits a person from—

S. 30(1A)
inserted by
No. 41/2024
s. 14(2).

- (a) installing, or allowing the installation of, an automatic machine for the sale or supply of a poison specified in subsection (1B) for the treatment of opioid overdose; or
- (b) selling or supplying, by means of an automatic machine, a poison specified in subsection (1B) for the treatment of opioid overdose; or
- (c) placing a poison specified in subsection (1B), or allowing the placement of such a poison, in an automatic machine by means of which that poison is to be sold or supplied for the treatment of opioid overdose; or
- (d) allowing a person to purchase, be supplied with or otherwise obtain a poison specified in subsection (1B) by means of an automatic machine described in paragraph (a).

(1B) The poisons that are specified for the purposes of subsection (1A) are—

S. 30(1B)
inserted by
No. 41/2024
s. 14(2).

- (a) Schedule 2 poisons; and
- (b) naloxone; and
- (c) other Schedule 3 poisons.

(2) Any person who commits any contravention of or fails to comply with any provisions of this section shall be guilty of an offence against this Act and shall for every such offence be liable to

S. 30(2)
amended by
No. 10002
s. 14(b)(i)–(iii).

a penalty of not more than 10 penalty units or to imprisonment for a term of not more than six months, and to a further penalty of not less than 1 penalty unit and not more than 2½ penalty units for each day on which any offence under this section is continued after conviction by any court.

S. 30(3)
amended by
No. 25/2023
s. 7(Sch. 1
item 10.2).

- (3) Any automatic machine in respect of which any person is convicted of any offence against the provisions of this section may in the discretion of the court before which proceedings are taken for such offence be forfeited to His Majesty.

Pt 2 Div. 9
(Heading and
s. 31)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1),
repealed by
No. 9/1998
s. 6, new Pt 2
Div. 9
(Heading and
ss 30A–30.J)
inserted by
No. 50/2017
s. 5.

Division 9—Monitored poisons database

S. 30A
inserted by
No. 50/2017
s. 5.

30A Secretary may establish monitored poisons database

- (1) The Secretary may establish and maintain a database for the purposes of monitoring and recording data relating to the supply of monitored poisons.
- (2) The monitored poisons database may include the following—
- (a) a record for each supply of a monitored poison in accordance with the regulations;
 - (b) a record of applications for permits made to the Secretary, notifications provided to the Secretary and permits issued by the Secretary under Division 10, this Division

- or the regulations in relation to the supply to, or treatment of, persons with poisons or controlled substances;
- (c) a record of applications for warrants made to the Secretary, and warrants issued by the Secretary, under Division 4 of Part II in relation to the supply to, or treatment of, persons with poisons or controlled substances;
- (d) any other prescribed information.

30B Powers of Secretary in relation to monitored poisons database

S. 30B
inserted by
No. 50/2017
s. 5.

- (1) The purposes of the monitored poisons database are—
 - (a) to promote safe supply, prescription and dispensing practices; and
 - (b) to reduce harm from monitored poisons and other high risk medication; and
 - (c) to facilitate evaluation and research into monitored poisons and the operation of the monitored poisons database.
- (2) For the purposes of establishing and maintaining the monitored poisons database and furthering the purposes of the database, the Secretary may—
 - (a) collect and store information (including records) required for the database or permitted to be collected and stored by or under this Act or the regulations; and
 - (b) require a prescribed person or prescribed class of person or a data source entity to provide information (including records) to the database in accordance with the regulations; and

- (c) require prescribed records or prescribed information in relation to the supply of a monitored poison to be provided to the monitored poisons database in the prescribed manner or in the prescribed form; and
 - (d) use and disclose any information on the database reasonably necessary to implement and oversee the database, including but not limited to—
 - (i) disclosing information on the database to the Commonwealth, other States or Territories; and
 - (ii) receiving or collecting information for the database from the Commonwealth, other States or Territories or prescribed entities in other Australian jurisdictions; and
 - (iii) authorising in writing other prescribed entities to use and disclose information on the database; and
 - (iv) use and disclosure of information on the database in accordance with this Act or the regulations; and
 - (e) do any other thing or exercise any other power reasonably necessary—
 - (i) to implement, maintain and oversee the database; or
 - (ii) further the purposes of the database.
- (3) Without limiting subsection (2) or any other power of the Secretary, the Secretary may enter into an agreement or a memorandum of understanding with the Commonwealth, other States or Territories and any entity in another Australian jurisdiction in relation to the provision of information to or from the

monitored poisons database by or to that other jurisdiction.

30C Access, use and disclosure of information on monitored poisons database

S. 30C
inserted by
No. 50/2017
s. 5.

- (1) A pharmacist may access, use and disclose information on the monitored poisons database for the following specified purposes—
 - (a) providing records and information to the database in accordance with this Act or the regulations;
 - (b) accessing records and information in relation to a person for whom a monitored poison may be supplied;
 - (c) accessing records and information in relation to a person in relation to the medical treatment or care of that person;
 - (d) disclosing information in the database to any registered health practitioner involved in the care of a person whose information is maintained in the database;
 - (e) any other prescribed purpose.
- (2) A registered medical practitioner, a nurse practitioner or a paramedic practitioner may access, use and disclose information on the monitored poisons database for the following specified purposes—
 - (a) providing records and information to the database in accordance with this Act or the regulations;
 - (b) accessing records and information in relation to a person for whom a monitored poison may be supplied, prescribed or administered;

S. 30C(2)
amended by
No. 1/2025
s. 9.

- (c) accessing records and information in relation to a person in relation to the medical treatment or care of that person;
 - (d) disclosing information in the database to any registered health practitioner involved in the care of a person whose information is maintained in the database;
 - (e) any other prescribed purpose.
- (3) Any person who is authorised by the Secretary under subsection (5), or who belongs to a class of person that is authorised by the Secretary under subsection (5), may access, use and disclose information on the monitored poisons database for the purposes specified in that authorisation.
- (4) Any entity that is prescribed, or that belongs to a prescribed class, may access, use and disclose information on the monitored poisons database for the purposes specified in relation to the entity in the regulations.
- (5) The Secretary may authorise a person or class of person to access, use and disclose information in the monitored poisons database for the purposes specified in relation to the person or class in the authorisation if satisfied that the access, use and disclosure—
 - (a) would assist in achieving the purposes of—
 - (i) promoting safe supply, prescription and dispensing practices; and
 - (ii) reducing harm from monitored poisons and other high risk medication; or
 - (b) is for technical or administrative purposes relating to the maintenance of the database; or

- (c) is to facilitate evaluation and research into monitored poisons and the operation of the monitored poisons database.
- (6) An authorisation under subsection (5) must—
 - (a) be in writing; and
 - (b) in the case of an authorisation for a class of person, be published in the Government Gazette.

Note

See also section 42A in relation to authorized officers.

30D Data source entity to provide records and information to monitored poisons database

S. 30D
inserted by
No. 50/2017
s. 5.

Unless the regulations otherwise provide, a data source entity must take all reasonable steps to ensure that all records or information in relation to the supply of a monitored poison are provided to the monitored poisons database in the manner or in the form prescribed for the purposes of section 30B(2).

Penalty: 100 penalty units.

30E Pharmacist to check monitored poisons database before supply of monitored supply poison

S. 30E
inserted by
No. 50/2017
s. 5.

Unless the regulations otherwise provide, a pharmacist must take all reasonable steps to check the monitored poisons database for the records or information in relation to a person for whom a monitored supply poison may be supplied before supplying the monitored supply poison for that person.

Penalty: 100 penalty units.

S. 30F
inserted by
No. 50/2017
s. 5.

30F Registered medical practitioner to check monitored poisons database before prescription or supply of monitored supply poison

Unless the regulations otherwise provide, a registered medical practitioner must take all reasonable steps to check the monitored poisons database for the records or information in relation to a person for whom a monitored supply poison may be prescribed or supplied before prescribing or supplying the monitored supply poison for that person.

Penalty: 100 penalty units.

S. 30G
inserted by
No. 50/2017
s. 5.

30G Nurse practitioner to check monitored poisons database before prescription or supply of monitored supply poison

Unless the regulations otherwise provide, a nurse practitioner must take all reasonable steps to check the monitored poisons database for the records or information in relation to a person for whom a monitored supply poison may be prescribed or supplied before prescribing or supplying the monitored supply poison for that person.

Penalty: 100 penalty units.

S. 30GA
inserted by
No. 1/2025
s. 10.

30GA Paramedic practitioner to check monitored poisons database before prescription or supply of monitored supply poison

Unless the regulations otherwise provide, a paramedic practitioner must take all reasonable steps to check the monitored poisons database for the records or information in relation to a person for whom a monitored supply poison may be prescribed or supplied before prescribing or supplying the monitored supply poison for that person.

Penalty: 100 penalty units.

30H Authorised supplier to check monitored poisons database before prescription or supply of monitored supply poison

S. 30H
inserted by
No. 50/2017
s. 5.

Unless the regulations otherwise provide, an authorised supplier must take all reasonable steps to check the monitored poisons database for the records or information in relation to a person for whom a monitored supply poison may be prescribed or supplied by that authorised supplier in accordance with the supplier's authorisation before prescribing or supplying the monitored supply poison for that person.

Penalty: 100 penalty units.

30I Offences relating to access or use of monitored poisons database unless authorised

S. 30I
inserted by
No. 50/2017
s. 5.

- (1) A person who is not authorised to do so by or under this Act, the regulations or otherwise by any law must not knowingly access, use or disclose information on the monitored poisons database.

Penalty: 100 penalty units.

- (2) A person who is authorised to do so by or under this Act, the regulations or otherwise by any law to access, use or disclose information on the monitored poisons database must not access, use or disclose information on the monitored poisons database other than in accordance with the person's authorisation.

Penalty: 100 penalty units.

30J Protection from liability for duties and functions in relation to monitored poisons database

S. 30J
inserted by
No. 50/2017
s. 5.

- (1) A registered medical practitioner, nurse practitioner, paramedic practitioner, pharmacist, authorised supplier or authorised user is not liable

S. 30J(1)
amended by
No. 1/2025
s. 11.

for anything done in good faith in carrying out any duty or function in relation to the monitored poisons database in accordance with this Act or the regulations.

(2) Without limiting subsection (1)—

- (a) the accessing of information on the monitored poisons database in respect of a person or the providing of information to the database in respect of a person does not constitute unprofessional conduct or a breach of professional etiquette or ethics; and
- (b) no liability for defamation is incurred by a person referred to in subsection (1) because of the accessing of any person's information or the provision of that information.

Pt 2 Div. 10
(Heading)
substituted by
No. 10002
s. 5(2)(e),
amended by
No. 42/1993
s. 47(2).

Division 10—Drugs of dependence, Schedule 8 poisons, Schedule 9 poisons and Schedule 4 poisons

Pt 2 Div. 10
Subdiv. 1
(Heading and
new s. 31)
inserted by
No. 17/2008
s. 6.

Subdivision 1—Introductory matters and records

New s. 31
inserted by
No. 17/2008
s. 6.

31 Definitions

(1) In this Division—

S. 31(1) def. of
hospital
substituted by
No. 50/2017
s. 6(1).

hospital means the following—

- (a) a public hospital within the meaning of the **Health Services Act 1988**;

(b) a denominational hospital within the meaning of that Act; (c) a private hospital within the meaning of that Act; (d) a day procedure centre within the meaning of that Act;	
<i>multiple-practitioner clinic</i> means a clinic where more than one registered medical practitioner, nurse practitioner or paramedic practitioner practises or is employed;	S. 31(1) def. of <i>multiple-practitioner clinic</i> amended by No. 1/2025 s. 12(1).
* * * *	S. 31(1) def. of <i>notification of drug dependent person</i> repealed by No. 50/2017 s. 6(2)(b).
<i>police gaol</i> has the same meaning as it has in section 3(1) of the Corrections Act 1986;	S. 31(1) def. of <i>police gaol</i> inserted by No. 40/2017 s. 6.
<i>prison</i> has the same meaning as it has in the Corrections Act 1986;	
<i>reportable drug event</i> has the meaning given in section 32A(2);	S. 31(1) def. of <i>reportable drug event</i> inserted by No. 50/2017 s. 6(2)(a).
<i>Schedule 8 permit</i> means a permit to administer, supply or prescribe a Schedule 8 poison issued by the Secretary under section 34A;	
<i>Schedule 9 permit</i> means a permit to administer, supply or prescribe a Schedule 9 poison issued by the Secretary under section 33B.	

S. 31(2)
amended by
No. 1/2025
s. 12(2).

- (2) For the purposes of this Division, a registered medical practitioner, a nurse practitioner or a paramedic practitioner administers, supplies or prescribes a Schedule 8 poison to a patient for a continuous period if the practitioner—
- (a) actually administers, supplies or prescribes that Schedule 8 poison for that period; or
 - (b) supplies a quantity or quantities of a Schedule 8 poison to the patient and instructs the patient to take the drug for that period; or
 - (c) prescribes for the patient a quantity or quantities of a Schedule 8 poison which, if taken in accordance with the prescription, would be taken for that period.

S. 31A
inserted by
No. 20/2016
s. 112,
repealed by
No. 34/2019
s. 14.

* * * * *

S. 32
amended by
No. 42/1993
s. 47(3),
substituted by
No. 74/2004
s. 15.

32 Record keeping in relation to sale or supply of drugs of addiction

- (1) A person who is licensed under this Part to manufacture, sell, supply or distribute any Schedule 8 poison or Schedule 9 poison must record or cause to be recorded, in accordance with subsection (2)—
- (a) details of any Schedule 8 poison or Schedule 9 poison obtained by the person; and
 - (b) quantities of those poisons used, sold, supplied or otherwise disposed of; and
 - (c) such other particulars as are prescribed.

Penalty: 60 penalty units.

- (2) For the purposes of subsection (1), the record kept must be recorded—
- (a) by printing or writing in a legible form in the English language; or
 - (b) in an electronic form that is readily convertible into legible print in the English language.

32A Required notification to Secretary—drugs of dependence and Schedule 4, Schedule 8 and Schedule 9 poisons

S. 32A
inserted by
No. 50/2017
s. 7.

- (1) A registered medical practitioner, a nurse practitioner, a paramedic practitioner or a pharmacist must notify the Secretary as soon as practicable of a reportable drug event.

S. 32A(1)
amended by
No. 1/2025
s. 13.

Penalty: 100 penalty units.

- (2) For the purposes of subsection (1), a ***reportable drug event*** is one or more of the following—
- (a) for a pharmacist, being requested or directed to sell, supply or dispense any drug of dependence, Schedule 8 poison, Schedule 9 poison or Schedule 4 poison for any person—
 - (i) in greater quantities than appears to be reasonably necessary; or
 - (ii) more frequently than appears to be reasonably necessary;
 - (b) for a registered medical practitioner, having reason to believe that the practitioner's patient is a drug-dependent person in circumstances where—
 - (i) the patient requests or seeks prescription of a Schedule 9 poison; or

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- (ii) the registered medical practitioner intends to treat or is treating the patient with a Schedule 9 poison;
 - (c) any other event, or class of event, which the Secretary declares, under subsection (3), is a reportable drug event.
- (3) For the purposes of this section, the Secretary, by notice published in the Government Gazette, may declare an event, or a class of event (including any event that occurs outside Victoria), to be a reportable drug event.

* * * * *

Pt 2 Div. 10
Subdiv. 2
(Heading and
s. 33)
amended by
Nos 10002
s. 4(e)(f) (as
amended by
No. 10087
s. 3(1)(Sch. 1
item 40)),
(g)–(i), 10262
s. 4, 42/1993
s. 47(4),
12/1994
s. 4(1),
23/1994
s. 118(Sch. 1
item 17.8),
9/1998 s. 7,
46/1998
s. 7(Sch. 1),
94/2000
s. 50(1)(2),
17/2008 s. 7,
repealed by
No. 50/2017
s. 8.

Subdivision 3—Schedule 9 poisons

Pt 2 Div. 10
Subdiv. 3
(Heading and
ss 33A–33D)
inserted by
No. 17/2008
s. 7.

33A Application for permit to administer, supply or prescribe Schedule 9 poisons

S. 33A
inserted by
No. 17/2008
s. 7.

- (1) A registered medical practitioner who considers it is necessary to administer, supply or prescribe a Schedule 9 poison to or for one of his or her patients must apply to the Secretary for a Schedule 9 permit before administering, supplying or prescribing the Schedule 9 poison.
- (2) An application for a Schedule 9 permit must be in the prescribed form.

33B Schedule 9 permit

S. 33B
inserted by
No. 17/2008
s. 7.

- (1) On receiving an application under section 33A, the Secretary may issue a permit to a registered medical practitioner authorising the registered medical practitioner to administer, supply or prescribe a Schedule 9 poison to or for a person.
- (2) A Schedule 9 permit—
 - (a) must be in the prescribed form; and
 - (b) may contain any terms and conditions that the Secretary considers appropriate for the administration, supply or prescription of the Schedule 9 poison.
- (3) The Secretary may at any time amend, suspend or revoke a Schedule 9 permit and any permit which is suspended or revoked ceases to have effect.

S. 33C
inserted by
No. 17/2008
s. 7.

33C Offence not to comply with Schedule 9 permit

A registered medical practitioner issued with a Schedule 9 permit must not administer, supply or prescribe a Schedule 9 poison to or for one of his or her patients—

- (a) other than for the period specified in the permit for that administration, supply or prescription; or
- (b) in excess of the quantity specified in the permit.

Penalty: 100 penalty units.

S. 33D
inserted by
No. 17/2008
s. 7.

33D Offence to administer Schedule 9 poisons without permit

A registered medical practitioner must not at any time administer, supply or prescribe a Schedule 9 poison to or for a person unless the practitioner—

- (a) holds a Schedule 9 permit for that administration, supply or prescription to or for that person; or
- (b) is otherwise authorised by or under this Act to do so.

Penalty: 100 penalty units.

Subdivision 4—Schedule 8 poisons

Pt 2 Div. 10
Subdiv. 4
(Heading)
inserted by
No. 17/2008
s. 8.

34 Requirement to apply for Schedule 8 permit

S. 34
amended by
Nos 10002
s. 4(f) (as
amended by
No. 10087
s. 3(1)(Sch. 1
item 40)), (j),
10262 s. 4,
42/1993
s. 47(5),
12/1994
s. 4(2),
23/1994
s. 118(Sch. 1
item 17.9),
46/1998
s. 7(Sch. 1),
94/2000
s. 50(3),
substituted by
No. 17/2008
s. 8.

- (1) A registered medical practitioner, a nurse practitioner or a paramedic practitioner who considers it is necessary to administer, supply or prescribe a Schedule 8 poison to or for one of the practitioner's patients who is a drug-dependent person must apply to the Secretary for a Schedule 8 permit.
- (2) Subject to subsection (3), a registered medical practitioner, a nurse practitioner or a paramedic practitioner who considers it is necessary to administer, supply or prescribe a Schedule 8 poison for a continuous period greater than 8 weeks to or for one of the practitioner's patients who is not a drug-dependent person must apply to the Secretary for a Schedule 8 permit.

S. 34(1)
amended by
No. 1/2025
s. 14(1).

S. 34(2)
amended by
No. 1/2025
s. 14(2).

S. 34(3)
amended by
No. 1/2025
s. 14(3)(a).

(3) A registered medical practitioner, a nurse practitioner or a paramedic practitioner must apply to the Secretary for a Schedule 8 permit if—

(a) the practitioner—

S. 34(3)(a)(i)
amended by
No. 1/2025
s. 14(3)(b).

(i) has reason to believe that one of the practitioner's patients who is not a drug-dependent person has been, or is currently being, administered, supplied or prescribed a Schedule 8 poison by one or more other practitioners; and

(ii) considers it is necessary to administer, supply or prescribe a Schedule 8 poison to or for that patient; and

(b) the total period of administration, supply or prescription of a Schedule 8 poison to that patient would be a continuous period greater than 8 weeks, taking into account any period of administration, supply or prescription referred to in paragraph (a)(i) together with the period of administration, supply or prescription of a Schedule 8 poison to or for that patient by the practitioner.

(4) An application for a Schedule 8 permit must be in the prescribed form.

S. 34A
inserted by
No. 17/2008
s. 8.

34A Schedule 8 permit

S. 34A(1)
amended by
No. 1/2025
s. 15.

(1) On receiving an application under section 34, the Secretary may issue a permit to a registered medical practitioner, a nurse practitioner or a paramedic practitioner authorising the practitioner—

(a) to administer, supply or prescribe a Schedule 8 poison to or for a drug-dependent person; or

- (b) to administer, supply or prescribe a Schedule 8 poison to or for a person other than a drug-dependent person for a continuous period greater than 8 weeks.
- (2) A Schedule 8 permit must be in the prescribed form.
- (3) The Secretary may at any time amend, suspend or revoke a Schedule 8 permit and any permit which is suspended or revoked ceases to have effect.

34B Offence to administer etc. Schedule 8 poisons to drug-dependent person

A registered medical practitioner, a nurse practitioner or a paramedic practitioner must not at any time administer, supply or prescribe a Schedule 8 poison to or for a person the practitioner has reason to believe to be a drug-dependent person unless the practitioner—

- (a) holds a Schedule 8 permit for that administration, supply or prescription to or for that person; or
- (b) is otherwise authorised by or under this Act to do so.

Penalty: 100 penalty units.

34C Offence to administer etc. Schedule 8 poisons to person who is not a drug-dependent person

- (1) A registered medical practitioner, a nurse practitioner or a paramedic practitioner must not administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person for a continuous period greater than 8 weeks unless the practitioner—

S. 34B
inserted by
No. 17/2008
s. 8,
amended by
No. 1/2025
s. 16.

S. 34C
inserted by
No. 17/2008
s. 8.

S. 34C(1)
amended by
No. 1/2025
s. 17(1).

- (a) holds a Schedule 8 permit for that administration, supply or prescription to or for that person; or
- (b) is otherwise authorised by or under this Act to do so.

Penalty: 100 penalty units.

S. 34C(2)
amended by
No. 1/2025
s. 17(2).

- (2) Subject to subsection (3), unless otherwise authorised by or under this Act to do so, a registered medical practitioner, a nurse practitioner or a paramedic practitioner must not administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person without a Schedule 8 permit if the total period of administration, supply or prescription of the Schedule 8 poison to or for that person would be a continuous period greater than 8 weeks, taking into account the total of—
 - (a) any period of administration, supply or prescription of a Schedule 8 poison to or for that person that the practitioner has reason to believe has been, or is currently being, administered, supplied or prescribed by one or more other practitioners; and
 - (b) the period of administration, supply or prescription of a Schedule 8 poison to or for that patient by the practitioner.

Penalty: 100 penalty units.

S. 34C(3)
amended by
No. 1/2025
s. 17(3).

- (3) A registered medical practitioner, a nurse practitioner or a paramedic practitioner who has applied for a Schedule 8 permit under section 34(3) is authorised to administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person in respect of whom the application relates without a Schedule 8 permit for the purposes of ensuring continuity of that person's treatment until—

- (a) the Schedule 8 permit is issued; or
- (b) the Secretary refuses to issue the permit.

**34D Exception to Schedule 8 permit requirement—
specified circumstances**

Despite section 34C(1), a registered medical practitioner, a nurse practitioner or a paramedic practitioner is authorised to administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person during a continuous period greater than 8 weeks without a Schedule 8 permit if the administration, supply or prescription of that Schedule 8 poison is to treat that person in the circumstances specified by the Secretary in accordance with section 35A.

S. 34D
inserted by
No. 17/2008
s. 8,
substituted by
No. 50/2017
s. 9,
amended by
No. 1/2025
s. 18.

**34E Exceptions to Schedule 8 permit requirement—
multiple practitioners at medical clinic**

S. 34E
inserted by
No. 17/2008
s. 8.

- (1) Despite section 34B, a registered medical practitioner, a nurse practitioner or a paramedic practitioner at a multiple-practitioner clinic is authorised to administer, supply or prescribe a Schedule 8 poison to or for a drug-dependent person without a Schedule 8 permit if—

S. 34E(1)
amended by
No. 1/2025
s. 19(1)(a).

- (a) the treatment is provided at the multiple-practitioner clinic; and
- (b) a Schedule 8 permit has been issued to another registered medical practitioner, another nurse practitioner or another paramedic practitioner at that multiple-practitioner clinic to administer, supply or prescribe the Schedule 8 poison to or for that drug-dependent person; and
- (c) the administration, supply or prescription of the Schedule 8 poison is carried out in accordance with that permit.

S. 34E(1)(b)
amended by
No. 1/2025
s. 19(1)(b).

S. 34E(2)
amended by
No. 1/2025
s. 19(2)(a).

(2) Despite section 34C(1), a registered medical practitioner, a nurse practitioner or a paramedic practitioner at a multiple-practitioner clinic is authorised to administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person during a continuous period greater than 8 weeks without a Schedule 8 permit if—

(a) the treatment is provided at the multiple-practitioner clinic; and

S. 34E(2)(b)
amended by
No. 1/2025
s. 19(2)(b).

(b) a Schedule 8 permit has been issued to another registered medical practitioner, another nurse practitioner or another paramedic practitioner at that multiple-practitioner clinic to administer, supply or prescribe the Schedule 8 poison to or for that person; and

(c) the administration, supply or prescription of the Schedule 8 poison is carried out in accordance with that permit.

S. 34E(3)
amended by
No. 1/2025
s. 19(3)(a).

(3) Despite section 34C(2), a registered medical practitioner, a nurse practitioner or a paramedic practitioner at a multiple practitioner clinic is authorised to administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person without a Schedule 8 permit in the circumstances set out in section 34C(2) if—

(a) the treatment is provided at the multiple-practitioner clinic; and

S. 34E(3)(b)
amended by
No. 1/2025
s. 19(3)(b).

(b) a Schedule 8 permit has been issued to another registered medical practitioner, another nurse practitioner or another paramedic practitioner at that multiple-practitioner clinic to administer, supply or

prescribe the Schedule 8 poison to or for that person; and

- (c) the administration, supply or prescription of the Schedule 8 poison is carried out in accordance with that permit.

34F Exception to Schedule 8 permit requirement—patients in prisons, police gaols, residential aged care homes and hospitals

Despite sections 34B and 34C, a registered medical practitioner, a nurse practitioner or a paramedic practitioner is authorised to administer, supply or prescribe a Schedule 8 poison to or for a person without a Schedule 8 permit if that person is—

- (a) a prisoner being treated in a prison for the period in prison and a period not exceeding 7 days after that prisoner's release from custody; or
- (ab) a person being treated in a police gaol for the period in the police gaol and a period not exceeding 7 days after that person's release from the police gaol; or
- (b) a person who is accessing funded aged care services in a residential aged care home; or
- (c) an in-patient being treated in a hospital or a patient being treated in an emergency department of a hospital, for the period of that treatment in the hospital and a period not exceeding 7 days after that person's discharge from the hospital.

S. 34F
(Heading)
amended by
Nos 40/2017
s. 7(1),
37/2025
s. 5(1).

S. 34F
inserted by
No. 17/2008
s. 8,
amended by
No. 1/2025
s. 20.

S. 34F(ab)
inserted by
No. 40/2017
s. 7(2).

S. 34F(b)
substituted by
No. 37/2025
s. 5(2).

S. 34F(c)
amended by
No. 50/2017
s. 10.

S. 35
amended by
Nos 10002
s. 4(f) (as
amended by
No. 10087
s. 3(1)(Sch. 1
item 40)), (j),
10262 s 4,
42/1993
s. 47(6),
12/1994
s. 4(3),
23/1994
s. 118(Sch. 1
item 17.10),
9/1998 s. 8,
46/1998
s. 7(Sch. 1),
94/2000 s. 51,
67/2003
s. 13(1),
74/2004 s. 16,
substituted by
No. 17/2008
s. 9,
amended by
No. 1/2025
s. 21.

35 Offence not to comply with Schedule 8 permit

A registered medical practitioner, a nurse practitioner or a paramedic practitioner must not administer, supply or prescribe a Schedule 8 poison to or for one of the practitioner's patients in respect of whom a Schedule 8 permit has been issued—

- (a) other than for the period specified in the permit for that administration, supply or prescription; or
- (b) in excess of the quantity specified in the permit.

Penalty: 100 penalty units.

Pt 2 Div. 10
Subdiv. 5
(Heading)
inserted by
No. 17/2008
s. 10.

Subdivision 5—General

S. 35A
inserted by
No. 9/1998
s. 9,
amended by
Nos 67/2003
s. 13(1),
17/2008 s. 11,
substituted by
No. 50/2017
s. 11,
amended by
No. 1/2025
s. 22.

35A Secretary may specify circumstances for purposes of section 34D

- (1) The Secretary, by notice published in the Government Gazette, may specify circumstances in which a registered medical practitioner, a nurse practitioner or a paramedic practitioner is authorised to administer, supply or prescribe a Schedule 8 poison to or for a person who is not a drug-dependent person during a continuous period greater than 8 weeks without a Schedule 8 permit for the purposes of section 34D.

- (2) The Secretary, by notice published in the Government Gazette, may amend or revoke a notice under subsection (1).

35B Composite forms

For the purposes of this Division—

- (a) the regulations may prescribe a composite form which incorporates all or any of the prescribed forms required by sections 33, 33A and 34; and
- (b) a composite form is to be taken to be the prescribed form under each of the sections referred to in the form.

* * * * *

S. 35B
inserted by
No. 17/2008
s. 12.

S. 36
amended by
Nos 10002
s. 4(k), 10262
s. 4, 42/1993
s. 47(7),
46/1998
s. 7(Sch. 1),
repealed by
No. 50/2017
s. 12.

36A Forgery

A person shall not forge or fraudulently alter or utter knowing it to be forged or fraudulently altered, a prescription or order for a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison (not being a drug of dependence).

Penalty: 10 penalty units.

S. 36A
inserted by
No. 10002
s. 5(1),
amended by
No. 42/1993
s. 47(8).

36B Unauthorized possession etc. of poison or controlled substance etc.

- (1) A person shall not knowingly by false representation, whether oral or in writing or by conduct—

S. 36B
inserted by
No. 10002
s. 5(1).

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S. 36B(1)(a)
amended by
No. 42/1993
s. 47(9).

- (a) obtain a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison from a person authorized by or licensed under this Act or the regulations to possess, manufacture, sell or supply the Schedule 8 poison, Schedule 9 poison or Schedule 4 poison;

S. 36B(1)(b)
amended by
Nos 42/1993
s. 47(9),
23/1994
s. 118(Sch. 1
item 17.11),
58/1997
s. 96(Sch.
item 3.3),
56/1996
s. 100(5).

- (b) obtain a prescription or order for a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison from a registered medical practitioner, registered optometrist, dentist, pharmacist or veterinary practitioner or a person authorized by this Act or the regulations to issue or possess the prescription or order;

S. 36B(1)(c)
amended by
Nos 42/1993
s. 47(9),
23/1994
s. 118(Sch. 1
item 17.11).

- (c) cause or induce a registered medical practitioner to administer a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison to him by injection or otherwise; or

S. 36B(1)(d)
amended by
No. 42/1993
s. 47(9).

- (d) cause or induce a pharmacist or a person authorized by this Act or the regulations to supply a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison, to dispense a prescription or order for that Schedule 8 poison, Schedule 9 poison or Schedule 4 poison, if the first-mentioned person knows the prescription or order to have been obtained in contravention of this Act or the regulations.

Penalty: 10 penalty units.

S. 36B(2)
amended by
No. 42/1993
s. 47(9).

- (2) A person shall not have in his possession a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison unless he is authorized by or licensed under this Act or the regulations to do so.

Penalty: 10 penalty units.

- (3) In this section a reference to a Schedule 8 poison, Schedule 9 poison or Schedule 4 poison does not include a reference to a drug of dependence.

S. 36B(3)
amended by
No. 42/1993
s. 47(9).

Division 10A—Administration of medication in residential aged care homes

Pt 2 Div. 10A
(Heading)
amended by
No. 37/2025
s. 6.

Pt 2 Div. 10A
(Heading and
ss 36C–36F)
inserted by
No. 17/2006
s. 4.

36C Effect of this Division

Nothing in this Division affects any other requirement in this Act or the Regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act in respect of the administration of a drug of dependence, a Schedule 9 poison, a Schedule 8 poison or a Schedule 4 poison.

S. 36C
inserted by
No. 17/2006
s. 4,
amended by
Nos 20/2016
s. 113, 61/2017
s. 125, 34/2019
s. 15.

36D Definitions

S. 36D
inserted by
No. 17/2006
s. 4.

In this Division—

* * * * *

S. 36D def. of
*approved
provider*
repealed by
No. 37/2025
s. 7(2).

enrolled nurse means a person registered under the Health Practitioner Regulation National Law—

S. 36D def. of
enrolled nurse
inserted by
No. 37/2025
s. 7(1).

- (a) to practise in the nursing and midwifery profession as a nurse (other than as a student); and

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	(b) in the enrolled nurses division of that profession;				
S. 36D def. of <i>high level residential care</i> amended by No. 13/2010 s. 42(1), repealed by No. 37/2025 s. 7(2).	*	*	*	*	*
S. 36D def. of <i>nurse</i> repealed by No. 13/2010 s. 42(2).	*	*	*	*	*
S. 36D def. of <i>Nurses Board of Victoria</i> repealed by No. 13/2010 s. 42(2).	*	*	*	*	*
S. 36D def. of <i>registered provider</i> inserted by No. 37/2025 s. 7(1).	<i>registered provider</i> has the same meaning as in the Aged Care Act 2024 of the Commonwealth.				

36E Managing the administration of drugs of dependence and Schedule 9, Schedule 8 and Schedule 4 poisons in residential aged care homes

S. 36E
(Heading)
substituted by
No. 37/2025
s. 8(1).

S. 36E
inserted by
No. 17/2006
s. 4,
amended by
Nos 13/2010
s. 43, 20/2016
s. 114(1),
61/2017
s. 126(1)(2)
(ILA s. 39B(1)).

- (1) Subject to subsection (2), a registered provider who delivers funded aged care services in a residential aged care home must ensure that a registered nurse manages the administration of any drug of dependence, Schedule 9 poison, Schedule 8 poison or Schedule 4 poison to a person—

S. 36E(1)
amended by
Nos 34/2019
s. 16(a),
37/2025
s. 8(2)(a)(b)(3).

- (a) who is accessing funded aged care services in the residential aged care home; and

S. 36E(1)(a)
amended by
No. 37/2025
s. 8(2)(c).

- (b) for whom that drug or poison has been supplied on prescription.

S. 36E(1)(b)
amended by
No. 20/2016
s. 114(2),
substituted by
No. 34/2019
s. 16(b).

Penalty: 600 penalty units.

- (2) Subsection (1) does not apply to the management of the administration of any voluntary assisted dying substance specified in a voluntary assisted dying permit to a person who is—

S. 36E(2)
inserted by
No. 61/2017
s. 126(2),
amended by
No. 37/2025
s. 8(4).

- (a) the subject of that permit; and

S. 36E(2)(a)
inserted by
No. 37/2025
s. 8(4).

S. 36E(2)(b)
inserted by
No. 37/2025
s. 8(4).

- (b) accessing funded aged care services in a residential aged care home.

S. 36EA
inserted by
No. 37/2025
s. 9.

36EA Administration of drugs of dependence and Schedule 9, Schedule 8 and Schedule 4 poisons in residential aged care homes

- (1) A registered provider who delivers funded aged care services in a residential aged care home must ensure that a person specified in subsection (2) administers any drug of dependence, Schedule 9 poison, Schedule 8 poison or Schedule 4 poison to a person—
 - (a) who is accessing funded aged care services in the residential aged care home; and
 - (b) for whom that drug or poison has been supplied on prescription; and
 - (c) who is at the residential aged care home when the drug or poison is administered to the person.

Penalty: 100 penalty units.

- (2) The following persons are specified—
 - (a) a registered nurse;
 - (b) an enrolled nurse who holds a qualification approved by the Nursing and Midwifery Board of Australia in relation to the administration of medication;
 - (c) any other registered health practitioner who is authorised by or under this Act or the regulations to administer the drug or poison.
- (3) A registered provider does not contravene subsection (1) if—
 - (a) the registered provider has a reasonable excuse; or

- (b) the person for whom the drug or poison has been supplied self-administers the drug or poison; or
 - (c) a person other than a person specified in subsection (2) administers the drug or poison in prescribed circumstances.
- (4) Subsection (1) does not apply to the administration of any voluntary assisted dying substance specified in a voluntary assisted dying permit to a person who is—
- (a) the subject of that permit; and
 - (b) accessing funded aged care services in a residential aged care home.

36F Registered nurse to have regard to standards, codes or guidelines

A registered nurse who manages the administration of any drug of dependence, Schedule 9 poison, Schedule 8 poison or Schedule 4 poison to a person in a residential aged care home in accordance with this Division must do so in accordance with the relevant standards, codes or guidelines (if any) developed by the Nursing and Midwifery Board of Australia under the Health Practitioner Regulation National Law.

S. 36F
(Heading)
amended by
No. 37/2025
s. 10(1).

S. 36F
inserted by
No. 17/2006
s. 4,
substituted by
No. 13/2010
s. 44,
amended by
No. 37/2025
s. 10(2).

Division 11—Appeals

37 Appeals

- (1) Any person who feels aggrieved by any refusal of the Secretary to issue or renew any licence or permit or by any order of the Secretary cancelling suspending or revoking any licence or permit may appeal therefrom to the Magistrates' Court within six months after the refusal cancellation suspension or revocation.

S. 37(1)
amended by
Nos 10262
s. 4, 16/1986
s. 30, 57/1989
s. 3(Sch.
item 59.1),
46/1998
s. 7(Sch. 1).

S. 37(2)
amended by
Nos 16/1986
s. 30, 57/1989
s. 3(Sch. item
59.2(a)–(c)).

- (2) The Court shall entertain inquire into and decide upon the appeal and its decision shall, save as provided by the **Administrative Law Act 1978**, be final and conclusive.

Division 12—Sale of poisons book

S. 38
substituted by
Nos 42/1993
s. 48, 12/1994
s. 14,
amended by
No. 18/2000
s. 105(a).

38 Record of sale of poisons

A person who sells or supplies by retail any Schedule 7 poison must keep an accurate record of the sale or supply, setting out the following details—

- (a) the name and address of the person who purchases or obtains the poison or controlled substance;
- (b) the date of sale or supply;
- (c) the name and quantity of the poison or controlled substance purchased or obtained.

S. 38A
inserted by
No. 42/1993
s. 48,
amended by
No. 12/1994
s. 16(1).

38A Authorised possession of certain poisons

A person who purchases or obtains a poison or controlled substance to which section 38 applies and which is supplied to the person in accordance with that section and section 40 is authorised by this Act to purchase or obtain and to possess the poison or controlled substance so supplied.

S. 39
repealed by
No. 12/1994
s. 16(2).

* * * * *

40 Sale or supply of poisons or controlled substances to persons under age

A person shall not sell or supply any Schedule 7 poison to a person who is under the age of 18 years.

S. 40
amended by
No. 42/1993
s. 49,
substituted by
No. 12/1994
s. 15,
amended by
No. 18/2000
s. 105(b).

Division 13—Authorized officers

41 Secretary may authorize person to carry out functions of authorized officer

- (1) For the purposes of this Act, the Secretary may in writing authorize either generally or in any particular case, any of the following persons to exercise and perform the powers, duties and functions of an authorised officer under this Act and the regulations—

S. 41(1)
amended by
Nos 10262
s. 4, 42/1993
s. 50(1),
46/1998
s. 7(Sch. 1).

- (a) any employee in the public service;

S. 41(1)(a)
substituted by
No. 46/1998
s. 7(Sch. 1).

* * * * *

S. 41(1)(b)
repealed by
No. 46/1998
s. 7(Sch. 1).

- (c) any officer or employee of a public statutory authority;

- (d) any member of staff of a municipal council.

- (2) An authority under subsection (1) may be expressed to be in force for a period specified in the authority or may be given for an indefinite period.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

S. 41(3)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1).

- (3) The Secretary may in writing revoke or vary an authority given under subsection (1).

S. 41(4)
amended by
Nos 10262
s. 4, 42/1993
s. 50(2),
46/1998
s. 7(Sch. 1).

- (4) A person may be an authorized officer for the purposes of this Act in conjunction with being employed in the public service or a public statutory authority or a member of staff of a municipal council.

S. 41(5)
repealed by
No. 10002
s. 5(2)(c),
new s. 41(5)
inserted by
No. 66/2017
s. 5.

- (5) Without limiting subsection (1), an authority under that subsection may be limited to the exercise and performance of powers, duties, and functions of an authorized officer for the purposes of Part IIA and any regulations made for the purposes of that Part.

42 Inspections

S. 42(1)
amended by
Nos 20/2016
s. 115(1),
61/2017
s. 127(1),
34/2019
s. 17(1).

- (1) For the purpose of ascertaining whether the provisions of this Act and the regulations or the **Voluntary Assisted Dying Act 2017** and the regulations under that Act are being complied with any authorized officer may with such assistance as he thinks necessary at any reasonable time—

- (a) enter upon any premises occupied by any person licensed or otherwise authorized by or under this Act to have in his possession any poison or controlled substance;

* * * * *

S. 42(1)(ab)
inserted by
No. 20/2016
s. 115(2),
repealed by
No. 34/2019
s. 17(2).

- (ac) enter upon any premises (other than residential premises) occupied by any person authorised by or under the **Voluntary**

Assisted Dying Act 2017 or the regulations under that Act to have in that person's possession any voluntary assisted dying substance;

- (ad) if a medically supervised injecting centre licence has been issued, enter upon the permitted site and the licensed medically supervised injecting centre to ascertain whether Part IIA, the regulations made for the purposes of that Part, the medically supervised injecting centre licence and the internal management protocols are being complied with and exercise any powers under this section;

S. 42(1)(ad)
inserted by
No. 66/2017
s. 6.

Note

See also section 50 in relation to immunity of authorized officers.

- (ae) if a fixed site drug-checking permit has been issued, enter the drug-checking place under that permit;
- (af) if a mobile drug-checking permit has been issued—
- (i) enter the drug-checking place to which that permit relates; and
 - (ii) otherwise enter the mobile facility to which that permit relates;
- (b) examine any room or part of such premises and any goods or records therein;
- (ba) access and examine or inspect records or information required to be included on the monitored poisons database;
- (c) take an account of any poisons or controlled substances therein;

S. 42(1)(ae)
inserted by
No. 41/2024
s. 11.

S. 42(1)(af)
inserted by
No. 41/2024
s. 11.

S. 42(1)(ba)
inserted by
No. 50/2017
s. 13.

S. 42(1)(e)
amended by
Nos 20/2016
s. 115(3),
61/2017
s. 127(3),
34/2019
s. 17(3).

- (d) on payment or tender of a reasonable price demand select and obtain any sample of any poison or controlled substance which is in or on those premises;
 - (e) seize any poison or controlled substance or any other substance or any document which is in or on those premises with respect to which he has reasonable grounds for believing there has been a contravention of this Act or the **Voluntary Assisted Dying Act 2017**; and
 - (f) detain or remove to some suitable place any poison or controlled substance or other substance or document so seized.
- (2) Every person who—
- (a) refuses or fails to admit any authorized officer demanding to enter in pursuance of the provisions of this section;
 - (b) refuses to permit any authorized officer to select or obtain any sample in pursuance of the provisions of this section; or
 - (c) obstructs or delays any authorized officer in the discharge of his duty or causes or permits any authorized officer to be so obstructed or delayed—

shall be guilty of an offence against this Act.

S. 42A
inserted by
No. 50/2017
s. 14.

42A Powers of authorized officers to access, use and disclose information on monitored poisons database

Without limiting section 42, an authorized officer may access the monitored poisons database and use and disclose information on that database for the purposes of—

- (a) implementing and monitoring the use of the database and the records and information in the database; and

- (b) carrying out any other function or power as an authorized officer under this Act and the regulations.

43 Duties of officers in relation to seized substances

- (1) Where any poison or controlled substance or other substance or document is seized by an authorized officer pursuant to this Part, the authorized officer shall forthwith—
 - (a) give notice of the seizure in the prescribed form to the person apparently in charge thereof; or
 - (b) if there is no person apparently in charge thereof, give notice of the seizure to any person appearing to be the consignor or owner thereof by any name and address attached thereto or to any package containing the poison or controlled substance or the other substance or document if the address is a place in Victoria and otherwise to the importer or consignee or his agent.
- (2) Any person claiming any poison or controlled substance or other substance or document seized under this part may within 96 hours after the seizure complain of the seizure by giving notice verified by statutory declaration of the complaint in the prescribed form to the registrar at the proper venue of the Magistrates' Court and a copy of the notice and the statutory declaration to the authorized officer responsible for the seizure.
- (3) The complaint shall be determined by the Magistrates' Court which (after hearing the evidence) may either confirm or disallow the seizure wholly or in part and make an order accordingly.

S. 43(2)
amended by
No. 57/1989
s. 3(Sch.
item 59.3).

S. 43(3)
amended by
No. 57/1989
s. 3(Sch.
item 59.4).

- (4) If no complaint is made or if the seizure is confirmed each poison or controlled substance or other substance or document shall thereupon become the property of the Crown and may be destroyed or disposed of as the Minister directs.

* * * * *

S. 43(5)
inserted by
No. 20/2016
s. 116,
repealed by
No. 34/2019
s. 18.

44 Persons who are liable for contravention of Act

- (1) Where there is sold or supplied to any authorized officer in an unopened package any poison or controlled substance in connexion with the sale or supply of which there is a contravention of or failure to comply with any of the provisions of this Act or the regulations each of the following persons shall, in addition to the person who actually sold or supplied the package to the authorized officer, be liable in respect of the contravention or failure, namely—
- (a) if there is a label on or attached to the package—any person who appears from the label to have manufactured or prepared the poison or controlled substance or to have imported the poison or controlled substance into Victoria or to have enclosed or caused the poison or controlled substance to be enclosed in the package or to have been the wholesale dealer in the poison or controlled substance; or
 - (b) if there is no label on or attached to the package or if there is a label on or attached to the package but the label does not disclose any of the particulars referred to in paragraph (a) any person who has previously sold or supplied the unopened package.

- (2) Any person to whom the provisions of subsection (1) applies shall be deemed to have sold or supplied the unopened package to the authorized officer as on the day and at the place where he purchased the package and shall be liable to the same penalty as if he had actually sold or supplied the unopened package to the authorized officer on that day and at that place.
- (3) It shall be a good defence to any prosecution brought under the provisions of this section if the person charged shows—
 - (a) that the contravention or non-compliance is due to the act or default of some subsequent seller or supplier;
 - (b) that the contravention or non-compliance is due to deterioration or other causes beyond the control of the person so charged;
 - (c) where there is a label on or attached to the package, that he did not in fact attach the label or cause the label to be attached or enclose the poison or controlled substance in the package or cause the poison or controlled substance to be enclosed; or
 - (d) where there is no label on the package or attached thereto that he purchased or obtained the poison or controlled substance already enclosed in a package from some other person and sold or supplied the package in the condition in which he received it.
- (4) Nothing in this section shall affect the liability of any person selling or supplying an unopened package containing a poison or controlled substance to an authorized officer with respect to any contravention or non-compliance due to his default or to other causes within his control; and

the conviction of any person under the foregoing provisions of this section shall not exonerate the person selling or supplying the unopened package or any other person from liability with respect to that contravention or non-compliance.

- (5) Without affecting the generality of the application of this or any other provision of this Act to firms or their members, where a firm appears from a label on or attached to a package containing a poison or controlled substance to have imported manufactured or prepared the poison or controlled substance or to have been the wholesale dealer in the poison or controlled substance or to have enclosed the poison or controlled substance in a package—

- (a) proceedings under this section may be taken (whether in the Magistrates' Court or otherwise) and penalties recovered accordingly against any member or members of the firm; and
- (b) this section shall be read and construed and have effect as if the name or names of the member or members of the firm had appeared on the label.

S. 44(5)(a)
amended by
No. 57/1989
s. 3(Sch.
item 59.5).

S. 44(6)
inserted by
No. 20/2016
s. 117,
repealed by
No. 34/2019
s. 19.

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**Division 13A—Authorised police employees
and other authorised persons**

Pt 2 Div. 13A
(Heading)
amended by
No. 9/2014
s. 6.

Pt 2 Div. 13A
(Heading and
ss 44A, 44B)
inserted by
No. 52/2006
s. 5.

**44A Chief Commissioner may authorise person to carry
out functions of authorised police employee**

S. 44A
inserted by
No. 52/2006
s. 5.

(1) For the purposes of this Act, the Chief Commissioner of Police may in writing authorise, either generally or in a particular case, a Victoria Police employee or a class of Victoria Police employee to perform the powers, duties and functions of an authorised police employee under this Division.

S. 44A(1)
substituted by
No. 37/2014
s. 10(Sch.
item 47.2).

(2) An authority under subsection (1)—

- (a) may be expressed to be in force for a period specified in the authority;
- (b) may be expressed to be in force for an indefinite period;
- (c) may apply generally or in a particular case.

(3) The Chief Commissioner of Police may in writing revoke or vary an authority under subsection (1).

**44B Powers, duties and functions of authorised police
employee**

S. 44B
inserted by
No. 52/2006
s. 5.

For the purpose of assisting an authorized officer in the performance of the authorized officer's powers, duties and functions under this Act or the regulations, an authorised police employee may do all or any of the following in relation to any

Schedule 9 poison, Schedule 8 poison or
Schedule 4 poison or any drug of dependence—

- (a) receive, handle or store the poison or drug;
- (b) transfer, transport or deliver the poison or drug;
- (c) examine or analyse the poison or drug;
- (d) destroy the poison or drug.

S. 44C
inserted by
No. 9/2014
s. 7.

44C Other authorised persons

- (1) The Chief Commissioner of Police may authorise a person or a class of person to obtain and possess a substance or thing specified in section 98(1) for one or both of the following purposes—
 - (a) supplying the substance or thing to a declared testing facility in accordance with an authorisation under section 98; or
 - (b) returning the substance or item to Victoria Police from a declared testing facility.
- (2) To the extent necessary to carry out the specified purpose, an authorisation under subsection (1) authorises a person to—
 - (a) receive, handle or store the substance or thing;
 - (b) transfer, transport or deliver the substance or thing.
- (3) An authorisation under subsection (1) must be in writing.
- (4) An authorisation under subsection (1) may—
 - (a) be expressed to apply generally or to a specified substance or thing; and

- (b) be expressed to be in force—
 - (i) for a period specified in the authority;
or
 - (ii) for an indefinite period; and
- (c) be subject to any conditions specified in the authority.

Division 14—Offences

45 Time within which charge-sheet to be filed

A charge-sheet charging an offence against any of the provisions of this Act or the regulations (not being an indictable offence, whether or not that offence is capable of being determined summarily) shall be filed within three years from the time when the matter of the charge occurs and not afterwards.

S. 45
(Heading)
inserted by
No. 68/2009
s. 97(Sch.
item 47.1).
S. 45
amended by
Nos 57/1989
s. 3(Sch. item
59.6(a)–(d)),
68/2009
s. 97(Sch.
item 47.2).

46 Offences

Except insofar as it is otherwise by this Act expressly enacted every person who—

- (a) contravenes or fails to comply with any of the provisions of this Part;
- (b) contravenes or fails to comply with any condition limitation or restriction to which any licence warrant or permit issued under this Part is subject;
- (c) purchases or obtains any poison or controlled substance and gives false information in answer to inquiries required by or under this Act to be made by the seller or supplier; or

- (d) signs his name as a witness to the sale or supply of a poison or controlled substance to a person unknown to him—

shall be guilty of an offence against this Act.

S. 47
amended by
No. 10002
ss 5(2)(d),
14(c).

47 Maximum sentence etc.

Notwithstanding anything to the contrary in this Act a person shall not on conviction for any offence of contravening or failing to comply with the regulations relating to—

- (a) the keeping of books; or
- (b) the issuing or dispensing of prescriptions containing substances or preparations to which this Part applies—

be sentenced to imprisonment or to pay a penalty of more than 5 penalty units if the court dealing with the case is satisfied that the offence was committed through inadvertence and was not preparatory to or committed in the course of or in connexion with the commission or intended commission of any other offence against this Act.

48 Offence to receive certain moneys etc.

Where for or in connexion with the manufacture sale or supply of a poison or controlled substance in contravention of this Act a person is proved to have in his possession or to have received money or any other valuable thing the person shall be deemed to have sold or supplied that poison or controlled substance in contravention of this Act unless the court hearing the matter is satisfied to the contrary.

S. 49
amended by
No. 54/1997
s. 6(a).

49 Obtaining licence by fraud

Any person who for the purpose of obtaining for himself or for any other person the issue grant or renewal of a licence warrant or permit under this Act or an authority under Part IVA of this Act

makes any declaration or statement which is false in any material particular or knowingly utters produces or makes use of a declaration or statement which is false in any material particular or a document which contains a declaration or statement that is false in any material particular shall be guilty of an offence against this Act.

50 Immunity of authorized officers and authorised police employees

No authorized officer or authorised police employee shall be in any way liable to any penalty in respect of anything done by him or her in the exercise of any power or in the performance of any duty conferred or imposed upon him or her pursuant to the provisions of this Act and the regulations.

* * * * *

S. 50
(Heading)
inserted by
No. 52/2006
s. 6(1).

S. 50
amended by
No. 52/2006
s. 6(2).

S. 51
repealed by
No. 16/2004
s. 53.

Division 15—Poison baits

52 Setting of poison baits

- (1) A person shall not set lay put or place or knowingly be a party to the setting laying putting or placing of a poison or controlled substance or any fluid or edible matter (not being sown seed or grain) which contains a poison or controlled substance in or upon any road or street or any land whatsoever.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

S. 52(2)
amended by
No. 52/1994
s. 97(Sch. 3
item 7.6).

(2) Subsection (1) does not apply to—

S. 52(2)(a)
amended by
No. 41/1987
s. 103(Sch. 4
item 12.1),
substituted by
No. 52/1994
s. 97(Sch. 3
item 7.1),
amended by
No. 76/1998
s. 7.

(a) the Secretary within the meaning of the
Conservation, Forests and Lands Act 1987
or any person acting on behalf of the
Secretary with respect to the use of poisons
or controlled substances for eradicating or
controlling on any land pest animals or
noxious weeds within the meaning of the
Catchment and Land Protection Act 1994;

S. 52(2)(b)
amended by
No. 52/1994
s. 97(Sch. 3
item 7.2).

(b) the use of a poison or controlled substance or
fluid or edible matter (not being sown seed
or grain) which contains a poison or
controlled substance by a person in or upon
any land or premises owned or occupied by
him for the purpose of destroying rats, mice
or other small vermin commonly found in
houses or pest animals within the meaning of
the **Catchment and Land Protection Act
1994** (not being wildlife within the meaning
of the **Wildlife Act 1975**) or for disinfecting
sterilizing or cleansing purposes or for the
purpose of manuring or fertilizing the land;

(c) the use by an owner or occupier of land of a
poison or controlled substance on or adjacent
to his land for the purpose of killing or
destroying any wildlife within the meaning
of the **Wildlife Act 1975**—

S. 52(2)(c)(i)
repealed by
No. 52/1994
s. 97(Sch. 3
item 7.3).

* * * * *

(ii) which is noxious wildlife within the
meaning of the **Wildlife Act 1975**; or

- (iii) under and in accordance with an authority or Order in Council published issued or granted under the **Wildlife Act 1975**;
- (d) the use by the council of a municipality (including the Corporation of the City of Melbourne and the Corporation of the City of Geelong) or by a local authority within the meaning of the **Public Contracts Act 1958** as in force immediately before the commencement of the **Public Contracts (Repeal) Act 1986** or by any body of persons corporate or unincorporate declared by the Governor in Council by Order published in the Government Gazette to be a body of persons to which this subsection applies of a poison or controlled substance in or upon any road street drain channel or land whatsoever for the purpose of—
 - (i) destroying rats mice or other vermin (not being wildlife within the meaning of the **Wildlife Act 1975**) commonly found in houses or pest animals within the meaning of the **Catchment and Land Protection Act 1994**;
 - (ii) disinfecting sterilizing or cleansing;
 - (iii) manuring or fertilizing;
 - (iv) killing or destroying wildlife within the meaning of the **Wildlife Act 1975**, being wildlife the killing or destruction of which is authorized by or under that Act or that is noxious wildlife within the meaning of that Act; or

S. 52(2)(d)
amended by
No. 21/1986
s. 4.

S. 52(2)(d)(i)
amended by
No. 52/1994
s. 97(Sch. 3
item 7.4).

S. 52(2)(d)(iv)
amended by
No. 52/1994
s. 97(Sch. 3
item 7.5).

S. 52(2)(f)
amended by
No. 13/2010
s. 48(a).

- (v) killing or destroying wildlife within the meaning of the **Wildlife Act 1975**, if the council acts under and in accordance with an authority issued or granted under that Act;
- (e) the use of a poison or controlled substance for the purpose of carrying out a power authority function or duty conferred or imposed by or under an Act or in accordance with a licence permit warrant or other authority issued or granted under this Act or any other Act;
- (f) the use of a poison or controlled substance for agricultural, pastoral or horticultural purposes (being a poison or controlled substance to which the **Agricultural and Veterinary Chemicals (Control of Use) Act 1992** applies) for agricultural, pastoral or horticultural purposes—

if and only if the person who or the body of persons which uses a poison or controlled substance of fluid or edible matter in any of the circumstances mentioned in paragraph (a), (b), (c), (d) or (e) takes or causes to be taken all reasonable precautions to prevent access to the poison or controlled substance or the fluid or edible matter by any domestic animal and, if the poison or controlled substance is in a poison bait and is used for eradicating or controlling pest animals within the meaning of the **Catchment and Land Protection Act 1994**, complies with any applicable regulations under that Act.

(3) In this section a reference to a domestic animal is a reference to any cattle or any dog cat or fowl or any other animal of any other kind or species whatever (whether a quadruped or not) which is tame or which has been or is being sufficiently tamed to serve some purpose for the use of man.

S. 52(3)
amended by
No. 57/2012
s. 4(1).

(4) For the purposes of subsection (3), *cattle* includes any horse, mare, gelding, colt, filly, foal, bull, cow, ox, steer, heifer, calf, ram, ewe, sheep, lamb, ass, mule, goat or pig.

S. 52(4)
inserted by
No. 57/2012
s. 4(2).

53 Regulations

Notwithstanding the provisions of this Act the Governor in Council may make regulations prohibiting the use, either absolutely or except under such circumstances or conditions or by such persons as may be prescribed, of any poison or controlled substance for the purpose of killing or destroying any animal or bird or for any other purpose whatsoever likely to cause death or harm to any animal or bird.

Division 16—Poisons in roads and waterways

Pt 2 Div. 16
(Heading)
amended by
No. 81/1989
s. 3(Sch.
item 10.1).

54 Special regulations

(1) Where in the interests of public safety it is expedient to provide for prohibiting controlling or regulating the putting or discharging or otherwise disposing of poisons or controlled substances or preparations thereof in on or into any road, street, channel, sewer, drain or waterway, the Governor in Council may make regulations for such purposes accordingly and may by those regulations impose penalties of not more than 50 penalty units for any breach of those regulations.

S. 54(1)
amended by
Nos 10002
s. 14(d),
81/1989
s. 3(Sch.
item 10.2).

- (2) This section shall be read and construed as in aid of and not in derogation from any other Acts or enactments relating to the subject-matter of subsection (1).

Division 17—Prohibition of poisons or controlled substances

55 Prohibiting sale or supply of poisons or controlled substances

S. 55(1)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1).

- (1) Where the Minister is of the opinion that it is necessary to take urgent action in the interest of the health or safety of the public, he may, after consulting with the Secretary, recommend to the Governor in Council that the sale or supply use or a specified use or uses of a poison or controlled substance—
- (a) should, subject to such terms and conditions as are specified in the recommendation, be—
 - (i) prohibited; or
 - (ii) restricted—in the whole or any part of Victoria; or
 - (b) should, subject to such terms and conditions as are specified in the recommendation, be prohibited in part of Victoria and restricted in another part of Victoria—
- for a period not exceeding three months.
- (2) Where a recommendation is made to the Governor in Council under subsection (1), the Governor in Council may, by Order published in the Government Gazette prohibit or restrict the sale or supply or use of the poison or controlled substance in accordance with the recommendation.

- (3) The Governor in Council may, on the recommendation of the Minister after consulting with the Secretary, by Order published in the Government Gazette—
- (a) extend, or further extend, the period during which a prohibition or restriction under an Order made under subsection (2) is in force for a period not exceeding three months; and
- (b) otherwise amend or revoke an Order made under subsection (2).
- (4) Notice of an Order made under subsection (2) or subsection (3) shall be published in a daily newspaper and a rural weekly newspaper circulating throughout Victoria.
- (5) A person who contravenes or fails to comply with an Order including an Order that is amended under subsection (3) or with the terms and conditions (if any) to which the Order is subject is guilty of an offence and liable to a penalty of not more than 50 penalty units.

S. 55(3)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1).

S. 55(5)
amended by
No. 10002
s. 14(d).

Division 18—Compliance with Part II

Subdivision 1—Improvement notices

Pt 2 Div. 18
(Headings
and ss 55AA–
55AAZ)
inserted by
No. 39/2024
s. 89.

55AA Power to give improvement notice

- (1) The Secretary or an authorized officer may give a written notice to a regulated person requiring the regulated person to take specified action if the Secretary or authorized officer reasonably believes that—

S. 55AA
inserted by
No. 39/2024
s. 89.

- (a) the regulated person has contravened, is contravening or is likely to contravene—
 - (i) a provision of Part II or the regulations; or
 - (ii) a term, condition, limitation or restriction to which a licence, permit or warrant issued to the person under section 19 is subject; or
 - (iii) a term, condition, limitation or restriction to which an approval under section 20A is subject; and
 - (b) taking the action is necessary—
 - (i) to rectify a contravention; or
 - (ii) to cease a contravention; or
 - (iii) to prevent a likely contravention from occurring; or
 - (iv) to address the matters or activities that caused a contravention.
- (2) The Secretary or an authorized officer may require a regulated person to whom an improvement notice is given—
- (a) to give a copy of the notice to a person or class of person; or
 - (b) to display a copy of the notice in a manner specified in the notice.

S. 55AAB
inserted by
No. 39/2024
s. 89.

55AAB Content of improvement notice

An improvement notice must—

- (a) specify the name, and if known, the address, of the regulated person to whom the notice is given; and

(b) specify—

- (i) the provision of Part II or the regulations that the Secretary or authorized officer reasonably believes the regulated person has contravened, is contravening or is likely to contravene; or
 - (ii) the term, condition, limitation or restriction to which the licence, permit or warrant issued to the regulated person under section 19 is subject that the Secretary or authorized officer reasonably believes the regulated person has contravened, is contravening or is likely to contravene; or
 - (iii) the term, condition, limitation or restriction to which an approval under section 20A is subject that the Secretary or authorized officer reasonably believes the regulated person has contravened, is contravening or is likely to contravene; and
- (c) describe the conduct or circumstances the Secretary or authorized officer reasonably believes constitutes the contravention or likely contravention; and
- (d) specify the action that the regulated person must take; and
- (e) specify the period within which the regulated person must take the action; and
- (f) include information about the regulated person's right to seek review of the Secretary's or authorized officer's decision to—
- (i) give the improvement notice to the person; or

- (ii) give a notice to the person—
 - (A) amending or revoking an action specified in the improvement notice that the regulated person must take; or
 - (B) amending the period specified in the improvement notice within which the regulated person must take the action; and
- (g) state that the notice does not affect any criminal proceeding for an offence against a provision of Part II or the regulations constituted by conduct or circumstances in respect of which the notice is given; and
- (h) state that it is an offence to contravene the notice without reasonable excuse and that the maximum penalty for the offence is 120 penalty units in the case of a natural person or 600 penalty units in the case of a body corporate; and
- (i) include any prescribed information.

S. 55AAC
inserted by
No. 39/2024
s. 89.

55AAC Amendment of improvement notice

The Secretary or an authorized officer may give a written notice to a regulated person to whom an improvement notice is given—

- (a) amending or revoking an action specified in the improvement notice that the regulated person must take; or
- (b) amending the period specified in the improvement notice within which the regulated person must take the action.

55AAD Withdrawal of improvement notice

The Secretary or an authorized officer—

- (a) may withdraw an improvement notice at any time in writing; and
- (b) must withdraw an improvement notice in writing if the Secretary or authorized officer is satisfied that the regulated person to whom the notice is given has taken the specified action.

S. 55AAD
inserted by
No. 39/2024
s. 89.

55AAE Criminal proceeding not affected by improvement notice

An improvement notice does not affect any criminal proceeding for an offence against a provision of Part II or the regulations constituted by conduct or circumstances in respect of which the notice is given.

S. 55AAE
inserted by
No. 39/2024
s. 89.

55AAF Offence to contravene improvement notice

A regulated person to whom an improvement notice is given must not contravene the notice without reasonable excuse.

Penalty: In the case of a natural person,
120 penalty units;

In the case of a body corporate,
600 penalty units.

S. 55AAF
inserted by
No. 39/2024
s. 89.

Subdivision 2—Prohibition notices

55AAG Power to give prohibition notice

- (1) The Secretary or an authorized officer may give a written notice to a regulated person prohibiting the regulated person from engaging in a specified activity if the Secretary or authorized officer reasonably believes—

S. 55AAG
inserted by
No. 39/2024
s. 89.

- (a) the regulated person has contravened, is contravening or is likely to contravene—
 - (i) a provision of Part II or the regulations; or
 - (ii) a term, condition, limitation or restriction to which a licence, permit or warrant issued to the person under section 19 is subject; or
 - (iii) a term, condition, limitation or restriction to which an approval under section 20A is subject; and
 - (b) that, having regard to the immediacy of the risk of harm and the degree of harm to health or safety that may be caused by the contravention or likely contravention, prohibiting the person from engaging in the specified activity is necessary to prevent or minimise that risk.
- (2) In addition, the Secretary or an authorized officer may require a regulated person to whom a prohibition notice is given to take any specified action the Secretary or authorized officer reasonably believes is necessary—
- (a) to prevent or minimise the risk to health or safety; or
 - (b) to rectify the contravention; or
 - (c) to cease the contravention; or
 - (d) to prevent a likely contravention from occurring; or
 - (e) to address the matters or activities that caused a contravention.
- (3) The Secretary or an authorized officer may require a regulated person to whom a prohibition notice is given to—

- (a) give a copy of the notice to a person or class of person; or
- (b) display a copy of the notice in a manner specified in the notice.

55AAH Content of prohibition notice

A prohibition notice must—

- (a) specify the grounds on which the notice is given; and
- (b) state the name of the regulated person to whom the notice is given and, if known, the person's address; and
- (c) specify—
 - (i) the activity that the regulated person is prohibited from engaging in; or
 - (ii) the action that the regulated person must take; and
- (d) specify the period within which—
 - (i) the activity is prohibited; or
 - (ii) the action must be taken; and
- (e) include information about the regulated person's right to seek review of the Secretary's or authorized officer's decision to—
 - (i) give the prohibition notice to the person; or
 - (ii) give a notice to the person—
 - (A) amending or revoking an activity specified in the prohibition notice that the regulated person is prohibited from engaging in; or

**S. 55AAH
inserted by
No. 39/2024
s. 89.**

- (B) amending or revoking an action specified in the prohibition notice that the regulated person must take; or
- (C) amending the period specified in the prohibition notice within which the regulated person is prohibited from engaging in the activity or must take the action specified in the notice; and
- (f) state that the notice does not affect any criminal proceeding for an offence against a provision of Part II or the regulations constituted by conduct or circumstances in respect of which the notice is given; and
- (g) state that it is an offence to contravene the notice without reasonable excuse and that the maximum penalty for the offence is 120 penalty units in the case of a natural person or 600 penalty units in the case of a body corporate; and
- (h) include any prescribed information.

S. 55AAI
inserted by
No. 39/2024
s. 89.

55AAI Amendment of prohibition notice

The Secretary or an authorized officer may give a written notice to a regulated person to whom a prohibition notice is given—

- (a) amending or revoking an activity specified in the prohibition notice that the regulated person is prohibited from engaging in; or
- (b) amending or revoking an action specified in the prohibition notice that the regulated person must take; or
- (c) amending the period specified in the prohibition notice within which the regulated person is prohibited from engaging in the

activity or must take the action specified in the notice.

55AAJ Withdrawal of prohibition notice

The Secretary or an authorized officer—

- (a) may withdraw a prohibition notice at any time in writing; and
- (b) must withdraw a prohibition notice in writing if the Secretary or the authorized officer reasonably believes that the prohibition notice is no longer necessary to prevent or minimise the risk of harm to health or safety.

S. 55AAJ
inserted by
No. 39/2024
s. 89.

55AAK Criminal proceeding not affected by prohibition notice

A prohibition notice does not affect any criminal proceeding for an offence against a provision of Part II or the regulations constituted by conduct or circumstances in respect of which the notice is given.

S. 55AAK
inserted by
No. 39/2024
s. 89.

55AAL Offence to contravene prohibition notice

A regulated person to whom a prohibition notice is given must not contravene the notice without reasonable excuse.

Penalty: In the case of a natural person,
120 penalty units;

In the case of a body corporate,
600 penalty units.

S. 55AAL
inserted by
No. 39/2024
s. 89.

Subdivision 3—Enforceable undertakings

55AAM Power to accept an enforceable undertaking

- (1) The Secretary may accept an undertaking given by a regulated person relating to a contravention or alleged contravention of a provision of Part II or the regulations by the regulated person, under

S. 55AAM
inserted by
No. 39/2024
s. 89.

which the regulated person undertakes to take certain action, or not take certain action, to comply with this Act.

- (2) An enforceable undertaking must—
- (a) be in writing; and
 - (b) state the name of the regulated person; and
 - (c) be signed by the Secretary and the regulated person; and
 - (d) specify the date on which the undertaking is given; and
 - (e) specify the action to be taken or not taken by the regulated person; and
 - (f) specify the period within which the action is to be taken or not taken by the regulated person; and
 - (g) include any other prescribed details.
- (3) The Secretary may publish details of an enforceable undertaking on the Department's Internet site.

S. 55AAN
inserted by
No. 39/2024
s. 89.

55AAN Amendment or withdrawal of enforceable undertaking

A regulated person, with the Secretary's consent, may by written notice given to the Secretary—

- (a) amend an enforceable undertaking given by the person; or
- (b) withdraw an enforceable undertaking given by the person.

S. 55AAO
inserted by
No. 39/2024
s. 89.

55AAO No criminal proceeding if enforceable undertaking is complied with

If a regulated person complies with an enforceable undertaking, a criminal proceeding must not be commenced against the person for an offence

constituted by the person's contravention or alleged contravention of a provision of Part II or the regulations in relation to which the undertaking is given.

55AAP No criminal proceeding while enforceable undertaking is in force

S. 55AAP
inserted by
No. 39/2024
s. 89.

While an enforceable undertaking is in force, a criminal proceeding must not be commenced against a regulated person for an offence constituted by the person's contravention or alleged contravention of a provision of Part II or the regulations in relation to which the undertaking is given.

55AAQ Criminal proceeding if enforceable undertaking is withdrawn

S. 55AAQ
inserted by
No. 39/2024
s. 89.

A criminal proceeding may be commenced against a regulated person for an offence constituted by the person's contravention or alleged contravention of a provision of Part II or the regulations in relation to which the undertaking is given if the person withdraws the undertaking.

55AAR Enforcement of enforceable undertaking by Magistrates' Court

S. 55AAR
inserted by
No. 39/2024
s. 89.

- (1) If the Secretary reasonably believes that a regulated person has contravened an enforceable undertaking given by the person, the Secretary may apply to the Magistrates' Court for an enforceable undertaking order to enforce the undertaking.
- (2) If the Magistrates' Court is satisfied that the regulated person has contravened the enforceable undertaking, the Magistrates' Court may make any of the following orders—
 - (a) an order that the regulated person must comply with the undertaking;

- (b) an order that the regulated person take specified action to comply with the undertaking;
- (c) any other order that the Court considers appropriate in the circumstances.

S. 55AAS
inserted by
No. 39/2024
s. 89.

55AAS Enforcement of enforceable undertaking order by Secretary

- (1) If the Secretary reasonably believes that a regulated person has contravened an enforceable undertaking order, the Secretary, by written notice given to the regulated person, may—
 - (a) advise the person of the Secretary's intention to carry out the action required to comply with the order; and
 - (b) give the person 10 business days after the notice is given to satisfy the Secretary that the person—
 - (i) has carried out the action required to comply with the order; or
 - (ii) will carry out the action required to comply with the order within a specified period acceptable to the Secretary.
- (2) The Secretary may do any thing that is necessary or expedient to carry out the action required to comply with the order that is still practicable to carry out if a regulated person to whom notice under subsection (1) is given—
 - (a) does not agree to carry out the action; or
 - (b) fails to carry out the action within the specified period.

- (3) Nothing in this section—
- (a) prevents a proceeding from being commenced or continued against a regulated person for the person's contravention of an enforceable undertaking order; or
 - (b) affects any power of a court in relation to contempt.
- (4) If a person is found in contempt of court for contravening an enforceable undertaking order, the Secretary may—
- (a) do any thing that is necessary or expedient to carry out the action required to comply with the order that is still practicable to carry out; and
 - (b) publicise on the Department's Internet site that the regulated person contravened the order.
- (5) The Secretary may recover any reasonable costs incurred by the Secretary in taking action under subsection (2) or (4) as a debt due to the Crown and payable by the regulated person.

Subdivision 4—Information or document production notices

55AAT Power to give information or document production notice

**S. 55AAT
inserted by
No. 39/2024
s. 89.**

- (1) The Secretary or an authorized officer may give a written notice to a person requiring the person to provide to the Secretary or authorized officer specified information or information belonging to a specified class of information, or a specified document or a document belonging to a specified class of document, if the Secretary or authorized officer reasonably believes that—

- (a) the information or document is in the person's knowledge, possession, custody or control; and
 - (b) the information is, or the document contains information that is, necessary—
 - (i) for monitoring a regulated person's compliance with Part II or the regulations; or
 - (ii) for determining whether the person or another person has committed an offence against a provision of Part II or the regulations.
- (2) An information or document production notice must—
- (a) state the name of the person to whom the notice is given; and
 - (b) specify the grounds on which the notice is given; and
 - (c) specify the information or document required to be provided or produced under the notice; and
 - (d) specify the time period, being not less than 10 business days after the notice is given, within which the person must comply with the notice; and
 - (e) state that it is an offence to contravene the notice without reasonable excuse and that the maximum penalty for the offence is 60 penalty units in the case of a natural person or 300 penalty units in the case of a body corporate; and
 - (f) include information about the person's right to seek review of the Secretary's or an authorized officer's decision—

- (i) to give the information or document production notice to the person; or
 - (ii) to give a notice to the person—
 - (A) amending the period within which the person must comply with the information or document production notice; or
 - (B) amending or revoking the requirement to provide or produce particular information or a particular document; and
 - (g) state that a natural person to whom an information or document production notice is given—
 - (i) may refuse or fail to provide any information specified in the notice if doing so would tend to incriminate the person; and
 - (ii) may not refuse or fail to produce a document specified in the notice if doing so would tend to incriminate the person; and
 - (h) include any other prescribed details.
- (3) The Secretary or an authorized officer may give a written notice to a person to whom an information or document production notice is given—
- (a) amending the period within which the person must comply with the notice; or
 - (b) amending or revoking the requirement to provide or produce particular information or a particular document; or
 - (c) withdrawing the notice.

S. 55AAU
inserted by
No. 39/2024
s. 89.

55AAU Offence to contravene information or document production notice

A person to whom an information or document production notice is given must not contravene the notice without reasonable excuse.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

S. 55AAV
inserted by
No. 39/2024
s. 89.

55AAV Protection against self-incrimination

- (1) A natural person to whom an information or document production notice is given may refuse or fail to provide any information specified in the notice if doing so would tend to incriminate the person.
- (2) A natural person to whom an information or document production notice is given may not refuse or fail to produce a document specified in the notice if doing so would tend to incriminate the person.

S. 55AAW
inserted by
No. 39/2024
s. 89.

55AAW Admissibility of document produced under information or document production notice

A document produced by a natural person, under an information or document production notice, that would tend to incriminate the person is not admissible in evidence against the person in a criminal proceeding unless—

- (a) the person is required by law to keep the document; or
- (b) the proceeding is in respect of false or misleading information included in the document.

55AAX Offence to provide false or misleading information

**S. 55AAX
inserted by
No. 39/2024
s. 89.**

- (1) A person (other than a section 49 applicant) must not—
- (a) provide information to the Secretary or an authorized officer, as required by or under a provision of Part II or the regulations, that is false or misleading in a material way; or
 - (b) produce a document to the Secretary or an authorized officer, as required by or under a provision of Part II or the regulations, that is false or misleading in a material way—

without indicating the respect in which it is false or misleading and, if practicable, providing correct information.

Penalty: In the case of a natural person,
60 penalty units;

In the case of a body corporate,
300 penalty units.

- (2) Subsection (1) does not apply to a person if, at the time at which the information is provided or the document is produced, the person believes on reasonable grounds that the information or document is true or is not misleading.
- (3) In this section—

section 49 applicant means a person who gives information or produces a document to the Secretary or an authorized officer for the purpose of obtaining the issue, grant or renewal of a licence, warrant or permit under this Act or an authority under Part IVA.

Subdivision 5—Review by VCAT

S. 55AAY
inserted by
No. 39/2024
s. 89.

55AAY Application for review by VCAT

- (1) A regulated person may apply to VCAT for review of the Secretary's or an authorized officer's decision—
 - (a) to give an improvement notice to the regulated person; or
 - (b) to give a notice to the regulated person—
 - (i) amending or revoking an action specified in an improvement notice that the regulated person must take; or
 - (ii) amending the period specified in an improvement notice within which the regulated person must take the action; or
 - (c) to give a prohibition notice to the regulated person; or
 - (d) to give a notice to the regulated person—
 - (i) amending or revoking an activity specified in a prohibition notice that the regulated person is prohibited from engaging in; or
 - (ii) amending or revoking an action specified in a prohibition notice that the regulated person must take; or
 - (iii) amending the period specified in a prohibition notice within which the regulated person is prohibited from engaging in the activity or must take the action specified in the notice.
- (2) A person to whom an information or document production notice is given may apply to VCAT for review of the Secretary's or an authorized officer's decision—

- (a) to give the information or document production notice to the person; or
 - (b) to give a notice to the person—
 - (i) amending the period within which the person must comply with the information or document production notice; or
 - (ii) amending or revoking the requirement to provide or produce particular information or a particular document.
- (3) An application for review under this section must be made within 28 days after the later of—
- (a) the day on which the decision is made; or
 - (b) if, under the **Victorian Civil and Administrative Tribunal Act 1998**, the applicant requests a statement of reasons for the decision, the day on which—
 - (i) the statement of reasons is given to the applicant; or
 - (ii) the applicant is informed under section 46(5) of that Act that a statement of reasons will not be given.

Subdivision 6—Infringement notices

55AAZ Infringement notice

- (1) The Secretary or an authorized officer may serve an infringement notice on a person whom the Secretary or authorized officer reasonably believes has committed a prescribed offence.
- (2) An offence referred to in subsection (1) is an infringement offence within the meaning of the **Infringements Act 2006**.

**S. 55AAZ
inserted by
No. 39/2024
s. 89.**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part II—Poisons and controlled substances

- (3) The infringement penalty for an infringement offence is the prescribed infringement penalty for that infringement offence.

Part IIA—Medically supervised injecting centre

Division 1—Preliminary

55A Object

The object of this Part is to provide for a medically supervised injecting centre as part of a scheme that aims—

- (a) to reduce the number of avoidable deaths and the harm caused by overdoses of drugs of dependence; and
- (b) to deliver more effective health services for clients of the licensed medically supervised injecting centre by providing a gateway to health and social assistance which includes drug treatment, rehabilitation support, health care, mental health treatment and support and counselling; and
- (c) to reduce attendance by ambulance services, paramedic services and emergency services and attendances at hospitals due to overdoses of drugs of dependence; and
- (d) to reduce the number of discarded needles and syringes in public places and the incidence of injecting of drugs of dependence in public places in the vicinity of the licensed medically supervised injecting centre; and

Pt 2A
(Heading)
substituted by
No. 7/2023
s. 4.

Pt 2A
(Headings
and ss 55A–
55R
inserted by
No. 66/2017
s. 7.

S. 55A
inserted by
No. 66/2017
s. 7,
amended by
No. 7/2023
s. 5.

- (e) to improve the amenity of the neighbourhood for residents and businesses in the vicinity of the licensed medically supervised injecting centre; and
- (f) to assist in reducing the spread of blood-borne diseases in respect of clients of the licensed medically supervised injecting centre including, but not limited to, HIV and hepatitis C.

S. 55B
inserted by
No. 66/2017
s. 7.

55B Meaning of *director* and *supervisor* of licensed medically supervised injecting centre

- (1) For the purposes of this Act, a registered medical practitioner is the *director* of the licensed medically supervised injecting centre if—
 - (a) the practitioner is appointed by the licensee to—

S. 55B(1)(a)(i)
repealed by
No. 7/2023
s. 23.

* * * *

- (ii) ensure compliance with the internal management protocols; and
 - (iii) ensure compliance with the conditions imposed on the medically supervised injecting centre licence; and

S. 55B(1)(b)
amended by
No. 7/2023
s. 25(1)(a).

- (b) no other registered medical practitioner is appointed by the licensee to perform that role.

S. 55B(1)(c)
repealed by
No. 7/2023
s. 25(1)(b).

* * * *

- (2) For the purposes of this Act, a registered medical practitioner or a registered nurse is a **supervisor** of the licensed medically supervised injecting centre—
- (a) if the practitioner or nurse is appointed to—
- (i) oversee the centre's clinical operations (but not the centre's operations generally); and
- (ii) ensure the adequacy of the clinical procedures used at the centre; and
- (ab) that appointment is made by—
- (i) if the practitioner is also a director of the facility, the licensee; or
- (ii) otherwise, either the licensee or the director; and
- (b) whether or not the practitioner or nurse undertakes (and does not only oversee) any clinical activities at the centre; and
- (c) whether or not any other registered medical practitioner or registered nurse is appointed by the licensee or the director to perform that role.
- (3) A reference to the **director** or a **supervisor** of the licensed medically supervised injecting centre includes a reference to a person—
- (a) who is acting in that role—
- (i) during any illness or other absence of a person appointed to that role; or
- (ii) while there is a vacancy in that role; and

S. 55B(2)
amended by
No. 7/2023
s. 24(1).

S. 55B(2)(a)
amended by
No. 7/2023
ss 24(2)(a),
25(2)(a).

S. 55B(2)(ab)
inserted by
No. 7/2023
s. 25(2)(b).

S. 55B(2)(b)
amended by
No. 7/2023
s. 24(2)(a).

S. 55B(2)(c)
amended by
No. 7/2023
s. 24(2)(b).

S. 55B(3)
amended by
No. 7/2023
s. 24(3)(a).

S. 55B(3)(a)
substituted by
No. 7/2023
s. 24(3)(b).

S. 55B(3)(b)
substituted by
No. 7/2023
s. 24(3)(b).

- (b) who is—
- (i) in the case of a person acting in the role of director, a registered medical practitioner; or
 - (ii) in the case of a person acting in the role of supervisor, a registered medical practitioner or a registered nurse.
- (4) The director, and each supervisor, of the licensed medically supervised injecting centre is taken to be a member of the staff of the licensed medically supervised injecting centre.

Division 2—Medically supervised injecting centre licence

S. 55C
(Heading)
amended by
No. 7/2023
s. 6.

55C Medically supervised injecting centre may be licensed

S. 55C
inserted by
No. 66/2017
s. 7.

S. 55C(1)
amended by
No. 7/2023
s. 35(1).

- (1) The Secretary may issue to a person a licence for the purposes of this Part for a facility at the permitted site.

S. 55C(2)
amended by
No. 7/2023
s. 19(2).

- (2) A medically supervised injecting centre licence must not be issued unless—
- (a) the Secretary has approved, under section 55E, internal management protocols for the proposed licensee; and
 - (b) the Secretary is satisfied that any other prescribed requirements have been satisfied.

S. 55C(3)
amended by
No. 7/2023
ss 19(3), 35(1).

- (3) The Secretary may refuse to issue a medically supervised injecting centre licence to a person for any reason the Secretary thinks fit.

- (4) In issuing a medically supervised injecting centre licence, the Secretary may impose on the licence any conditions that the Secretary thinks fit.
- (5) The functions and powers of the Secretary under this section are not delegable.

S. 55C(4)
amended by
No. 7/2023
s. 19(3).

55D Limit on number of medically supervised injecting centre licences

S. 55D
inserted by
No. 66/2017
s. 7,
substituted by
No. 7/2023
s. 9.

- (1) There must not be more than one medically supervised injecting centre licence in force at the same time.
- (2) If—
 - (a) a medically supervised injecting centre licence is issued; and
 - (b) at the time that the licence would commence, there is already another licence in force—

the licence referred to in paragraph (a) becomes invalid at that time.

Note

Section 55F(1B) provides that if the previous licence is to be revoked on the same day that the new licence is to commence, the new licence commences immediately after that revocation. Accordingly, the previous licence will not be in force at the time that the new licence commences, and so the new licence will not become invalid under subsection (2).

55E Internal management protocols

S. 55E
inserted by
No. 66/2017
s. 7.

- (1) For the purposes of determining whether to issue a medically supervised injecting centre licence to a person for a facility at the permitted site, the Secretary must consider whether to approve draft internal management protocols that are given to the Secretary by or on behalf of that person.

S. 55E(1)
amended by
No. 7/2023
ss 19(4), 35(2).

S. 55E(2)
amended by
No. 7/2023
s. 19(4).

(2) The Secretary may approve the draft internal management protocols if satisfied that they are sufficient to support the issuing of a medically supervised injecting centre licence.

S. 55E(3)
amended by
No. 7/2023
s. 19(4).

(3) In determining whether to approve the draft internal management protocols, the Secretary must have regard to whether, if a medically supervised injecting centre licence were issued for the facility, the draft protocols would require—

- (a) that the centre must have a director; and
- (b) that the centre must be under the supervision of a supervisor at all times; and
- (c) that the centre must be operated so as to facilitate access or referrals to the following—
 - (i) primary health care services including, but not limited to, mental health services, medical consultation and medical assessment services;
 - (ii) drug and alcohol treatment services;
 - (iii) health education services;
 - (iv) opioid substitution treatment services;
 - (v) services for testing for blood-borne diseases and sexually transmissible diseases;
 - (vi) services involving a needle and syringe exchange program; and
- (d) that procedures must be established to enable staff of the centre to ascertain, in appropriate cases, whether a person seeking entry to the centre is a child; and

- (e) that the health and safety of staff of the centre and persons attending the centre must be protected, having regard to the design of the centre and the services of the centre; and
- (f) that services must be available and procedures must be established to ensure compliance, or the ability to comply, at or in connection with the centre with the requirements of—
 - (i) this Part and the regulations made for the purposes of this Part; and
 - (ii) the licence conditions; and
 - (iii) the internal management protocols.
- (4) With the written approval of the Secretary, the internal management protocols may be amended or replaced from time to time.
- (4A) The Secretary, by instrument, may delegate the power to give a written approval under subsection (4) to—
 - (a) a specified person who is employed under Part 3 of the **Public Administration Act 2004**; or
 - (b) each person of a specified class of persons who are employed under Part 3 of that Act.
- (5) The internal management protocols are subject to this Part, the regulations made for the purposes of this Part and the licence conditions and, in the case of any inconsistency, this Part, the regulations and the licence conditions prevail.

S. 55E(4A)
inserted by
No. 7/2023
s. 30.

55EA Agreements and deeds as to transitional obligations

S. 55EA
inserted by
No. 7/2023
s. 13.

- (1) A person who holds, or proposes to hold, a medically supervised injecting centre licence (the *responsible person*) may—

- (a) enter into an agreement with the Secretary;
or
 - (b) execute a deed in favour of the Secretary and
in terms approved by the Secretary—

under which the responsible person is required to
comply with transitional obligations set out in the
agreement or deed.
- (2) For the purposes of subsection (1), a ***transitional obligation*** is an obligation whose purpose is
ensuring that the operation of a medically
supervised injecting centre at the permitted site is,
as far as is practicable, not interrupted in the event
that—
 - (a) the licence referred to in subsection (1) is
revoked; and
 - (b) a new medically supervised injecting centre
licence is issued, or is to be issued, to
another person (the ***successor***).
- (3) Without limiting subsection (2), transitional
obligations may include the following—
 - (a) an obligation that the responsible person will
give the successor or another person access
to the licensed medically supervised
injecting centre for the purpose set out in
subsection (2);
 - (b) an obligation that the responsible person
will, subject to any agreed consideration,
transfer to the successor or another person
records, plant, equipment or other things for
the purpose set out in subsection (2);
 - (c) an obligation that the responsible person will
facilitate the successor employing or
engaging persons currently employed or
engaged by the responsible person in relation
to the licensed medically supervised

- injecting centre for the purpose set out in subsection (2);
- (d) an obligation that the responsible person will provide other assistance to the successor or to another person for the purpose set out in subsection (2);
 - (e) an obligation that the responsible person will continue to operate the licensed medically supervised injecting centre until the revocation referred to in subsection (2)(a) takes effect.
- (4) An agreement or deed under subsection (1) may make provision for or with respect to—
- (a) monetary penalties—
 - (i) for a breach of the agreement or deed; or
 - (ii) for termination of the agreement or deed; and
 - (b) the recovery of monetary penalties referred to in paragraph (a).
- (5) If a medically supervised injecting centre licence is in force, and the licensee has not entered into an agreement under subsection (1) or executed a deed under that subsection, the Secretary may direct the licensee—
- (a) to enter into an agreement in accordance with that subsection; or
 - (b) to execute a deed in accordance with that subsection.
- (6) If the holder of a medically supervised injecting centre licence has entered into an agreement under subsection (1) or executed a deed under that subsection, the Secretary may direct the licensee

to make specified variations to that agreement or deed.

Note

It is a condition of the licence that the licensee must comply with a direction under subsection (5) or (6)—see section 55H(1)(ba).

S. 55EB
inserted by
No. 7/2023
s. 13.

55EB Penalty for breach of transitional obligation or termination of agreement or deed

- (1) This section applies if—
- (a) an agreement entered into, or a deed executed, in accordance with section 55EA(1) makes provision for or with respect to a penalty—
 - (i) for a breach of the agreement or deed constituted by a failure to comply with a transitional obligation; or
 - (ii) for termination of the agreement or deed; and
 - (b) that penalty does not exceed 100 penalty units; and
 - (c) that provision is expressed under the agreement or deed to be a penalty provision for the purposes of this section.
- (2) A person is liable to pay, as a debt due to the State, the amount as required by a provision described in subsection (1) despite anything to the contrary in a rule of, or principle at, common law.
- (3) In this section—
transitional obligation has the meaning given by section 55EA.

55F Commencement, expiry and extension of medically supervised injecting centre licence

S. 55F
(Heading)
substituted by
No. 7/2023
s. 7(1).

S. 55F
inserted by
No. 66/2017
s. 7.

- (1) A medically supervised injecting centre licence—
- (a) commences on a day specified in the licence;
and
 - (b) remains in force until a day specified in the licence unless it is sooner—
 - (i) surrendered by the licensee; or
 - (ii) revoked by the Secretary.

S. 55F(1)
amended by
No. 7/2023
s. 19(5).

- (1A) Without limiting subsection (1)(a), the day specified under that provision may be the same as the day that is specified under section 55G(3)(b) as the day on which another medically supervised injecting centre licence that is already in force is to be revoked.

S. 55F(1A)
inserted by
No. 7/2023
s. 10.

- (1B) If a day is specified under subsection (1)(a) as described in subsection (1A), the medically supervised injecting centre licence in which that day is specified commences immediately after the revocation of the other licence referred to in subsection (1A).

S. 55F(1B)
inserted by
No. 7/2023
s. 10.

Note

A medically supervised injecting centre licence revoked under section 55J(1) is revoked on the first moment of the day specified in the instrument of revocation—see section 55J(2).

- (2) The day specified under subsection (1)(b) must not be more than 4 years after the day specified under subsection (1)(a).

S. 55F(2)
amended by
No. 7/2023
s. 7(2).

S. 55F(3)
amended by
No. 7/2023
ss 7(3), 19(6).

- (3) If satisfied that extending the period of a medically supervised injecting centre licence would further the object of this Part, the Secretary may do so by amending the licence to specify a new day as the day until which the licence will remain in force unless sooner surrendered or revoked.

S. 55F(3A)
inserted by
No. 7/2023
s. 7(4).

- (3A) A day specified under subsection (3) must not be more than 4 years after the day previously specified in the licence as the day until which the licence will remain in force unless sooner surrendered or revoked.

S. 55F(4)
amended by
No. 7/2023
s. 7(5).

- (4) The period may be extended under subsection (3) more than once.

S. 55F(5)
substituted by
No. 7/2023
s. 17.

- (5) The purported surrender of a medically supervised injecting centre licence has no effect.

Note

The Secretary may revoke a medically supervised injecting centre licence on a request made by the licensee—see section 55J(1)(b).

S. 55G
inserted by
No. 66/2017
s. 7.

55G Notices regarding licence

S. 55G(1)
amended by
No. 7/2023
s. 19(7).

- (1) On issuing a medically supervised injecting centre licence, the Secretary must publish in the Government Gazette a notice that states—
- (a) that the licence has been issued; and
 - (b) the day specified under section 55F(1)(a) as the day on which the licence commences; and
 - (c) the day specified under section 55F(1)(b) as the day until which the licence remains in force.

- (2) On extending the period of a medically supervised injecting centre licence under section 55F(3), the Secretary must publish in the Government Gazette a notice that states—
- (a) that the period of the licence has been extended; and
- (b) the day specified in the licence in accordance with section 55F(3) as the new day until which the licence remains in force.
- (3) On suspending a medically supervised injecting centre licence under section 55I, or revoking the licence under section 55J, the Secretary must publish in the Government Gazette a notice that states—
- (a) that the licence is suspended or revoked (as the case requires); and
- (b) if the licence is revoked, the day of the revocation; and
- (c) if the licence is suspended—
- (i) the day of the suspension specified in the notice of suspension as described in section 55I(2)(b)(i); and
- (ii) that the licence is suspended until the end of the period of suspension specified in that notice as described in section 55I(2)(b)(ii) (if any), or until the licence is reinstated under section 55I(2B).
- (4) On reinstating a medically supervised injecting centre licence under section 55I(2B), the Secretary must publish in the Government Gazette a notice that states—
- (a) that the licence is reinstated; and

S. 55G(2)
amended by
No. 7/2023
s. 19(7).

S. 55G(3)
amended by
No. 7/2023
s. 19(7).

S. 55G(3)(b)
substituted by
No. 7/2023
s. 11.

S. 55G(3)(c)
substituted by
No. 7/2023
s. 32(1).

S. 55G(4)
amended by
No. 7/2023
ss 19(7), 32(2).

S. 55G(4)(b)
substituted by
No. 7/2023
s. 32(3).

(b) the day of the reinstatement specified in the notice of reinstatement as described in section 55I(2C).

S. 55G(5)
inserted by
No. 7/2023
s. 21.

(5) On transferring a medically supervised injecting centre licence under section 55JA, the Secretary must publish in the Government Gazette a notice that states—

- (a) that the licence is to be transferred; and
- (b) the day on which the transfer is to take effect; and
- (c) the person from whom the licence is to be transferred; and
- (d) the person to whom the licence is to be transferred.

S. 55H
inserted by
No. 66/2017
s. 7.

55H Conditions of medically supervised injecting centre licence

S. 55H(1)
amended by
No. 7/2023
s. 19(8).

(1) A medically supervised injecting centre licence is subject to the following conditions—

- (a) no child is to be admitted to any part of the licensed medically supervised injecting centre that is used for the purpose of the administration of any injecting centre drug;
- (b) the internal management protocols must be observed at all times;

S. 55H(1)(ba)
inserted by
No. 7/2023
s. 14.

- (ba) the licensee must comply with a direction given to the licensee under section 55EA(5) or (6);
- (c) the licensed medically supervised injecting centre must be operated in accordance with this Part and the regulations made for the purposes of this Part;
- (d) any other prescribed licence conditions;

- (e) any other conditions imposed by the Secretary under section 55C(4) or 55I(2)(c).
- (2) The Secretary may vary a condition imposed under section 55C(4) or 55I(2)(c) with the agreement of the licensee.
- (3) The Secretary may revoke a condition imposed under section 55C(4) or 55I(2)(c) with or without the agreement of the licensee.

55I Disciplinary action

S. 55I
(Heading)
substituted by
No. 7/2023
s. 15(1).

S. 55I
inserted by
No. 66/2017
s. 7.

- (1) Subsection (2) applies if the Secretary is satisfied, whether as a result of a review under section 55P or 55PA or otherwise, that—

S. 55I(1)
amended by
No. 7/2023
ss 27, 33(1).

- (a) a condition imposed on a medically supervised injecting centre licence has been contravened; or

- (b) the internal management protocols have been contravened; or

S. 55I(1)(b)
amended by
No. 7/2023
s. 15(2)(a).

- (c) a licensee has breached or terminated an agreement entered into, or a deed executed, in accordance with section 55EA(1).

S. 55I(1)(c)
inserted by
No. 7/2023
s. 15(2)(b).

- (2) The Secretary may, as the Secretary considers appropriate, do all or any of the following—

- (a) issue a written warning or reprimand to the licensee;

- (b) by written notice to the licensee, suspend the medically supervised injecting centre licence—

S. 55I(2)(b)
substituted by
No. 7/2023
s. 33(2).

- (i) from a day specified in the notice; and
- (ii) either until the end of a period specified in the notice or until reinstatement under subsection (2B);
- (c) by written notice to the licensee, impose a new condition on the licence;
- (d) require the internal management protocols to be amended or replaced in accordance with a direction of the Secretary;
- (e) amend the licence;
- (f) vary a condition imposed under section 55C(4) or paragraph (c).

Note

The Secretary may also revoke the medically supervised injecting centre licence in these circumstances—see section 55J.

S. 55(2A)
inserted by
No. 7/2023
s. 33(3).

- (2A) A medically supervised injecting centre licence suspended under subsection (2)—
 - (a) is suspended on the day specified by the Secretary in respect of the suspension under section 55G(3)(c)(i); and
 - (b) remains suspended until whichever of the following occurs first—
 - (i) the expiry of the period specified in respect of the suspension under section 55G(3)(c)(ii) (if any); or
 - (ii) the licence is reinstated under subsection (2B).

S. 55(2B)
inserted by
No. 7/2023
s. 33(3).

- (2B) The Secretary may, by written notice to the licensee, reinstate a medically supervised injecting centre licence that has been suspended under subsection (2).

- | | |
|--|---|
| (2C) A medically supervised injecting centre licence reinstated under subsection (2B) is reinstated on the day specified by the Secretary in the notice under that subsection. | S. 55I(2C) inserted by No. 7/2023 s. 33(3). |
| (3) The suspension of the medically supervised injecting centre licence does not alter the day on which the licence ceases to be in force as specified in the licence. | S. 55I(3) amended by No. 7/2023 s. 33(4). |
| 55J Secretary's power to revoke licence | |
| (1) The Secretary may revoke a medically supervised injecting centre licence— | S. 55J inserted by No. 66/2017 s. 7, amended by No. 7/2023 s. 12 (ILA s. 39B(1)). |
| (a) if the Secretary is satisfied, whether as a result of a review under section 55P or 55PA or otherwise, that— | S. 55J(1)(a) amended by No. 7/2023 s. 28. |
| (i) the licensee is not a fit and proper person to hold the licence; or | |
| (ii) the director or another person concerned in the management of the licensed medically supervised injecting centre is not a fit and proper person to be concerned in the management of the centre; or | |
| (iii) a condition imposed on the licence has been contravened; or | S. 55J(1)(a)(iii) amended by No. 7/2023 s. 36(1). |
| (iv) the internal management protocols have been contravened; or | |

S. 55J(1)
(a)(iva)
inserted by
No. 7/2023
s. 16.

(iva) the licensee has breached or terminated an agreement entered into, or a deed executed, in accordance with section 55EA(1); or

(v) for any other reason, it is appropriate to revoke the licence in the circumstances; or

S. 55J(1)(b)
substituted by
No. 7/2023
s. 18.

(b) if the licensee requests the revocation and the Secretary is satisfied that it is appropriate to revoke the licence in the circumstances; or

(c) for a prescribed reason.

S. 55J(2)
inserted by
No. 7/2023
s. 12.

(2) A medically supervised injecting centre licence revoked under subsection (1) is revoked on the first moment of the day specified by the Secretary in respect of the revocation under section 55G(3)(b).

S. 55JA
inserted by
No. 7/2023
s. 22.

55JA Transfer of licence

- (1) This section applies if the Secretary has issued a medically supervised injecting centre licence.
- (2) The licensee may apply to the Secretary for the transfer of the medically supervised injecting centre licence to another person (the *proposed transferee*).
- (3) The licensee must not apply under subsection (2) without the agreement of the proposed transferee.
- (4) On an application under subsection (2), the Secretary must, in accordance with this section, either—
 - (a) grant the application and transfer the licence to the proposed transferee; or
 - (b) refuse the application.
- (5) The Secretary must not grant an application under subsection (2) unless—

- (a) the Secretary has approved, under section 55E, internal management protocols for the proposed transferee; and
 - (b) the Secretary is satisfied that any other prescribed requirements have been satisfied.
- (6) The Secretary may refuse an application under subsection (2) for any reason the Secretary thinks fit.
- (7) In transferring a medically supervised injecting centre licence, the Secretary—
 - (a) may impose on the licence any conditions that the Secretary thinks fit; and
 - (b) may vary any conditions of the licence as the Secretary thinks fit; and
 - (c) must not extend or otherwise vary the licence.

Note

Section 55F provides for extension of the licence.

- (8) On the transfer of a medically supervised injecting centre licence, the transferee becomes the licensee and assumes all of the licensee's obligations and liabilities in respect of the licence.
- (9) The transfer of a medically supervised injecting centre licence takes effect on the day specified by the Secretary in respect of the transfer under section 55G(5)(b).
- (10) The transfer of a medically supervised injecting centre licence does not alter the day on which the licence ceases to be in force as specified in the licence.
- (11) The functions and powers of the Secretary under this section are not delegable.

Division 3—Miscellaneous

S. 55K
inserted by
No. 66/2017
s. 7.

55K Exemptions from criminal liability and authorizations for clients of centre

- (1) A person who is a client of the licensed medically supervised injecting centre who uses, supplies, possesses or administers a drug of dependence that is an injecting centre drug in a permitted quantity of injecting centre drug in the centre is exempt from liability for an offence against Part V or the regulations which is constituted by that use, supply, possession or administration of that drug of dependence.
- (2) A person referred to in subsection (1) is taken, for the purposes of Part V, to be authorized by this Act to carry out that activity.
- (3) Nothing in this section exempts a person referred to in subsection (1), or affects any condition or obligation imposed on a person referred to in subsection (1), by or under any court order, tribunal order or by or under any other Act or law, including, but not limited to—
 - (a) any sentencing order under the **Sentencing Act 1991**; or
 - (b) any parole condition or bail condition; or
 - (c) any order under the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**; or
 - (d) any supervision order or detention order (including any interim supervision order or interim detention order) under the **Serious**

**Sex Offenders (Detention and
Supervision) Act 2009; or**

(da) any order under the **Serious Offenders
Act 2018**; or

S. 55K(3)(da)
inserted by
No. 45/2019
s. 49.

(e) any other prescribed law.

**55L Exemptions from criminal liability and
authorizations for licensee and staff**

S. 55L
inserted by
No. 66/2017
s. 7.

(1) The holder of a medically supervised injecting centre licence and each member of the staff of the licensed medically supervised injecting centre is exempt from liability for an offence against Part V or the regulations constituted by the supply or possession of a drug of dependence in the centre if the supply or possession occurs in the operation of the centre, whether or not the drug of dependence is an injecting centre drug in a permitted quantity of that injecting centre drug.

S. 55L(1)
amended by
No. 7/2023
s. 20(1).

(2) A person referred to in subsection (1) is taken, for the purposes of Part V, to be authorized by this Act to carry out that supply or possession.

(3) The holder of a medically supervised injecting centre licence, each member of the staff at the permitted site (other than a member of the staff of the licensed medically supervised injecting centre), the owner of the permitted site and each occupier of the permitted site is exempt from liability for an offence against Part V constituted by the possession of a drug of dependence at the site if the possession—

S. 55L(3)
amended by
No. 7/2023
s. 20(1).

(a) arises by operation of section 5; and

- (b) occurs in the operation of the centre, whether or not the drug of dependence is an injecting centre drug in a permitted quantity of that injecting centre drug.
- (4) A person referred to in subsection (3) is taken, for the purposes of Part V, to be authorized by this Act to carry out that possession.

S. 55M
inserted by
No. 66/2017
s. 7.

55M Police discretions not affected

Nothing in section 55K affects any discretion a police officer may exercise in relation to not charging a person with an offence against Part V for possession of a drug of dependence which is an injecting centre drug in a permitted quantity of injecting centre drug when a person—

- (a) is travelling to or from the licensed medically supervised injecting centre for the purposes of attending the centre; or
- (b) is in the vicinity of the licensed medically supervised injecting centre for the purposes of attending the centre.

S. 55N
inserted by
No. 66/2017
s. 7.

55N Exemption from civil liability

- (1) This section applies to the following—

S. 55N(1)(a)
substituted by
No. 7/2023
s. 20(2).

- (a) the holder of a medically supervised injecting centre licence;
- (b) a member of the staff at the permitted site;
- (c) the owner of the permitted site;
- (d) an occupier of the permitted site;
- (e) a trustee or a member of a committee of management or of a board (however described) of—

- (i) the licensee; or
- (ii) the owner of the permitted site; or

S. 55N(1)(e)(ii)
amended by
No. 7/2023
s. 36(2).

- (iii) an occupier of the permitted site.

- (2) A person to whom this section applies is not subject to any civil liability for doing or omitting to do a thing—
 - (a) in good faith; and
 - (b) in carrying out any duty or function in relation to the operation of the licensed medically supervised injecting centre; and
 - (c) in the case of an act or omission that is subject to this Part or regulations made for the purposes of this Part, in accordance with this Part or those regulations.
- (3) Without limiting subsection (2), that subsection applies to an act or omission that—
 - (a) relates to the supply or possession of a drug of dependence in the licensed medically supervised injecting centre, whether or not the drug of dependence is an injecting centre drug in a permitted quantity of that injecting centre drug; and
 - (b) satisfies the requirements set out in subsection (2)(a), (b) and (c).
- (4) Without limiting subsection (2), a member of the staff at the permitted site who acts, or fails to act, under this Part or the regulations made for the purposes of this Part in the reasonable belief that the act or omission is in accordance with this Part or those regulations does not commit—

- (a) unprofessional conduct within the meaning and for the purposes of the Health Practitioner Regulation National Law; or
 - (b) a breach of professional etiquette or ethics or any other code of conduct.
- (5) Subsections (2), (3) and (4) do not apply if the thing done or omitted to be done was due to negligence.
- (6) Nothing in this section affects any rights or obligations between a member of the staff at the permitted site and the person who engages (whether by employment or otherwise) the person for that role.
- (7) Nothing in this section affects or limits any Crown immunity that applies to a person who exercises a power or function under this Part.

S. 55O
inserted by
No. 66/2017
s. 7,
amended by
No. 7/2023
s. 31(1)(2) (ILA
s. 39B(1)).

55O Planning permit not required

- (1) Nothing in a planning scheme or a planning amendment under the **Planning and Environment Act 1987** is to be taken to require a planning permit for the use or development of the permitted site for the purposes of the operation of the licensed medically supervised injecting centre.
- (2) In this section, *use* and *development* have the same meanings as they have in the **Planning and Environment Act 1987**.

S. 55O(2)
inserted by
No. 7/2023
s. 31(2).

S. 55P
inserted by
No. 66/2017
s. 7.

55P Review of this Part and licensing of medically supervised injecting centre for trial period

- (1) The Minister must arrange for a review to be conducted of—
- (a) the operation and use of the licensed medically supervised injecting centre; and
 - (b) the extent to which the object of this Part has been advanced during the period of the

- medically supervised injecting centre licence; and
- (c) how this Part and any regulations made for the purposes of this Part have operated and whether they require amendment.
- (2) The review—
- (a) must be commenced no later than 12 months after the day on which the medically supervised injecting centre licence commences; and
- (b) may be completed before or after the licence ceases to have effect.
- (3) The Minister is authorised to access, collect, use and disclose any data or information required to complete the review subject to—
- (a) in the case of health information within the meaning of the **Health Records Act 2001**, the access, collection, use and disclosure being in accordance with that Act and the Health Privacy Principles; and
- (b) in the case of personal information within the meaning of the **Privacy and Data Protection Act 2014**, the access, collection, use and disclosure being in accordance with that Act and the Information Privacy Principles.
- (4) The Minister must cause a copy of the review to be tabled before each House of the Parliament as soon as practicable after the review is completed.

55PA Second review of this Part and licensing of medically supervised injecting centre

- (1) The Minister must arrange for a review to be conducted of—

S. 55PA
inserted by
No. 7/2023
s. 29.

- (a) the operation and use of the licensed medically supervised injecting centre; and
 - (b) the extent to which the object of this Part has been advanced during a period specified by the Minister; and
 - (c) how this Part and any regulations made for the purposes of this Part have operated and whether they require amendment.
- (2) The review—
 - (a) must be commenced no later than 30 June 2028; and
 - (b) may be completed before or after a medically supervised injecting centre licence that is in force at the time that the review is commenced ceases to have effect.
- (3) The Minister is authorised to access, collect, use and disclose any data or information required to complete the review subject to—
 - (a) in the case of health information within the meaning of the **Health Records Act 2001**, the access, collection, use and disclosure being in accordance with that Act and the Health Privacy Principles; and
 - (b) in the case of personal information within the meaning of the **Privacy and Data Protection Act 2014**, the access, collection, use and disclosure being in accordance with that Act and the Information Privacy Principles.
- (4) The Minister must cause a copy of the review to be tabled before each House of the Parliament as soon as practicable after the review is completed.

S. 55Q
inserted by
No. 66/2017
s. 7.

55Q Regulations for this Part

- (1) The Governor in Council may make regulations for or with respect to—
- (a) prescribing standards for the operation of the licensed medically supervised injecting centre;
 - (b) prescribing the content and use of internal management protocols;
 - (c) prescribing a drug of dependence, or a class of drug of dependence, as an injecting centre drug;
 - (d) prescribing permitted quantities of injecting centre drugs;
 - (e) prescribing matters relating to the use, supply, possession or administration of injecting centre drugs and permitted quantities of injecting centre drugs;
 - (f) qualifications or experience of persons engaged in the operation of the licensed medically supervised injecting centre, including, but not limited to, staff of the centre;
 - (g) functions of persons engaged in the operation of the licensed medically supervised injecting centre, including, but not limited to, staff of the centre;
 - (h) prescribing any other matter or thing required to be prescribed by this Part or necessary to be prescribed to give effect to this Part.
- (2) Regulations made under this section—
- (a) may be of general or limited application; and
 - (b) may differ according to differences in time, place or circumstance; and

- (c) may confer powers or discretions or impose duties on any person or other entity or on a specified person or other entity or class of persons or other entities; and
- (d) may provide in a specified case or class of cases for the exemption of persons, other entities or things or a class of persons, other entities or things from any of the provisions of the regulations—
 - (i) whether unconditionally or on specified conditions; and
 - (ii) either wholly or to the extent specified in the regulations.

S. 55R
inserted by
No. 66/2017
s. 7,
repealed by
No. 7/2023
s. 8.

* * * * *

Part III—Manufacture of heroin

56 Manufacture of heroin etc.

- (1) On the recommendation of the Minister, made after consulting with the Secretary, the Governor in Council may licence a fit and proper person to manufacture and sell or supply heroin by wholesale.
- (2) Where a licence is in force under subsection (1), no other licence shall be in force under that subsection for any period during which the first-mentioned licence is in force.
- (3) On the recommendation of the Minister, made after consulting with the Secretary, the Governor in Council may licence a fit and proper person to formulate heroin.
- (4) For the purposes of this section, a person formulates heroin if he prepares or does any act for the purpose of or in the course of preparing heroin in a form suitable for human therapeutic use.
- (5) Where a licence is in force under subsection (3) no other licence under that subsection shall be in force for any period during which the first-mentioned licence is in force.
- (6) The Governor in Council may on the recommendation of the Minister, made after consulting with the Secretary, grant or refuse to grant a licence under subsection (1) or subsection (3).

S. 56(1)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1).

S. 56(3)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1).

S. 56(6)
amended by
Nos 10262
s. 4, 46/1998
s. 7(Sch. 1).

- (7) A licence under subsection (1) or subsection (3)—
- (a) shall remain in force for such period as is specified in the licence;
 - (b) shall be subject to such conditions, limitations and restrictions (if any) as the Governor in Council on the recommendation of the Minister determines and specifies in the licence;
 - (c) shall specify—
 - (i) the premises at which heroin may be manufactured or formulated by the licensee;
 - (ii) the quantity or quantities of heroin which may be manufactured or formulated by the licensee; and
 - (iii) the premises at which the licensee may store or keep heroin or any ingredient used in the manufacture of heroin for the purposes of manufacture or sale or supply by wholesale or for formulation under the licence; and
 - (d) may at any time be revoked or suspended by the Governor in Council on the recommendation of the Minister.
- (8) A licence under subsection (1) or subsection (3) shall authorize the manufacture and sale or supply of heroin by wholesale or the formulation of heroin (as the case may be) only at the premises and in the quantities specified in the licence, and authorize the storage or keeping of heroin or any ingredient used in the manufacture of heroin for the purposes of manufacture and sale or supply by wholesale or formulation only at the premises specified in the licence.

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- (9) The Secretary may by instrument permit a registered medical practitioner or pharmacist to purchase or otherwise obtain from a person in respect of whom a licence is in force under subsection (1) or subsection (3) such quantities of heroin as are specified in the permit and to use the heroin so obtained for such medicinal purposes as are specified in the permit. **S. 56(9) amended by Nos 10262 s. 4, 23/1994 s. 118(Sch. 1 item 17.12), 46/1998 s. 7(Sch. 1).**
- (10) The Secretary may by instrument permit a fit and proper person to purchase or otherwise obtain from a person in respect of whom a licence is in force under subsection (1) or subsection (3) such quantity or quantities of heroin as are specified in the permit and to use the heroin so obtained for such educational experimental or research purposes and at such university or other institution as are specified in the permit. **S. 56(10) amended by Nos 10262 s. 4, 46/1998 s. 7(Sch. 1).**
- (11) On application in that behalf the Secretary may in the Secretary's discretion grant or refuse to grant a permit under subsection (9) or subsection (10). **S. 56(11) amended by Nos 10262 s. 4, 46/1998 s. 7(Sch. 1), 12/1999 s. 4(Sch. 2 item 4.1).**
- (12) A permit under subsection (9) or subsection (10)—
- (a) shall remain in force for such period as is specified in the permit;
 - (b) shall be subject to such conditions, limitations and restrictions (if any) as the Secretary determines and specifies in the permit; and **S. 56(12)(b) amended by Nos 10262 s. 4, 46/1998 s. 7(Sch. 1).**
 - (c) shall specify the quantity or quantities of heroin that may be obtained under the permit and the purposes for which the heroin so obtained may be used by the person to whom the permit is granted.

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S. 56(13)
amended by
No. 12/1994
s. 17(1).

- (13) The provisions of sections 22A, 22C, 37(1) and 37(2) shall not apply to any licence granted under this section.

S. 56(14)
amended by
No. 10002
s. 14(e).

- (14) A person who—
- (a) being the holder of an appropriate licence under subsection (1) or subsection (3)—sells or supplies heroin to a person other than a person permitted under this section to purchase or obtain heroin or otherwise than in accordance with any permit granted under this section;
 - (b) being the holder of an appropriate licence under subsection (1) or subsection (3)—manufactures or formulates heroin otherwise than in accordance with the licence; or
 - (c) being the holder of a permit under this section—uses, supplies or administers heroin otherwise than in accordance with the permit—

shall be guilty of an indictable offence and liable to imprisonment for a term of not more than five years or to a penalty of not more than 250 penalty units or to both such penalty and imprisonment.

Part IIIA—Psychoactive substances

Pt 3A
(Heading and
ss 56A–56F)
inserted by
No. 40/2017
s. 8.

56A Definitions

S. 56A
inserted by
No. 40/2017
s. 8.

(1) In this Part—

advertisement means—

- (a) any words, whether written or spoken;
or
- (b) any pictorial representation or design;
or
- (c) any other representation by any means
at all;

produce means make, prepare, process, extract,
refine, package or label.

(2) The definition of *label* in section 4(1) does not
apply to this Part.

56B Burden of proof

S. 56B
inserted by
No. 40/2017
s. 8.

Section 104 does not apply to an offence against
this Part.

56C Representation that not for human consumption not a defence

S. 56C
inserted by
No. 40/2017
s. 8.

It is not a defence to a charge for an offence
against this Part that any labelling of, or
representation made about, a substance indicates
that it is not for human consumption.

S. 56D
inserted by
No. 40/2017
s. 8.

56D Offence to produce psychoactive substance

A person must not produce a substance that the person knows or reasonably suspects is a psychoactive substance.

Penalty: In the case of a natural person,
240 penalty units or imprisonment
for 2 years or both;

In the case of a body corporate,
1200 penalty units.

S. 56E
inserted by
No. 40/2017
s. 8.

56E Offence to sell or supply psychoactive substance

- (1) A person must not sell a substance that the person knows or reasonably suspects is a psychoactive substance.

Penalty: In the case of a natural person,
240 penalty units or imprisonment
for 2 years or both;

In the case of a body corporate,
1200 penalty units.

- (2) A person must not, in the course of carrying out a commercial activity, supply to another person a substance that the person knows or reasonably suspects is a psychoactive substance.

Penalty: In the case of a natural person,
240 penalty units or imprisonment
for 2 years or both;

In the case of a body corporate,
1200 penalty units.

56F Offence to advertise psychoactive substance

**S. 56F
inserted by
No. 40/2017
s. 8.**

- (1) A person must not display or cause or permit to be displayed on or inside a public place or a vehicle or vessel that is in a public place an advertisement that the person intends as a promotion of the consumption, sale or supply of a psychoactive substance or psychoactive substances generally.

Penalty: In the case of a natural person,
240 penalty units or imprisonment
for 2 years or both;

In the case of a body corporate,
1200 penalty units.

- (2) A person must not display or cause or permit to be displayed on or inside a public place or a vehicle or vessel that is in a public place an advertisement if the person knows that there is a substantial risk that the consumption, sale or supply of a psychoactive substance or psychoactive substances generally may be promoted by that advertisement.

Penalty: In the case of a natural person,
240 penalty units or imprisonment
for 2 years or both;

In the case of a body corporate,
1200 penalty units.

Pt 4 (Heading
and ss 57–62)
substituted as
Pt 4 (Heading
and ss 57–60)
by No. 10002
s. 6(1)(a)(b).

Pt 4 (Heading)
amended by
No. 55/2003
ss 3(1).

Part IV—Deleterious substances and search, seizure and detention powers relating to volatile substances

Pt 4 Div. 1
(Heading)
inserted by
No. 55/2003
s. 3(2).

Division 1—Deleterious substances

S. 57
substituted by
No. 10002
s. 6(1)(b).

57 Definitions

(1) In this Part—

deleterious substances means—

- (a) methylated spirits; or
- (b) volatile substances;

methylated spirits means—

- (a) any spirit which has been methylated or denatured under the provisions of the Commonwealth Act known as the Spirits Act 1906 as amended and in force for the time being or the regulations under that Act;
- (b) methyl alcohol and wood spirit;
- (c) any other spirit to which any methylating substance has been added;
or
- (d) any potable liquid with which methylated spirits as defined in paragraphs (a), (b) or (c) is mixed;

volatile substance means—

S. 57(1) def. of
*volatile
substance*
amended by
No. 40/2017
s. 9.

- (a) plastic solvent, adhesive cement, cleaning agent, glue, dope, nail polish remover, lighter fluid, gasoline, or any other volatile product derived from petroleum, paint thinner, lacquer thinner, aerosol propellant or anaesthetic gas; or
 - (b) any substance declared pursuant to subsection (2) by the Governor in Council to be a volatile substance.
- (2) The Governor in Council may by Order published in the Government Gazette declare a substance to be a volatile substance for the purposes of this Part.
- (3) The Governor in Council may by Order published in the Government Gazette vary or revoke an Order under subsection (2).

58 Sale of deleterious substances

S. 58
substituted by
No. 10002
s. 6(1)(b).

- (1) Except as otherwise expressly provided in this Act or the regulations, a person shall not sell a deleterious substance to another person if the first-mentioned person knows or reasonably ought to have known or has reasonable cause to believe that the other person intends—
- (a) to use the substance by drinking, inhaling, administering or otherwise introducing it into his body; or
 - (b) to sell or supply the substance to a third person for use by that third person in a manner mentioned in paragraph (a).

- (2) A person who contravenes subsection (1) is guilty of an offence under this Act and shall be liable—
- (a) where the offence relates to methylated spirits—
to a penalty of not more than 5 penalty units or imprisonment for a term of not more than one month or both that penalty and imprisonment;
 - (b) where the offence relates to a volatile substance—
to a penalty of not more than 50 penalty units or imprisonment for a term of not more than two years or both that penalty and imprisonment.

S. 59
substituted by
No. 10002
s. 6(1)(b).

59 Matters to which this Part does not apply

This Part does not apply to—

- (a) the sale of deleterious substances for a purpose authorized by or under this Act or for a prescribed purpose or for a purpose authorized by or under any other Act or the regulations made under the other Act; or
- (b) the sale of deleterious substances for the purpose of use by another person, being a use which is authorized by or under this Act or is a prescribed use or is a use authorized by or under another Act or the regulations made under that other Act.

S. 60
substituted by
No. 10002
s. 6(1)(b).

60 Evidence

- (1) In proceedings for an offence against section 58 production of evidence that—
 - (a) on any article or substance;
 - (b) on any package or other container in which there is an article or substance; or

- (c) on any label or thing affixed, attached or connected to an article or substance or a package or container in which there is an article or substance—

there is a statement that the particular article or substance is or contains a volatile substance is prima facie evidence that the particular article or substance is or contains a volatile substance.

- (2) In proceedings for an offence against section 58 production of evidence that an article contains or a substance is a residue or vapour of a volatile substance is prima facie evidence that the article or substance is or contains a volatile substance.

Division 2—Volatile substances

Pt 4 Div. 2
(Heading and
ss 60A–60T)
inserted by
No. 55/2003
s. 4.

60A Purpose of Division

S. 60A
inserted by
No. 55/2003
s. 4.

- (1) The purpose of this Division is to protect the health and welfare of persons under 18 years of age.
- (2) Nothing in this Division makes it an offence or is to be taken to create an offence—
- (a) for a person to possess or have in the person's control a volatile substance or an item used to inhale a volatile substance; or
- (b) for a person to inhale a volatile substance.

S. 60B
(Heading)
amended by
No. 43/2011
s. 19(1).

60B Police or protective services officer to take into account the best interests of person under 18 years of age

In the exercise of any powers under this Division in relation to a person under 18 years of age, a police officer or a protective services officer must take into account the best interests of the person.

S. 60B
inserted by
No. 55/2003
s. 4,
amended by
Nos 43/2011
s. 19(2),
37/2014
s. 10(Sch.
item 47.3).

S. 60BA
inserted by
No. 43/2011
s. 20.

60BA Protective services officer may exercise police powers under this Division

S. 60BA(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.4(a)).

(1) Subject to subsection (3), a protective services officer on duty at a designated place may exercise all the powers and has all the responsibilities given to or imposed on a police officer under this Division other than section 60M(4) and (5).

S. 60BA(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.4(a)).

(2) Any reference in this Division to an action taken by a police officer includes any action taken by a protective services officer exercising the powers of a police officer in reliance on subsection (1).

(3) A protective services officer may only exercise the powers under this Division in relation to a person who is at, or in the vicinity of, a designated place.

(4) Subsection (5) applies if a protective services officer—

(a) has detained a person who is under 18 years of age under section 60L; and

(b) after taking all reasonable steps, has been unable to release the person into the care of a suitable person in accordance with section 60M(3).

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(5) The protective services officer—

- (a) may release the detained person; or
- (b) subject to section 60M(2), may continue to detain the person until the person can be handed into the custody of a police officer.

S. 60BA(5)(b)
amended by
No. 37/2014
s. 10(Sch.
item 47.4(a)).

- (6) In taking an action under subsection (5), a protective services officer must take the action which he or she reasonably believes is the most appropriate in the circumstances.

* * * * *

S. 60BA(7)
substituted by
No. 37/2014
s. 10(Sch.
item 47.4(b)),
repealed by
No. 45/2017
s. 17.

60C Where can police powers under this Division be exercised?

S. 60C
inserted by
No. 55/2003
s. 4.

- (1) A police officer may only exercise the powers under this Division in relation to a person who is—

S. 60C(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.5(a)).

- (a) in a public place; or
- (b) on private premises, if consent to enter the premises is given to the police officer—
 - (i) by the occupier of those premises; or
 - (ii) where there is no occupier of those premises, the owner of the premises.

S. 60C(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item 47.5(b)).

* * * * *

S. 60C(2)
repealed by
No. 40/2017
s. 10.

S. 60D
inserted by
No. 55/2003
s. 4,
amended by
No. 37/2014
s. 10(Sch.
item 47.6).

60D Police may use reasonable force

A police officer may use such force as is
reasonably necessary when—

- (a) conducting a search under section 60E
or 60F;
- (b) seizing a volatile substance or an item used
to inhale a volatile substance under
section 60J or 60K;
- (c) apprehending and detaining a person under
section 60L.

S. 60E
inserted by
No. 55/2003
s. 4,
amended by
No. 37/2014
s. 10(Sch.
item 47.7).

**60E Police may search person under 18 years of age
without warrant**

Subject to sections 60G and 60H, a police officer,
without warrant, may search a person and any
vehicle, package or thing in that person's
possession or under his or her control for a
volatile substance or an item used to inhale a
volatile substance if the police officer has
reasonable grounds for suspecting that the
person—

- (a) is under 18 years of age; and
- (b) has in his or her possession or under his or
her control a volatile substance or an item
used to inhale a volatile substance; and
- (c) is inhaling or will inhale a volatile substance.

S. 60F
inserted by
No. 55/2003
s. 4.

**60F Search of person irrespective of age without
warrant**

S. 60F(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.8(a)).

- (1) Subject to sections 60G and 60H, a police officer,
without warrant, may search a person and any
vehicle, package or thing in that person's
possession or under his or her control for a
volatile substance or an item used to inhale a
volatile substance if the police officer has

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reasonable grounds for suspecting that the person
intends to provide—

- (a) a volatile substance to a person under
18 years of age to inhale; or
 - (b) an item to a person under 18 years of age to
use to inhale a volatile substance.
- (2) A police officer may search a person under
subsection (1) irrespective of the age of the
person.

S. 60F(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.8(b)).

60G Before search, police to identify self

S. 60G
inserted by
No. 55/2003
s. 4.

- (1) Subject to subsection (2), before a police officer
commences a search of a person under
section 60E or 60F, the police officer must—

S. 60G(1)
amended by
No. 37/2014
s. 10(Sch.
item
47.9(a)(i)(iii)).

- (a) inform the person of the police officer's
name, rank and place of duty; and

S. 60G(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item
47.9(a)(iii)).

- (b) if requested by the person, provide the
information referred to in paragraph (a) in
writing; and

- (c) produce the police officer's identification for
inspection by the person, unless the police
officer is in uniform.

S. 60G(1)(c)
amended by
No. 37/2014
s. 10(Sch.
item
47.9(a)(ii)(iii)).

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S. 60G(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.9(b)).

(2) A police officer is not required to comply with subsection (1) if the police officer believes on reasonable grounds that—

- (a) the person is unable to understand the information because of the effects of inhaling a volatile substance; or
- (b) it is otherwise impracticable to do so.

S. 60H
inserted by
No. 55/2003
s. 4.

60H Before search, police to give information and request production of substance or item

S. 60H(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.10(a)).

(1) Subject to subsection (2), before a police officer commences a search of a person under section 60E or 60F, the police officer must—

S. 60H(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item
47.10(a)(ii)).

(a) inform the person that, although it is not an offence to possess a volatile substance or an item used to inhale a volatile substance or to inhale a volatile substance, in certain circumstances and using reasonable force, the police officer may—

- (i) search a person for a volatile substance; and
- (ii) seize a volatile substance or item used to inhale a volatile substance that is in a person's possession or under a person's control; and

S. 60H(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item
47.10(a)(iii)).

(b) request the person to produce to the police officer any volatile substance or item used to inhale a volatile substance that is in the person's possession or under the person's control.

(2) A police officer is not required to comply with subsection (1) if the police officer believes on reasonable grounds that—

S. 60H(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.10(b)).

- (a) the person is unable to understand the information and request because of the effects of inhaling a volatile substance; or
- (b) it is otherwise impracticable to do so.

60I Request for explanation before seizure of volatile substances and items used to inhale volatile substances

S. 60I
inserted by
No. 55/2003
s. 4.

(1) Subject to subsection (2), if, during the course of conducting a search of a person under section 60E or 60F, a police officer detects a volatile substance or item used to inhale a volatile substance, the police officer must ask the person why he or she is carrying or possessing that volatile substance or item.

S. 60I(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.11(a)).

(2) A police officer is not required to comply with subsection (1) if the police officer believes on reasonable grounds that—

S. 60I(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.11(b)).

- (a) the person is unable to understand the request for the explanation referred to in that subsection because of the effects of inhaling a volatile substance; or
- (b) it is otherwise impracticable to do so.

60J Seizure of volatile substances and items used to inhale when explanation given

S. 60J
inserted by
No. 55/2003
s. 4,
amended by
No. 37/2014
s. 10(Sch.
item 47.12).

A police officer may seize a volatile substance or an item used to inhale a volatile substance that is detected during the course of conducting a search under section 60E or 60F if, on hearing the explanation requested under section 60I, the police officer has reasonable grounds for suspecting that the person—

- (a) is under 18 years of age and is inhaling or will inhale a volatile substance; or
- (b) intends to provide the volatile substance detected to a person under 18 years of age to inhale; or
- (c) intends to provide the item detected to a person under 18 years of age to use to inhale a volatile substance.

S. 60K
inserted by
No. 55/2003
s. 4,
amended by
No. 37/2014
s. 10(Sch.
item 47.13(a)).

60K Seizure of volatile substances and items used to inhale when no explanation given

A police officer may seize a volatile substance or an item used to inhale a volatile substance that is detected during the course of conducting a search under section 60E or 60F if—

- (a) no explanation referred to in section 60I has been given; and
- (b) the police officer has reasonable grounds for suspecting that the person—
 - (i) is under 18 years of age and is inhaling or will inhale a volatile substance; or
 - (ii) intends to provide the volatile substance detected to a person under 18 years of age to inhale; or
 - (iii) intends to provide the item detected to a person under 18 years of age to use to inhale a volatile substance.

S. 60K(b)
amended by
No. 37/2014
s. 10(Sch.
item 47.13(b)).

60L Apprehension and detention

S. 60L
inserted by
No. 55/2003
s. 4.

- (1) A police officer may apprehend and detain a person if the police officer has reasonable grounds for believing that the person—

S. 60L(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.14(a)).

- (a) is under 18 years of age; and
- (b) is inhaling a volatile substance or has recently inhaled a volatile substance; and
- (c) is likely by act or neglect to cause immediate serious bodily harm to himself or herself or to some other person.

- (2) A police officer may apprehend and detain a person under subsection (1) irrespective of whether—

S. 60L(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.14(b)).

- (a) the person was searched under section 60E or 60F; or
- (b) any volatile substance or item used to inhale a volatile substance—
 - (i) was seized as a result of such a search; or
 - (ii) was produced in accordance with a request under section 60H(1)(b) and received by a police officer.

S. 60L(2)(b)(ii)
amended by
No. 37/2014
s. 10(Sch.
item 47.14(b)).

- (3) Subject to subsection (4), on apprehending and detaining a person under subsection (1) or as soon as practicable thereafter, a police officer must inform the person that—

S. 60L(3)
amended by
No. 37/2014
s. 10(Sch.
item 47.14(b)).

- (a) the person is not under arrest in relation to any alleged offence; and

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(b) the person is apprehended and detained with the intention of preventing the person causing immediate serious bodily harm to himself or herself or to some other person.

S. 60L(4)
amended by
No. 37/2014
s. 10(Sch.
item 47.14(c)).

(4) A police officer is not required to comply with subsection (3) if the police officer believes on reasonable grounds that—

(a) the person is unable to understand the information referred to in that subsection because of the effects of inhaling a volatile substance; or

(b) it is otherwise impracticable to do so.

S. 60M
inserted by
No. 55/2003
s. 4.

60M How long may a person be detained and where?

S. 60M(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.15(a)).

(1) A person who has been apprehended and detained under section 60L must be released immediately upon it becoming known to a police officer that the person is not under 18 years of age.

S. 60M(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.15(a)).

(2) A person who has been apprehended and detained under section 60L and who is under 18 years of age may only be detained for as long as a police officer has reasonable grounds for believing that the person—

(a) has recently inhaled a volatile substance; and

(b) is likely by act or neglect to cause immediate serious bodily harm to himself or herself or to some other person.

S. 60M(3)
amended by
No. 37/2014
s. 10(Sch.
item
47.15(b)(i)).

(3) Subject to subsection (2), as soon as practicable after apprehending and detaining under section 60L a person who is under 18 years of age, a police officer must release the person into the care of a suitable person who—

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- (a) the police officer reasonably believes is capable of taking care of the detained person; and

S. 60M(3)(a)
amended by
No. 37/2014
s. 10(Sch.
item
47.15(b)(ii)).

- (b) consents to taking care of the detained person.

Note

Depending on the circumstances of each case, a suitable person may include the detained person's parent, guardian or another adult family member or an employee of an appropriate health or welfare agency.

- (4) If a police officer, after taking all reasonable steps, has been unable to release the detained person into the care of a suitable person in accordance with subsection (3), the police officer—

S. 60M(4)
amended by
No. 37/2014
s. 10(Sch.
item 47.15(c)).

- (a) may release the detained person; or
(b) subject to subsection (2), may continue to detain that person.

- (5) In taking an action under subsection (4), a police officer must take the action which he or she reasonably believes is the most appropriate in the circumstances.

S. 60M(5)
amended by
No. 37/2014
s. 10(Sch.
item 47.15(c)).

- (6) A police officer must not detain a person under section 60L in—

S. 60M(6)
amended by
No. 37/2014
s. 10(Sch.
item 47.15(c)).

- (a) a police gaol within the meaning of the **Corrections Act 1986**; or
(b) a police cell or lock-up.

- (7) A police officer must not interview or question a person who is apprehended and detained under section 60L in relation to any offence or alleged offence.

S. 60M(7)
amended by
No. 37/2014
s. 10(Sch.
item 47.15(c)).

S. 60N
inserted by
No. 55/2003
s. 4.

**60N Return of seized or produced volatile substances
and items used to inhale volatile substances**

S. 60N(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.16).

- (1) A police officer who—
- (a) receives a volatile substance or an item used to inhale a volatile substance which is produced in accordance with a request under section 60H(1)(b); or
 - (b) seizes a volatile substance or an item used to inhale a volatile substance under section 60J or 60K—

must, as soon as practicable after receiving or seizing the volatile substance or an item used to inhale a volatile substance, inform the person from whom the volatile substance or item was received or seized of his or her right to have it returned.

S. 60N(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.16).

- (2) A person from whom a volatile substance or item used to inhale a volatile substance was received when it was produced in accordance with a request under section 60H(1)(b) may apply at the place of duty of the police officer who received the volatile substance or item for its return within 7 days after it was so received.

S. 60N(3)
amended by
No. 37/2014
s. 10(Sch.
item 47.16).

- (3) A person from whom a volatile substance or item used to inhale a volatile substance was seized under section 60J or 60K may apply at the place of duty of the police officer who seized the volatile substance or item for its return within 7 days after it was seized.

S. 60N(4)
amended by
No. 37/2014
s. 10(Sch.
item 47.16).

- (4) A volatile substance or an item used to inhale a volatile substance that is received by a police officer when it was produced in accordance with a request under section 60H(1)(b) or seized under section 60J or 60K may only be returned to a person under 18 years of age if the person is

accompanied by a parent or guardian when
collecting the volatile substance or item.

**60O Disposal or making safe of volatile substances and
items used to inhale volatile substances**

S. 60O
inserted by
No. 55/2003
s. 4.

Despite section 60N, a volatile substance or an
item used to inhale a volatile substance received
when it was produced in accordance with a
request under section 60H(1)(b) or seized under
section 60J or 60K may be disposed of or made
safe (as the case requires) if—

- (a) the police officer who received or seized the
volatile substance or item believes that the
disposal or making safe of that substance or
item is necessary because of the risk to
health or safety in removing it from the place
of receipt or seizure; or
- (b) the police officer in charge of the place of
duty of the police officer who received or
seized a volatile substance or an item used to
inhale a volatile substance believes that the
disposal or making safe of that substance or
item is necessary because of the risk to
health or safety in storing it.

S. 60O(a)
amended by
No. 37/2014
s. 10(Sch.
item 47.17(a)).

S. 60O(b)
amended by
No. 37/2014
s. 10(Sch.
item 47.17).

60P Forfeiture to Crown

S. 60P
inserted by
No. 55/2003
s. 4.

- (1) A seized volatile substance or an item used to
inhale a volatile substance that is not returned to
the person from whom it was seized within 7 days
after being so seized is forfeited to the Crown.
- (2) A volatile substance or an item used to inhale a
volatile substance received by a police officer
when it was produced in accordance with a
request under section 60H(1)(b) that is not
returned to the person from whom it was received
within 7 days after being so received is forfeited
to the Crown.

S. 60P(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

- (3) If any volatile substance or item used to inhale a volatile substance is forfeited to the Crown under subsection (1) or (2)—
- (a) the Minister may direct that it be disposed of in any manner that the Minister thinks fit; and
- (b) if it is sold, the proceeds of the sale must be paid into the Consolidated Fund.

S. 60Q
inserted by
No. 55/2003
s. 4.

60Q Records concerning searches, seizure, receipt or disposal of property, apprehensions and detentions

S. 60Q(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

- (1) A police officer who conducts a search under section 60E must make a written record of the search containing the prescribed particulars.

S. 60Q(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

- (2) A police officer who conducts a search under section 60F must make a written record of the search containing the prescribed particulars.

S. 60Q(3)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

- (3) A police officer who receives a volatile substance or an item used to inhale a volatile substance which is produced in accordance with a request under section 60H(1)(b) must make a written record of the receipt containing the prescribed particulars.

S. 60Q(4)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

- (4) A police officer who seizes a volatile substance or an item used to inhale a volatile substance under section 60J or 60K must make a written record of the seizure containing the prescribed particulars.

S. 60Q(5)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

- (5) A police officer who apprehends and detains a person under section 60L must make a written record of the apprehension and detention containing the prescribed particulars.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981

Part IV—Deleterious substances and search, seizure and detention powers
relating to volatile substances

- (6) A police officer who disposes of or makes safe a volatile substance or an item used to inhale a volatile substance under section 60O must make a written record of the disposal or making safe of the substance or item containing the prescribed particulars.
- (7) A record required to be made by this section must be made as soon as practicable—
- (a) in the case of a search, after the completion of the search; or
 - (b) in the case of a volatile substance or an item used to inhale a volatile substance received when it was produced in accordance with a request under section 60H(1)(b), after the substance or item was so received; or
 - (c) in the case of a seizure of a volatile substance or an item used to inhale a volatile substance under section 60J or 60K, after the substance or item was seized; or
 - (d) in the case of an apprehension and detention under section 60L, after the person who was apprehended and detained is released in accordance with section 60M; or
 - (e) in the case of the disposal or making safe of a volatile substance or an item used to inhale a volatile substance under section 60O, after the substance or item was disposed of or made safe.

S. 60Q(6)
amended by
No. 37/2014
s. 10(Sch.
item 47.18).

60R Person may request record

- (1) A person who is subjected to a search under section 60E or 60F is entitled, on request and without charge, to a copy of the record of the search if the request is made not later than 1 year after the date of the search.

S. 60R
inserted by
No. 55/2003
s. 4.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981

Part IV—Deleterious substances and search, seizure and detention powers
relating to volatile substances

S. 60R(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.19(a)).

- (2) A person who produced a volatile substance or an item used to inhale a volatile substance in accordance with a request under section 60H(1)(b) to a police officer who received it is entitled, on request and without charge, to a copy of the record of the receipt if the request is made not later than 1 year after the date of the production in accordance with the request under section 60H(1)(b).
- (3) A person from whom a volatile substance or an item used to inhale a volatile substance was seized under section 60J or 60K is entitled, on request and without charge, to a copy of the record of the seizure if the request is made not later than 1 year after the date of the seizure.
- (4) A person who is apprehended and detained under section 60L is entitled, on request and without charge, to a copy of the record of the apprehension and detention if the request is made not later than 1 year after the date of apprehension and detention.
- (5) A person whose property was disposed of or made safe under section 60O is entitled, on request and without charge, to a copy of the record of the disposal or making safe if the request is made not later than 1 year after the date of the disposal or making safe.

S. 60R(6)
amended by
No. 37/2014
s. 10(Sch.
item 47.19(b)).

- (6) A request under subsection (1), (2), (3), (4) or (5) is to be made to the police officer in charge of the place of duty of the police officer who searched the person, received the substance or item produced in accordance with the request under section 60H(1)(b), seized the substance or item, apprehended and detained the person or disposed of or made safe the substance or item (as the case requires).

60S Chief Commissioner to report on actions under this Division

S. 60S
inserted by
No. 55/2003
s. 4.

- (1) The Chief Commissioner of Police must provide to the Minister for inclusion in the annual report of operations under Part 7 of the **Financial Management Act 1994** a report containing—
- (a) the number of searches without warrant under section 60E conducted during that financial year; and
 - (b) the number of searches without warrant under section 60F conducted during that financial year; and
 - (c) information about the number and type of volatile substances and items used to inhale a volatile substance seized as a result of conducting those searches; and
 - (d) information about the number and type of volatile substances and items used to inhale a volatile substance received by police officers when produced in accordance with a request under section 60H(1)(b); and
 - (e) information about the number and type of volatile substances and items used to inhale a volatile substance returned to persons under section 60N; and
 - (f) information about the number and type of volatile substances and items used to inhale a volatile substance disposed of or made safe under section 60O; and
 - (g) information about the number and type of volatile substances and items used to inhale a volatile substance forfeited to the Crown under section 60P; and

S. 60S(1)(d)
amended by
No. 37/2014
s. 10(Sch.
item 47.20).

(h) the number of persons apprehended and detained without warrant under section 60L during that financial year.

(2) A report provided under this section is not required to specify the exact type of each volatile substance or item used to inhale a volatile substance referred to in the report.

S. 60T
inserted by
No. 55/2003
s. 4.

60T Regulations

- (1) For the purposes of this Part, the Governor in Council may make regulations for or with respect to—
- (a) the manner in which searches and seizures under this Division are to be carried out; and
 - (b) particulars to be included in records made under section 60Q; and
 - (c) any other matter or thing necessary or convenient to be prescribed for the purposes of this Part.
- (2) Regulations made under this Part may—
- (a) be of general or limited application;
 - (b) differ according to differences in time, place or circumstance;
 - (c) confer powers or discretions or impose duties on any person.

Part IVA—Authorities for low-THC cannabis

Division 1—Authorities for low-THC cannabis

Pt 4A
(Heading and
ss 61–69M)
inserted by
No. 54/1997
s. 5 (as
amended by
No. 52/1998
s. 311(Sch. 1
item 22)).

61 Definitions

New s. 61
inserted by
No. 54/1997
s. 5.

(1) In this Part—

authority means an authority issued under
section 65;

cannabis means a plant or any part of a plant of
the genus *Cannabis L*, whether fresh or
dried;

inspector means—

S. 61(1) def. of
inspector
amended by
No. 37/2014
s. 10(Sch.
item 47.21).

(a) a person authorised as an inspector
under section 69E; or

(b) a police officer;

low-THC cannabis means cannabis, the leaves
and flowering heads of which do not contain
more than 1.0 per cent of
tetrahydrocannabinol;

S. 61(1) def. of
*low-THC
cannabis*
amended by
No. 22/2022
s. 55(1)(b).

minor term or condition means a term, condition,
limitation or restriction prescribed under
section 66(4);

S. 61(1) def. of
*minor term or
condition*
inserted by
No. 22/2022
s. 55(1)(a).

national criminal history check, in relation to a
person, means a check of the criminal history
of the person in or outside of Australia with
or through a police force or other authority
of Victoria, another State, a Territory or the
Commonwealth;

S. 61(1) def. of
*national
criminal
history check*
inserted by
No. 22/2022
s. 55(1)(a).

S. 61(1) def. of
*protected
information*
inserted by
No. 22/2022
s. 55(1)(a).

protected information means any information, document or thing the production or inspection of which—

- (a) is likely to reveal the identity of a person or a police officer who provided any information that is relevant to a decision of the Chief Commissioner of Police to—
 - (i) oppose the issuing or renewal of an authority; or
 - (ii) request the suspension or cancellation of an authority; or
- (b) is likely to reveal the identity of a person whose name appears in any evidence given or information provided to a police officer in the course of any investigation; or
- (c) is likely to reveal the identity of a person who is or has been the subject of an investigation conducted by a police officer; or
- (d) is likely to reveal an investigation method, intelligence gathering method, investigative technique or technology or covert practice used by police officers; or
- (e) is likely to jeopardise the safety of a person or police officer referred to in paragraph (a), (b) or (c); or
- (f) is likely to put at risk any investigation by a police officer; or
- (g) may prejudice any investigation or criminal proceeding; or
- (h) is otherwise not in the public interest;

Secretary means the Secretary to the Department of Jobs, Precincts and Regions;

S. 61(1) def. of ***Secretary*** substituted by No. 56/2003 s. 11(Sch. item 7.1), amended by Nos 70/2013 s. 4(Sch. 2 item 12), 22/2022 s. 55(1)(d).

serious offence means—

- (a) an indictable offence involving dishonesty, fraud or assault; or
 - (b) an offence under section 72B; or
 - (c) any offence under this Act with a penalty of imprisonment of more than one year; or
 - (d) an offence equivalent to an offence referred to in paragraphs (a), (b) or (c) under the law of another jurisdiction.
- (2) For the purposes of sections 63 and 64, a person who is 18 years of age or more is an associate of an applicant for an authority if the person—
- (a) holds or will hold any relevant financial interest, or is or will be entitled to exercise any relevant power (whether in right of the person or on behalf of any other person) in the business of the applicant to which the authority relates, and by virtue of that interest or power, is able or will be able to exercise a significant influence over or with respect to the management or operation of the business to which the authority relates; or

S. 61(1) def. of ***serious offence*** substituted by Nos 40/2019 s. 7, 22/2022 s. 55(1)(c).

S. 61(2) amended by No. 22/2022 s. 55(2).

S. 61(2)(c)
amended by
No. 22/2022
s. 55(3).

- (b) holds or will hold any relevant position, whether in right of the person or on behalf of any other person in the business of the applicant to which the authority relates; or
- (c) is a spouse (including de facto spouse) of the applicant.

(3) In subsection (2)—

S. 61(3) def. of
relative
repealed by
No. 22/2022
s. 55(4).

* * * * *

relevant financial interest, in relation to a business, means—

- (a) any share in the capital of the business; or
- (b) any entitlement to receive any income derived from the business;

relevant position, in relation to a business, means the position of director, manager or other executive position or secretary, however that position is designated;

relevant power means any power, whether exercisable by voting or otherwise and whether exercisable alone or in association with others—

- (a) to participate in any directorial, managerial or executive decision; or
- (b) to elect or appoint any person to any relevant position.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part IVA—Authorities for low-THC cannabis

	*	*	*	*	*	S. 61A inserted by No. 20/2016 s. 118, repealed by No. 34/2019 s. 20.
62	Application for authority to cultivate and process low-THC cannabis					New s. 62 inserted by No. 54/1997 s. 5.
	(1) A person may apply to the Secretary for an authority authorising that person, for commercial or research purposes relating to non-therapeutic use, to do one or more of the following—					S. 62(1) substituted by No. 22/2022 s. 56(1).
	(a) to possess, process, sell or supply cannabis seed which has been harvested from low- THC cannabis;					
	(b) to cultivate and possess low-THC cannabis which has been grown from seed which has been harvested from cannabis, where the leaves and flowering heads of the cannabis from which the seed has been harvested do not contain tetrahydrocannabinol in excess of 0·5 per cent;					
	(c) to possess, process, sell or supply low-THC cannabis which is substantially free of leaves and flowering heads.					
	(2) An application under subsection (1) must—					
	(a) be in writing; and					
	(b) be accompanied by the prescribed application fee; and					S. 62(2)(b) amended by No. 22/2022 s. 56(2)(a).
	(c) include any prescribed information.					S. 62(2)(c) inserted by No. 22/2022 s. 56(2)(b).

- (3) An application under subsection (1) must contain or be accompanied by evidence to the satisfaction of the Secretary that—
 - (a) the applicant is a fit and proper person to be given an authority;
 - (b) the applicant intends to undertake bona fide research or commercial activity relating to the non-therapeutic use of cannabis under the authority including—
 - (i) in the case of research, evidence that the research would be conducted by a person with appropriate scientific training using appropriate methodology; or
 - (ii) in the case of commercial activity, evidence of the commercial activity to be carried out.
- (4) An applicant must provide any other information about the applicant or the application which the Secretary reasonably requires.

New s. 63
inserted by
No. 54/1997
s. 5.

63 Secretary must investigate application

S. 63(1)
substituted by
No. 22/2022
s. 57(1).

- (1) On receipt of an application under section 62, the Secretary—
 - (a) must cause to be carried out all investigations and inquiries that the Secretary considers necessary to properly determine the application; and
 - (b) may conduct an inspection of an applicant's premises that relates to the application; and
 - (c) must require that an applicant or any associate of the applicant submit to the Secretary a national criminal history check

that was undertaken within 6 months of the date it is submitted to the Secretary.

- (2) The Secretary must refer a copy of an application and any supporting documentation to the Chief Commissioner of Police within 7 days of receiving the application and any supporting documentation.

S. 63(2)
amended by
No. 22/2022
s. 57(2).

- (3) The Chief Commissioner of Police must—

S. 63(3)
substituted by
No. 22/2022
s. 57(3).

- (a) inquire into and report to the Secretary on any matters concerning the application that the Chief Commissioner of Police believes are appropriate or reasonably necessary; and
- (b) inquire into and report to the Secretary on any matters concerning the application that the Secretary requests; and
- (c) within 28 days of receiving the application from the Secretary—
 - (i) notify the Secretary in writing of the Chief Commissioner of Police's decision to oppose or not oppose the issuing of the authority; and
 - (ii) subject to section 69AC(1), provide the reasons for the decision to oppose or not oppose the issuing of the authority.

63A When Secretary must refuse to issue authority

S. 63A
inserted by
No. 22/2022
s. 58.

If the Secretary is notified under section 63(3)(c) that the Chief Commissioner of Police opposes the issuing of the authority, the Secretary must not issue the authority.

New s. 64
inserted by
No. 54/1997
s. 5.

64 Matters to be considered in determining applications

- (1) In order to prevent criminal activity in the cultivation and processing of low-THC cannabis, the Secretary must not issue an authority to an applicant unless the Secretary is satisfied that—
 - (a) the applicant or any associate of the applicant has within the 10 years preceding the application not been found guilty of a serious offence; and
 - (b) the applicant and each associate of the applicant is a suitable person to be concerned in or associated with the cultivation, processing, sale or supply of low-THC cannabis; and
 - (c) the applicant's property or premises will be suitable for the cultivation, processing, sale or supply of low-THC cannabis in relation to location, facilities, proposed security arrangements and any other prescribed requirements.
- (2) In particular, the Secretary may consider whether—
 - (a) the applicant and each associate of the applicant is of good repute, having regard to character, honesty and integrity;
 - (b) in the case of an applicant that is not a natural person, the applicant has a satisfactory ownership, trust or corporate structure;
 - (c) the applicant is of sound and stable financial background;

S. 64(1)(c)
amended by
No. 22/2022
s. 59.

- (d) the applicant has any business association with any person or body who or which, in the opinion of the Secretary, is not of good repute, having regard to character, honesty and integrity;
- (e) each director, partner, trustee, executive officer and secretary and any other person determined by the Secretary to be associated or connected with the ownership, administration or management of the operations or business of the applicant is a suitable person to act in that capacity.

65 Determination of applications

New s. 65
inserted by
No. 54/1997
s. 5.

- (1) Subject to section 63A, after considering an application and any investigation under section 63, the Secretary must determine an application by—

S. 65(1)
amended by
No. 22/2022
s. 60(1).

- (a) issuing an authority; or
 - (b) refusing to issue an authority.

- (2) The Secretary must notify the applicant in writing of the decision under subsection (1) within 21 days of making the decision.

S. 65(2)
amended by
No. 22/2022
s. 60(2).

- (3) If the decision is to refuse to issue the authority, the Secretary must—

S. 65(3)
inserted by
No. 22/2022
s. 60(3).

- (a) notify the Chief Commissioner of Police that the Secretary has refused to issue the authority; and
 - (b) subject to section 69AC(2), provide reasons for that decision to the applicant; and
 - (c) inform the applicant that they have the right to seek review of the Secretary's decision by VCAT.

New s. 66
inserted by
No. 54/1997
s. 5.

66 Terms and conditions of authorities

- (1) An authority is issued for the term, not exceeding 3 years, specified in the authority unless it is sooner suspended or cancelled.
- (2) An authority relates only to the premises or site described in it.
- (3) An authority is subject to the terms, conditions, limitations and restrictions specified in it including, but not limited to, terms, conditions, limitations and restrictions relating to—
 - (a) the premises or site at which the activities authorised by the authority may be carried out;
 - (b) the source of seed for sowing, including the authentication of the varietal identity and tetrahydrocannabinol content of the crop from which the seed was harvested;
 - (c) the implementation and maintenance of satisfactory security and surveillance measures to restrict access of unauthorised persons to crops and harvested material;
 - (d) the keeping of records and other documents;
 - (e) the provision of information, records or other documents to the Secretary relating to—
 - (i) the activities carried out under the authority; or
 - (ii) a change in the position of director, manager, secretary or other executive position, however designated or the structure of the business to which the authority relates; or
 - (iii) any other matter that the Secretary reasonably requires;

- (f) the disposal of harvested material and crop residue;
- (g) inspection, supervision and surveillance of seed, plants, crops, harvested material and products by inspectors.
- (4) An authority is subject to the terms, conditions, limitations and restrictions (if any) that are prescribed minor terms or conditions. S. 66(4)
inserted by
No. 22/2022
s. 61.
- (5) An authority is subject to any other prescribed terms, conditions, limitations and restrictions. S. 66(5)
inserted by
No. 22/2022
s. 61.

66A Application of prescribed terms and conditions

S. 66A
inserted by
No. 22/2022
s. 62.

- (1) A term, condition, limitation or restriction prescribed under section 66(4) or (5) applies to an authority on and from the prescribed date, being not less than 14 days after the commencement of the regulations that prescribe the term, condition, limitation or restriction.
- (2) The Secretary must give the holder of an authority written notice of any term, condition, limitation or restriction under subsection (1) to which the authority is subject.

67 Renewal of authorities

New s. 67
inserted by
No. 54/1997
s. 5.

- (1) An application for renewal of an authority—
 - (a) must be made at least 60 days before the expiry of the current authority; and S. 67(1)(a)
amended by
No. 22/2022
s. 63(1).
 - (b) must be in writing and accompanied by the prescribed fee.

S. 67(2)
substituted by
No. 22/2022
s. 63(2).

- (2) On receipt of an application for renewal under subsection (1), the Secretary—
- (a) must cause to be carried out all investigations and inquiries that the Secretary considers necessary to properly determine the application; and
 - (b) may conduct an inspection of the premises or site to which the authority relates; and
 - (c) must refer a copy of the application and any supporting documentation to the Chief Commissioner of Police within 7 days of receiving the application and any supporting documentation.

S. 67(2A)
inserted by
No. 22/2022
s. 63(2).

- (2A) The Chief Commissioner of Police must—
- (a) inquire into and report to the Secretary on any matters concerning the application that the Chief Commissioner of Police believes are appropriate or reasonably necessary; and
 - (b) inquire into and report to the Secretary on any matters concerning the application that the Secretary requests; and
 - (c) within 28 days of receiving the application from the Secretary—
 - (i) notify the Secretary in writing of the Chief Commissioner of Police's decision to oppose or not oppose the renewal of the authority; and
 - (ii) subject to section 69AC(1), provide the reasons for the decision to oppose or not oppose the renewal of the authority.

S. 67(2B)
inserted by
No. 22/2022
s. 63(2).

- (2B) If the Secretary is notified under subsection (2A)(c) that the Chief Commissioner of Police opposes the renewal of the authority, the Secretary must not renew the authority.

(2C) Subject to subsection (2B), after considering a renewal application and any investigations under this section, the Secretary may—

S. 67(2C)
inserted by
No. 22/2022
s. 63(2).

- (a) renew the authority; or
- (b) refuse to renew the authority.

(3) A renewed authority lasts for the same period as the previous authority.

(4) The Secretary must—

S. 67(4)
inserted by
No. 22/2022
s. 63(3).

- (a) notify the applicant in writing of the decision under subsection (2C) within 21 days of making the decision; and
- (b) if the Secretary refuses to renew the authority—
 - (i) notify the Chief Commissioner of Police that the Secretary has refused to renew the authority; and
 - (ii) subject to section 69AC(2), provide reasons for that decision to the applicant; and
 - (iii) inform the applicant that they have the right to seek review of the Secretary's decision by VCAT.

68 Authority not transferable

New s. 68
inserted by
No. 54/1997
s. 5.

An authority is not transferable to another person.

69 Amendment of authorities

New s. 69
inserted by
No. 54/1997
s. 5.

(1) The Secretary may, in the Secretary's discretion—

- (a) amend any terms, conditions, limitations or restrictions to which the authority is subject; or
- (b) impose new terms, conditions, limitations or restrictions on an authority.

- (2) An amendment under subsection (1) must be notified in writing to the holder of the authority.

S. 69A
inserted by
No. 54/1997
s. 5.

69A Suspension or cancellation

- (1) The Secretary may, by notice in writing to the holder of an authority, suspend or cancel an authority if—
- (a) the holder requests suspension or cancellation; or
 - (b) the holder has not complied with the terms, conditions, limitations or restrictions of the authority; or
 - (c) the holder has failed to comply with this Act or regulations; or
 - (d) the Secretary is satisfied that the holder or any associate of the holder is no longer a fit and proper person to hold or be associated with, as the case requires, the authority; or
 - (e) the Secretary is satisfied that the holder obtained the authority by fraud, misrepresentation or concealment of facts; or
 - (ea) the Chief Commissioner of Police requests suspension or cancellation on the basis of protected information concerning the holder or an associate of the holder; or
 - (f) the holder ceases to carry on the research or commercial activity to which the authority relates.

S. 69A(1)(d)
substituted by
No. 22/2022
s. 64(1).

S. 69A(1)(ea)
inserted by
No. 22/2022
s. 64(2).

- (2) If an authority is suspended or cancelled under subsection (1), it ceases to be of effect.

S. 69A(2)
amended by
No. 22/2022
s. 64(3).

- (3) For the purposes of subsection (1)(ea), the Chief Commissioner of Police may request that the Secretary suspend or cancel an authority on the basis of protected information at any time.

S. 69A(3)
inserted by
No. 22/2022
s. 64(4).

- (4) The Chief Commissioner of Police must—
- (a) request the suspension or cancellation of an authority in writing; and
 - (b) subject to section 69AC(1), provide reasons for the request.
- (5) If the Chief Commissioner of Police requests the suspension or cancellation of an authority on the basis of protected information, the Secretary must suspend or cancel the authority (as the case requires).
- (6) If an authority is suspended or cancelled under subsection (1), the Secretary must—
- (a) notify the Chief Commissioner of Police that the authority has been suspended or cancelled; and
 - (b) as soon as practicable—
 - (i) notify the former holder in writing that the authority has been suspended or cancelled (as the case requires); and
 - (ii) subject to section 69AC(2), provide reasons for the suspension or cancellation; and
 - (iii) inform the former holder that they have the right to seek review of the decision to suspend or cancel the authority by VCAT.
- (7) Within 14 days of receiving notice that an authority is suspended or cancelled under subsection (1), a person must surrender to the Secretary—
- (a) the relevant authority; and
 - (b) any related document issued to the person.
- Penalty: 20 penalty units.

S. 69A(4)
inserted by
No. 22/2022
s. 64(4).

S. 69A(5)
inserted by
No. 22/2022
s. 64(4).

S. 69A(6)
inserted by
No. 22/2022
s. 64(4).

S. 69A(7)
inserted by
No. 22/2022
s. 64(4).

S. 69AB
inserted by
No. 40/2019
s. 8.

69AB Delegation

The Secretary, by instrument, may delegate any powers or functions of the Secretary under this Part to a person, by name or by position, who is employed under Part 3 of the **Public Administration Act 2004**.

S. 69AC
inserted by
No. 22/2022
s. 65.

69AC Procedure for decisions based on protected information

- (1) If the Chief Commissioner of Police opposes the issuing or renewal of an authority, or requests the suspension or cancellation of an authority, wholly or partly based on protected information, the Chief Commissioner of Police may decide—
 - (a) to include the protected information in the reasons given to the Secretary under sections 63(3)(c)(ii), 67(2A)(c)(ii) or 69A(4)(b) and specify which information is protected information; or
 - (b) not to include the protected information in the reasons given to the Secretary under sections 63(3)(c)(ii), 67(2A)(c)(ii) or 69A(4)(b) and specify that—
 - (i) some or all of the Chief Commissioner of Police's decision is based on protected information; and
 - (ii) to the extent that the decision is based on protected information, reasons will not be given to the Secretary.
- (2) In giving reasons under sections 65(3)(b), 67(4)(b)(ii) or 69A(6)(b)(ii), the Secretary must—
 - (a) not disclose any protected information; and
 - (b) if the Secretary's decision is partially or wholly based on protected information, specify that some or all of the Secretary's

S. 69AC(2)(b)
amended by
No. 39/2024
s. 113(1).

decision is based on advice from the Chief Commissioner of Police.

- (3) Section 8 of the **Administrative Law Act 1978** does not apply to a decision to which this section applies.

69B Review by VCAT

- (1) A person may apply to the Victorian Civil and Administrative Tribunal for review of a decision of the Secretary—
- (a) to refuse to issue an authority to that person; or
 - (b) to refuse to renew an authority held by that person; or
 - (c) to suspend, cancel or amend an authority held by that person.
- (2) An application for review under subsection (1) must be made within 28 days after the later of—
- (a) the day on which the decision is made;
 - (b) if, under the **Victorian Civil and Administrative Tribunal Act 1998**, the person requests a statement of reasons for the decision, the day on which the statement of reasons is given to the person or the person is informed under section 46(5) of that Act that a statement of reasons will not be given.

S. 69B
inserted by
No. 54/1997
s. 5 (as
amended by
No. 52/1998
s. 311 (Sch. 1
item 22)).

69BA VCAT to inquire on grounds for refusal

- (1) On receipt of an application for review under section 69B, VCAT must enquire of the Secretary whether the grounds for the refusal, suspension, cancellation or amendment were based on any protected information.
- (2) The Secretary must respond to VCAT's enquiry under subsection (1) in writing.

S. 69BA
inserted by
No. 22/2022
s. 66.

S. 69BB
inserted by
No. 22/2022
s. 66.

69BB Appointment of special counsel

- (1) VCAT must appoint a special counsel to represent the interests of the applicant if the Secretary informs VCAT under section 69BA(2) that a decision was based on protected information.
- (2) A special counsel must be a barrister within the meaning of the Legal Profession Uniform Law (Victoria) who, in the opinion of VCAT, has the appropriate skills and ability to represent the interests of the party at the hearing.
- (3) At any time before the special counsel attends the hearing or obtains any confidential affidavit in relation to the application for review, for the purpose of obtaining information or instructions from the party or representative in relation to the proceeding, the special counsel may communicate with—
 - (a) the party whose interests the special counsel is representing; or
 - (b) any representative of that party.
- (4) Subject to section 69BD(5), at any time after the special counsel commences to attend the hearing or obtains any confidential affidavit in relation to the application for review, the special counsel must not—
 - (a) take instructions from the party whose interests the special counsel is representing, or from any representative of that party; and
 - (b) communicate any other information in relation to the hearing to that party or a representative of that party without leave of VCAT, except to communicate any order made by VCAT at or in relation to the hearing.

- (5) A special counsel may be required to sign a confidentiality undertaking to VCAT.

69BC Procedure for hearing—protected information

S. 69BC
inserted by
No. 22/2022
s. 66.

- (1) If the Secretary informs VCAT under section 69BA(2) that the decision was based on protected information—
- (a) the Chief Commissioner of Police must be joined as a party to the proceeding; and
 - (b) at the hearing of the application for review, VCAT must first determine whether or not the information is protected information.
- (2) For the purposes of subsection (1)(b), VCAT must hold the hearing in private.
- (3) The following parties are entitled to be present at the hearing under subsection (2)—
- (a) if protected information was included in the reasons given to the Secretary from the Chief Commissioner of Police under section 63(3)(c)(ii), 67(2A)(c)(ii) or 69A(4)(b), the Secretary, the Chief Commissioner of Police and the special counsel;
 - (b) if no protected information was included in the reasons given to the Secretary from the Chief Commissioner of Police under sections 63(3)(c)(ii), 67(2A)(c)(ii) or 69A(4)(b), the Chief Commissioner of Police and the special counsel only.
- (4) Each party that is entitled to be present at the hearing has a right to make submissions as to whether evidence supporting the grounds for the refusal to issue or renew the authority, or the cancellation or the suspension of the authority, amounts to protected information.

- (5) After hearing the parties under subsection (4), VCAT must decide whether or not any of the evidence adduced amounts to protected information.
- (6) If VCAT decides that none of the evidence adduced under subsection (4) amounts to protected information, VCAT must permit any party to attend the hearing that was excluded under subsection (3).

S. 69BD
inserted by
No. 22/2022
s. 66.

69BD Decision of VCAT where protected information exists

- (1) Without limiting any other power of VCAT conferred by or under this Part or any other Act, if VCAT decides that any of the evidence adduced under section 69BC(4) is protected information, only the following parties are entitled to be present at the hearing of the proceeding to the extent that it relates to that protected information—
 - (a) the Chief Commissioner of Police; and
 - (b) the special counsel; and
 - (c) if the protected information was given to the Secretary by the Chief Commissioner of Police, the Secretary.
- (2) Each party that is entitled to be present at the hearing of the proceeding has a right to make submissions as to—
 - (a) the weight that should be given to the evidence supporting the grounds for the refusal to issue or to renew the authority or the cancellation or the suspension of the authority that amounts to protected information and any other evidence adduced; and

- (b) the character of the applicant, being evidence indicating whether the applicant is a fit and proper person to hold an authority; and
 - (c) whether, in all the circumstances, the authority should be issued to the applicant, renewed or re-instated (as the case requires).
- (3) In determining a proceeding that involves protected information, VCAT must decide—
 - (a) what weight to give the protected information and any other evidence adduced; and
 - (b) whether the applicant is a fit and proper person to hold an authority; and
 - (c) whether, in all the circumstances, the authority should be issued to the applicant, renewed or reinstated (as the case requires).
- (4) If VCAT decides under section 69BC(5) that any evidence adduced is protected information, VCAT must take all steps and precautions to prevent release of that information.
- (5) If special counsel wishes to seek further instructions from the applicant in relation to the protected information, the special counsel must first submit written questions to VCAT for approval.
- (6) Before approving the written questions under subsection (5), VCAT must hear submissions from the Chief Commissioner of Police on the content of the questions.
- (7) Despite section 117 of the **Victorian Civil and Administrative Tribunal Act 1998**, any order made by VCAT in relation to a decision under this section must only state—
 - (a) whether the decision of the Secretary is upheld or overturned; and

(b) if the authority is not issued, renewed or reinstated (as the case requires), that the applicant or each relevant person in relation to the application has failed to meet the fit and proper person requirements.

(8) VCAT may publish reasons for its decision only to the extent that those reasons do not relate to protected information.

S. 69BE
inserted by
No. 22/2022
s. 66.

69BE Chief Commissioner of Police may request Secretary reconsider decision without protected information

(1) At any time before a final determination has been made by VCAT in a proceeding under section 69BC or 69BD that involves protected information, the Chief Commissioner of Police may request the Secretary to reconsider the decision to refuse to issue or refuse to renew, or to suspend or cancel, the authority without relying on any report or decision of the Chief Commissioner of Police that was based on protected information.

(2) If the Chief Commissioner of Police makes a request under subsection (1)—

(a) the Chief Commissioner of Police must advise VCAT that the request has been made; and

(b) VCAT—

(i) must remit the matter for re-consideration by the Secretary in accordance with the request; and

(ii) may make any orders that VCAT thinks fit; and

(c) the Secretary must reconsider the decision as if sections 63A, 67(2B) and 69A(5) do not apply.

- (3) If the authority is issued or renewed or reinstated (as the case requires) the proceeding terminates immediately.

69BF General provisions for hearing matters involving protected information

S. 69BF
inserted by
No. 22/2022
s. 66.

- (1) For the purposes of a proceeding under section 69BC or 69BD that involves protected information, VCAT must be constituted by a presidential member.
- (2) The following provisions do not apply to a proceeding for as long as section 69BC or 69BD applies—
- (a) Subdivision 1 of Division 3 of Part 3 and section 49 of the **Victorian Civil and Administrative Tribunal Act 1998**;
- (b) section 8 of the **Administrative Law Act 1978**.
- (3) Subsection (2) does not apply to any extent that a proceeding does not involve protected information.

69C Offence to contravene authority

S. 69C
inserted by
No. 54/1997
s. 5,
substituted by
No. 22/2022
s. 67.

- (1) A person who is the holder of an authority must not contravene a minor term or condition to which the authority is subject.

Penalty: 20 penalty units.

- (2) A person who is the holder of an authority must not contravene a term, condition, limitation or restriction which is not a minor term or condition.

Penalty: 100 penalty units.

S. 69D
inserted by
No. 54/1997
s. 5.

69D Catchment and Land Protection Act does not apply

Despite anything to the contrary in the **Catchment and Land Protection Act 1994**, Part 8 of that Act does not apply to the processing, cultivation, possession, sale or supply of low-THC cannabis in accordance with an authority under this Part.

Division 2—Inspection and enforcement

S. 69E
inserted by
No. 54/1997
s. 5.

69E Inspectors under this Part

- (1) The Secretary, by instrument, may authorise the following persons to be inspectors for the purposes of all or any of the provisions of this Part—

S. 69E(1)(a)
substituted by
No. 12/1999
s. 4(Sch. 2
item 4.2),
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 60.2).

- (a) any person employed under Part 3 of the **Public Administration Act 2004**; or

- (b) any other appropriately qualified person.

- (2) The Secretary may determine the terms and conditions of authorisation of inspectors.
- (3) The Secretary may, in writing, revoke the authorisation of an inspector at any time.
- (4) The terms and conditions of authorisation may contain general directions as to how the inspector's powers may be exercised.
- (5) The Secretary must issue an identification certificate to each inspector (other than an inspector who is a police officer) which sets out the provisions of this Part for which the inspector is authorised to be an inspector.

S. 69E(5)
amended by
No. 37/2014
s. 10(Sch.
item 47.22).

- (6) An inspector, in the course of performing his or her functions under this Part, must produce his or her identification certificate to any person who requests its production.
- (7) In this Division, a reference to an identification certificate in relation to an inspector who is a police officer is a reference to written evidence of the fact that he or she is a police officer.

S. 69E(7)
amended by
No. 37/2014
s. 10(Sch.
item 47.22).

69F General powers of inspectors

S. 69F
inserted by
No. 54/1997
s. 5.

- (1) For the purposes of determining compliance with this Part or an authority, an inspector may, with such assistance as he or she thinks necessary, at any reasonable time—
 - (a) enter and inspect any place, other than premises used as a residence, occupied by any person who is the holder of an authority;
 - (b) inspect, count, examine or mark for identification any product, plant or crop in the place;
 - (c) require a person to produce any document that the inspector reasonably requires for ascertaining whether this Part or an authority is being complied with and—
 - (i) examine the document; and
 - (ii) make copies of it or take extracts from it; and
 - (iii) remove the document for as long as is reasonably necessary to make copies or take extracts;
 - (d) take or remove for examination samples of or from, or specimens of, any plant of a crop or product to determine—
 - (i) the tetrahydrocannabinol content of that plant, crop or product; and

- (ii) that the plant, crop or product has been cultivated or processed in accordance with the authority or that its possession is in accordance with the authority;
 - (e) submit any sample or specimen taken in accordance with this Part to a laboratory or place approved by the Secretary for examination and testing.
- (2) An inspector may not exercise any powers under this Part if the inspector fails, on request, to produce his or her identification certificate for inspection by the occupier of the place or the person in charge or apparent control of the place.

S. 69G
inserted by
No. 54/1997
s. 5.

69G Inspector may order harvest or treatment

- (1) If an inspector is satisfied on reasonable grounds that any plant or crop contravenes this Part or an authority, the inspector may order the harvest of the plant or crop and the treatment of that harvested material.
- (2) An order under subsection (1) must—
 - (a) be in writing; and
 - (b) include a statement of the reasons for ordering the harvest and treatment; and
 - (c) be given to the holder of the authority.

S. 69H
inserted by
No. 54/1997
s. 5.

69H Inspector has power to detain or seize

If an inspector believes that any plant, crop or product contravenes this Part or an authority, the inspector may detain or seize the plant, crop or product and deal with it in accordance with section 69I.

69I What happens if an inspector detains or seizes plants, crops or products?

S. 69I
inserted by
No. 54/1997
s. 5.

- (1) If an inspector detains or seizes any plant, crop or product, the inspector must immediately—
 - (a) give notice in writing of the detention or seizure including a statement of the reasons for detaining or seizing the plant, crop or product to the holder of the authority; and
 - (b) take or send to a laboratory or place approved by the Secretary for examination and testing, the plant, crop or product or a sample of the plant, crop or product.
- (2) A person must not remove the whole or any part of a plant, crop or product detained or seized while the detention or seizure notice remains in force, except on the written authority or written direction of an inspector or the Secretary.

Penalty: 50 penalty units.

- (3) If the results of the examination or test of the samples taken or sent in accordance with subsection (1)(b) show that the plant, crop or product was not in contravention of this Part or the authority, the inspector must immediately release or return the plant, crop or product to the holder of the authority.
- (4) If the results of the examination or test of the samples taken or sent in accordance with subsection (1)(b) show that the plant, crop or product was in contravention of this Part or the authority, the inspector must—
 - (a) inform the holder of the authority or the person in whose possession the plant, crop or product was found (as the case may be) in writing of the results; and

- (b) arrange for or order the harvest, disposal or destruction of the plant, crop or product.
- (5) If an arrangement or order is made for the disposal or destruction of a plant, crop or product under subsection (4)(b), the inspector must give notice of that arrangement or order before that disposal or destruction takes place.
- (6) A notice under subsection (5) must—
 - (a) be in writing; and
 - (b) include a statement of the reasons for arranging or ordering the disposal or destruction; and
 - (c) fix a time for the disposal or destruction; and
 - (d) be given to the holder of the authority.
- (7) Nothing in this section limits the power of a police officer to take legal proceedings in respect of any plant, crop or product found not to comply with this Part or an authority.

S. 69I(7)
amended by
No. 37/2014
s. 10(Sch.
item 47.22).

S. 69J
inserted by
No. 54/1997
s. 5.

69J Appeal to Secretary if disposal or destruction ordered

- (1) Within 48 hours of receiving a notice under section 69I(5), the holder of an authority may lodge an appeal in writing against the disposal or destruction with the Secretary.
- (2) Within 3 business days after an appeal is lodged under subsection (1), the Secretary must determine the appeal by—
 - (a) cancelling the arrangement or order made by the inspector under section 69I; or
 - (b) confirming the arrangement or order made by the inspector under section 69I.

- (3) The Secretary must notify the holder of the authority in writing of the determination made under subsection (2).

69K Offences relating to inspector's exercise of power

S. 69K
inserted by
No. 54/1997
s. 5.

- (1) A person must not, without reasonable excuse, hinder or obstruct an inspector in the exercise of a power under this Part.

Penalty: 100 penalty units.

- (2) A person must not, without reasonable excuse, fail to comply with the direction, requirement or order of an inspector.

Penalty: 100 penalty units.

69L Inspector may possess cannabis for purposes of this Part

S. 69L
inserted by
No. 54/1997
s. 5.

An inspector is authorised to have cannabis in his or her possession in the exercise or performance of any power, function or duty conferred on him or her by this Part or the regulations made under this Part.

69LA Infringement notices

S. 69LA
inserted by
No. 22/2022
s. 68.

- (1) An inspector may serve an infringement notice on a person who the inspector has reason to believe has committed a prescribed offence.
- (2) An offence referred to in subsection (1) for which an infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.

69LB Infringement penalty

S. 69LB
inserted by
No. 22/2022
s. 68.

The infringement penalty for an infringement offence against this Part is the prescribed infringement penalty for that offence.

Division 3—Regulations under this Part

69M Regulations

S. 69M
inserted by
No. 54/1997
s. 5.

- (1) The Governor in Council may make regulations for or with respect to—
 - (a) fees for applications and renewals for the purposes of this Part;
 - (b) authorising and requiring inspectors to impose fees and charges of such amounts or rates as are prescribed or determined in the manner prescribed for—
 - (i) sampling and testing cannabis plants and crops grown or products produced in accordance with this Part as required under an authority or to determine the tetrahydrocannabinol content of those plants, crops or products;
 - (ii) supervising the harvesting, disposal or destruction of cannabis plants, crops or products;
 - (iii) carrying out inspections, supervision or surveillance of cannabis plants or crops grown or products produced in accordance with this Part to ensure that the terms, conditions, limitations and restrictions of an authority are being complied with;
 - (iv) providing any other service in respect of cannabis plants or crops grown or products produced in accordance with this Part;
 - (ba) prescribing terms, conditions, limitations and restrictions to which authorities are subject;

S. 69M(1)(ba)
inserted by
No. 22/2022
s. 69.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part IVA—Authorities for low-THC cannabis

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|---|--|
| (bb) prescribing terms, conditions, limitations or restrictions to be minor terms or conditions to which authorities are subject; | S. 69M(1)(bb) inserted by No. 22/2022 s. 69. |
| (bc) prescribing the date any prescribed terms, conditions, limitations and restrictions, including minor terms or conditions, to which authorities are subject take effect; | S. 69M(1)(bc) inserted by No. 22/2022 s. 69. |
| (bd) prescribing particulars to be included in any application for the issue or renewal of an authority, including but not limited to particulars in relation to the location, facilities and proposed security arrangements of a property or premises to which an application relates; | S. 69M(1)(bd) inserted by No. 22/2022 s. 69. |
| (be) prescribing requirements in relation to the suitability of a property or premises for the cultivation, processing, sale or supply of low-THC cannabis; | S. 69M(1)(be) inserted by No. 22/2022 s. 69. |
- (c) generally prescribing any other matter or thing required or permitted by this Part to be prescribed or necessary to be prescribed to give effect to this Part.
- (2) Regulations made under this Part may—
- (a) be of general or limited application;
 - (b) differ according to differences in time, place or circumstance;
 - (c) provide for different fees for different activities or classes of activity or different cases or classes of cases;
 - (d) provide for specific, minimum or maximum or minimum and maximum fees;
 - (e) provide for the waiver or reduction of fees;
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Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part IVA—Authorities for low-THC cannabis

- (g) in the case of applications for the issue or renewal of authorities, specify fees that reflect the cost of administration of, and the provision of inspection and other services in connection with this Part;
- (h) leave any matter to be approved or determined by the Secretary or an inspector.

Part IVB—Licences to cultivate alkaloid poppies and process poppy straw

Division 1—Preliminary

69N Definitions

In this Part—

alkaloid poppy means a plant or any part of a
plant whether fresh or dried of—

- (a) *Papaver bracteatum* Lindley; or
- (b) *Papaver somniferum* L.;

alkaloid poppy register means the register
established under section 69T;

associate has the same meaning given in
section 69NA;

Commonwealth licence to export means a licence
to export narcotic substances which relates to
the export of poppy straw under the Customs
Act 1901 of the Commonwealth;

Commonwealth licence to manufacture means a
licence to manufacture narcotic drugs which
relates to the manufacturing of opiates from
alkaloid poppies under the Narcotic Drugs
Act 1967 of the Commonwealth;

cultivate in relation to an alkaloid poppy has the
same meaning as it has in section 70;

detention or seizure receipt means a receipt given
in accordance with section 69RC or 69RI;

disqualified person means—

- (a) a person who is under the age of
17 years unless the person is an
apprentice or trainee undertaking an
approved training scheme within the

Pt 4B
(Heading and
ss 69N–69V)
inserted by
No. 13/2014
s. 4.

S. 69N
inserted by
No. 13/2014
s. 4.

meaning of the **Education and Training Reform Act 2006**; or

- (b) a person against whom a finding of guilt in respect of a serious offence was made by a court (whether in or outside Victoria) in the 10 years preceding the date an application is made under this Part; or
- (c) a person against whom a finding of guilt for an offence under this Act or an offence under a corresponding law of another jurisdiction was made by a court (whether in or outside Victoria) in the 5 years preceding the date an application is made under this Part; or
- (d) a person who belongs to a prescribed class of persons;

employee, in relation to a licensed grower or a licensed processor, includes a person who is—

- (a) employed under a contract of employment; or
- (b) employed under a contract of training; or
- (c) engaged under any other contract to perform a specified task authorised under a poppy cultivation licence or a poppy processing licence;

employee identification certificate means a certificate issued to an employee by a licensed grower under section 69OF or by a licensed processor under section 69PF;

harvest and destruction order means an order made under section 69RM(3);

inspector means a person authorised under section 69R and any police officer;

S. 69N def. of *inspector* amended by No. 37/2014 s. 10(Sch. item 47.23(a)).

inspector identification certificate means a certificate issued to an inspector under section 69RA;

licence holder means—

- (a) a licensed grower; or
- (b) a licensed processor;

licensed grower means the holder of a poppy cultivation licence;

licensed processor means the holder of a poppy processing licence;

national criminal history check, in relation to a person, means a check of the criminal history of the person in or outside of Australia with or through a police force or other authority of Victoria, another State, a Territory or the Commonwealth;

S. 69N def. of *national criminal history check* inserted by No. 22/2022 s. 70(a).

poppy cultivation licence means a licence issued under section 69OB(2);

poppy processing licence means a licence issued under section 69PB(2);

poppy straw means the upper parts of an alkaloid poppy, including the stem and capsule, harvested after mowing;

process, in relation to poppy straw, means—

- (a) to prepare or treat poppy straw in any manner other than refinement, concentration, extraction or reaction unless the refinement, concentration, extraction or reaction is for chemical analysis for non-therapeutic use; or
- (b) to store poppy straw;

protected information means any information, document or thing the production or inspection of which—

- (a) is likely to reveal the identity of a person or a police officer who provided any information that is relevant to a decision of the Chief Commissioner of Police to—
 - (i) oppose the issue or renewal of a poppy cultivation licence or a poppy processing licence; or
 - (ii) request the suspension or cancellation of a poppy cultivation licence or a poppy processing licence; or
- (b) is likely to reveal the identity of a person whose name appears in any evidence given or information provided to a police officer in the course of any investigation; or
- (c) is likely to reveal the identity of a person who is or has been the subject of an investigation conducted by a police officer; or

S. 69N def. of *protected information* amended by Nos 37/2014 s. 10(Sch. item 47.23(b)), 22/2022 s. 70(b)–(e).

- (d) is likely to reveal an investigation method, intelligence gathering method, investigative technique or technology or covert practice used by police officers; or
- (e) is likely to jeopardise the safety of a person or police officer referred to in paragraph (a), (b) or (c); or
- (f) is likely to put at risk any investigation by a police officer; or
- (fa) may prejudice any investigation or criminal proceeding; or
- (g) is otherwise not in the public interest;

risk management plan means a plan that forms part of a poppy cultivation licence or a poppy processing licence;

Secretary means the Department Head (within the meaning of the **Public Administration Act 2004**) of the Department of Jobs, Precincts and Regions;

S. 69N def. of Secretary amended by No. 22/2022 s. 70(f).

seized material means any alkaloid poppies, poppy straw or material derived from alkaloid poppies or poppy straw seized by an inspector under section 69RH;

serious offence means—

- (a) an indictable offence involving dishonesty, fraud or assault; or
- (b) an indictable offence involving possession, or cultivation of, or trafficking in, a drug of dependence; or
- (c) any other indictable offence under this Act; or

(d) an indictable offence under the law of another jurisdiction involving—

(i) dishonesty, fraud or assault; or

(ii) possession, or cultivation of, or trafficking in, a drug of dependence;

specified premises means premises to which a licence under this Part applies.

S. 69NA
inserted by
No. 13/2014
s. 4.

69NA Meaning of *associate*

(1) For the purposes of this Part, a person who is of or above the age of 18 years is an associate of an applicant for a poppy cultivation licence or a poppy processing licence or a licence holder if the person—

(a) holds any relevant financial interest, or is entitled to exercise any relevant power (whether in right of the person or on behalf of any other person) in the business of the applicant or the licence holder to which the licence relates, and by virtue of that interest or power, is able to exercise a significant influence over or with respect to the management or operation of the business to which the licence relates; or

(b) holds any relevant position, whether in right of the person or on behalf of any other person in the business of the applicant or the licence holder to which the licence relates; or

(c) is a relative of the applicant or the licence holder.

(2) In subsection (1)—

relative means a person who is—

(a) a spouse of the applicant or the licence holder by marriage;

(b) a domestic partner—

- (i) in a registered relationship within the meaning of the **Relationships Act 2008** with the applicant or the licence holder; or
- (ii) of the applicant or the licence holder to whom he or she is not married but with whom the applicant or the licence holder is living as a couple on a genuine domestic basis (irrespective of gender) and in determining whether the persons are domestic partners of each other, all of the circumstances of their relationship are to be taken into account, including any one or more of the matters referred to in section 35(2) of the **Relationships Act 2008** as may be relevant in a particular case;

(c) a parent;

(d) a step parent;

(e) a sibling or step-sibling;

(f) a child, stepchild or adopted child;

relevant financial interest in relation to a business means—

- (a) any share in the capital of the business;
or
- (b) any entitlement to receive any income derived from the business;

relevant position in relation to the business of an applicant for a poppy cultivation licence or a poppy processing licence or a licence holder means—

- (a) the position of director, partner, trustee, manager or other executive position or secretary, however that position is designated; and
- (b) any other person determined by the Secretary to be associated or connected with the ownership, administration or management of the operations or business of the applicant;

relevant power means any power, whether exercisable by voting or otherwise and whether exercisable alone or in association with others—

- (a) to participate in any directorial, managerial or executive decision; or
- (b) to elect or appoint any person to any relevant position.

S. 69NB
inserted by
No. 13/2014
s. 4.

69NB Matters to be considered in determining a fit and proper person

- (1) For the purpose of preventing criminal activity in the cultivation of alkaloid poppies and the processing of poppy straw, the Secretary must not issue a licence under this Part to an applicant unless the Secretary is satisfied that—
 - (a) the applicant or any associate of the applicant has not been found guilty in respect of a serious offence (whether in or outside Victoria) during the 10 years preceding the date of making the application under this Part; and
 - (b) the applicant and each associate of the applicant is a suitable person to be concerned in or associated with the cultivation of alkaloid poppies or the processing of poppy straw, as the case requires; and

- (c) the applicant's property or premises will be suitable for the cultivation of alkaloid poppies or the processing of poppy straw, as the case requires, in relation to location, facilities and proposed security arrangements; and
 - (d) the applicant meets the prescribed requirements (if any).
- (2) For the purpose of preventing criminal activity in the cultivation of alkaloid poppies and the processing of poppy straw, the Secretary must not—
 - (a) renew a poppy cultivation licence of a licensed grower unless the Secretary is satisfied that—
 - (i) the licensed grower or any associate of the licensed grower has not been found guilty in respect of a serious offence (whether in or outside Victoria) during the 3 years preceding the date of making the application for renewal under this Part; and
 - (ii) the licensed grower and each associate of the licensed grower is a suitable person to be concerned in or associated with the cultivation of alkaloid poppies; and
 - (iii) the licensed grower's property or premises are suitable for the cultivation of alkaloid poppies, in relation to location, facilities and proposed security arrangements; and
 - (iv) the licensed grower meets the prescribed requirements (if any); or

- (b) renew a poppy processing licence of a licensed processor unless the Secretary is satisfied that—
 - (i) the licensed processor or any associate of the licensed processor has not been found guilty in respect of a serious offence (whether in or outside Victoria) during the 12 months preceding the date of making the application for renewal under this Part; and
 - (ii) the licensed processor and each associate of the licensed processor is a suitable person to be concerned in or associated with the processing of poppy straw; and
 - (iii) the licensed processor's property or premises are suitable for the processing of poppy straw in relation to location, facilities and proposed security arrangements; and
 - (iv) the licensed processor meets the prescribed requirements (if any).
- (3) Without limiting subsection (1) or (2), the Secretary may consider whether—
 - (a) the applicant, the licensed grower or the licensed processor and each associate of the applicant, the licensed grower or the licensed processor is of good repute, having regard to character, honesty and integrity; and
 - (b) the applicant, the licensed grower or the licensed processor or any associate of the applicant, the licensed grower or the licensed processor has a history of non-compliance with the Act; and

- (c) in the case of an application for a licence, the applicant or any associate of the applicant has within the 10 years preceding the date of making the application been found guilty by a court (whether in or outside Victoria) of any offence; and
- (d) in the case of an application for the renewal of a poppy cultivation licence, the licensed grower or any associate of the licensed grower has within the 3 years preceding the date of making the application for renewal been found guilty by a court (whether in or outside Victoria) of any offence; and
- (e) in the case of an application for the renewal of a poppy processing licence, the licensed processor or any associate of the licensed processor has within the 12 months preceding the date of making the application for renewal been found guilty by a court (whether in or outside Victoria) of any offence; and
- (f) in the case of an applicant, a licensed grower or a licensed processor that is not a natural person, the applicant, the licensed grower or the licensed processor has a satisfactory ownership, trust or corporate structure; and
- (g) the applicant, the licensed grower or the licensed processor is of sound and stable financial background; and
- (h) the financial circumstances of the applicant, the licensed grower or the licensed processor may significantly limit the person's capacity to meet the person's obligations in conducting activities under the licence in compliance with the terms and conditions applying to the relevant licence.

Division 2—Poppy cultivation licence

S. 69O
inserted by
No. 13/2014
s. 4.

69O Application for poppy cultivation licence

- (1) A person may apply for a poppy cultivation licence which authorises a person for commercial purposes relating to therapeutic use—
 - (a) to cultivate or possess alkaloid poppies; and
 - (b) to sell or supply poppy straw to a licensed processor at premises specified in the licence.
- (2) A person may apply for a poppy cultivation licence for research purposes relating to non-therapeutic use—
 - (a) to cultivate or possess alkaloid poppies; and
 - (b) to conduct measurements, analyses and extractions, including extraction of alkaloids from alkaloid poppies for chemical analyses at specified premises; and
 - (c) to supply alkaloid poppies or poppy straw to a licensed processor.
- (3) An application under subsection (1) or (2) must—
 - (a) be in writing; and
 - (b) be accompanied by a copy of the proposed risk management plan; and
 - (c) be accompanied by the relevant prescribed application fee (if any); and
 - (d) be accompanied by any other prescribed particulars.
- (4) An application under subsection (1) or (2) must contain or be accompanied by evidence to the satisfaction of the Secretary that the applicant—
 - (a) is a fit and proper person to be given a licence; and

- (b) in the case of an application under subsection (1), intends to undertake a bona fide commercial activity relating to the therapeutic use of alkaloid poppies under the licence and includes evidence of the commercial activity to be carried out; or
 - (c) in the case of an application under subsection (2), intends to undertake a research activity relating to the non-therapeutic use of alkaloid poppies under the licence and includes evidence that the research activity would be conducted by a person with appropriate scientific training using an appropriate methodology.
- (5) An application under subsection (1) or (2) must contain any other information about the applicant or the application which the Secretary reasonably requires to assist in assessing the application.

69OA Secretary must investigate application

S. 69OA
inserted by
No. 13/2014
s. 4.

- (1) On receiving an application under section 69O the Secretary—
- (a) must carry out all investigations and inquiries that the Secretary considers necessary to determine the application; and
 - (b) may conduct an inspection of the premises that are to be specified in the relevant licence; and
 - (c) must require that an applicant or any associate of the applicant submit to the Secretary a national criminal history check that was undertaken within 6 months of the date it is submitted to the Secretary.
- (2) The Secretary must provide a copy of an application made under section 69O and any accompanying documents to the Chief Commissioner of Police.

S. 69OA(1)(c)
substituted by
No. 22/2022
s. 71(1).

(3) The Chief Commissioner of Police must—

- (a) inquire into and report to the Secretary on any matters concerning the application that he or she believes are appropriate or reasonably necessary; and
- (b) inquire into and report to the Secretary on any matters concerning the application that the Secretary requests; and
- (c) within 28 days of receiving the application from the Secretary, notify the Secretary in writing of the Chief Commissioner of Police's decision to support or oppose the issuing of a licence and, subject to section 69U(1), provide the reasons for the decision.

S. 69OA(3)(c)
amended by
No. 22/2022
s. 71(2).

- (4) If the Secretary is notified under subsection (3)(c) that the Chief Commissioner of Police opposes the issuing of a poppy cultivation licence, the Secretary must refuse to issue the licence.

S. 69OA(4)
amended by
No. 22/2022
s. 71(3).

69OB Determining an application

- (1) After considering an application and any investigation under section 69OA, the Secretary must determine the application within 60 days of receiving the application.
- (2) The Secretary may issue a poppy cultivation licence to an applicant under section 69O(1) or (2).
- (3) The Secretary may refuse to issue a poppy cultivation licence to an applicant under section 69O(1) or (2).
- (4) The Secretary must—

S. 69OB
inserted by
No. 13/2014
s. 4.

- (a) notify the applicant in writing of the decision under subsection (2) or (3) within 21 days of making the decision; and

S. 69OB(4)(a)
amended by
No. 22/2022
s. 72(a).

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- (b) if the Secretary refuses an application under subsection (3)—
- (i) notify the Chief Commissioner of Police that the Secretary has refused the application; and
 - (ii) subject to section 69U(2), provide reasons for that decision to the applicant; and
 - (iii) inform the applicant that they have the right to seek review of the Secretary's decision by VCAT.

S. 69OB(4)(b)
amended by
No. 22/2022
s. 72(b).

69OC Terms and conditions of a poppy cultivation licence

S. 69OC
inserted by
No. 13/2014
s. 4.

- (1) A poppy cultivation licence is issued for the term, not exceeding 3 years, specified in the licence unless it is sooner suspended or cancelled.
- (2) A poppy cultivation licence relates only to the specified premises described in it.
- (3) A poppy cultivation licence is subject to the condition that the licensed grower must only employ persons that are suitable to carry out activities under the licence.
- (4) A poppy cultivation licence is subject to the condition that a licensed grower must comply with the risk management plan under the licence.
- (5) A poppy cultivation licence is subject to the prescribed terms, conditions, limitations and restrictions (if any).
- (6) A poppy cultivation licence is subject to the terms, conditions, limitations and restrictions specified in it including, but not limited to, terms, conditions, limitations and restrictions relating to the following—
 - (a) the species, subspecies or varieties of alkaloid poppy to be cultivated; or

- (b) the specified premises at which activities authorised under the licence may be carried out; or
 - (c) the implementation and maintenance of satisfactory security and surveillance measures to restrict access of unauthorised persons to crops and harvested material; or
 - (d) the keeping of records and other documents; or
 - (e) the provision of information, records or other documents to the Secretary relating to—
 - (i) the activities carried out under the licence; or
 - (ii) a change in the position of director, manager, secretary or other executive position, however designated, or the structure of the business to which the licence relates; or
 - (iii) any other matter that the Secretary reasonably requires in relation to the licence or the licensed activity; or
 - (f) the disposal of harvested material and crop residue; or
 - (g) the inspection, sampling, supervision and surveillance of seed of alkaloid poppies, alkaloid poppies and poppy straw by an inspector; or
 - (h) the destruction of alkaloid poppies, poppy straw and any material derived from alkaloid poppies.
- (7) A poppy cultivation licence issued under section 69O(1) is subject to the condition that unless otherwise with the approval of the Secretary, the licensed grower whilst carrying out an activity under the licence must have a contract

with a licensed processor for the processing of alkaloid poppies cultivated under the licence that is registered in the alkaloid poppy register.

69OD Poppy cultivation licence is not transferable

A poppy cultivation licence is not transferable to another person.

S. 69OD
inserted by
No. 13/2014
s. 4.

69OE Employee of licensed grower authorised to undertake activities under licence

S. 69OE
inserted by
No. 13/2014
s. 4.

- (1) For the purposes of this Act, an employee of a licensed grower who holds a poppy cultivation licence for commercial purposes relating to therapeutic use, is authorised to carry out any activity under the licence involving the cultivation or possession of alkaloid poppies or the sale or supply of poppy straw to a licensed processor required of the employee in the course of his or her employment.
- (2) For the purposes of this Act, an employee of a licensed grower who holds a poppy cultivation licence for research purposes relating to non-therapeutic use, is authorised to carry out any activity under the licence, including the following, that is required of the employee in the course of his or her employment—
 - (a) to cultivate or possess alkaloid poppies; and
 - (b) to conduct measurements, analyses and extractions including extraction of alkaloids from alkaloid poppies for chemical analyses at specified premises; and
 - (c) to supply alkaloid poppies or poppy straw to a licensed processor.
- (3) An employee must only undertake an activity authorised under subsection (1) or (2) in relation to his or her employment.

S. 69OF
inserted by
No. 13/2014
s. 4.

69OF Employee identification certificate issued by licensed grower

- (1) The licensed grower must issue an employee identification certificate to each employee that is employed to carry out activities in the business conducted by a licensed grower under a poppy cultivation licence.
- (2) The employee identification certificate must contain the following information—
 - (a) the employee's name;
 - (b) a clear photograph of the employee;
 - (c) the employee's date of birth;
 - (d) the expiry date of the employee identification certificate;
 - (e) the poppy cultivation licence under which the employee is authorised to carry out activities required of the employee in the course of his or her employment;
 - (f) the prescribed information (if any).

S. 69OG
inserted by
No. 13/2014
s. 4.

69OG Application for renewal of licence

- (1) A licensed grower may apply to the Secretary for the renewal of a poppy cultivation licence.
- (2) A renewal application must be made to the Secretary at least 2 months before the poppy cultivation licence is due to expire.
- (3) A renewal application must—
 - (a) be in writing; and
 - (b) be accompanied by any information relevant to whether or not the licensed grower is a fit and proper person; and

- (c) be accompanied by the current risk management plan under the poppy cultivation licence; and
 - (d) be accompanied by the relevant prescribed renewal fee (if any); and
 - (e) be accompanied by any other information the Secretary reasonably requires to assess the application; and
 - (f) contain any prescribed particulars.
- (4) A poppy cultivation licence may be renewed more than once.

69OH Secretary must investigate renewal application

S. 69OH
inserted by
No. 13/2014
s. 4.

- (1) On receipt of a renewal application under section 69OG the Secretary—
- (a) must carry out any investigation or inquiry necessary to determine the renewal application; and
 - (b) may conduct an inspection of the specified premises of the poppy cultivation licence; and
 - (c) must require that an applicant or any associate of the applicant submit to the Secretary a national criminal history check that was undertaken within 6 months of the date it is submitted to the Secretary.
- (2) The Secretary must provide a copy of a renewal application made under section 69OG and any accompanying documents to the Chief Commissioner of Police.
- (3) The Chief Commissioner of Police must—
- (a) inquire into and report to the Secretary on any matters concerning the application that the Chief Commissioner of Police believes are appropriate or reasonably necessary; and

S. 69OH(1)(c)
substituted by
No. 22/2022
s. 73(1).

S. 69OH(3)(c)
amended by
No. 22/2022
s. 73(2).

(b) inquire into and report to the Secretary on any matters concerning the renewal application that the Secretary requests; and

(c) within 28 days of receiving the application from the Secretary notify the Secretary in writing of the Chief Commissioner of Police's decision to support or oppose the renewal of a licence and, subject to section 69U(1), provide the reasons for the decision.

S. 69OH(4)
amended by
No. 22/2022
s. 73(3).

(4) If the Secretary is notified under subsection (3)(c) that the Chief Commissioner of Police opposes the renewal of a poppy cultivation licence the Secretary must refuse to renew the licence.

S. 69OI
inserted by
No. 13/2014
s. 4.

69OI Determining a renewal application

(1) After considering a renewal application and any investigation under section 69OH, the Secretary must determine the renewal application within 60 days of receiving it.

(2) The Secretary may renew a poppy cultivation licence for a period not exceeding 3 years.

(3) The Secretary may refuse to renew a poppy cultivation licence of a licensed grower.

(4) A renewed poppy cultivation licence expires on the date specified by the Secretary, unless the licence is cancelled or suspended prior to the expiry.

(5) The Secretary must—

S. 69OI(5)(a)
amended by
No. 22/2022
s. 74(a).

(a) notify the applicant in writing of the decision under subsection (2) or (3) within 21 days of making the decision; and

- (b) if the Secretary refuses to renew the poppy cultivation licence under subsection (3)—
 - (i) notify the Chief Commissioner of Police that the Secretary has refused the application; and
 - (ii) subject to section 69U(2), provide reasons for that decision to the applicant; and
 - (iii) inform the applicant that they have the right to seek review of the Secretary's decision by VCAT.

S. 69OI(5)(b)
amended by
No. 22/2022
s. 74(b).

Division 3—Poppy processing licence

69P Application for poppy processing licence

- (1) A person may apply to the Secretary for a poppy processing licence which authorises a person for commercial purposes relating to therapeutic use—
 - (a) to receive poppy straw from a licensed grower or from a licensed processor or a person authorised to possess and supply alkaloid poppies in another jurisdiction; and
 - (b) to process and possess poppy straw at premises specified in the licence; and
 - (c) to transport, sell or supply poppy straw to a person who possesses a Commonwealth licence to manufacture; and
 - (d) to transport, sell or supply poppy straw if the applicant possesses a Commonwealth licence to export; and
 - (e) to transport, sell or supply poppy straw to a person who possesses a Commonwealth licence to export.

S. 69P
inserted by
No. 13/2014
s. 4.

- (2) A person may apply to the Secretary for a poppy processing licence which authorises a person for research purposes relating to non-therapeutic use—
 - (a) to receive or process poppy straw at premises specified in the licence; and
 - (b) to possess, transport, sell or supply poppy straw to a licensed processor.
- (3) An application under subsection (1) or (2) must—
 - (a) be in writing; and
 - (b) be accompanied by a copy of the proposed risk management plan; and
 - (c) be accompanied by the relevant prescribed application fee (if any); and
 - (d) be accompanied by any other prescribed particulars; and
 - (e) in the case of an application under subsection (1), be accompanied by a copy of a Commonwealth licence to manufacture or a Commonwealth licence to export, as the case requires.
- (4) An application under subsection (1) or (2) must contain or be accompanied by evidence to the satisfaction of the Secretary that the applicant—
 - (a) is a fit and proper person to be issued a licence; and
 - (b) in the case of an application under subsection (1), intends to undertake a bona fide commercial activity relating to the therapeutic use of poppy straw including evidence of the commercial activity to be carried out; and

- (c) in the case of an application under subsection (2), intends to undertake a research activity relating to the non-therapeutic use of poppy straw under the licence including evidence that the research activity would be conducted by a person with appropriate scientific training using appropriate methodology.
- (5) An application under subsection (1) or (2) must contain any other information about the applicant or the application which the Secretary reasonably requires to assist in assessing the application.

69PA Secretary must investigate application

S. 69PA
inserted by
No. 13/2014
s. 4.

- (1) On receiving an application under section 69P, the Secretary—
 - (a) must carry out all investigations and inquiries that the Secretary considers necessary to determine the application; and
 - (b) may conduct an inspection of the premises that are to be specified in the relevant licence; and
 - (c) must require that an applicant or any associate of the applicant submit to the Secretary a national criminal history check that was undertaken within 6 months of the date it is submitted to the Secretary.
- (2) The Secretary must provide a copy of an application made under section 69P and any accompanying documents to the Chief Commissioner of Police.
- (3) The Chief Commissioner of Police must—
 - (a) inquire into and report to the Secretary on any matters concerning the application that the Chief Commissioner of Police believes are appropriate or reasonably necessary; and

S. 69PA(1)(c)
substituted by
No. 22/2022
s. 75(1).

S. 69PA(3)(c)
amended by
No. 22/2022
s. 75(2).

(b) inquire into and report to the Secretary on any matters concerning the application that the Secretary requests; and

(c) within 28 days of receiving the application from the Secretary, notify the Secretary in writing of the Chief Commissioner of Police's decision to support or oppose the issuing of a licence and, subject to section 69U(1), provide the reasons for the decision.

S. 69PA(4)
amended by
No. 22/2022
s. 75(3).

(4) If the Secretary is notified under subsection (3)(c) that the Chief Commissioner of Police opposes the issuing of a poppy processing licence, the Secretary must refuse to issue the licence.

S. 69PB
inserted by
No. 13/2014
s. 4.

69PB Determining an application

(1) After considering an application and any investigation under section 69PA, the Secretary must determine the application within 60 days of receiving the application.

(2) The Secretary may issue a poppy processing licence to an applicant under section 69P(1) or (2).

(3) The Secretary may refuse to issue a poppy processing licence to an applicant under section 69P(1) or (2).

(4) The Secretary must—

S. 69PB(4)(a)
amended by
No. 22/2022
s. 76(a).

(a) notify the applicant in writing of the decision under subsection (2) or (3) within 21 days of making the decision; and

S. 69PB(4)(b)
amended by
No. 22/2022
s. 76(b).

(b) if the Secretary refuses an application under subsection (3)—

(i) notify the Chief Commissioner of Police that the Secretary has refused the application; and

- (ii) subject to section 69U(2), provide reasons for that decision to the applicant; and
- (iii) inform the applicant that they have the right to seek review of the Secretary's decision by VCAT.

69PC Terms and conditions of a poppy processing licence

S. 69PC
inserted by
No. 13/2014
s. 4.

- (1) A poppy processing licence is issued for the term, not exceeding 12 months, specified in the licence unless it is sooner suspended or cancelled.
- (2) A poppy processing licence relates only to the premises specified in it.
- (3) A poppy processing licence must specify the maximum quantity of alkaloid poppies that may be processed by a licensed processor.
- (4) A poppy processing licence is subject to the condition that a licensed processor must comply with the risk management plan under the licence.
- (5) A poppy processing licence is subject to the condition that the licensed processor must only employ persons that are suitable to carry out activities under the licence.
- (6) A poppy processing licence is subject to the prescribed terms, conditions, limitations and restrictions (if any).
- (7) A poppy processing licence is subject to the terms, conditions, limitations and restrictions that are specified in it including, but not limited to, terms, conditions, limitations and restrictions relating to the following—
 - (a) the specified premises at which the activities authorised by the licence may be carried out; or

- (b) the implementation and maintenance of satisfactory security and surveillance measures to restrict access of unauthorised persons to poppy straw; or
 - (c) the keeping of records and other documents; or
 - (d) the provision of information, records or other documents to the Secretary relating to—
 - (i) the activities carried out under the licence; or
 - (ii) a change in the position of director, manager, secretary or other executive position, however designated, or the structure of the business to which the licence relates; or
 - (iii) any other matter that the Secretary reasonably requires in relation to the licence or the licensed activity; or
 - (e) the disposal of poppy straw; or
 - (f) the inspection, supervision and surveillance of poppy straw by an inspector.
- (8) A poppy processing licence referred to in section 69P(1) is subject to the condition that the licensed processor must hold a current Commonwealth licence to manufacture or a current Commonwealth licence to export whilst undertaking an activity authorised by the licence.

S. 69PD
inserted by
No. 13/2014
s. 4.

69PD Poppy processing licence is not transferable

A poppy processing licence is not transferable to another person.

69PE Employee of licensed processor authorised to undertake activities under licence

**S. 69PE
inserted by
No. 13/2014
s. 4.**

- (1) For the purposes of this Act, an employee of a licensed processor who holds a poppy processing licence for commercial purposes relating to therapeutic use, is authorised to carry out any of the following activities under the licence that is required of the employee in the course of his or her employment—
- (a) to receive poppy straw from a licensed grower or a person authorised to possess alkaloid poppies in another jurisdiction; and
 - (b) to process and possess poppy straw at specified premises; and
 - (c) to transport, sell or supply poppy straw to a person who possesses a Commonwealth licence to manufacture; and
 - (d) to export poppy straw if the applicant possesses a Commonwealth licence to export.
- (2) For the purposes of this Act, an employee of a licensed processor who holds a poppy processing licence for research purposes relating to non-therapeutic use, is authorised to carry out any activity under the licence involving the processing, possession, transportation of poppy straw or the sale or supply of poppy straw to a licensed processor that is required of the employee in the course of his or her employment.
- (3) An employee must only undertake an activity authorised under subsection (1) or (2) in relation to his or her employment.

S. 69PF
inserted by
No. 13/2014
s. 4.

69PF Employee identification certificate issued by licensed processor

- (1) The licensed processor must issue an employee identification certificate to each employee that is employed to carry out activities in the business conducted by a licensed processor under a poppy processing licence.
- (2) The employee identification certificate must contain the following information—
 - (a) the employee's name;
 - (b) a clear photograph of the employee;
 - (c) the employee's date of birth;
 - (d) the expiry date of the employee identification certificate;
 - (e) the poppy processing licence under which the employee is authorised to carry out activities required of the employee in the course of his or her employment;
 - (f) the prescribed information (if any).

S. 69PG
inserted by
No. 13/2014
s. 4.

69PG Application for renewal of licence

- (1) A licensed processor may apply to the Secretary for the renewal of a poppy processing licence.
- (2) A renewal application must be made to the Secretary at least 2 months before the poppy processing licence is due to expire.
- (3) A renewal application must—
 - (a) be in writing; and
 - (b) be accompanied by any information relevant to whether or not the licensed processor is a fit and proper person; and

- (c) be accompanied by the current risk management plan under the poppy processing licence; and
 - (d) be accompanied by a copy of the licensed processor's current Commonwealth licence to manufacture or current Commonwealth licence to export; and
 - (e) be accompanied by the relevant prescribed renewal fee (if any); and
 - (f) be accompanied by any other information the Secretary reasonably requires to assess the application; and
 - (g) contain any prescribed particulars.
- (4) A poppy processing licence may be renewed more than once.

69PH Secretary must investigate renewal application

- (1) On receipt of a renewal application under section 69PG, the Secretary—
- (a) must carry out any investigation or inquiry necessary to determine the renewal application; and
 - (b) may conduct an inspection of the specified premises of the poppy processing licence; and
 - (c) must require that an applicant or any associate of the applicant submit to the Secretary a national criminal history check that was undertaken within 6 months of the date it is submitted to the Secretary.
- (2) The Secretary must provide a copy of a renewal application made under section 69PG and any accompanying documents to the Chief Commissioner of Police.

S. 69PH
inserted by
No. 13/2014
s. 4.

S. 69PH(1)(c)
substituted by
No. 22/2022
s. 77(1).

- (3) The Chief Commissioner of Police must—
- (a) inquire into and report to the Secretary on any matters concerning the application that the Chief Commissioner of Police believes are appropriate or reasonably necessary; and
 - (b) inquire into and report to the Secretary on any matters concerning the renewal application that the Secretary requests; and
 - (c) within 28 days of receiving the application from the Secretary, notify the Secretary in writing of the Chief Commissioner of Police's decision to support or oppose the renewal of a licence and, subject to section 69U(1), provide the reasons for the decision.
- (4) If the Secretary is notified under subsection (3)(c) that the Chief Commissioner of Police opposes the renewal of a poppy processing licence the Secretary must refuse to renew the licence.

S. 69PH(3)(c)
amended by
No. 22/2022
s. 77(2).

S. 69PH(4)
amended by
No. 22/2022
s. 77(3).

S. 69PI
inserted by
No. 13/2014
s. 4.

69PI Determining a renewal application

- (1) After considering a renewal application and any investigation under section 69PH, the Secretary must determine the renewal application within 60 days of receiving it.
- (2) The Secretary may renew a poppy processing licence for a period not exceeding 12 months.
- (3) The Secretary may refuse to renew a poppy processing licence of a licensed processor.
- (4) A renewed poppy processing licence expires on the date specified by the Secretary unless the licence is cancelled or suspended prior to the expiry.

(5) The Secretary must—

- (a) notify the applicant in writing of the decision under subsection (2) or (3) within 21 days of making the decision; and
- (b) if the Secretary refuses to renew the poppy processing licence under subsection (3)—
 - (i) notify the Chief Commissioner of Police that the Secretary has refused the renewal application; and
 - (ii) subject to section 69U(2), provide reasons for that decision to the applicant; and
 - (iii) inform the applicant that they have the right to seek review of the Secretary's decision by VCAT.

S. 69PI(5)(a)
amended by
No. 22/2022
s. 78(a).

S. 69PI(5)(b)
amended by
No. 22/2022
s. 78(b).

Division 4—General provisions applying to a poppy cultivation licence or poppy processing licence

69Q Amendment of licences

(1) The Secretary may—

- (a) amend an existing term, condition, limitation or restriction to which a poppy cultivation licence or poppy processing licence is subject; or
- (b) impose a new term, condition, limitation or restriction on the poppy cultivation licence or the poppy processing licence.

(2) The Secretary may exercise a power under subsection (1)—

- (a) on the application of the licensed grower or the licensed processor; or
- (b) in the Secretary's discretion.

S. 69Q
inserted by
No. 13/2014
s. 4.

- (3) The Secretary must determine an application made under subsection (2)(a) within 28 days of receiving the application.
- (4) The Secretary must notify the licensed grower or the licensed processor, in writing within 7 business days, if an amendment to a licence is made under subsection (1)(a) or (b).
- (5) An application by a licensed grower or a licensed processor made under subsection (2)(a) must—
 - (a) be in writing; and
 - (b) be accompanied by the relevant prescribed fee (if any); and
 - (c) be accompanied by any prescribed particulars.

S. 69QA
inserted by
No. 13/2014
s. 4.

69QA Suspension or cancellation of licences

- (1) The Secretary, by notice in writing to the licensed grower or the licensed processor, may suspend or cancel the relevant licence if—
 - (a) the licensed grower or the licensed processor requests suspension or cancellation; or
 - (b) the licensed grower or the licensed processor has not complied with the terms, conditions, limitations or restrictions of the licence; or
 - (c) the licensed grower or the licensed processor has failed to comply with this Part or the regulations applying under this Part; or
 - (d) the Secretary is satisfied that the licensed grower or the licensed processor or any associate of the licensed grower or the licensed processor is no longer a fit and proper person to be concerned with or associated with, as the case requires—

- (i) the cultivation of alkaloid poppies; or
 - (ii) the processing of poppy straw; or
 - (e) the Secretary is satisfied that the specified premises—
 - (i) of the licensed grower are no longer suitable for the cultivation of alkaloid poppies; or
 - (ii) of the licensed processor are no longer suitable for the processing of poppy straw; or
 - (f) the Secretary is satisfied that the licensed grower or the licensed processor obtained the relevant licence by fraud, misrepresentation or concealment of facts; or
 - (g) the Chief Commissioner of Police requests suspension or cancellation on the basis of protected information concerning the licensed grower or the licensed processor; or
 - (h) the licensed grower or the licensed processor ceases to carry on the research or commercial activity to which the relevant licence relates.
- (1A) For the purposes of subsection (1)(g), the Chief Commissioner of Police may request that the Secretary suspend or cancel a licence on the basis of protected information at any time.
- (1B) The Chief Commissioner of Police must—
- (a) request the suspension or cancellation of a licence in writing; and
 - (b) subject to section 69U(1), provide reasons for the request.

S. 69QA(1A)
inserted by
No. 22/2022
s. 79(1).

S. 69QA(1B)
inserted by
No. 22/2022
s. 79(1).

S. 69QA(1C)
inserted by
No. 22/2022
s. 79(1).

(1C) If the Chief Commissioner of Police requests the suspension or cancellation of a licence on the basis of protected information, the Secretary must suspend or cancel the licence (as the case requires).

(2) If a poppy cultivation licence or a poppy processing licence is suspended or cancelled under subsection (1) the Secretary must—

(a) notify the Chief Commissioner of Police regarding the suspension or cancellation; and

(b) in the case of a poppy cultivation licence, notify a licensed processor who has a registered contract with the licensed grower within 7 business days of the suspension or cancellation taking effect; or

S. 69QA(2)(c)
amended by
No. 22/2022
s. 79(2)(a).

(c) in the case of a poppy processing licence, notify the licensed grower who has a contract registered in the alkaloid poppy register with the licensed processor within 7 business days of the suspension or cancellation taking effect;

S. 69QA(2)(d)
inserted by
No. 22/2022
s. 79(2)(b).

(d) as soon as practicable—

**S. 69QA
(2)(d)(i)**
amended by
No. 39/2024
s. 113(2)(a).

(i) notify the former licensed grower or former licensed processor in writing that the relevant licence has been suspended or cancelled (as the case requires); and

(ii) subject to section 69U(2), provide reasons for the suspension or cancellation; and

- (iii) inform the former licensed grower or former licensed processor that they have the right to seek review of the decision to suspend or cancel the licence by VCAT.

S. 69QA
(2)(d)(iii)
amended by
No. 39/2024
s. 113(2)(b).

- (3) A poppy cultivation licence or a poppy processing licence ceases to have effect on the suspension or cancellation of the licence under this section.

Division 5—Inspection and enforcement

69R Inspectors under this Part

S. 69R
inserted by
No. 13/2014
s. 4.

- (1) The Secretary, by instrument, may authorise the following persons to be inspectors for the purposes of all or any specified provisions of this Part—
 - (a) any person employed under Part 3 of the **Public Administration Act 2004**; or
 - (b) any other appropriately qualified person.
- (2) The Secretary may determine the terms and conditions of authorisation of any inspector.
- (3) The terms and conditions of authorisation of an inspector may contain general directions as to how the inspector's powers may be exercised.
- (4) The Secretary, in writing, may vary or revoke the authorisation of an inspector at any time.

69RA Inspectors identification certificate

S. 69RA
inserted by
No. 13/2014
s. 4.

- (1) The Secretary must issue an identification certificate to each inspector (other than an inspector who is a police officer) which sets out the provisions of this Part for which the inspector is authorised to be an inspector.

S. 69RA(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.24).

S. 69RA(3)
amended by
No. 37/2014
s. 10(Sch.
item 47.24).

- (2) In the course of performing his or her functions under this Part, an inspector must produce his or her identification certificate to any person who requests its production.
- (3) In this Part, a reference to an identification certificate in relation to an inspector who is a police officer is a reference to written evidence of the fact that he or she is a police officer.

S. 69RB
inserted by
No. 13/2014
s. 4.

69RB General powers of inspector

- (1) For the purposes of determining compliance with this Part or a licence issued under this Part, an inspector, with any assistance he or she thinks necessary, at any reasonable time may do all or any of the following—
 - (a) enter and inspect any place, other than premises used as a residence, occupied by any person who is the licensed grower or the licensed processor; and
 - (b) inspect, count, examine or mark for identification any alkaloid poppy or poppy straw in the place; and
 - (c) intercept, inspect and examine any vehicle or machine which an inspector reasonably believes is being used for the harvest of alkaloid poppies and transport of poppy straw; and
 - (d) require a person to produce any document that the inspector reasonably requires for ascertaining whether this Part or a poppy cultivation licence or a poppy processing licence is being complied with—
 - (i) to examine the document; and
 - (ii) to make copies of it or take extracts from it; and

- (iii) to remove the document for as long as is reasonably necessary to make copies or take extracts; and
 - (e) take or remove for examination samples of or from, or specimens of, soil, any alkaloid poppy or poppy straw or any other plant or crop to determine—
 - (i) whether the alkaloid poppy or poppy straw has been cultivated or processed in accordance with the relevant licence; or
 - (ii) that its possession is in accordance with the relevant licence; and
 - (f) submit any sample or specimen taken in accordance with this Part to a laboratory or place approved by the Secretary for examination and testing.
- (2) An inspector must not exercise any powers under this Part if the inspector fails to produce his or her identification certificate for inspection on request by the occupier of the place or the person in charge or apparent control of the place.

69RC Procedure on seizing a document, thing or taking a sample

S. 69RC
inserted by
No. 13/2014
s. 4.

- (1) Subject to section 69RI, if an inspector seizes a document or thing or takes a sample of, or from, a thing at the premises occupied by the licensed grower or the licensed processor, the inspector must give a detention or seizure receipt for the document or thing or sample to the licensed grower or the licensed processor from whom it was taken.
- (2) If an inspector is unable to give a detention or seizure receipt to the relevant licensed grower or licensed processor in respect of a document or thing or sample seized, the inspector must—

- (a) leave the detention or seizure receipt with, or post it to, the licensed grower or the licensed processor that occupies the premises from which the document or thing or sample was seized; and
 - (b) if a document is seized, leave a copy of the document, if practicable, with, or post it to, the licensed grower or the licensed processor that occupies the premises from which the document was seized.
- (3) A detention or seizure receipt must—
- (a) identify the seized document, thing or sample taken; and
 - (b) state the name of the inspector who seized the document, thing or took the sample; and
 - (c) state the reason why the document or thing was seized or the sample was taken.
- (4) If an inspector proposes to take a sample under section 69RB(1)(e) the inspector must—
- (a) divide the sample into 3 parts; and
 - (b) give one part to the licensed grower or the licensed processor, as the case requires, and retain one part for examination and one part untouched for future comparison.

S. 69RD
inserted by
No. 13/2014
s. 4.

69RD Power to use electronic equipment at premises

- (1) This section applies if—
- (a) while acting under section 69RB, an inspector finds a thing at the premises that is or includes a disk, tape or other device for the storage of information; and
 - (b) there is at the premises equipment that may be used with the disk, tape or other storage device; and

(c) the inspector believes, on reasonable grounds, that information stored in the disk, tape or other storage device may be relevant to determine whether this Part has been contravened.

(2) An inspector may operate or may require the licensed grower or the licensed processor or an employee of the licensed grower or the licensed processor to operate the equipment to access the information.

69RE Power to copy information on electronic storage devices

S. 69RE
inserted by
No. 13/2014
s. 4.

If an inspector finds that a disk, tape or other storage device at the premises contains information that the inspector believes, on reasonable grounds, stores information that is relevant to determine whether this Part has been complied with, the inspector may—

- (a) put the information in a documentary form and seize the documents so produced; or
- (b) copy the information to another disk, tape or other storage device and remove that disk, tape or storage device from the premises.

69RF Inspector must not damage equipment

S. 69RF
inserted by
No. 13/2014
s. 4.

An inspector must not operate equipment for a purpose set out in section 69RD or 69RE unless the inspector believes, on reasonable grounds, that the operation can be carried out without damage to the equipment.

S. 69RG
inserted by
No. 13/2014
s. 4.

69RG Inspector may possess alkaloid poppies or poppy straw

For the purposes of this Act, an inspector is authorised to have alkaloid poppies or poppy straw in his or her possession in the exercise or performance of any power, function or duty conferred on him or her by this Part or the regulations made under this Part.

S. 69RH
inserted by
No. 13/2014
s. 4.

69RH Inspector has power to detain or seize alkaloid poppies or poppy straw

An inspector may detain or seize any alkaloid poppies, poppy straw or material derived from alkaloid poppies or poppy straw and deal with it in accordance with section 69RI if the inspector believes on reasonable grounds that—

- (a) in the case of a poppy cultivation licence, the licensed grower has contravened this Part or the poppy cultivation licence; or
- (b) in the case of a poppy processing licence, the licensed processor has contravened this Part or the poppy processing licence; or
- (c) the relevant licence has been suspended or cancelled under this Part.

S. 69RI
inserted by
No. 13/2014
s. 4.

69RI Procedure on detaining or seizing alkaloid poppies or poppy straw

- (1) If an inspector detains or seizes any seized material under section 69RH, the inspector must immediately—
 - (a) make a written record of the detention or seizure; and
 - (b) give a detention or seizure receipt to the licensed grower or the licensed processor, as the case requires, that—
 - (i) identifies the seized material taken; and

-
- (ii) states the name of the inspector who detained or seized the seized material; and
- (iii) states the reasons for the detention or seizure; and
- (c) in the case of an inspector who is not a police officer, send a copy of the detention or seizure receipt to the Secretary; and S. 69RI(1)(c) amended by No. 37/2014 s. 10(Sch. item 47.24).
- (d) in the case of an inspector who is a police officer, send a copy of the detention or seizure receipt to the Chief Commissioner of Police and the Secretary. S. 69RI(1)(d) amended by No. 37/2014 s. 10(Sch. item 47.24).
- (2) If an inspector detains or seizes any seized material under section 69RH, the inspector, with any assistance necessary, may take or send the seized material to a place approved by the Secretary for it to be examined, tested or stored.
- (3) This section does not limit or prevent the exercise of any power by a police officer to commence a proceeding in respect of compliance with this Part in relation to any seized material. S. 69RI(3) amended by No. 37/2014 s. 10(Sch. item 47.24).

69RJ Secretary has power to dispose or deal with seized alkaloid poppies or poppy straw

S. 69RJ inserted by No. 13/2014 s. 4.

- (1) This section applies if—
- (a) the Secretary is satisfied on reasonable grounds that this Part has been contravened; and
- (b) the relevant licensed grower or licensed processor has surrendered the seized material to the Secretary and agreed that the Secretary may deal with the seized material.

- (2) In dealing with seized material to which this section applies, the Secretary may do any of the following—
- (a) dispose of the seized material;
 - (b) direct the licensed grower or the licensed processor (as the case requires) to dispose of the seized material;
 - (c) harvest and deal with the seized material as appropriate;
 - (d) harvest and destroy the seized material;
 - (e) enter into an agreement with the licensed grower or the licensed processor (as the case requires), or any other person, to deal with the seized material as required in all of the circumstances;
 - (f) anything reasonably necessary to ensure the security of the seized material.

S. 69RK
inserted by
No. 13/2014
s. 4.

69RK Retention and return of seized alkaloid poppies or poppy straw

- (1) If an inspector seizes any seized material under section 69RH, subject to section 69RJ, the Secretary with any assistance necessary must—
- (a) take reasonable steps to release or return the seized material to the licensed grower or the licensed processor from whom it was seized or its lawful owner if the reason for its detention or seizure no longer exists; or
 - (b) retain any seized material that is required for evidence in a legal proceeding in a place approved by the Secretary.

- (2) If the seized material has not been returned to the licensed grower or the licensed processor from whom it was seized or its lawful owner within 3 months after it was seized, the Secretary must take reasonable steps to return it to that licensed grower or licensed processor or lawful owner (as the case requires) unless—
- (a) proceedings for the purpose for which the seized material was retained have commenced within that 3 month period and those proceedings (including any appeal) have not been completed; or
 - (b) the Magistrates' Court makes an order under section 69RL extending the period during which the seized material may be retained.

69RL Magistrates' Court may extend 3 month period

S. 69RL
inserted by
No. 13/2014
s. 4.

- (1) The Secretary may apply to the Magistrates' Court for an extension (not exceeding 3 months) of the period during which the seized material may be retained—
- (a) within 3 months after the seized material is seized under section 69RH; or
 - (b) if an extension has been granted under this section, before the end of the period of the extension.
- (2) The Magistrates' Court may make an order extending the period that the seized material is to be retained if satisfied that—
- (a) the making of the order is in the interests of justice; and
 - (b) the total period of retention does not exceed 12 months; and

(c) retention of the seized material is necessary for the purposes of an investigation into whether a contravention of this Part has occurred.

(3) At least 7 days prior to the hearing of an application under subsection (1), the Secretary must give notice of the application to the licensed grower or the licensed processor, as the case requires, from whom the alkaloid poppies, poppy straw or material derived from alkaloid poppies or poppy straw were seized or its lawful owner described in the application.

S. 69RM
inserted by
No. 13/2014
s. 4.

69RM Forfeiture, harvest and destruction of alkaloid poppies or poppy straw

(1) The Secretary may apply to the Magistrates' Court for a harvest and destruction order if the Secretary—

(a) is satisfied on reasonable grounds that a licensed grower or a licensed processor has contravened this Part; and

(b) has cancelled the relevant licence.

(2) The Magistrates' Court may make an order that the seized material of the licensed grower or the licensed processor, as the case requires, be forfeited to the Crown and be dealt with in accordance with a harvest and destruction order made under subsection (3) if satisfied that—

(a) the relevant seized material poses a risk to public health and safety; and

(b) in all the circumstances it is appropriate to make a harvest and destruction order in regards to the relevant seized material.

- (3) The Magistrates' Court may make any of the following harvest and destruction orders (as the case requires)—
- (a) an order that the relevant seized material be harvested;
 - (b) an order that the relevant seized material be destroyed;
 - (c) an order that the relevant seized material be harvested and destroyed.
- (4) The Magistrates' Court may—
- (a) give any direction necessary to enable the Secretary to carry out the harvest and destruction order; and
 - (b) authorise the Secretary to give any appropriate direction to harvest or destroy the seized material (as the case requires) to which the order relates.

69RN Recovery of costs

If the Secretary incurs any costs in carrying out a harvest and destruction order the Secretary may recover those costs in any court of competent jurisdiction as a debt due to the Crown.

S. 69RN
inserted by
No. 13/2014
s. 4.

69RO Inspector may access ratepayer information

- (1) For the purposes of exercising a power under this Part, an inspector may require a person having custody of any records relating to ratepayers (within the meaning of the **Local Government Act 1989**) to provide the inspector with—
- (a) the name and address or other contact details of a ratepayer—
 - (i) who is a licensed grower or a licensed processor; or

S. 69RO
inserted by
No. 13/2014
s. 4.

- (ii) who is an applicant for a poppy cultivation licence or a poppy processing licence; or
- (b) the address or description of any land in respect of which the ratepayer is liable to pay rates and charges under Part 8 of the **Local Government Act 1989** if the ratepayer—
 - (i) is a licensed grower or a licensed processor; or
 - (ii) is an applicant for a licence under this Part.
- (2) An inspector may make a record of any information provided to the inspector under subsection (1).
- (3) An inspector must not be charged a fee for anything done, or required to be done, by the inspector under this section.

S. 69RP
inserted by
No. 13/2014
s. 4.

69RP Protection against self-incrimination

It is a reasonable excuse for a natural person to refuse or fail to give information or do any other thing that the person is required to do by or under this Part, if the giving of the information or the doing of that thing would tend to incriminate the person.

S. 69RQ
inserted by
No. 13/2014
s. 4.

69RQ Power to issue infringement notices

- (1) An inspector may serve an infringement notice on a person who the inspector has reason to believe has committed a prescribed offence.
- (2) An offence referred to in subsection (1) for which an infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.

69RR Infringement penalty

The infringement penalty for an offence against this Part is the prescribed infringement penalty in respect of that offence.

S. 69RR
inserted by
No. 13/2014
s. 4.

Division 6—Offences

69S Offence to fail to report the amendment or cancellation of a contract

S. 69S
inserted by
No. 13/2014
s. 4.

A licensed grower who holds a poppy cultivation licence under section 69O(1) must report to the Secretary within 3 business days any amendment to a contract registered in the alkaloid poppy register that does one or more of the following—

- (a) amends the duration of the contract;
- (b) amends the maximum quantity of alkaloid poppies that may be cultivated under the contract;
- (c) amends the date the contract expires;
- (d) cancels the contract.

Penalty: 100 penalty units.

69SA Offence to fail to report amendment or cancellation

S. 69SA
inserted by
No. 13/2014
s. 4.

A licensed processor must inform the Secretary within 10 business days if a Commonwealth licence to manufacture or a Commonwealth licence to export required for the current poppy processing licence held by the licensed processor is amended or cancelled.

Penalty: 100 penalty units.

S. 69SB
inserted by
No. 13/2014
s. 4.

69SB Offence to fail to report on any change of details of the licensed grower or the licensed processor

- (1) A licensed grower or a licensed processor must report any specified information referred to in subsection (2) in respect of a poppy cultivation licence or a poppy processing licence to the Secretary within 7 business days.

Penalty: 100 penalty units.

- (2) For the purposes of subsection (1), specified information is—
- (a) any change to the details of the licensed grower or the licensed processor that appears on the poppy cultivation licence or the poppy processing licence; or
 - (b) any associate other than those provided to the Secretary in the application for a poppy cultivation licence or a poppy processing licence; or
 - (c) the signing of a personal insolvency agreement or any declaration of bankruptcy that applies to the licence grower or the licence processor; or
 - (d) any offence that the licensed grower or the licensed processor has been found guilty of by a court in Victoria or elsewhere, after the date of the application for the poppy cultivation licence or the poppy processing licence (as the case requires) was sent to the Secretary; or
 - (e) any serious offence that an associate of the licensed grower or the licensed processor has been found guilty of by a court in Victoria or elsewhere, after the date of the application for the poppy cultivation licence or the poppy processing licence (as the case requires) was sent to the Secretary; or

- (f) any information that the name of an associate of a licensed grower or a licensed processor provided to the Secretary by the licensed grower or the licensed processor, in a successful application under this Part, has been changed; or
- (g) the entering by a licensed grower or a licensed processor that is not a natural person into voluntary administration, liquidation or receivership.

69SC Offence to fail to surrender licence on suspension or cancellation

S. 69SC
inserted by
No. 13/2014
s. 4.

Within 14 days of the suspension or cancellation of a poppy cultivation licence or a poppy processing licence under section 69QA a person must surrender to the Secretary—

- (a) the relevant licence; and
- (b) any related document issued to the person.

Penalty: 20 penalty units.

69SD Offence to contravene a licence

S. 69SD
inserted by
No. 13/2014
s. 4.

- (1) A licensed grower must not contravene a prescribed minor term, condition, limitation or restriction to which the poppy cultivation licence is subject.

Penalty: 20 penalty units.

- (2) A licensed grower must not contravene the terms, conditions, limitations or restrictions to which the poppy cultivation licence is subject which is not a prescribed minor term, condition, limitation or restriction.

Penalty: 100 penalty units or 12 months imprisonment or both.

- (3) A licensed processor must not contravene a prescribed minor term, condition, limitation or restriction to which the poppy processing licence is subject.

Penalty: 20 penalty units.

- (4) A licensed processor must not contravene the terms, conditions, limitations or restrictions to which the poppy processing licence is subject which is not a prescribed minor term, condition, limitation or restriction.

Penalty: 100 penalty units or 12 months imprisonment or both.

S. 69SE
inserted by
No. 13/2014
s. 4.

69SE Offence to fail to prohibit access to premises

- (1) A licensed grower must not permit any other person to enter the area of land where alkaloid poppies are being cultivated unless that other person is—
- (a) an employee of the licensed grower who is employed to undertake an activity authorised under the poppy cultivation licence; or
 - (b) a licensed processor; or
 - (c) a party to a contract registered in the alkaloid poppy register with the relevant licensed grower or an employee of the relevant licensed processor.

Penalty: 100 penalty units.

- (2) A licensed processor must not permit any other person to enter the specified premises unless that other person is an employee of the licensed processor who is employed—
- (a) to carry out an activity in the business conducted by a licensed processor under the poppy processing licence; or

- (b) to undertake an activity authorised under the poppy processing licence.

Penalty: 100 penalty units.

- (3) A licensed grower must not permit any other person to enter the area of land where alkaloid poppies are being cultivated unless that other person is accompanied at all times—
 - (a) by the licensed grower; or
 - (b) by an employee of the licensed grower who is employed to undertake an activity authorised under the poppy cultivation licence; or
 - (c) by an inspector.

Penalty: 100 penalty units.

- (4) A licensed processor must not permit any other person to enter the specified premises unless the other person is accompanied at all times—
 - (a) by the licensed processor; or
 - (b) by an employee of the licensed processor who is employed to undertake an activity authorised under the poppy processing licence; or
 - (c) by an inspector.

Penalty: 100 penalty units.

69SF Offence to fail to carry and produce identification certificate

**S. 69SF
inserted by
No. 13/2014
s. 4.**

- (1) An employee of a licensed grower or a licensed processor who has been issued with an employee identification certificate must carry the certificate with him or her during the performance of any activity authorised under the relevant licence.

Penalty: 60 penalty units.

- (2) An employee of a licensed grower or a licensed processor must produce his or her employee identification certificate on the request of an inspector.

Penalty: 60 penalty units.

S. 69SG
inserted by
No. 13/2014
s. 4.

69SG Offence to employ disqualified persons under licence

- (1) A licensed grower must not employ a disqualified person in the business conducted under the poppy cultivation licence.

Penalty: 60 penalty units.

- (2) A licensed processor must not employ a disqualified person in the business conducted under the poppy processing licence.

Penalty: 60 penalty units.

S. 69SH
inserted by
No. 13/2014
s. 4.

69SH Offence for disqualified person to be employed by licensed grower or licensed processor

- (1) A disqualified person must not accept employment to carry out activities in the business conducted by a licensed grower under a poppy cultivation licence.

Penalty: 60 penalty units.

- (2) A disqualified person must not accept employment to carry out activities in the business conducted by a licensed processor under a poppy processing licence.

Penalty: 60 penalty units.

69SI Employee must comply with terms and conditions of licence

S. 69SI
inserted by
No. 13/2014
s. 4.

- (1) A licensed grower must take reasonable steps to prevent an employee of the licensed grower contravening the terms, conditions, limitations or restrictions of the poppy cultivation licence and the applicable requirements of this Part in carrying out an activity authorised by the licence.

Penalty: 60 penalty units.

- (2) A licensed processor must take reasonable steps to prevent an employee of the licensed processor contravening the terms, conditions, limitations or restrictions of the licence and the applicable requirements of this Part in carrying out an activity authorised by the licence.

Penalty: 60 penalty units.

- (3) A licensed grower must take reasonable steps to provide each employee of the licensed grower carrying out an activity authorised under the poppy cultivation licence with sufficient and appropriate information, instruction, training and supervision to be able to carry out that activity in accordance with the licence.

Penalty: 60 penalty units.

- (4) A licensed processor must take reasonable steps to provide each employee of the licensed processor carrying out an activity authorised under the poppy processing licence with sufficient and appropriate information, instruction, training and supervision to be able to carry out that activity in accordance with the licence.

Penalty: 60 penalty units.

- (5) An employee must cooperate with the licensed grower in relation to any direction given, or action taken, by the licensed grower or by any person authorised by the licensed grower, in order to comply with subsection (1) or (3).

Penalty: 60 penalty units.

- (6) An employee must cooperate with the licensed processor in relation to any direction given, or action taken, by the licensed processor or by any person authorised by the licensed processor, in order to comply with subsection (2) or (4).

Penalty: 60 penalty units.

S. 69SJ
inserted by
No. 13/2014
s. 4.

69SJ Criminal liability of licensed grower or licensed processor—failure to exercise due diligence

- (1) If an employee of a licensed grower or a licensed processor commits an offence against this Part, the relevant licensed grower or licensed processor also commits an offence against this Part, if the licensed grower or the licensed processor failed to exercise due diligence to prevent the commission of the offence by the employee.
- (2) A licensed grower or a licensed processor referred to in subsection (1) is liable to a penalty not exceeding the maximum penalty that applies to the offence against this Part committed by the employee.
- (3) In determining whether a licensed grower or a licensed processor failed to exercise due diligence, a court may have regard to—
- (a) whether or not the licensed grower or the licensed processor permitted or authorised the act or omission of the employee in the course of his or her employment that constituted the offence against this Part; and

- (b) what steps the licensed grower or the licensed processor took, or could reasonably have taken, to prevent the commission of the offence by the employee.
- (4) Without limiting any other defence available to a licensed grower or a licensed processor, the relevant licensed grower or licensed processor may rely on a defence that would be available to the employee of the licensed grower or the licensed processor if (as the case requires)—
 - (a) the employee were charged with the offence with which the licensed grower or the licensed processor is charged; and
 - (b) in doing so, the licensed grower or the licensed processor bears the same burden of proof that the employee would bear.
- (5) A licensed grower or a licensed processor may commit an offence against this Part whether or not the employee of the licensed grower or the licensed processor, as the case requires, has been prosecuted for, or found guilty of, an offence against this Part.

69SK Offence to fail to provide an identification certificate for employees

S. 69SK
inserted by
No. 13/2014
s. 4.

- (1) A licensed grower must issue to each employee authorised in respect of the poppy cultivation licence an employee identification certificate that contains the information required under section 69OF(2).

Penalty: 60 penalty units.

- (2) A licensed processor must issue to each employee authorised in respect of the poppy processing licence an employee identification certificate that contains the information required under section 69PF(2).

Penalty: 60 penalty units.

S. 69SL
inserted by
No. 13/2014
s. 4.

69SL Offence to hinder or obstruct inspector

- (1) A person must not, without reasonable excuse, hinder or obstruct an inspector in the exercise of a power under this Part.

Penalty: 100 penalty units.

- (2) A person must not, without reasonable excuse, fail to comply with any direction, requirement or order of an inspector under this Part.

Penalty: 100 penalty units.

S. 69SM
inserted by
No. 13/2014
s. 4.

69SM Offence to remove detained or seized alkaloid poppies or poppy straw

A person must not, while a detention or seizure notice remains in effect, remove the whole or any part of an alkaloid poppy, poppy straw or material derived from an alkaloid poppy or poppy straw to which the notice relates, without the authorisation of the Secretary or an inspector.

Penalty: 100 penalty units.

Division 7—Alkaloid poppy register

S. 69T
inserted by
No. 13/2014
s. 4.

69T Alkaloid poppy register

- (1) The Secretary must establish and maintain the alkaloid poppy register.
- (2) The alkaloid poppy register is to contain the following information in respect of each registrable contract—
- (a) the name of each party to the contract;

- (b) the location of the specified premises;
- (c) the date the contract was entered into by the parties;
- (d) any other relevant information provided by an applicant or licensed grower or licensed processor to an inspector or the Secretary;
- (e) the details of the relevant poppy cultivation licence or poppy processing licence;
- (f) any relevant information collected or received by an inspector to determine the compliance of a licensed grower or a licensed processor with this Part;
- (g) any other prescribed information.

69TA Request to register a contract

**S. 69TA
inserted by
No. 13/2014
s. 4.**

- (1) The Secretary, if requested to do so by a licensed grower, may register a contract between the licensed grower and a licensed processor in the alkaloid poppy register if the contract—
 - (a) is a valid contract; and
 - (b) includes details of the specified premises and area of land where it is proposed to cultivate alkaloid poppies; and
 - (c) specifies the period of the contract; and
 - (d) includes any other prescribed particulars (if any).
- (2) If a licensed grower makes a request under subsection (1), the Secretary must, within 7 days—
 - (a) register the contract; or
 - (b) refuse to register the contract.

- (3) On making a decision under subsection (2) the Secretary must—
- (a) notify the licensed grower and the licensed processor who are the parties to the contract of that decision; and
 - (b) provide reasons for the decision if the decision was a refusal under subsection (2)(b).

S. 69TB
inserted by
No. 13/2014
s. 4.

69TB Access to the alkaloid poppy register restricted

- (1) The Secretary must ensure that the alkaloid poppy register, or any part of the alkaloid poppy register, is only accessed by a prescribed person, or class of prescribed person, who is authorised to do so by the Secretary.
- (2) The Secretary must ensure that personal information in the alkaloid poppy register is only disclosed in accordance with this Act.

S. 69TC
inserted by
No. 13/2014
s. 4.

69TC Person with access to alkaloid poppy register not to disclose personal information from it

- (1) Unless a disclosure is authorised under this section, a person authorised to have access to the alkaloid poppy register or any part of the alkaloid poppy register must not disclose to any person the following information in the alkaloid poppy register—
 - (a) any personal information;
 - (b) the location of specified premises;
 - (c) commercial in confidence information.

Penalty: 100 penalty units or 12 months imprisonment or both.

- (2) The Secretary or a person authorised to have access to the alkaloid poppy register or any part of the alkaloid poppy register may disclose personal information in the alkaloid poppy register to a Department or public statutory authority—
- (a) for the purpose of law enforcement; or
 - (b) as required by or under any Act or law; or
 - (c) if the Secretary or a person authorised to have access to the alkaloid poppy register believes on reasonable grounds that to do so is necessary to enable the proper administration of the Act.

69TD Delegation

The Secretary, by instrument, may delegate any powers or functions of the Secretary under this Part, other than this power of delegation, to a person or class of persons employed under Part 3 of the **Public Administration Act 2004**.

S. 69TD
inserted by
No. 13/2014
s. 4.

Division 8—Review by VCAT

69U Refusal of licence or renewal of licence on grounds of protected information

S. 69U
inserted by
No. 13/2014
s. 4.

- (1) If the Chief Commissioner of Police opposes the issuing or renewal of a poppy cultivation licence or a poppy processing licence, or requests the suspension or cancellation of a poppy cultivation licence or a poppy processing licence, wholly or partly based on protected information, the Chief Commissioner of Police may decide—
- (a) to include the protected information in the reasons given to the Secretary under section 69OA(3)(c), 69OH(3)(c), 69PA(3)(c), 69PH(3)(c) or 69QA(1B)(b) and specify

S. 69U(1)
substituted by
No. 22/2022
s. 80.

which information is protected information;
or

(b) not to include the protected information in the reasons given to the Secretary under section 69OA(3)(c), 69OH(3)(c), 69PA(3)(c), 69PH(3)(c) or 69QA(1B)(b) and specify that—

(i) some or all of the Chief Commissioner of Police's decision is based on protected information; and

(ii) to the extent that the decision is based on protected information, reasons will not be given to the Secretary.

S. 69U(2)
substituted by
No. 22/2022
s. 80.

(2) In giving reasons under section 69OB(4)(b)(ii), 69OI(5)(b)(ii), 69PB(4)(b)(ii), 69PI(5)(b)(ii) or 69QA(2)(d)(ii) the Secretary must—

(a) not disclose any protected information; and

(b) if the Secretary's decision is partially or wholly based on protected information, specify that some or all of the Secretary's decision is based on advice from the Chief Commissioner of Police.

(3) Section 8 of the **Administrative Law Act 1978** does not apply to a decision to which this section applies.

S. 69UA
inserted by
No. 13/2014
s. 4.

69UA Review by VCAT

(1) A person may apply to VCAT for review of a decision of the Secretary—

(a) to refuse to issue a poppy cultivation licence or a poppy processing licence to that person;
or

S. 69UA(1)(b)
repealed by
No. 22/2022
s. 81.

* * * * *

- (c) to refuse to renew a poppy cultivation licence or a poppy processing licence held by that person; or
 - (d) to refuse to register a contract between a licensed grower and a licensed processor in the alkaloid poppy register; or
 - (e) to suspend, cancel or amend a poppy cultivation licence or a poppy processing licence held by that person.
- (2) An application for review under subsection (1) must be made within 28 days after the later of—
- (a) the day on which the decision is made; or
 - (b) if, under the **Victorian Civil and Administrative Tribunal Act 1998**, the person requests a statement of reasons for the decision, the day on which the statement of reasons is given to the person or the person is informed under section 46(5) of that Act that a statement of reasons will not be given.

69UB VCAT to inquire on grounds for refusal

- (1) If VCAT receives an application for review under section 69UA(1)(a), (c) or (e), VCAT must enquire of the Secretary whether the grounds for the refusal, suspension, cancellation or amendment were based on any protected information.
- (2) The Secretary must respond to VCAT's enquiry under subsection (1) in writing.

S. 69UB
inserted by
No. 13/2014
s. 4,
amended by
No. 22/2022
s. 82 (ILA
s. 39B(1)).

S. 69UB(2)
inserted by
No. 22/2022
s. 82.

S. 69UC
inserted by
No. 13/2014
s. 4.

69UC Appointment of special counsel

S. 69UC(1)
substituted by
No. 22/2022
s. 83(1).

- (1) VCAT must appoint a special counsel to represent the interests of the applicant if the Secretary informs VCAT under section 69UB(2) that the decision was based on protected information.

S. 69UC(2)
amended by
No. 22/2022
s. 83(2).

- (2) A special counsel must be a barrister within the meaning of the Legal Profession Uniform Law (Victoria) who, in the opinion of VCAT, has the appropriate skills and ability to represent the interests of the party at the hearing.
- (3) At any time before the special counsel attends the hearing or obtains any confidential affidavit in relation to the application for the purpose of obtaining information or instructions from the party or representative in relation to the proceeding the special counsel may communicate with—
 - (a) the party whose interests he or she is representing; or
 - (b) any representative of that party.
- (4) Subject to section 69UE(3), at any time after the special counsel commences to attend the hearing or obtains any confidential affidavit in relation to the application, the special counsel—
 - (a) must not take instructions from the party whose interests he or she is representing, or from any representative of that party; and
 - (b) must not communicate any other information in relation to the hearing to that party or a representative of that party without leave of VCAT, except to communicate any order made by VCAT at or in relation to the hearing.

- (5) A special counsel may be required to sign a confidentiality undertaking to VCAT.

69UD Procedure for hearing—protected information

S. 69UD
inserted by
No. 13/2014
s. 4.

- (1) If the Secretary informs VCAT under section 69UB(2) that the decision was based on protected information—
- (a) the Chief Commissioner of Police must be joined as a party to the proceeding; and
 - (b) at the hearing of the application, VCAT must first determine whether or not the information is protected information.
- (2) For the purposes of making a determination under subsection (1)(b), VCAT must hold the hearing in private.
- (3) The following parties are entitled to be present at the hearing under subsection (2)—
- (a) if protected information was included in the reasons given to the Secretary from the Chief Commissioner of Police under sections 69OA(3)(c), 69OH(3)(c), 69PA(3)(c), 69PH(3)(c) or 69QA(1B)(b), the Secretary, the Chief Commissioner of Police and the special counsel;
 - (b) if no protected information was included in the reasons given to the Secretary from the Chief Commissioner of Police under sections 69OA(3)(c), 69OH(3)(c), 69PA(3)(c), 69PH(3)(c) or 69QA(1B)(b), the Chief Commissioner of Police and the special counsel only.

S. 69UD(1)
substituted by
No. 22/2022
s. 84(1).

S. 69UD(2)
amended by
No. 22/2022
s. 84(2).

S. 69UD(3)
substituted by
No. 22/2022
s. 84(3).

S. 69UD(3A)
inserted by
No. 22/2022
s. 84(3).

(3A) Each party that is entitled to be present at the hearing has a right to make submissions as to whether evidence supporting the grounds for the refusal to issue or to renew the relevant licence, or the cancellation or the suspension of the relevant licence, amounts to protected information.

S. 69UD(4)
amended by
No. 22/2022
s. 84(4).

(4) After hearing the parties under subsection (3A), VCAT must decide whether or not any of the evidence adduced amounts to protected information.

S. 69UD(5)
substituted by
No. 22/2022
s. 84(5).

(5) If VCAT decides that none of the evidence adduced under subsection (3A) amounts to protected information, VCAT must permit any party to attend the hearing that was excluded under subsection (3).

S. 69UE
inserted by
No. 13/2014
s. 4.

69UE Decision of VCAT where protected information exists

S. 69UE(1)
substituted by
No. 22/2022
s. 85(1).

(1) Without limiting any other power of VCAT conferred by or under this Part or any other Act, if VCAT decides that any of the evidence adduced under section 69UD(3A) is protected information, only the following parties are entitled to be present at the hearing of the proceeding to the extent that it relates to that protected information—

- (a) the Chief Commissioner of Police;
- (b) the special counsel;
- (c) if the protected information was given to the Secretary by the Chief Commissioner of Police, the Secretary.

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|--|--|
| (1A) Each party that is entitled to be present at the hearing of the proceeding has the right to make submissions as to— | S. 69UE(1A)
inserted by
No. 22/2022
s. 85(1). |
| (a) the weight that should be given to the evidence supporting the grounds for the refusal to issue or to renew the relevant licence, or the cancellation or the suspension of the relevant licence, that amounts to protected information and any other evidence adduced; and | |
| (b) the character of the applicant, being evidence indicating whether the applicant is a fit and proper person to hold a poppy cultivation licence or a poppy processing licence; and | |
| (c) whether, in all the circumstances, the poppy cultivation licence or the poppy processing licence should be issued, renewed or re-instated to the applicant. | |
| (2) In determining a proceeding that involves protected information, VCAT must decide— | S. 69UE(2)
amended by
No. 22/2022
s. 85(2)(a). |
| (a) what weight to give the protected information and any other evidence adduced; and | |
| (ab) whether the applicant is a fit and proper person to hold a poppy cultivation licence or a poppy processing licence (as the case requires); and | S. 69UE(2)(ab)
inserted by
No. 22/2022
s. 85(2)(b). |
| (b) whether, in all the circumstances, the poppy cultivation licence or the poppy processing licence should be issued to the applicant, renewed or reinstated (as the case requires). | S. 69UE(2)(b)
amended by
No. 22/2022
s. 85(2)(c). |
| (3) If VCAT decides under section 69UD(4) that any evidence adduced is protected information— | S. 69UE(3)
amended by
No. 22/2022
s. 85(3)(a). |
| (a) VCAT must take all steps and precautions to prevent release of that information; and | |
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S. 69UE(3)(b)
substituted by
No. 22/2022
s. 85(3)(b).

(b) if the special counsel wishes to seek further instructions from the applicant in relation to the protected information, the special counsel must first submit written question to VCAT for approval; and

S. 69UE(3)(c)
inserted by
No. 22/2022
s. 85(3)(b).

(c) before approving the written questions under paragraph (b), VCAT must hear submissions from the Chief Commissioner of Police on the content of the questions.

(4) Despite section 117 of the **Victorian Civil and Administrative Tribunal Act 1998**, any order issued by VCAT in relation to a decision under this section must only state—

(a) whether the decision of the Secretary is upheld or overturned; and

(b) if the poppy cultivation licence or the poppy processing licence is not issued, reinstated or renewed (as the case requires), that the applicant or each relevant person in relation to the application has failed to meet the fit and proper person requirements.

S. 69UE(5)
amended by
No. 22/2022
s. 85(4).

(5) VCAT may publish reasons for its decision only to the extent that those reasons do not relate to protected information.

S. 69UF
inserted by
No. 13/2014
s. 4.

69UF General provisions for hearing matters involving protected information

(1) For the purposes of a hearing to which section 69UD or 69UE applies, VCAT must be constituted by a presidential member.

S. 69UF(2)
substituted by
No. 22/2022
s. 86(1).

(2) At any time before a final determination has been made by VCAT in a proceeding under section 69UD or 69UE that involves protected information, the Chief Commissioner of Police may request the Secretary to re-consider the decision to refuse to issue or refuse to renew, or to suspend or cancel, the poppy cultivation licence or

the poppy processing licence without relying on any report or decision of the Chief Commissioner of Police that was based on protected information.

- (2A) If the Chief Commissioner of Police makes a request under subsection (2)—
- (a) the Chief Commissioner of Police must advise VCAT that a request has been made; and
 - (b) VCAT—
 - (i) must remit the matter for re-consideration by the Secretary in accordance with the request; and
 - (ii) may make any orders that VCAT thinks fit; and
 - (c) the Secretary must reconsider the decision as if section 69OA(4), 69OH(4), 69PA(4), 69PH(4) or 69QA(1C) does not apply.
- (2B) If the poppy cultivation licence or the poppy processing licence is issued or renewed or reinstated (as the case requires), the proceeding terminates immediately.
- (3) The following provisions do not apply to a proceeding for as long as section 69UD or 69UE applies—
- (a) Subdivision 1 of Division 3 of Part 3 and section 49 of the **Victorian Civil and Administrative Tribunal Act 1998**;
 - (b) section 8 of the **Administrative Law Act 1978**.
- (4) Subsection (3) does not apply to any extent that the proceedings do not involve protected information.

S. 69UF(2A)
inserted by
No. 22/2022
s. 86(1).

S. 69UF(2B)
inserted by
No. 22/2022
s. 86(1).

S. 69UF(3)(a)
amended by
No. 22/2022
s. 86(2).

Division 9—Regulations

69V Regulations

S. 69V
inserted by
No. 13/2014
s. 4.

- (1) The Governor in Council may make regulations for or with respect to the following—
- (a) the cultivation of alkaloid poppies;
 - (b) the processing of poppy straw;
 - (c) classes of persons that are disqualified persons;
 - (d) prescribing fees or levies to recover any compliance or administrative costs;
 - (e) prescribing terms, conditions, limitations and restrictions to which licences issued under this Part will be subject;
 - (f) particulars to be included in any application for the issue, renewal or amendment of a poppy cultivation licence or a poppy processing licence;
 - (g) restricting, limiting or prohibiting premises, vehicles or machines used or intended to be used in connection with the cultivation and destruction of alkaloid poppies or the processing or destruction of poppy straw;
 - (h) limiting or prohibiting transport of poppy straw, including in relation to specific geographical areas or regions in Victoria;
 - (i) the distance required to separate alkaloid poppies and poppy straw at a specified premises from any other place;
 - (j) matters to be considered by the Secretary in relation to the suitability of specified premises for the cultivation of alkaloid poppies or processing of poppy straw;

- (k) fencing of specified premises and standard of fencing required to separate alkaloid poppies and poppy straw from a public place or any other premises;
 - (l) requirements of signage at specified premises and information to be displayed at a specified premises, or on equipment or vehicles used for or in connection with the growing or harvesting of alkaloid poppies or the processing of poppy straw;
 - (m) the manner in which searches, detentions and seizures under this Part are to be carried out;
 - (n) records to be kept in relation to alkaloid poppy cultivation or poppy straw processing;
 - (o) prescribing a penalty of not more than 100 penalty units for any contravention of or failure to comply with the regulations made under this Part.
- (2) Regulations made under this Part may—
- (a) be of general or limited application;
 - (b) differ according to differences in time, place or circumstances;
 - (c) apply to different classes of person and licences;
 - (d) provide for different fees for different activities or classes of activity or different cases or classes of cases;
 - (e) provide for waiver or reduction of fees;
 - (f) in the case of applications for the issue or renewal of licences, specify fees that reflect the cost of administration of, and the provision of, inspection services in connection with this Part;

- (g) confer powers or discretions or impose duties on the Secretary or an inspector;
- (h) exempt specified persons or things or classes of person or classes of thing from complying with all or any of the regulations—
 - (i) whether unconditionally or on specified conditions; and
 - (ii) either wholly or to such an extent as is specified; and
 - (iii) leave any matter to be required to be undertaken in a manner approved by the Secretary.

Pt 5 (Heading
and ss 63–69)
repealed by
No. 10002
s. 6(1)(c)(d).

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Part V—Drugs of dependence and related matters

Pt 6
(Heading and
ss 70–101)
substituted as
Pt 5 (Heading
and ss 70–80)
and Pt 6
(Heading and
ss 81–90) by
No. 10002
s. 7(1).
Pt 5 (Heading)
amended by
No. 52/2006
s. 7.

70 Definitions

S. 70
substituted by
No. 10002
s. 7(1).

- (1) In this Part and Part VI, unless inconsistent with the context or subject-matter—

S. 70(1)
amended by
No. 101/1986
s. 55(1)(c).

aggregated commercial quantity, in relation to 2 or more drugs of dependence, means a quantity determined as follows—

S. 70(1) def. of
*aggregated
commercial
quantity*
inserted by
No. 61/2001
s. 4(1),
amended by
Nos 52/2006
s. 8(1)–(4),
3/2019
s. 9(a)(b).

- (a) the quantity of each drug of dependence involved in the alleged offence is determined as a fraction of—
- (i) in the case of a drug of dependence which is a narcotic plant, the commercial quantity specified in column 2 of Part 2 of Schedule Eleven in respect of that drug of dependence; and
- (ii) in relation to a drug of dependence the name of which is specified in column 1 of Part 3 of Schedule Eleven—

- (A) if that drug of dependence is contained in or mixed with another substance and the quantity of that mixture of drug of dependence and other substance is not less than the quantity specified in column 2A of that Part of that Schedule opposite to the name of that drug of dependence, means any amount of that drug of dependence; or
 - (B) in any other case, means the quantity that is specified in column 2 of that Part of that Schedule opposite to the name of that drug of dependence; and
- (b) the fractions determined under paragraph (a) are added together; and
 - (c) the quantity is an aggregated commercial quantity if the total of those fractions when added together is equal to or greater than the number "1";

Example 1

Drug of dependence not contained in or mixed with other substance

Jack is in possession of 40 grams of heroin, 80 grams of amphetamine and 800 grams of tetrahydrocannabinol. The individual commercial quantities for each of those drugs is 50 grams, 100 grams and 1 kilogram respectively (as set out in column 2 of Part 3 of Schedule Eleven), so each of these quantities is not individually a commercial quantity for trafficking.

To aggregate the individual quantities, determine the quantities involved as fractions of the specified commercial quantities:

$\frac{40}{50}$ (heroin), $\frac{80}{100}$ (amphetamine) and $\frac{800}{1000}$ (tetrahydrocannabinol) ie $\frac{4}{5}$ plus $\frac{4}{5}$ plus $\frac{4}{5}$. The total of the fractions when added together is $\frac{12}{5}$ or 2·4 which is a number greater than 1. This is a quantity which is not less than an aggregated commercial quantity of 2 or more drugs of dependence.

Example 2

Drug of dependence not contained in or mixed with other substance Jill is in possession of 80 cannabis plants and 800 grams of tetrahydrocannabinol. The individual commercial quantities for each of those drugs is 100 plants and 1 kilogram respectively (as set out in column 2 of Part 2 of Schedule Eleven and column 2 of Part 3 of Schedule Eleven), so each of these quantities is not individually a commercial quantity for trafficking.

To aggregate the individual quantities, determine the quantities involved as fractions of the specified commercial quantities:
 $\frac{80}{100}$ (cannabis plants) and $\frac{800}{1000}$ (tetrahydrocannabinol) ie $\frac{8}{10}$ plus $\frac{8}{10}$. The total of the fractions when added together is $\frac{16}{10}$ or 1·6 which is a number greater than 1. This is a quantity which is not less than an aggregated commercial quantity of 2 or more drugs of dependence.

Example 3

Drug of dependence contained in or mixed with other substance

Fred is in possession of 200 grams of a substance containing 120 grams of heroin, 400 grams of a substance containing 200 grams of amphetamine and 8 kilograms of a substance containing 900 grams of tetrahydrocannabinol. The individual commercial quantities for a mixture of one of these drugs and another substance (as set out in column 2A of Part 3 of Schedule Eleven), comprise 250 grams for heroin, 500 grams for amphetamine, and

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No. 9719 of 1981
Part V—Drugs of dependence and related matters

10 kilograms for tetrahydrocannabinol, so each of these quantities is not individually a commercial quantity for trafficking.

To aggregate the individual quantities, determine the quantities involved as fractions of the specified commercial quantities $\frac{200}{250}$ (quantity of mixture of substance and heroin), $\frac{400}{500}$ (quantity of mixture of substance and amphetamine), $\frac{800}{1000}$ (quantity of mixture of substance and tetrahydrocannabinol) i.e. $\frac{4}{5}$ plus $\frac{4}{5}$ plus $\frac{4}{5}$. The total of these fractions is $\frac{12}{5}$ or 2·4 which is a number greater than 1. This is a quantity which is not less than an aggregated commercial quantity of 2 or more drugs of dependence.

Note

For narcotic plants, quantities are to be calculated on the quantity specified for a drug of dependence in column 2 of Part 2 of Schedule Eleven.

Quantities of drugs of dependence contained in or mixed with another substance are to be calculated on the quantities specified in column 2A of Part 3 of Schedule Eleven.

In the case of a drug of dependence specified in column 1 of Part 3 of Schedule Eleven, quantities are to be calculated either on the quantity specified for the drug of dependence in column 2 of Part 3 of Schedule Eleven (if that drug is not contained in or mixed with another substance) or on the quantity specified for the drug of dependence in column 2A of Part 3 of Schedule Eleven (if that drug is contained in or mixed with another substance). If a quantity is calculated on a quantity specified in column 2 of Part 3 of Schedule Eleven in respect of a drug of dependence, any other substance contained in or mixed with that drug of dependence is not to be included in the calculation.

aggregated large commercial quantity, in relation to 2 or more drugs of dependence, means a quantity determined as follows—

(a) the quantity of each drug of dependence involved in the alleged offence is determined as a fraction of—

(i) in the case of a drug of dependence which is a narcotic plant, the large commercial quantity specified in column 1A of Part 2 of Schedule Eleven in respect of that drug of dependence; and

(ii) in relation to a drug of dependence the name of which is specified in column 1 of Part 3 of Schedule Eleven—

(A) if that drug of dependence is contained in or mixed with another substance and the quantity of that mixture of drug of dependence and other substance is not less than the quantity specified in column 1B of that Part of that Schedule opposite to the name of that drug of dependence, means any amount of that drug of dependence; or

S. 70(1) def. of *aggregated large commercial quantity* inserted by No. 61/2001 s. 4(1), amended by Nos 52/2006 s. 8(5)–(7), 40/2017 s. 11, 3/2019 s. 9(c)(d).

- (B) in any other case, means the quantity that is specified in column 1A of that Part of that Schedule opposite to the name of that drug of dependence; and
- (b) the fractions determined under paragraph (a) are added together; and
- (c) the quantity is an aggregated large commercial quantity if the total of those fractions when added together is equal to or greater than the number "1";

Examples

Example 1

Drug of dependence contained in or mixed with other substance

Bill is in possession of 800 grams of a substance containing 250 grams of amphetamine, 450 grams of a substance containing 150 grams of heroin, 450 grams of a substance containing 100 grams of methylamphetamine. The individual large commercial quantities for a mixture of one of these drugs and another substance (as set out in column 1B of Part 3 of Schedule Eleven), comprise 1 kilogram for amphetamine, 750 grams for heroin and 750 grams for methylamphetamine so each of these quantities is not individually a large commercial quantity for trafficking.

To aggregate the individual quantities, determine the quantities involved as fractions of the specified large commercial quantities $\frac{800}{1000}$ (quantity of mixture of substance and amphetamine), $\frac{450}{750}$ (quantity of mixture of substances and heroin), $\frac{450}{750}$ (quantity of mixture of substance and methylamphetamine), i.e. $\frac{4}{5}$ plus $\frac{3}{5}$ plus $\frac{3}{5}$. The total of these fractions is $\frac{10}{5}$ or 2 which is a number greater than 1. This is a quantity which is not less than an aggregated large commercial quantity of 2 or more drugs of dependence.

Example 2

Drug of dependence not contained in or mixed with other substance

Fredrica is in possession of 100 grams of heroin, 300 grams of amphetamine, and 450 grams of cocaine. The individual large commercial quantities for each of those drugs (as set out in Column 1A of Part 3 of Schedule Eleven), comprise 500 grams for heroin, 750 grams for amphetamine and 750 grams for cocaine so each of these quantities is not individually a large commercial quantity for trafficking.

To aggregate the individual quantities, determine the quantities involved as fractions of the specified large commercial quantities $\frac{100}{500}$ (heroin), $\frac{300}{750}$ (amphetamine), $\frac{450}{750}$ (cocaine), i.e. $\frac{1}{5}$ plus $\frac{2}{5}$ plus $\frac{3}{5}$. The total of these fractions is $\frac{6}{5}$ or 1.2 which is a number greater than 1. This is a quantity which is not less than an aggregated large commercial quantity of 2 or more drugs of dependence.

Note

For narcotic plants, quantities are to be calculated on the quantity specified for a drug of dependence in column 1A of Part 2 of Schedule Eleven.

Quantities of drugs of dependence contained in or mixed with another substance are to be calculated on the quantities specified in column 1B of Part 3 of Schedule Eleven.

In the case of a drug of dependence specified in column 1 of Part 3 of Schedule Eleven, quantities are to be calculated either on the quantity specified for the drug of dependence in column 1A of Part 3 of Schedule Eleven (if that drug is not contained in or mixed with another substance) or on the quantity specified for the drug of dependence in column 1B of Part 3 of Schedule Eleven (if that drug is contained in or mixed with another substance). If a quantity is calculated on a quantity specified in column 1A of Part 3 of Schedule Eleven in respect of a drug of dependence, any other substance contained in or mixed with that drug of dependence is not to be included in the calculation.

S. 70(1) def. of
*automatic
forfeiture
quantity*
inserted by
No. 63/2003
s. 45.

automatic forfeiture quantity, in relation to a drug of dependence the name of which is specified in column 1 of Part 3 of Schedule Eleven, means the quantity of that drug, including any other substance in which it is contained or with which it is mixed, that is specified in column 2B of that Part of that Schedule opposite to the name of that drug of dependence;

Note

see the **Confiscation Act 1997**;

S. 70(1) def. of
cannabis
amended by
No. 101/1986
s. 58(1)(b)(i),
substituted by
No. 48/1997
s. 37(a).

cannabis means any fresh or dried parts of a plant of the genus *Cannabis* L;

S. 70(1)
def. of *child*
inserted by
No. 48/1997
s. 37(a).

child means a person under 18 years of age;

S. 70(1) def. of
*commercial
quantity*
substituted by
Nos 48/1997
s. 37(b),
61/2001
s. 4(2).

commercial quantity—

- (a) in relation to a drug of dependence the name of which is specified in column 1 of Part 1 of Schedule Eleven, means the quantity that is specified in column 2 of that Part of that Schedule opposite to the name of that drug of dependence;
- (b) in relation to a drug of dependence the name of which is specified in column 1 of Part 2 of Schedule Eleven, means the quantity, or the number of plants, that is specified in column 2 of that Part of that Schedule opposite to the name of that drug of dependence;

- (c) in relation to a drug of dependence the name of which is specified in column 1 of Part 3 of Schedule Eleven—
 - (i) if that drug of dependence is contained in or mixed with another substance and the quantity of that mixture of drug of dependence and other substance is not less than the quantity specified in column 2A of that Part of that Schedule opposite to the name of that drug of dependence, means any amount of that drug of dependence; or
 - (ii) in any other case, means the quantity that is specified in column 2 of that Part of that Schedule opposite to the name of that drug of dependence;
- (d) in relation to 2 or more drugs of dependence, means an aggregated commercial quantity of those drugs;

criminal organisation means—

- (a) an organisation that is a declared organisation under the **Criminal Organisations Control Act 2012**; or
- (b) an organisation that—
 - (i) has 2 or more members; and
 - (ii) engages in systemic and continuing criminal activity which involves substantial planning; and
 - (iii) has a purpose of obtaining profit, gain, power or influence through that criminal activity;

S. 70(1) def. of
***criminal
organisation***
inserted by
No. 3/2019
s. 9(e).

S. 70(1) def. of
cultivate
inserted by
No. 61/2001
s. 4(1),
amended by
No. 52/2006
s. 8(8).

cultivate, in relation to a narcotic plant includes—

- (a) sow a seed of a narcotic plant; or
- (b) plant, grow, tend, nurture or harvest a narcotic plant; or
- (c) graft, divide or transplant a narcotic plant;

S. 70(1) def. of
large commercial quantity
inserted by
No. 61/2001
s. 4(1).

large commercial quantity—

- (a) in relation to a drug of dependence the name of which is specified in column 1 of Part 2 of Schedule Eleven, means the quantity, or the number of plants, that is specified in column 1A of that Part of that Schedule opposite to the name of that drug of dependence;
- (b) in relation to a drug of dependence the name of which is specified in column 1 of Part 3 of Schedule Eleven—
 - (i) if that drug of dependence is contained in or mixed with another substance and the quantity of that mixture of drug of dependence and other substance is not less than the quantity specified in column 1B of that Part of that Schedule opposite to the name of that drug of dependence, means any amount of that drug of dependence; or
 - (ii) in any other case, means the quantity that is specified in column 1A of that Part of that Schedule opposite to the name of that drug of dependence;

- (c) in relation to 2 or more drugs of dependence, means an aggregated large commercial quantity of those drugs;
- narcotic plant* means any plant the name of which is specified in column 1 of Part 2 of Schedule Eleven and includes a cutting of such a plant, whether or not the cutting has roots;
- public place* has the same meaning as it has in section 3 of the **Summary Offences Act 1966**;
- school* has the same meaning as it has in section 1.1.3 of the **Education and Training Reform Act 2006**;
- small quantity*—
- (a) in relation to any fresh or dried parts of a plant of the genus *Cannabis* L, means the quantity that is specified in column 4 of Part 2 of Schedule Eleven opposite to the name *Cannabis* L specified in column 1 of that part of that Schedule; and
- (b) in relation to any drug of dependence the name of which is specified in column 1 of Part 3 of Schedule Eleven, means the quantity of that drug, including any other substance in which it is contained or with which it is mixed, that is specified in column 4 of that Part of that Schedule opposite to the name of that drug of dependence;
- S. 70(1) def. of *narcotic plant* amended by Nos 101/1986 s. 58(1)(b)(ii), 52/2006 s. 8(9).
- S. 70(1) def. of *public place* inserted by No. 2/2016 s. 4.
- S. 70(1) def. of *school* inserted by No. 2/2016 s. 4.
- S. 70(1) def. of *small quantity* amended by Nos 101/1986 s. 58(1)(b)(iii), 48/1997 s. 37(c).

traffick in relation to a drug of dependence includes—

- (a) prepare a drug of dependence for trafficking;
- (b) manufacture a drug of dependence; or
- (c) sell, exchange, agree to sell, offer for sale or have in possession for sale, a drug of dependence;

S. 70(1) def. of
traffickable
quantity
substituted by
No. 48/1997
s. 37(d),
amended by
No. 52/2006
s. 8(10).

traffickable quantity, in relation to a drug of dependence—

- (a) the name of which is specified in column 1 of Part 1 of Schedule Eleven, means the quantity that is specified in column 3 of that Part of that Schedule opposite to the name of that drug of dependence;
- (b) the name of which is specified in column 1 of Part 2 of Schedule Eleven, means the quantity, or the number of plants, that is specified in column 3 of that Part of that Schedule opposite to the name of that drug of dependence;
- (c) the name of which is specified in column 1 of Part 3 of Schedule Eleven—
 - (i) if that drug of dependence is contained in or mixed with another substance and the quantity of that mixture of drug of dependence and other substance is not less than the quantity specified in column 3 of that Part of that Schedule opposite to the name of that drug of dependence, means any amount of that drug of dependence; or

- (ii) in any other case, means the quantity that is specified in column 3A of that Part of that Schedule opposite to the name of that drug of dependence;

use in relation to a drug of dependence means—

- (a) smoke a drug of dependence;
(b) inhale the fumes caused by heating or burning a drug of dependence; or
(c) introduce a drug of dependence into the body of a person.
- (2) The provisions of section 4(2) and (3) and the interpretations of *manufacture*, *sell* and *supply* in section 4(1) do not apply to this Part.

S. 70(2)
amended by
No. 18/2000
s. 105(c).

71 Trafficking in a drug or drugs of dependence—large commercial quantity

S. 71
substituted by
No. 10002
s. 7(1),
amended by
Nos 56/1989
s. 286(Sch. 2
item 9),
48/1997
ss 38(1)
(2)(a)(b),
41(1)(a)(b),
substituted by
No. 61/2001
s. 5,
amended by
No. 52/2014
s. 18 (ILA
s. 39B(1)).

- (1) A person who, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, trafficks or attempts to traffick in a quantity of a drug of dependence or of 2 or more drugs of dependence that is not less than the large commercial quantity applicable to that drug of dependence or those

S. 71(1)
amended by
Nos 20/2016
s. 119, 61/2017
s. 128, 34/2019
s. 21.

drugs of dependence is guilty of an indictable offence and liable—

- (a) to level 1 imprisonment (life); and
- (b) in addition to imprisonment, to a penalty of not more than 5000 penalty units.

Note to
s. 71(1)
inserted by
No. 55/2014
s. 50,
substituted as
Notes by
No. 65/2016
s. 21(1).

Notes

- 1 An offence against subsection (1) is a category 1 offence under the **Sentencing Act 1991**. See section 5(2G) of that Act for the requirement to impose a custodial order for this offence.
- 2 An offence against subsection (1) is a serious drug offence for the purposes of the **Confiscation Act 1997**. On the conviction of a person for a serious drug offence, the court must make an order under section 89DI of the **Sentencing Act 1991** declaring the person to be a serious drug offender.

- (2) The standard sentence for an offence under subsection (1) (other than one constituted by an attempt to traffick) is 16 years.

Note

See sections 5A and 5B of the **Sentencing Act 1991** as to standard sentences.

S. 71(2)
inserted by
No. 52/2014
s. 18,
repealed by
No. 34/2017
s. 16,
new s. 71(2)
inserted by
No. 34/2017
s. 37.

S. 71AA
inserted by
No. 61/2001
s. 5,
amended by
Nos 20/2016
s. 120, 3/2019
s. 10(1)(2) (ILA
s. 39B(1)).

**71AA Trafficking in a drug or drugs of dependence—
commercial quantity**

S. 71AA(1)
amended by
Nos 61/2017
s. 129, 34/2019
s. 22(1).

- (1) Subject to subsection (2), a person who, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, trafficks or attempts to traffick in a quantity of a drug of dependence or of 2 or more drugs of dependence that is not less than the commercial

quantity applicable to that drug of dependence or those drugs of dependence is guilty of an indictable offence and liable to level 2 imprisonment (25 years maximum).

- (2) A person who, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, trafficks or attempts to traffick in a quantity of a drug of dependence or of 2 or more drugs of dependence that is not less than the commercial quantity applicable to that drug of dependence or those drugs of dependence for the benefit of or at the direction of a criminal organisation is guilty of an indictable offence and liable—
- (a) to level 1 imprisonment (life); and
- (b) in addition to imprisonment, to a penalty of not more than 5000 penalty units.

S. 71AA(2)
inserted by
No. 3/2019
s. 10(2),
amended by
Nos 3/2019
s. 18, 34/2019
s. 22(2).

Notes

- 1 An offence against subsection (1) is a category 2 offence under the **Sentencing Act 1991**. See subsection (2H) of section 5 of that Act for the requirement to impose a custodial order for this offence unless the circumstances set out in paragraphs (a) to (e) of that subsection exist.
- 2 An offence against subsection (2) is a category 1 offence under the **Sentencing Act 1991**. See section 5(2G) of that Act for the requirement to impose a custodial order for this offence.
- 3 An offence against subsection (2) is a serious drug offence for the purposes of the **Confiscation Act 1997**. On the conviction of a person for a serious drug offence, the court must make an order under section 89DI of the **Sentencing Act 1991** declaring the person to be a serious drug offender.

Note to
s. 71AA
inserted by
No. 65/2016
s. 21(2),
substituted as
Notes by
No. 3/2019
s. 10(3).

S. 71AB
inserted by
No. 61/2001
s. 5,
amended by
No. 2/2016
s. 5(1)(2) (ILA
s. 39B(1)).

71AB Trafficking in a drug of dependence to a child

S. 71AB(1)
amended by
Nos 20/2016
s. 121, 34/2019
s. 23.

- (1) Subject to subsection (2), a person who, without being authorized by or licensed under this Act or the regulations to do so, trafficks or attempts to traffick in a drug of dependence to a child is guilty of an indictable offence and liable to level 3 imprisonment (20 years maximum).

S. 71AB(2)
inserted by
No. 2/2016
s. 5(2),
amended by
Nos 20/2016
s. 121, 34/2019
s. 23.

- (2) A person who, without being authorised by or licensed under this Act or the regulations to do so, trafficks or attempts to traffick in a drug of dependence to a child at a school or in a public place within 500 metres of a school is guilty of an indictable offence and liable to level 2 imprisonment (25 years maximum).

S. 71AC
inserted by
No. 61/2001
s. 5,
amended by
No. 2/2016
s. 6(1)(2) (ILA
s. 39B(1)).

71AC Trafficking in a drug of dependence

S. 71AC(1)
amended by
Nos 20/2016
s. 122, 61/2017
s. 130(1),
34/2019 s. 24.

- (1) Subject to subsection (2), a person who, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, trafficks or attempts to traffick in a drug of dependence is guilty of an indictable offence and liable to level 4 imprisonment (15 years maximum).

- (2) A person who, without being authorised by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, trafficks or attempts to traffick in a drug of dependence at a school or in a public place within 500 metres of a school is guilty of an indictable offence and liable to level 3 imprisonment (20 years maximum).

S. 71AC(2)
inserted by
No. 2/2016
s. 6(2),
amended by
Nos 20/2016
s. 122, 61/2017
s. 130(2),
34/2019 s. 24.

71AD Use of violence or threats to cause trafficking in drug of dependence

S. 71AD
inserted by
No. 2/2016
s. 7.

- (1) A person must not intentionally cause another person to traffick in a drug of dependence by—
- (a) threatening to harm that person or another person; or
 - (b) using violence against that person or another person.

Penalty: Level 6 imprisonment (5 years maximum).

- (2) Nothing in subsection (1) prevents a person who trafficks a drug of dependence in the circumstances specified in that subsection from being liable for any offence of trafficking under this Part.
- (3) Nothing in this section limits or affects the operation of—
- (a) section 79 or 80; or
 - (b) section 322O, 322P, 323 or 324 of the **Crimes Act 1958**.

S. 71A
inserted by
No. 48/1997
s. 39,
amended by
No. 52/2006
s. 9(1) (ILA
s. 39B(1)).

71A Possession of substance, material, documents or equipment for trafficking in a drug of dependence

S. 71A(1)
amended by
Nos 20/2016
s. 123, 2/2016
s. 8(1),
61/2017 s. 131,
34/2019 s. 25.

- (1) A person who, without being authorised by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, possesses a substance, material, document containing instructions relating to the preparation, cultivation or trafficking of a drug of dependence or equipment with the intention of using the substance, material, document or equipment for the purpose of trafficking in a drug of dependence is guilty of an indictable offence and liable to level 5 imprisonment (10 years maximum).

S. 71A(2)
inserted by
No. 52/2006
s. 9(1).

- (2) Nothing in this section is limited by section 71C.

S. 71A(3)
inserted by
No. 52/2006
s. 9(2).

- (3) Nothing in this section is limited by section 71D.

S. 71A(4)
inserted by
No. 2/2016
s. 8(2).

- (4) Nothing in this section is limited by section 71E.

71B Supply of drug of dependence to a child

- (1) Subject to subsection (1A), a person who, without being authorised by or licensed under this Act or the regulations to do so—

S. 71B
inserted by
No. 48/1997
s. 39.

S. 71B(1)
amended by
Nos 2/2016
s. 9(1),
20/2016
s. 124(1),
34/2019 s. 26.

- (a) supplies a drug of dependence to a child for the purposes of the supply of that drug of dependence by that child to another person, whether a child or adult; or
- (b) supplies a drug of dependence to a child for the use of that drug of dependence by that child—

S. 71B(1)(a)
amended by
No. 52/2006
s. 10.

is guilty of an indictable offence and liable to a penalty of not more than 1000 penalty units or level 4 imprisonment (15 years maximum) or both.

- (1A) A person who, without being authorised by or licensed under this Act or the regulations to do so—

S. 71B(1A)
inserted by
No. 2/2016
s. 9(2),
amended by
Nos 20/2016
s. 124(2),
34/2019 s. 26.

- (a) supplies a drug of dependence to a child at a school or in a public place within 500 metres of a school for the purposes of the supply of that drug of dependence by that child to another person, whether a child or adult; or
- (b) supplies a drug of dependence to a child at a school or in a public place within 500 metres of a school for the use of that drug of dependence by that child—

is guilty of an indictable offence and liable to a penalty of not more than 1600 penalty units or level 3 imprisonment (20 years maximum) or both.

- (2) Despite section 70(2), in this section *supply* has the same meaning as in section 4(1) of this Act.
- (3) This section does not apply to a person who supplies a drug of dependence to a child if, at the time of supplying that drug, that person was also a child.
- (4) It is a defence to a charge under this section for a person charged to prove that he or she believed on reasonable grounds that the person to whom the drug of dependence was supplied was 18 years of age or older.

S. 71C
inserted by
No. 52/2006
s. 11,
amended by
Nos 20/2016
s. 125, 34/2019
s. 27.

71C Possession of tablet press

A person who, without being authorized by or licensed under this Act or the regulations (if any) to do so or otherwise without a lawful excuse, possesses a tablet press is guilty of an indictable offence and liable to a penalty of not more than 600 penalty units or level 6 imprisonment (5 years maximum) or both.

S. 71D
inserted by
No. 52/2006
s. 12 (as
amended by
No. 10/2007
s. 6),
amended by
Nos 20/2016
s. 126, 34/2019
s. 28.

71D Possession of precursor chemicals

A person who, without being authorized by or licensed under this Act or the regulations (if any) to do so or otherwise without a lawful excuse, possesses a prescribed precursor chemical in a quantity that is not less than the prescribed quantity applicable to that precursor chemical is guilty of an indictable offence and liable to a penalty of not more than 600 penalty units or level 6 imprisonment (5 years maximum) or both.

**71E Possession of document containing information
about trafficking or cultivating a drug of
dependence**

S. 71E
inserted by
No. 2/2016
s. 10,
amended by
No. 20/2016
s. 127.

- (1) A person who, without being authorised by or licensed under this Act or the regulations to do so or otherwise without a reasonable excuse, possesses a document containing instructions for the trafficking or cultivation of a drug of dependence is guilty of an indictable offence and liable to a penalty of not more than 600 penalty units or level 6 imprisonment (5 years maximum) or both.

S. 71E(1)
amended by
No. 34/2019
s. 29.

Note

See the definition of *document* in section 38 of the **Interpretation of Legislation Act 1984**. See the definition of *traffick* in this Part which includes manufacturing a drug of dependence and also section 71(2).

- (2) Section 104 does not apply to an offence against this section.

71F Publication of document containing instructions

S. 71F
inserted by
No. 2/2016
s. 10,
amended by
No. 20/2016
s. 128.

- (1) A person who, without being authorised by or licensed under this Act or the regulations to do so or otherwise without a reasonable excuse, publishes a document containing instructions for the trafficking or cultivation of a drug of dependence—

S. 71F(1)
amended by
No. 34/2019
s. 30.

- (a) with the intention that the instructions will be used by another person for the purposes of the trafficking or cultivation of a drug of dependence; or
- (b) knowing or being reckless as to whether the instructions will be used by another person for the purpose of the trafficking or cultivation of a drug of dependence—

is guilty of an indictable offence and liable to a penalty of not more than 1200 penalty units or level 5 imprisonment (10 years maximum) or both.

- (2) For the purposes of subsection (1), it is irrelevant whether the document or the instructions contained in the document actually work to traffick or cultivate a drug of dependence.
- (3) For the purposes of this section, *publish* includes sell, offer for sale, let on hire, exhibit, display, distribute and demonstrate.
- (4) Section 104 does not apply to an offence against this section.

S. 72
substituted by
No. 10002
s. 7(1),
amended by
No. 48/1997
ss 40(1)(2),
41(2)(3),
substituted by
No. 61/2001
s. 6,
amended by
Nos 20/2016
s. 129, 34/2019
s. 31.

72 Cultivation of narcotic plants—large commercial quantity

A person who, without being authorized by or licensed under this Act or the regulations to do so, cultivates or attempts to cultivate a narcotic plant in a quantity of a drug of dependence, being a narcotic plant, that is not less than the large commercial quantity applicable to that narcotic plant is guilty of an indictable offence and liable—

- (a) to level 1 imprisonment (life); and

(b) in addition to imprisonment, to a penalty of not more than 5000 penalty units.

Notes

- 1 An offence against this section is a category 1 offence under the **Sentencing Act 1991**. See section 5(2G) of that Act for the requirement to impose a custodial order for this offence.
- 2 An offence against this section is a serious drug offence for the purposes of the **Confiscation Act 1997**. On the conviction of a person for a serious drug offence, the court must make an order under section 89DI of the **Sentencing Act 1991** declaring the person to be a serious drug offender.

Note to s. 72
inserted by
No. 55/2014
s. 51,
substituted as
Notes by
No. 65/2016
s. 21(3).

72A Cultivation of narcotic plants—commercial quantity

A person who, without being authorized by or licensed under this Act or the regulations to do so, cultivates or attempts to cultivate a narcotic plant in a quantity of a drug of dependence, being a narcotic plant, that is not less than the commercial quantity applicable to that narcotic plant is guilty of an indictable offence and liable to level 2 imprisonment (25 years maximum).

S. 72A
inserted by
No. 61/2001
s. 6,
amended by
Nos 20/2016
s. 130, 34/2019
s. 32.

Note

An offence against this section is a category 2 offence under the **Sentencing Act 1991**. See subsection (2H) of section 5 of that Act for the requirement to impose a custodial order for this offence unless the circumstances set out in paragraphs (a) to (e) of that subsection exist.

Note to s. 72A
inserted by
No. 65/2016
s. 21(4).

72B Cultivation of narcotic plants

A person who, without being authorized by or licensed under this Act or the regulations to do so, cultivates or attempts to cultivate a narcotic plant is guilty of an indictable offence and liable—

- (a) if the trial judge (or magistrate on a summary hearing) is satisfied on the balance of probabilities that the offence was not committed by the person for any purpose related to trafficking in that plant, to level 8 imprisonment (1 year maximum) or a

S. 72B
inserted by
No. 61/2001
s. 6,
amended by
Nos 20/2016
s. 131, 34/2019
s. 33.

penalty of not more than 20 penalty units or both; or

- (b) in any other case, to level 4 imprisonment (15 years maximum).

S. 72C
inserted by
No. 61/2001
s. 6,
amended by
No. 2/2016
s. 11.

72C Defence to prosecution for offences involving cultivation

It is a good defence to a prosecution for an offence against section 72, 72A, 72B or 72D(2) involving the cultivation of a narcotic plant if the person charged with the offence adduces evidence which satisfies the court on the balance of probabilities that, having regard to all the circumstances (including his or her conduct) in which the matter alleged to constitute the offence arose or preparatory to the alleged commission of the offence, he or she did not know or suspect and could not reasonably have been expected to have known or suspected that the narcotic plant was a narcotic plant.

S. 72D
inserted by
No. 2/2016
s. 12.

72D Permitting use of premises for trafficking or cultivation of drug of dependence

S. 72D(1)
amended by
Nos 20/2016
s. 132, 61/2017
s. 132, 34/2019
s. 34(1).

- (1) An owner or occupier of land or premises who, without being authorised by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, intentionally permits another person to use that land or those premises for trafficking in a drug of dependence is guilty of an indictable offence and liable to a penalty level 6 imprisonment (5 years maximum).

S. 72D(2)
amended by
Nos 20/2016
s. 132, 34/2019
s. 34(2).

- (2) An owner or occupier of land or premises who, without being authorised by or licensed under this Act or the regulations to do so, intentionally permits another person to use that land or those premises for cultivating a drug of dependence

is guilty of an indictable offence and liable to a penalty level 6 imprisonment (5 years maximum).

(3) For the purposes of this section, *premises* includes the following—

- (a) residential dwellings, including temporary accommodation;
- (b) commercial or industrial land and buildings;
- (c) other structures on land;

Examples

Caravans, cabins, sheds, outhouses, shipping containers.

- (d) vehicles, including motor vehicles, aircraft, boats and vessels.

73 Possession of a drug of dependence

S. 73
substituted by
No. 10002
s. 7(1).

(1) A person who without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so has or attempts to have in his possession a drug of dependence is guilty of an indictable offence and liable—

S. 73(1)
amended by
Nos 20/2016
s. 133(1),
61/2017
s. 133(1),
34/2019 s. 35.

(a) where the court is satisfied on the balance of probabilities that—

- (i) the offence was committed in relation to a quantity of cannabis or tetrahydrocannabinol that is not more than the small quantity applicable to cannabis or tetrahydrocannabinol;
- (ii) the offence was not committed for any purpose related to trafficking in cannabis or tetrahydrocannabinol—

S. 73(1)(a)(i)
amended by
No. 48/1997
s. 42(1)(a).

S. 73(1)(a)(ii)
amended by
No. 48/1997
s. 42(1)(b).

to a penalty of not more than 5 penalty units;

S. 73(1)(b)
amended by
No. 48/1997
s. 41(4).

(b) subject to paragraph (a), where the court is satisfied on the balance of probabilities that the offence was not committed by the person for any purpose relating to trafficking in that drug of dependence—to a penalty of not more than 30 penalty units or to level 8 imprisonment (1 year maximum) or to both that penalty and imprisonment; or

S. 73(1)(c)
amended by
No. 48/1997
s. 41(5).

(c) in any other case—to a penalty of not more than 400 penalty units or to level 6 imprisonment (5 years maximum) or to both that penalty and imprisonment.

S. 73(2)
amended by
Nos 20/2016
s. 133(2),
61/2017
s. 133(2),
34/2019 s. 35.

(2) Where a person has in his possession, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, a drug of dependence in a quantity that is not less than the traffickable quantity applicable to that drug of dependence, the possession of that drug of dependence in that quantity is prima facie evidence of trafficking by that person in that drug of dependence.

S. 74
substituted by
No. 10002
s. 7(1),
amended by
Nos 48/1997
s. 41(6),
20/2016 s. 134,
61/2017 s. 134,
34/2019 s. 36.

74 Introduction of a drug of dependence into the body of another person

A person who, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so, introduces or attempts to introduce a drug of dependence into the body of another person is guilty of an offence against this Act and liable to a penalty of not more than 30 penalty units or to level 8 imprisonment (1 year maximum) or to both that penalty and imprisonment.

75 Use of drug of dependence

A person who, without being authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to do so uses or attempts to use a drug of dependence is guilty of an offence against this Act and liable—

- (a) where the court is satisfied on the balance of probabilities that the offence was committed in relation to cannabis or tetrahydrocannabinol—to a penalty of not more than 5 penalty units; and
- (b) in any other case—to a penalty of not more than 30 penalty units or to level 8 imprisonment (1 year maximum) or to both that penalty and imprisonment.

S. 75
substituted by
No. 10002
s. 7(1),
amended by
Nos 20/2016
s. 135, 61/2017
s. 135, 34/2019
s. 37.

S. 75(a)
amended by
No. 48/1997
s. 42(2).

S. 75(b)
amended by
No. 48/1997
s. 41(7).

76 Adjourned bonds to be given in certain cases

(1) Where before the Magistrates' Court—

(a) in relation to cannabis—

- (i) a person is charged with an offence under section 72B and at the hearing the court is satisfied on the balance of probabilities that the offence was not committed by the person for any purpose relating to trafficking in cannabis;

S. 76
substituted by
No. 10002
s. 7(1),
amended by
No. 57/1989
s. 3(Sch.
item 59.7
(a)(b)).

S. 76(1)
amended by
No. 49/1991
s. 119(7)
(Sch. 4
item 6).

S. 76(1)(a)
amended by
No. 48/1997
s. 43(1)(a).

S. 76(1)(a)(i)
amended by
No. 61/2001
s. 7(a).

- (ii) a person is charged with an offence under section 73 and at the hearing the court is satisfied on the balance of probabilities that the offence was not committed by the person for any purpose relating to trafficking in cannabis;
 - (iii) a person is charged with an offence under section 75; or
 - (iv) a person is charged with an offence under section 79 or section 80, being an offence that relates to an offence mentioned in subparagraphs (i), (ii) or (iii) of this paragraph and, where that last-mentioned offence relates to the possession or cultivation of cannabis, the court is satisfied on the balance of probabilities that the last-mentioned offence would not have been committed by the person for any purpose relating to trafficking in cannabis or the court is satisfied on the balance of probabilities that the last-mentioned offence would, if committed, have related to a quantity of cannabis which was not more than the small quantity applicable to cannabis; and
- (ab) in relation to any drug of dependence specified in column 1 of Part 3 of Schedule Eleven—
- (i) a person is charged with an offence under section 73 and at the hearing the court is satisfied on the balance of probabilities that the offence—

S. 76(1)(ab)
inserted by
No. 48/1997
s. 43(1)(a).

- (A) was committed in relation to a quantity of that drug which was not more than the small quantity applicable to that drug; and
 - (B) was not committed for any purpose relating to trafficking in that drug; or
- (ii) a person is charged with an offence under section 75 and at the hearing the court is satisfied on the balance of probabilities that the offence was committed in relation to a quantity of that drug which was not more than the small quantity applicable to that drug; or
- (iii) a person is charged with an offence under section 79 or section 80, being an offence that relates to an offence mentioned in subparagraphs (i) or (ii), and the court is satisfied on the balance of probabilities that the last-mentioned offence—
 - (A) would, if committed, have been committed in relation to a quantity of that drug which was not more than the small quantity applicable to that drug; and
 - (B) would not have been committed for any purpose relating to trafficking in that drug; and
- (ac) a person is charged with an offence under section 71E and at the hearing the court is satisfied on the balance of probabilities that the offence was not committed by the person for any purpose relating to cultivating or trafficking in a drug of dependence; and

S. 76(1)(ac)
inserted by
No. 2/2016
s. 13(1).

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part V—Drugs of dependence and related matters

S. 76(1)(b)
amended by
Nos 48/1997
s. 43(1)(b),
2/2016
s. 13(2).

(b) a person mentioned in paragraph (a), (ab) or (ac) has not previously been convicted of an offence under—

(i) section 36B(2), Part III of this Act or this Part;

(ii) Part II or Part III of the **Poisons Act 1962**;

S. 76(1)(b)(iii)
repealed by
No. 46/2008
s. 275(3)(a).

* * * * *

S. 76(1)(b)(iv)
amended by
No. 46/2008
s. 275(3)(b).

(iv) a provision of the law of another State or Territory of the Commonwealth corresponding to any provision mentioned in subparagraphs (i) or (ii); or

S. 76(1)(b)(v)
amended by
No. 93/2005
s. 14(1).

(v) Division 2 of Part XIII of the Act of the Commonwealth known as the Customs Act 1901 as amended and in force for the time being; or

S. 76(1)(b)(vi)
inserted by
No. 93/2005
s. 14(2).

(vi) section 307.1, 307.2, 307.3, 307.4, 307.5, 307.6, 307.7, 307.8, 307.9 or 307.10 of the Criminal Code of the Commonwealth as amended and in force for the time being—

and has not previously been dealt with under this section; and

S. 76(1)(c)
amended by
Nos 48/1997
s. 43(1)(b),
2/2016
s. 13(3).

(c) in relation to a person mentioned in paragraph (a), (ab) or (ac) the court is satisfied beyond reasonable doubt that the person is guilty of the offence with which he is charged—

the court, without proceeding to conviction, shall having regard to the character and antecedents of the person and to all the circumstances and the public interest, adjourn the further hearing to a

time and place to be fixed (such time being not more than twelve months thereafter) and allow the person charged to go at large upon his giving an undertaking under section 75(1) of the **Sentencing Act 1991**, unless the court considers it appropriate to proceed to a conviction.

- (1A) If a person to whom subsection (1) applies is, on a charge for an offence in relation to a drug of dependence other than cannabis or tetrahydrocannabinol, released on giving an undertaking under section 75(1) of the **Sentencing Act 1991**, the court must attach to the undertaking a condition that the person completes an approved drug education and information program.
- (2) Where subsection (1) applies to a person and the magistrates' court proceeds to a conviction, the court shall state its reasons for doing so.
- (3) In determining whether a person has been previously convicted of an offence for the purposes of paragraph (b) of subsection (1), proceedings under the **Children, Youth and Families Act 2005** or under any Act of the Commonwealth or of a State or Territory of the Commonwealth which corresponds to that Act shall be disregarded.
- (4) A person or body may apply to the Secretary for approval for a program for the purposes of this section.

S. 76(1A)
inserted by
No. 48/1997
s. 43(2).

S. 76(3)
amended by
No. 48/2006
s. 42(Sch.
item 11).

S. 76(4)
inserted by
No. 48/1997
s. 43(3),
amended by
No. 46/1998
s. 7(Sch. 1).

S. 76(5)
inserted by
No. 48/1997
s. 43(3).

- (5) An application under subsection (4) must be accompanied by the prescribed application fee.

S. 76(6)
inserted by
No. 48/1997
s. 43(3),
amended by
No. 46/1998
s. 7(Sch. 1).

- (6) The Secretary—
- (a) may grant an approval subject to any conditions, limitations or restrictions specified in the approval; and
- (b) must specify the period during which an approval continues in force.

S. 77
substituted by
No. 10002
s. 7(1),
amended by
Nos 48/1997
s. 41(8),
20/2016 s. 136
(ILA s. 39B(1)).

77 Forging prescriptions and orders for drugs of dependence

- (1) A person shall not forge or attempt to forge or fraudulently alter or attempt to fraudulently alter or utter or attempt to utter knowing it to be forged or fraudulently altered a prescription or order for a drug of dependence.

Penalty: 20 penalty units or level 8 imprisonment (1 year maximum) or both.

S. 77(2)
inserted by
No. 20/2016
s. 136,
repealed by
No. 34/2019
s. 38.

* * * * *

S. 78
substituted by
No. 10002
s. 7(1),
amended by
No. 48/1997
s. 41(9).

78 Obtaining drugs of dependence etc. by false representation

A person shall not knowingly by false representation, whether oral or in writing or by conduct—

S. 78(a)
amended by
Nos 20/2016
s. 137, 61/2017
s. 136, 34/2019
s. 39(a).

- (a) obtain or attempt to obtain a drug of dependence from a person authorized by or licensed under this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to possess,

manufacture, sell or supply the drug of dependence;

- (b) obtain or attempt to obtain a prescription or order for a drug of dependence from a registered medical practitioner, dentist, pharmacist or veterinary practitioner or a person authorized by this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to issue or possess the prescription or order;
- (c) cause or induce or attempt to cause or induce a registered medical practitioner to administer by injection or otherwise, a drug of dependence to him; or
- (d) cause or induce or attempt to cause or induce a pharmacist or a person authorized by this Act or the regulations or the **Voluntary Assisted Dying Act 2017** or the regulations under that Act to supply a drug of dependence, to dispense a prescription or order for a drug of dependence, if the first-mentioned person knew the prescription or the order to have been obtained in contravention of this Act or the regulations.
- Penalty: 20 penalty units or level 8 imprisonment (1 year maximum) or both.

S. 78(b)
amended by
Nos 23/1994
s. 118(Sch. 1
item 17.13),
74/2000
s. 3(Sch. 1
item 38.2),
20/2016 s. 137,
61/2017 s. 136,
34/2019
s. 39(a).

S. 78(c)
amended by
No. 23/1994
s. 118(Sch. 1
item 17.13).

S. 78(d)
amended by
Nos 20/2016
s. 137, 61/2017
s. 136, 34/2019
s. 39(b).

79 Conspiring

S. 79
substituted by
No. 10002
s. 7(1).

- (1) A person who conspires with another person or other persons to commit an offence against any provision of sections 71, 71AA, 71AB, 71AC, 71AD, 71A, 71B, 71E, 71F, 72, 72A, 72B, 72D or 73 is guilty of an indictable offence

S. 79(1)
amended by
Nos 48/1997
s. 47(a),
61/2001
s. 7(b), 2/2016
s. 14.

and liable to the same punishment pecuniary penalties and forfeiture as if he has committed the first-mentioned offence.

Note to
s. 79(1)
inserted by
No. 55/2014
s. 52,
amended by
No. 3/2019
s. 11.

Note

An offence against this section is a serious drug offence for the purposes of the **Confiscation Act 1997** where the conspiracy is to commit an offence against section 71, 71AA(2) or 72. On the conviction of a person for a serious drug offence, the court must make an order under section 89DI of the **Sentencing Act 1991** declaring the person to be a serious drug offender.

- (2) A person who conspires with another person or persons to commit an offence against any of the provisions of sections 74, 75, 77 or 78 is guilty of an offence against this Act and liable to the same punishment pecuniary penalties and forfeiture as if he has committed the first-mentioned offence.

S. 80
(Heading)
inserted by
No. 63/2014
s. 7(8).

80 Inciting etc.

S. 80
substituted by
No. 10002
s. 7(1).

S. 80(1)
amended by
Nos 48/1997
s. 47(b),
61/2001
s. 7(c)(i)(ii),
63/2014
s. 7(9), 2/2016
s. 15(1).

- (1) A person who incites the commission of an offence against any of the provisions of sections 71, 71AA, 71AB, 71AC, 71AD, 71A, 71B, 71E, 71F, 72, 72A, 72B, 72D or 73 is guilty of an indictable offence and liable to the same punishment pecuniary penalties and forfeiture as if he has committed the relevant offence against any of the provisions of sections 71, 71AA, 71AB, 71AC, 71AD, 71A, 71B, 71E, 71F, 72, 72A, 72B, 72D or 73.

Note

An offence against this section is a serious drug offence for the purposes of the **Confiscation Act 1997** where the offence that is incited is an offence against section 71, 71AA(2) or 72. On the conviction of a person for a serious drug offence, the court must make an order under section 89DI of the **Sentencing Act 1991** declaring the person to be a serious drug offender.

Note to
s. 80(1)
inserted by
No. 55/2014
s. 53(1),
amended by
Nos 79/2014
s. 62(1),
3/2019
s. 12(1).

- (2) A person who incites the commission of an offence against any of the provisions of sections 74, 75, 77 or 78 is guilty of an offence against this Act and liable to the same punishment pecuniary penalties and forfeiture as if he has committed the relevant offence against any of the provisions of sections 74, 75, 77 or 78.

S. 80(2)
amended by
No. 63/2014
s. 7(9).

Note

Subdivision (1) of Division 1 of Part II of the **Crimes Act 1958** deals with complicity in commission of offences.

Note to
s. 80(2)
inserted by
No. 63/2014
s. 7(10).

- (3) A person who in Victoria—

- (a) conspires with another person or persons to commit; or
- (b) aids, abets, counsels or procures the commission of—

an offence in any place outside Victoria being an offence punishable under the provisions of a corresponding law in force in that place shall be guilty of the same offence and liable to the same punishment pecuniary penalty and forfeiture as if the offence committed outside Victoria had been committed inside Victoria.

Note to
s. 80(3)
inserted by
No. 55/2014
s. 53(2),
amended by
Nos 79/2014
s. 62(2),
3/2019
s. 12(2).

Note

An offence against this section is a serious drug offence for the purposes of the **Confiscation Act 1997** where the conspiracy is to commit an offence that, if committed in Victoria, would be an offence against section 71, 71AA(2) or 72 or the offence that is aided, abetted, counselled or procured is an offence that, if committed in Victoria, would be an offence against section 71, 71AA(2) or 72. On the conviction of a person for a serious drug offence, the court must make an order under section 89DI of the **Sentencing Act 1991** declaring the person to be a serious drug offender.

S. 80(4)
amended by
Nos 61/2001
s. 7(d), 2/2016
s. 15(2).

- (4) A person who in Victoria does an act preparatory to the commission of an offence in a place outside Victoria being an offence under a law which is in relation to the provisions of sections 71, 71AA, 71AB, 71AC, 71AD, 71A, 71B, 71E, 71F, 72, 72A, 72B, 72D, 73, 74, 75, 77 or 78 a corresponding law shall be guilty of the same offence and liable to the same punishment pecuniary penalty and forfeiture as if the first-mentioned offence were committed in Victoria.

S. 80(5)
inserted by
No. 20/1987
s. 3,
amended by
No. 63/2014
s. 7(11).

- (5) A person who sells or supplies a hypodermic needle or a syringe is not guilty of an offence under this section or of being involved in the commission of an offence against any provision referred to in this section by reason only of that sale or supply—

(a) if the person is, or is engaged or employed by, a pharmacist and the sale or supply is made in the course of the lawful practice of a pharmacist; or

S. 80(5)(b)
substituted by
No. 12/1994
s. 6(1).

(b) if the sale or supply is by a specified person or organisation or specified class of persons or organisations in specified circumstances as authorised by Order in Council published in the Government Gazette.

- | | |
|--|--|
| (6) The Secretary must keep a list of all persons and organisations authorised under subsection (5)(b). | S. 80(6)
inserted by
No. 12/1994
s. 6(2),
amended by
No. 46/1998
s. 7(Sch. 1). |
| (7) The Secretary must ensure that— | S. 80(7)
inserted by
No. 12/1994
s. 6(2),
amended by
No. 46/1998
s. 7(Sch. 1). |
| (a) a copy of the list is kept available for inspection by members of the public during normal office hours without charge at the Secretary's principal office; and | S. 80(7)(a)
amended by
No. 12/1999
s. 4(Sch. 2
item 4.1). |
| (b) a copy of the list is made available, without charge, to any member of the public on request. | |
| (8) A person who sells or supplies a hypodermic needle or a syringe is not guilty of an offence under this section by reason only of being involved in the commission of an offence against any provision referred to in this section if the hypodermic needle or syringe is obtained from a person or organisation referred to in subsection (5)(a) or (b). | S. 80(8)
inserted by
No. 17/2021
s. 4. |
| (9) Subsection (8) applies whether or not the hypodermic needle or syringe is sold or supplied for personal use. | S. 80(9)
inserted by
No. 17/2021
s. 4. |
| (10) Despite section 70(2), in subsections (5), (8) and (9) <i>supply</i> has the same meaning as in section 4(1). | S. 80(10)
inserted by
No. 17/2021
s. 4. |

Pt 5A
(Heading and
ss 80A–80H)
inserted by
No. 18/2006
s. 3.

Part VA—Cocaine kits

Division 1—Cocaine kits

S. 80A
inserted by
No. 18/2006
s. 3.

80A What is a cocaine kit?

A cocaine kit is constituted by two or more of the following items packaged for use as a unit for the purposes of preparing for introduction, or for introducing, cocaine into the body of a person—

- (a) a razor blade;
- (b) a tube;
- (c) a mirror;
- (d) a scoop;
- (e) a glass bottle;
- (f) any other item for use together with any item referred to in paragraphs (a) to (e) to prepare for introduction, or to introduce, cocaine into the body of a person.

S. 80B
inserted by
No. 18/2006
s. 3.

80B Offence to display a cocaine kit in a retail outlet

- (1) A person must not display a cocaine kit in a retail outlet.

Penalty: In the case of a natural person,
60 penalty units;

In the case of a body corporate,
300 penalty units.

- (2) In this section, *retail outlet* includes—
- (a) a shop;
 - (b) a market.

80C Offence to sell a cocaine kit

S. 80C
inserted by
No. 18/2006
s. 3.

A person must not sell a cocaine kit if the person selling the cocaine kit knows or is reckless as to whether the cocaine kit is sold for the purpose of preparing for introduction, or introducing, cocaine into the body of any person.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

Note

See definition of *sell* in section 4(1).

Division 2—Enforcement

80D Seizure of cocaine kits

S. 80D
inserted by
No. 18/2006
s. 3,
amended by
No. 37/2014
s. 10(Sch.
item 47.25).

A police officer may seize a cocaine kit if he or she has reasonable grounds for suspecting that the cocaine kit is displayed or is for sale in contravention of this Part.

80E Retention and return of seized cocaine kits

S. 80E
inserted by
No. 18/2006
s. 3.

(1) If a police officer seizes a cocaine kit under this Part, the police officer must take reasonable steps to return the cocaine kit to the person from whom it was seized or its lawful owner if the reason for its seizure no longer exists.

S. 80E(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.25).

(2) If a cocaine kit seized under this Part has not been returned to the person from whom it was seized or its lawful owner within 3 months after it was seized, a police officer must take reasonable steps to return it to that person or owner unless—

S. 80E(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.25).

- (a) proceedings for the purpose for which the cocaine kit was retained have commenced within that 3 month period and those proceedings (including any appeal) have not been completed; or
- (b) the Magistrates' Court makes an order under section 80F extending the period during which the cocaine kit may be retained.

S. 80F
inserted by
No. 18/2006
s. 3.

80F Magistrates' Court may extend 3 month period

S. 80F(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.25).

- (1) A police officer may apply to the Magistrates' Court—
 - (a) within 3 months after a cocaine kit is seized under this Part; or
 - (b) if an extension has been granted under this section, before the end of the period of the extension—

for an extension (not exceeding 3 months) of the period during which the cocaine kit may be retained.

- (2) The Magistrates' Court may make an order under this section if the Court is satisfied that—
 - (a) the making of the order is in the interests of justice; and
 - (b) the total period of retention does not exceed 12 months; and
 - (c) retention of the cocaine kit is necessary for the purposes of an investigation into whether a contravention of this Part has occurred.

- (3) At least 7 days prior to the hearing of an application under this section, the applicant must give notice of the application to the person from whom the cocaine kit was seized or its lawful owner described in the application.

80G Forfeiture and destruction of seized cocaine kits

S. 80G
inserted by
No. 18/2006
s. 3.

- (1) Subject to section 80E, any cocaine kit that a police officer has seized and retained under this Part is forfeited to the Crown if the police officer—
- (a) cannot find the person from whom it was seized or its lawful owner, despite making reasonable enquiries; or
 - (b) cannot return it to the person from whom it was seized or its lawful owner, despite making reasonable efforts.
- (2) Any cocaine kit forfeited to the Crown under subsection (1) may be destroyed in any manner the Minister thinks fit.

S. 80G(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.26).

80H Court may order forfeiture to the Crown

S. 80H
inserted by
No. 18/2006
s. 3.

A court which finds a person guilty of an offence against section 80B or 80C may order that the cocaine kit to which the offence relates—

- (a) be forfeited to the Crown; and
- (b) be destroyed in accordance with the order.

Pt VAB
(Heading and
ss 80HA–
80HH)
inserted by
No. 64/2010
s. 11.

Part VAB—Ice pipes

S. 80HA
inserted by
No. 64/2010
s. 11.

80HA Definition

In this Part—

ice pipe means a device—

- (a) capable of being used or intended for use or designed for the introduction, or for introducing, into the body of a person the drug of dependence methylamphetamine, by means of smoking or inhaling of smoke or fumes resulting from the heating or burning of methylamphetamine in a crystalline form; or
- (b) that is intended to be used as a device referred to in paragraph (a) but that is not capable of being so used because it needs adjustment, modification or addition.

S. 80HB
inserted by
No. 64/2010
s. 11.

80HB Offence to display an ice pipe in a retail outlet

- (1) A person must not display an ice pipe in a retail outlet.

Penalty: In the case of a natural person
240 penalty units;

In the case of a body corporate
600 penalty units.

- (2) In this section, *retail outlet* includes—

- (a) a shop;
- (b) a market.

80HC Offence to sell or supply an ice pipe

A person must not sell or supply an ice pipe.

Penalty: In the case of a natural person
240 penalty units;

In the case of a body corporate
600 penalty units.

S. 80HC
inserted by
No. 64/2010
s. 11.

80HD Seizure of ice pipes

A police officer may seize an ice pipe if he or she
has reasonable grounds for suspecting that the ice
pipe is displayed or is for sale or supply in
contravention of this Part.

S. 80HD
inserted by
No. 64/2010
s. 11,
amended by
No. 37/2014
s. 10(Sch.
item 47.27).

80HE Retention and return of seized ice pipes

S. 80HE
inserted by
No. 64/2010
s. 11.

(1) If a police officer seizes an ice pipe under this
Part, the police officer must take reasonable steps
to return the ice pipe to the person from whom it
was seized or its lawful owner if the reason for its
seizure no longer exists.

S. 80HE(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.27).

(2) If the ice pipe seized under this Part has not been
returned to the person from whom it was seized
or its lawful owner within 3 months after it was
seized, a police officer must take reasonable steps
to return it to that person or owner unless—

S. 80HE(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.27).

(a) proceedings for the purpose for which the ice
pipe was retained have commenced within
that 3 month period and those proceedings
(including any appeal) have not been
completed; or

(b) the Magistrates' Court makes an order under
section 80HF extending the period during
which the ice pipe may be retained.

S. 80HF
inserted by
No. 64/2010
s. 11.

80HF Magistrates' Court may extend 3 month period

S. 80HF(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.27).

- (1) A police officer may apply to the Magistrates' Court—
 - (a) within 3 months after an ice pipe is seized under this Part; or
 - (b) if an extension has been granted under this section, before the end of the period of the extension—

for an extension (not exceeding 3 months) of the period during which the ice pipe may be retained.
- (2) The Magistrates' Court may make an order under this section if the Court is satisfied that—
 - (a) the making of the order is in the interests of justice; and
 - (b) the total period of retention does not exceed 12 months; and
 - (c) retention of the ice pipe is necessary for the purposes of an investigation into whether a contravention of this Part has occurred.
- (3) At least 7 days prior to the hearing of an application under this section, the applicant must give notice of the application to the person from whom the ice pipe was seized or its lawful owner described in the application.

S. 80HG
inserted by
No. 64/2010
s. 11.

80HG Forfeiture and destruction of seized ice pipe

S. 80HG(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.28).

- (1) Subject to section 80HF, any ice pipe that a police officer has seized and retained under this Part is forfeited to the Crown if the police officer—

- (a) cannot find the person from whom it was seized or its lawful owner, despite making reasonable enquiries; or
 - (b) cannot return it to the person from whom it was seized or its lawful owner, despite making reasonable efforts.
- (2) Any ice pipe forfeited to the Crown under subsection (1) may be destroyed in any manner the Minister thinks fit.

80HH Court may order forfeiture to the Crown

A court which finds a person guilty of an offence against section 80HB or 80HC may order that the ice pipe to which the offence relates—

- (a) be forfeited to the Crown; and
- (b) be destroyed in accordance with the order.

**S. 80HH
inserted by
No. 64/2010
s. 11.**

Pt VB
(Headings
and ss 80I–
80S)
inserted by
No. 55/2009
s. 8.

Part VB—Precursor chemicals and apparatus

Division 1—Preliminary

80I Application of Part

This Part does not apply to—

- (a) the supply by retail of a retail product containing a precursor chemical;
- (b) therapeutic goods within the meaning of the **Therapeutic Goods (Victoria) Act 2010** which are prescribed to be exempt (in whole or in part) from this Part;
- (c) the supply of a precursor chemical, or class of precursor chemical, which is prescribed to be exempt (in whole or in part) from this Part.

S. 80I(b)
amended by
No. 75/2014
s. 21.

Division 2—Category 1 precursor chemicals

80J Supply of category 1 precursor chemicals

- (1) Subject to subsection (2), a person (the *supplier*) must not supply a category 1 precursor chemical to another person (the *receiver*) unless the receiver—

- (a) provides sufficient proof of identity of receiver to the supplier; and

Note

See definition of *sufficient proof of identity of receiver* in section 4(1).

- (b) has an account with the supplier through which the receiver pays for the supply of category 1 precursor chemicals; and

S. 80J
inserted by
No. 55/2009
s. 8.

(c) gives the supplier an end user declaration containing the prescribed particulars.

Penalty: In the case of a natural person,
30 penalty units;
In the case of a body corporate,
150 penalty units.

(2) A person must not supply a category 1 precursor chemical under subsection (1) unless at least 24 hours have passed since the receiver complied with the requirements set out in subsection (1).

Penalty: In the case of a natural person,
30 penalty units;
In the case of a body corporate,
150 penalty units.

80K Storage of category 1 precursor chemicals

S. 80K
inserted by
No. 55/2009
s. 8.

(1) A person who supplies category 1 precursor chemicals must ensure that any category 1 precursor chemicals in that person's control, custody or possession are stored in a manner that prevents any access to it by a person other than—

- (a) the person who supplies the category 1 precursor chemicals; and
- (b) any person authorised in writing to have access to the category 1 precursor chemicals by the person referred to in paragraph (a).

Penalty: In the case of a natural person,
20 penalty units;
In the case of a body corporate,
100 penalty units.

- (2) A person who supplies any category 1 precursor chemical must keep each authorisation referred to in subsection (1)(b) for at least 2 years after the expiry of the authorisation.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

Division 3—Category 2 precursor chemicals and category 3 precursor apparatus

80L Supply of category 2 precursor chemicals

S. 80L
inserted by
No. 55/2009
s. 8.

A person (the *supplier*) must not supply a category 2 precursor chemical to another person (the *receiver*) unless the receiver—

- (a) provides sufficient proof of identity of receiver to the supplier; and

Note

See definition of *sufficient proof of identity of receiver* in section 4(1).

- (b) either—

- (i) has an account with the supplier through which the receiver pays for the supply of category 2 precursor chemicals; or
- (ii) if cash is used, gives the supplier an end user declaration containing the prescribed particulars.

Penalty: In the case of a natural person,
30 penalty units;

In the case of a body corporate,
150 penalty units.

80M Supply of category 3 precursor apparatus

S. 80M
inserted by
No. 55/2009
s. 8.

A person (the *supplier*) must not supply a category 3 precursor apparatus to another person (the *receiver*) unless the receiver—

- (a) provides sufficient proof of identity of receiver to the supplier; and

Note

See definition of *sufficient proof of identity of receiver* in section 4(1).

- (b) either—

- (i) has an account with the supplier through which the receiver pays for the supply of category 3 precursor apparatus; or
- (ii) if cash is used, gives the supplier an end user declaration containing the prescribed particulars.

Penalty: In the case of a natural person,
30 penalty units;

In the case of a body corporate,
150 penalty units.

Division 4—Transaction records

80N End user declarations to be kept

S. 80N
inserted by
No. 55/2009
s. 8.

- (1) A person who supplies any category 1 precursor chemical must keep each end user declaration given to the person under section 80J for at least 5 years after the relevant date of supply to which the end user declaration relates.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

- (2) A person who supplies any category 2 precursor chemical must keep each end user declaration given to the person under section 80L(b)(ii) for at least 2 years after the relevant date of supply to which the end user declaration relates.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

- (3) A person who supplies any category 3 precursor apparatus must keep each end user declaration given to the person under section 80M(b)(ii) for at least 2 years after the relevant date of supply to which the end user declaration relates.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

S. 80O
inserted by
No. 55/2009
s. 8.

80O Record of supply—category 1 precursor chemical

- (1) A person who supplies any category 1 precursor chemical must make an accurate record of the supply setting out the following details—
- (a) the date of supply; and
 - (b) the name and quantity of the category 1 precursor chemical supplied; and
 - (c) any other prescribed details (if any).

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

- (2) A person who supplies any category 1 precursor chemical must keep each record made under subsection (1) for a period of at least 5 years from

date of supply of the relevant category 1 precursor chemical to which the record relates.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

80P Record of supply—category 2 precursor chemical

S. 80P
inserted by
No. 55/2009
s. 8.

(1) A person who supplies any category 2 precursor chemical must make an accurate record of the supply setting out the following details—

- (a) unless the receiver gives an end user declaration, the name and address of the person to whom the category 2 precursor chemical was supplied; and
- (b) the date of supply; and
- (c) the name and quantity of the category 2 precursor chemical supplied; and
- (d) any other prescribed details (if any).

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

(2) A person who supplies any category 2 precursor chemical must keep each record made under subsection (1) for at least 2 years after the date of supply of the relevant category 2 precursor chemical to which the record relates.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

S. 80Q
inserted by
No. 55/2009
s. 8.

80Q Record of supply of category 3 precursor apparatus

- (1) A person who supplies any category 3 precursor apparatus must make an accurate record of the supply setting out the following details—
- (a) unless the receiver gives an end user declaration, the name and address of the person to whom the category 3 precursor apparatus was supplied; and
 - (b) the date of supply; and
 - (c) the name and quantity of the category 3 precursor apparatus supplied; and
 - (d) any other prescribed details (if any).

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

- (2) A person who supplies any category 3 precursor apparatus must keep each record made under subsection (1) for at least 2 years after the date of supply of the relevant category 3 precursor apparatus to which the record relates.

Penalty: In the case of a natural person,
20 penalty units;

In the case of a body corporate,
100 penalty units.

S. 80R
inserted by
No. 55/2009
s. 8.

80R Police may inspect records

S. 80R(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.29(a)).

- (1) Subject to subsection (4), a police officer, without warrant, at any time when the premises are open for business—

- (a) may enter premises where category 1 precursor chemicals, category 2 precursor chemicals or category 3 precursor apparatus are supplied; and
 - (b) may inspect any records required to be kept under this Part which are at those premises.
- (2) A police officer exercising a power under subsection (1) may require a person who supplies category 1 precursor chemicals, category 2 precursor chemicals or category 3 precursor apparatus to produce for inspection any records required to be kept under this Part. S. 80R(2)
amended by
No. 37/2014
s. 10(Sch.
item 47.29(a)).
- (3) Without limiting subsection (2), if a document required to be produced under subsection (2) is or is part of a record kept in an electronically readable form, a police officer may require the document to be provided in a readily accessible form—
 - (a) electronically; or
 - (b) in a paper form produced from a computer.
- (4) A police officer must show his or her identification before exercising a power under this section, unless that police officer is in police uniform. S. 80R(4)
amended by
No. 37/2014
s. 10(Sch.
item 47.29(b)).
- (5) This section does not limit or prevent the exercise of any other inspection power or enforcement power under this Act or the regulations or any other law.

S. 80S
inserted by
No. 55/2009
s. 8.

80S Offence not to produce records

A person must comply with a requirement under section 80R to produce a record required to be kept under this Part.

Penalty: In the case of a natural person,
20 penalty units;
In the case of a body corporate,
100 penalty units.

Part VC—Cannabis water pipes and hookahs

Division 1—Display, sale and supply

Pt 5C
(Headings
and ss 80T–
80ZE)
inserted by
No. 51/2011
s. 4.

80T Definitions

S. 80T
inserted by
No. 51/2011
s. 4.

In this Part—

bong component means an item for use or that is intended for use as part of a cannabis water pipe;

bong kit means a kit containing more than one item, one or more of which is a bong component, from which a cannabis water pipe may be constructed;

cannabis water pipe means a device—

- (a) capable of being used or intended to be used for the purposes of introducing into the body of a person cannabis or other drugs of dependence by the drawing of smoke or fumes resulting from heating or burning the cannabis or other drug through water or another liquid in the device, commonly known as a "bong"; or
- (b) that is intended to be used as a device referred to in paragraph (a) but is not capable of being so used because it needs adjustment, modification or addition—

but does not include a hookah;

hookah means a fully assembled device—

- (a) used for smoking a substance consisting of tobacco, molasses, fruit, herbs or flavouring, whether the substance contains all or any combination of them, by the drawing of smoke or fumes resulting from heating or burning the substance in the device through water or another liquid in the device; and
- (b) that has one or more openings and one or more flexible hoses, each with a mouthpiece through which the smoke or fumes are drawn;

S. 80T def. of
*medicinal
cannabis
vaporiser*
inserted by
No. 20/2016
s. 138,
amended by
No. 34/2019
s. 40.

medicinal cannabis vaporiser means a device capable of being used or intended to be used for the purposes of introducing into the body of a person a legal medicinal cannabis product by the drawing of vapour resulting from heating the product, whether through water or another liquid in the device or otherwise;

retail outlet includes—

- (a) a shop;
- (b) a market.

S. 80TA
inserted by
No. 20/2016
s. 139,
substituted by
No. 34/2019
s. 41.

80TA Part not to apply in relation to pharmacist dealing with medicinal cannabis vaporiser

Nothing in this Part applies in relation to a pharmacist displaying, selling or supplying a medicinal cannabis vaporiser to a person for administration of a legal medicinal cannabis product.

80U Offence to display cannabis water pipe, bong component or bong kit in retail outlet

**S. 80U
inserted by
No. 51/2011
s. 4.**

- (1) A person must not display a cannabis water pipe in a retail outlet.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

- (2) A person must not display a bong component in a retail outlet.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

- (3) A person must not display a bong kit in a retail outlet.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

80V Offence to sell cannabis water pipe, bong component or bong kit

**S. 80V
inserted by
No. 51/2011
s. 4.**

- (1) A person must not sell a cannabis water pipe.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

- (2) A person must not sell a bong component.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

(3) A person must not sell a bong kit.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

S. 80W
inserted by
No. 51/2011
s. 4.

80W Offence to supply cannabis water pipe, bong component or bong kit in course of carrying out commercial activity

(1) A person must not supply a cannabis water pipe in the course of carrying out a commercial activity.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

(2) A person must not supply a bong component in the course of carrying out a commercial activity.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

(3) A person must not supply a bong kit in the course of carrying out a commercial activity.

Penalty: In the case of a natural person,
60 penalty units;
In the case of a body corporate,
300 penalty units.

S. 80X
inserted by
No. 51/2011
s. 4.

80X Display for sale of hookahs in retail outlet

A person must not display for the purposes of sale in a retail outlet—

(a) more than 3 hookahs; or

- (b) if another number of hookahs is prescribed for the purposes of this section, more than the prescribed number of hookahs.

Penalty: In the case of a natural person,
10 penalty units;
In the case of a body corporate,
50 penalty units.

Division 2—Enforcement

80Y Power to issue infringement notices

S. 80Y
inserted by
No. 51/2011
s. 4.

- (1) A police officer may serve an infringement notice on a person who the police officer has reason to believe has committed an offence against section 80U(1), (2) or (3), 80V(1), (2) or (3), 80W(1), (2) or (3) or 80X.
- (2) An offence referred to in subsection (1) for which an infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.

S. 80Y(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.30).

80Z Infringement penalty

S. 80Z
inserted by
No. 51/2011
s. 4.

- (1) The infringement penalty for an offence against section 80U(1), (2) or (3), 80V(1), (2) or (3) or 80W(1), (2) or (3) is—
- (a) in the case of a natural person, 12 penalty units;
- (b) in the case of a body corporate, 60 penalty units.

(2) The infringement penalty for an offence against section 80X is—

- (a) in the case of a natural person, 2 penalty units;
- (b) in the case of a body corporate, 10 penalty units.

S. 80ZA
inserted by
No. 51/2011
s. 4,
amended by
No. 9/2014 s. 9
(ILA s. 39B(1)).

80ZA Seizure of cannabis water pipes, bong components or bong kits

S. 80ZA(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.31).

(1) A police officer may seize a cannabis water pipe, bong component or bong kit if he or she has reasonable grounds for suspecting that the cannabis water pipe, bong component or bong kit is displayed or is for sale or is supplied in contravention of this Part.

S. 80ZA(2)
inserted by
No. 9/2014
s. 9,
amended by
No. 37/2014
s. 10(Sch.
item 47.32).

(2) If a police officer serves an infringement notice on a person for an offence against section 80U(1), (2) or (3), 80V(1), (2) or (3) or 80W(1), (2) or (3), the police officer may seize from the person any cannabis water pipe, bong component or bong kit to which the offence relates.

S. 80ZB
inserted by
No. 51/2011
s. 4.

80ZB Retention and return of seized items

S. 80ZB(1)
amended by
Nos 9/2014
s. 10(1),
37/2014
s. 10(Sch.
item 47.33).

(1) If a police officer seizes a cannabis water pipe, bong component or bong kit under section 80ZA(1), the police officer must take reasonable steps to return the seized item to the person from whom it was seized or its lawful owner if the reason for its seizure no longer exists.

- (2) If a cannabis water pipe, bong component or bong kit seized under section 80ZA(1) has not been returned to the person from whom it was seized or its lawful owner within 3 months after it was seized, a police officer must take reasonable steps to return it to that person or owner unless—
- (a) proceedings for the purpose for which the cannabis water pipe, bong component or bong kit was retained have commenced within that 3 month period and those proceedings (including any appeal) have not been completed; or
- (b) the Magistrates' Court makes an order under section 80ZC extending the period during which the cannabis water pipe, bong component or bong kit may be retained.
- (3) If a police officer seizes a cannabis water pipe, bong component or bong kit under section 80ZA(2), a police officer must take reasonable steps to return the seized item to the person on whom the infringement notice is served if—
- (a) a police officer withdraws the infringement notice without—
- (i) referring the matter for which the infringement notice has been served to the Magistrates' Court under section 17(1) of the **Infringements Act 2006**; or
- (ii) filing a charge-sheet and summons in the Children's Court for the matter of the infringement offence to be dealt with; or
- S. 80ZB(2) amended by Nos 9/2014 s. 10(1), 37/2014 s. 10(Sch. item 47.33).
- S. 80ZB(3) inserted by No. 9/2014 s. 10(2), amended by No. 37/2014 s. 10(Sch. item 47.34).
- S. 80ZB(3)(a) amended by No. 37/2014 s. 10(Sch. item 47.34).

S. 80ZB(3)(b)
substituted by
No. 47/2014
s. 260.

- (iii) serving, on that person, an official warning (within the meaning of the **Infringements Act 2006**) in place of the infringement notice; or
- (b) the enforcement agency under the **Infringements Act 2006** grants an application under section 25(2A)(a) of that Act; or
- (c) the Children's Court cancels the infringement notice under clause 16 of Schedule 3 to the **Children, Youth and Families Act 2005**; or
- (d) the matter of the infringement notice is heard and determined in the Magistrates' Court or the Children's Court without an order under section 80ZE being made.

S. 80ZC
inserted by
No. 51/2011
s. 4.

80ZC Magistrates' Court may extend 3 month period

S. 80ZC(1)
amended by
Nos 9/2014
s. 11, 37/2014
s. 10(Sch.
item 47.35).

- (1) A police officer may apply to the Magistrates' Court for an extension (not exceeding 3 months) of the period during which a cannabis water pipe, bong component or bong kit seized under section 80ZA(1) may be retained.
- (2) An application under subsection (1) must be made—
 - (a) within 3 months after a cannabis water pipe, bong component or bong kit is seized under this Part; or
 - (b) if an extension has been granted under this section, before the end of the period of the extension.

- (3) The Magistrates' Court may make an order under this section if the Court is satisfied that—
- (a) the making of the order is in the interests of justice; and
 - (b) the total period of retention does not exceed 12 months; and
 - (c) retention of the cannabis water pipe, bong component or bong kit is necessary for the purposes of an investigation into whether a contravention of this Part has occurred.
- (4) At least 7 days prior to the hearing of an application under this section, the applicant must give notice of the application to the person from whom the cannabis water pipe, bong component or bong kit was seized or its lawful owner described in the application.

80ZD Forfeiture and destruction of seized items

S. 80ZD
inserted by
No. 51/2011
s. 4.

- (1) Subject to section 80ZB, any cannabis water pipe, bong component or bong kit that a police officer has seized and retained under that section is forfeited to the Crown if the police officer—
- (a) cannot find the person from whom it was seized or its lawful owner, despite making reasonable enquiries; or
 - (b) cannot return it to the person from whom it was seized or its lawful owner, despite making reasonable efforts.

S. 80ZD(1)
amended by
Nos 9/2014
s. 12(1),
37/2014
s. 10(Sch.
item 47.36).

- (1A) Despite anything to the contrary in Division 5 of Part 2 of the **Infringements Act 2006**, any cannabis water pipe, bong component or bong kit that a police officer has seized under section 80ZA(2) is forfeited to the Crown if the

S. 80ZD(1A)
inserted by
No. 9/2014
s. 12(2),
amended by
No. 37/2014
s. 10(Sch.
item 47.37).

person on whom the infringement notice has been served expiates that offence by payment of the infringement penalty in accordance with that Act.

S. 80ZD(2)
amended by
No. 9/2014
s. 12(3).

- (2) Any cannabis water pipe, bong component or bong kit forfeited to the Crown under subsection (1) or (1A) may be destroyed in any manner the Minister thinks fit.

S. 80ZE
inserted by
No. 51/2011
s. 4.

80ZE Court may order forfeiture to the Crown

A court which finds a person guilty of an offence against section 80U(1), (2) or (3), 80V(1), (2) or (3) or 80W(1), (2) or (3) may order that the cannabis water pipe, bong component or bong kit to which the offence relates—

- (a) be forfeited to the Crown; and
- (b) be destroyed in accordance with the order.

Part VI—Search seizure and forfeiture

Pt 6
(Heading and
ss 70–101)
substituted as
Pt 6 (Heading
and ss 81–90)
by No. 10002
s. 7(1).

80ZF Definitions

S. 80ZF
inserted by
No. 40/2017
s. 12.

In this Part—

commercial supply means supply in the course
of carrying out a commercial activity;

produce has the same meaning as it has in
Part IIIA.

81 Warrant to search premises

S. 81
substituted by
No. 10002
s. 7(1).

- (1) Any magistrate who is satisfied by evidence on oath or by affirmation or by affidavit of any police officer of or above the rank of sergeant or for the time being in charge of a police station that there is reasonable ground for believing that there is, or will be within the next 72 hours, on or in any land or premises (including any vehicle on or in that land or those premises), or on or in a particular vehicle located in a public place—

S. 81(1)
amended by
Nos 16/1986
s. 30, 101/1986
s. 58(1)(c),
57/1989
s. 3(Sch. item
59.8(a)–(c)),
48/1997
s. 44(1)(a),
25/2009
s. 6(1),
37/2014
s. 10(Sch.
item 47.38(a)),
6/2018
s. 68(Sch. 2
item 42.1),
33/2018 s. 90.

- (a) any thing in respect of which an offence under this Act or the regulations has been or is reasonably suspected to have been committed or is being or is likely to be committed within the next 72 hours;

S. 81(1)(a)
amended by
No. 48/1997
s. 44(1)(b).

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Part VI—Search seizure and forfeiture

- (b) any thing which there is reasonable ground to believe will afford evidence of the commission of an offence under this Act or the regulations; or
- (c) any document directly or indirectly relating to or concerning a transaction or dealing which is or would be, if carried out, an offence under this Act or the regulations or under a provision of a law in force in a place outside Victoria corresponding to Part V of this Act—

may at any time issue a warrant authorizing a police officer named in the warrant to enter and search the land, premises or vehicle for any such thing or document and to seize and carry it before the Court so that the matter may be dealt with according to law.

S. 81(1AA)
inserted by
No. 25/2009
s. 6(2),
amended by
No. 37/2014
s. 10(Sch.
item 47.38(a)).

- (1AA) A search warrant directed to a named police officer under subsection (1) may be executed by any police officer.

S. 81(1AB)
inserted by
No. 48/2012
s. 41,
amended by
No. 6/2018
s. 68(Sch. 2
item 42.1).

- (1AB) For the purposes of subsection (1), a seized thing may be brought before the Court by giving evidence on oath or by affirmation to the Court as to the present whereabouts of the thing and by producing a photograph of it.

S. 81(1A)
inserted by
No. 63/2003
s. 46(1),
amended by
Nos 25/2009
s. 6(3),
37/2014
s. 10(Sch.
item 47.38(a)).

- (1A) A magistrate who issues a warrant under subsection (1), if satisfied on reasonable grounds by the evidence given under that subsection that the thing or document to which the warrant relates is also tainted property within the meaning of the **Confiscation Act 1997**, may, in that warrant, direct that the police officer executing the warrant hold or retain that thing or document as if it were

tainted property seized under a warrant under section 79 of that Act as and from the date when that thing or document is no longer required for evidentiary purposes under this Act.

(1B) A direction under subsection (1A)—

S. 81(1B)
inserted by
No. 63/2003
s. 46(1).

(a) may only be made in relation to an offence under this Act which is a Schedule 1 offence within the meaning of the **Confiscation Act 1997**; and

S. 81(1B)(a)
amended by
No. 87/2004
s. 25.

(b) does not apply to a thing which may be destroyed or disposed of under subsection (3)(e).

(2) Every warrant under subsection (1) shall be in or to the effect of the form of Schedule Ten.

(3) A police officer executing a warrant issued under subsection (1) may at any time or times by day or night but within one month from the date of the warrant and with such assistance as may be necessary—

S. 81(3)
amended by
Nos 25/2009
s. 6(4)(a),
37/2014
s. 10(Sch.
item 47.38(a)).

(a) enter, if need be by force—

S. 81(3)(a)
substituted by
No. 25/2009
s. 6(4)(b).

(i) the land or premises named in the warrant, including any vehicle located on or in that land or those premises;

(ii) the particular vehicle named or described in the warrant located in a public place;

(b) arrest all persons on or in that land, those premises or that vehicle who are found offending against a provision of this Act or the regulations;

S. 81(3)(b)
amended by
No. 25/2009
s. 6(4)(c).

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S. 81(3)(c)
substituted by
No. 25/2009
s. 6(4)(d).

(c) search—

- (i) the land or premises or any vehicle or any person found on or in that land or those premises or on or in any vehicle on or in that land or those premises;
- (ii) a particular vehicle located in a public place or any person found on or in that vehicle; and

S. 81(3)(d)
amended by
Nos 48/1997
s. 44(2)(a)(b),
63/2003
s. 46(2).

(d) seize and carry away or, unless a direction under subsection (1A) applies, deal with as mentioned in paragraph (e)—

- (i) any thing in respect of which an offence under this Act or the regulations has been or is reasonably suspected to have been committed;
- (ii) any thing which there is reasonable ground to believe will afford evidence of the commission of an offence under this Act or the regulations; and
- (iii) any document directly or indirectly relating to or concerning a transaction or dealing which is or would be, if carried out, an offence against this Act or the regulations or under a provision of a law in force in a place outside Victoria corresponding to a provision of Part V of this Act; and

S. 81(3)(e)
inserted by
No. 48/1997
s. 44(2)(b).

(e) if—

(i) the thing is—

- (A) a drug of dependence or a substance that contains a drug of dependence; or
- (B) a poison or controlled substance;
or

- (C) an instrument, device or substance that is or has been used or is capable of being used for or in the cultivation, manufacture, sale or use or in the preparation for cultivation, manufacture, sale or use of a drug of dependence; and
- (ii) an analyst or botanist within the meaning of section 120 certifies in writing to the police officer executing the warrant that destruction or disposal of the thing is required in the interests of health or safety—
- destroy or dispose of the thing after taking, where practicable, any samples of it as are required for the purposes of this Act.
- (4) A police officer who executes a warrant under this section must, as soon as practicable after the warrant is executed—
- (a) endorse the warrant to that effect; and
- (b) cause to be lodged with the registrar of the Magistrates' Court at the venue nearest to the land, premises or public place where the warrant was executed a report signed by the police officer and containing particulars of—
- (i) all searches undertaken; and
- (ii) all persons arrested; and
- (iii) all things and documents seized and carried away; and

S. 81(3)(e)(ii)
amended by
No. 37/2014
s. 10(Sch.
item 47.38(a)).

S. 81(4)
amended by
Nos 57/1989
s. 3(Sch.
item 59.9),
48/1997
s. 44(3),
substituted by
No. 25/2009
s. 6(5),
amended by
No. 37/2014
s. 10(Sch.
item
47.38(b)(i)).

S. 81(4)(b)
amended by
No. 37/2014
s. 10(Sch.
item
47.38(b)(ii)).

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- (iv) all samples taken; and
- (v) all things destroyed or disposed of—
in execution of the warrant.

S. 81(4A)
inserted by
No. 63/2003
s. 46(3).

- (4A) If a direction under subsection (1A) was made, a report referred to in subsection (4)(b) must also include particulars of whether a seized thing or document is being held or retained as if it were tainted property within the meaning of the **Confiscation Act 1997** seized under a warrant under section 79 of that Act.

S. 81(5)
amended by
No. 57/1989
s. 3(Sch. item
59.10(a)(b)).

- (5) On application in that behalf by a person made to the Magistrates' Court at the venue at which a report has been lodged pursuant to subsection (4), the Court may make an order authorizing the person to inspect the report if the person satisfies the Court that he is—

- (a) a person who was arrested in the course of the execution of the warrant;
- (b) the owner or occupier of premises upon which the warrant was executed; or

S. 81(5)(ba)
inserted by
No. 25/2009
s. 6(6).

- (ba) the owner of the vehicle located in a public place on which the warrant was executed; or

S. 81(5)(c)
amended by
No. 48/1997
s. 44(4).

- (c) the owner of the property seized and carried away in the execution of the warrant; or

S. 81(5)(d)
inserted by
No. 48/1997
s. 44(4).

- (d) the owner of property destroyed or disposed of in execution of the warrant.

S. 81(6)
inserted by
No. 48/1997
s. 44(5).

- (6) If a sample of a thing referred to in subsection (3)(e) taken in execution of a warrant is sufficient to enable an analysis or examination to be made both in the investigation of an offence

and on behalf of a person arrested in the course of the execution of the warrant, a part of the sample taken sufficient for analysis or examination must, on request by the person arrested, be delivered to an analyst or botanist within the meaning of section 120 nominated by that person.

- (7) Nothing in this section affects the power of a police officer under section 82.

S. 81(7)
inserted by
No. 25/2009
s. 6(7),
amended by
No. 37/2014
s. 10(Sch.
item 47.38(c)).

- (8) In this section—

S. 81(8)
inserted by
No. 25/2009
s. 6(7).

* * * * *

S. 81(8) def. of
public place
repealed by
No. 40/2017
s. 13.

vehicle includes motor vehicle, aircraft, boat and vessel.

81A Notice that seized thing or document is being held for purposes of Confiscation Act 1997

S. 81A
inserted by
No. 63/2003
s. 47.

- (1) If a thing or document seized under a warrant issued under section 81 to which a direction under section 81(1A) applies is no longer required for evidentiary purposes under this Act, the police officer who executed the warrant must give notice to all persons known to have an interest in that thing or document that the thing or document is being held or retained as if it were tainted property seized under a warrant under section 79 of the **Confiscation Act 1997**.

S. 81A(1)
amended by
Nos 25/2009
s. 6(8),
37/2014
s. 10(Sch.
item 47.39).

- (2) A notice under subsection (1) must be—
- (a) given within 7 days after the thing or document is no longer required for evidentiary purposes under this Act; and
 - (b) in the prescribed form.

S. 81B
inserted by
No. 63/2003
s. 47.

81B Application for tainted property to be held or retained—return of warrant to court

S. 81B(1)
amended by
Nos 25/2009
s. 6(9),
37/2014
s. 10(Sch.
item 47.39).

- (1) When a thing or document is brought before the Magistrates' Court to be dealt with according to law in accordance with the warrant issued under section 81 under which that thing or document was seized, the police officer who executed the warrant or another police officer may apply to the Court for a direction that the thing or document so seized be held or retained as if it were tainted property seized under a warrant under section 79 of the **Confiscation Act 1997**.
- (2) An application may only be made under subsection (1) if a direction under section 81(1A) was not made in relation to the warrant when it was issued.

S. 81C
inserted by
No. 63/2003
s. 47.

81C Court may make direction

S. 81C(1)
amended by
No. 37/2014
s. 10(Sch.
item 47.39).

- (1) On an application under section 81B, if the Court is satisfied on reasonable grounds that the thing or document seized under the warrant issued under section 81 is tainted property within the meaning of the **Confiscation Act 1997**, the Court may direct that the thing or document be held or retained by the police officer as if it were tainted property seized under a warrant under section 79 of that Act.

- (2) A direction under this section takes effect on and from the date that the thing or document is no longer required for evidentiary purposes under this Act.
- (3) In determining whether the thing or document which is the subject of the application is in fact tainted property within the meaning of the **Confiscation Act 1997**, the Court may require the applicant to provide any information that the Court considers necessary.

81D Notice of direction under section 81C

S. 81D
inserted by
No. 63/2003
s. 47.

- (1) If the Magistrates' Court makes a direction under section 81C, the applicant for the direction must give notice to all persons known to have an interest in the thing or document to which the direction applies that the thing or document is being held or retained as if it were tainted property seized under a warrant under section 79 of the **Confiscation Act 1997** by virtue of a direction made under section 81C.
- (2) A notice under subsection (1) must be—
 - (a) given within 7 days after the thing or document is no longer required for evidentiary purposes under this Act; and
 - (b) in the prescribed form.

81E Effect of directions under sections 81(1A) and 81C

S. 81E
inserted by
No. 63/2003
s. 47.

If a direction has been made under section 81(1A) or 81C, the thing or document to which the direction applies—

- (a) is deemed, on and from the date on which the thing or document is no longer required for evidentiary purposes under this Act, to have been seized as tainted property under a warrant under section 79 of the **Confiscation Act 1997**; and

S. 81F
inserted by
No. 55/2025
s. 42.

(b) is to be dealt with under that Act accordingly.

81F Display of seized things

(1) The Chief Commissioner of Police may display a thing seized under a warrant issued under section 81 to the public in any manner, including the following—

(a) by displaying the thing at a conference attended by one or more media organisations;

(b) by publishing a photo or video of the thing.

(2) In this section—

journalism means the practice of collecting, preparing for dissemination or disseminating any of the following material for the purpose of making it available to the public—

(a) material having the character of news or current affairs;

(b) material consisting of commentary or opinion or analysis of news or current affairs;

media organisation means a person or body that engages in journalism;

publish means disseminate or provide access to the public or a section of the public by—

(a) publication in a newspaper; or

(b) electronic communication (including television broadcast or social media).

82 Search without warrant

(1) Where a police officer has reasonable grounds for suspecting that—

- (a) on or in a vehicle in or upon a public place;
- (b) on an animal in a public place;
- (c) in the possession of a person in a public place;
- (d) on or in a boat or vessel, underway or not; or
- (e) on or in an aircraft—

there is a drug of dependence in respect of which an offence has been committed or is reasonably suspected to have been committed under a provision of Part V, the police officer may with such assistance as he thinks necessary—

- (f) search the vehicle, animal, person, boat, vessel or aircraft;
- (g) seize and carry away any instrument device or substance which he reasonably believes to be used or capable of being used for or in the manufacture, sale, preparation for manufacture, preparation for sale, or use of any drug of dependence;
- (h) seize and carry away the drug of dependence—

and deal with it according to law.

S. 82
substituted by
No. 10002
s. 7(1),
amended by
Nos 37/2014
s. 10(Sch.
item 47.40),
40/2017
s. 14(2) (ILA
s. 39B(1)).

S. 82(1)(f)
amended by
No. 40/2017
s. 14(1).

S. 82(2)
inserted by
No. 40/2017
s. 14(2).

- (2) If a police officer has reasonable grounds for suspecting that there is a psychoactive substance—
- (a) on or in a vehicle in a public place; or
 - (b) on an animal in a public place; or
 - (c) in the possession of a person in a public place; or
 - (d) on or in a boat or vessel, underway or not; or
 - (e) on or in an aircraft—

the police officer may with any assistance that the police officer thinks necessary do any of the following—

- (f) search the vehicle, animal, person, boat, vessel or aircraft;
- (g) seize and carry away any instrument, device or substance which the police officer reasonably believes to be used or capable of being used for or in the production, sale, commercial supply or preparation for sale or commercial supply of any psychoactive substance;
- (h) seize and carry away the psychoactive substance—

and deal with it according to law.

S. 82A
inserted by
No. 45/2017
s. 18.

82A Protective services officer may exercise police powers under section 82 to search without warrant

- (1) Subject to subsection (3), a protective services officer on duty at a designated place may exercise all the powers and has all the duties given to or imposed on a police officer under section 82 other than—
- (a) the power to search a boat, vessel or aircraft; and

- (b) subject to subsection (4)—
 - (i) the power to carry away any instrument, device or substance under section 82(1)(g) or (2)(g); and
 - (ii) the power to carry away any drug of dependence or psychoactive substance under section 82(1)(h) or (2)(h).
- (2) Any reference in section 82 to an action taken by a police officer includes any action taken by a protective services officer on duty at a designated place exercising the powers of a police officer in reliance on subsection (1).
- (3) A protective services officer on duty at a designated place may only exercise the powers under section 82 in relation to a person who is at, or in the vicinity of, a designated place.
- (4) If, in the course of a search under section 82, a protective services officer on duty at a designated place seizes any instrument, device or substance under section 82(1)(g) or (2)(g), or any drug of dependence or psychoactive substance under section 82(1)(h) or (2)(h)—
 - (a) the protective services officer, as soon as practicable after that seizure, must give the instrument, device, substance, drug of dependence or psychoactive substance to a police officer; and
 - (b) the police officer must deal with that instrument, device, substance, drug of dependence or psychoactive substance according to law as if it had been seized by that police officer under section 82.

S. 83
substituted by
No. 10002
s. 7(1).

83 Forfeiture of drug of dependence or substance before conviction

S. 83(1)
amended by
Nos 16/1986
s. 30, 101/1986
s. 58(1)(d)(iii),
57/1989
s. 3(Sch.
item 59.11),
37/2014
s. 10(Sch.
item 47.41),
40/2017
s. 15(1)(c),
25/2023
s. 7(Sch. 1
item 10.3).

- (1) Upon application in that behalf by a police officer the Magistrates' Court may upon proof that—

S. 83(1)(a)
amended by
No. 40/2017
s. 15(1)(a).

- (a) a substance is or contains a drug of dependence, a psychoactive substance or a poison or controlled substance; or

S. 83(1)(b)
substituted by
Nos 101/1986
s. 58(1)(d)(i),
40/2017
s. 15(1)(b).

- (b) an instrument, device or substance is an instrument, device or substance that is or has been used or is capable of being used for or in—
- (i) the cultivation, manufacture, sale or use or in the preparation for cultivation, manufacture, sale or use of a drug of dependence; or
- (ii) the production, sale, commercial supply or preparation for sale or commercial supply of a psychoactive substance—

and upon such notice being given to such persons as the court directs, order that the instrument or device or the whole or any part or parts of the substance, drug of dependence, psychoactive substance or poison or controlled substance be forfeited to His Majesty and either destroyed or disposed of in such manner as is provided in the order, and may also make a finding of fact as to—

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(c) the quantity of the drug of dependence, psychoactive substance, substance or poison or controlled substance produced to, or inspected by, the court, the quantity ordered to be destroyed or disposed of, the quantity remaining, and the fact that what remains is part of what was produced to, or inspected by, the court; or

S. 83(1)(c)
amended by
Nos 101/1986
s. 58(1)(d)(ii),
40/2017
s. 15(1)(d).

(d) the nature of any instrument or device produced to, or inspected by, the court—

S. 83(1)(d)
amended by
No. 101/1986
s. 58(1)(d)(ii).

and may also order that the quantity remaining of the substance, drug of dependence, psychoactive substance or poison or controlled substance be forfeited to His Majesty and either destroyed or disposed of in such manner as is provided in the order when no longer required for the purpose of any subsequent proceedings.

(1A) The Magistrates' Court has power—

- (a) to give any directions; or
- (b) to authorise the Minister to give any appropriate directions—

S. 83(1A)
inserted by
No. 101/1986
s. 58(1)(d)(iv),
amended by
No. 57/1989
s. 3(Sch.
item 59.12).

necessary to give effect to any order made by it under subsection (1).

(2) Where a finding of fact is made under subsection (1), production in any subsequent proceedings of an order containing the finding of fact shall be conclusive evidence of the matters to which the finding relates.

S. 83(2)
amended by
No. 101/1986
s. 58(1)(d)(v).

(3) In subsection (1) **cultivation**, in relation to a drug of dependence that is a narcotic plant, includes—

S. 83(3)
inserted by
No. 101/1986
s. 58(1)(d)(vi).

- (a) the sowing of a seed of a narcotic plant; and
- (b) the planting, growing, tending, nurturing or harvesting of a narcotic plant; and

S. 83(3)(b)
amended by
No. 52/2006
s. 13(a).

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S. 83(3)(c)
inserted by
No. 52/2006
s. 13(b).

(c) the grafting, dividing or transplanting of a
narcotic plant.

S. 83(4)
inserted by
No. 101/1986
s. 58(1)(d)(vi),
amended by
No. 57/1989
s. 3(Sch.
item 59.13).

(4) Without limiting the manner in which evidence
may be given on an application under
subsection (1), the Court may inspect any place,
process or thing.

S. 83(5)
inserted by
No. 48/1997
s. 44(6),
amended by
No. 40/2017
s. 15(2).

(5) If an order is made under subsection (1) requiring
the destruction or disposal of an instrument or
device or the whole or any part of any substance,
drug of dependence, psychoactive substance or
poison or controlled substance, the order may be
executed before the end of any appeal period
applicable under section 90 if a sample of the
thing to be destroyed or disposed of is taken in
accordance with this Act and kept until the end
of that appeal period and the determination of
any appeal made within that period.

S. 84
substituted by
No. 10002
s. 7(1),
repealed by
No. 101/1986
s. 58(1)(e).

* * * *

Ss 85–89
substituted by
No. 10002
s. 7(1),
repealed by
No. 101/1986
s. 55(1)(d).

* * * *

90 Appeals

S. 90
substituted by
No. 10002
s. 7(1).

- (1) Notwithstanding anything to the contrary in any other Act a person (including the Crown) affected by an order made under section 83 may appeal against the decision as if the order were or were part of a sentence imposed on conviction for the offence in relation to a drug of dependence or a psychoactive substance to which the order relates, being a sentence which is not fixed by law and against which an appeal may be brought.
- (2) Notwithstanding anything to the contrary in any other Act, a person (including the Crown) affected by the refusal or failure of the Magistrates' Court to make an order under section 83 may appeal in accordance with Rules of court against that failure or refusal.
- (3) On an appeal under subsection (1) the court to which the appeal is made may confirm vary or revoke the order to which the appeal relates.
- (4) An appeal under subsection (2) shall be by way of a re-hearing, and the court may in relation to the hearing and determination of the appeal exercise any powers which by or under this Act are conferred on a court in relation to the hearing and determination of an application for an order of the kind to which the appeal relates.
- (5) Where an appeal under subsection (1) is made by the Crown, proceedings on the appeal shall be instituted and conducted in the name of the Crown by the Director of Public Prosecutions.

S. 90(1)
amended by
Nos 101/1986
s. 55(1)(e),
25/1990
s. 4(1)(a),
40/2017 s. 16.

S. 90(2)
amended by
Nos 101/1986
s. 55(1)(e),
57/1989
s. 3(Sch.
item 59.14),
25/1990
s. 4(1)(b).

S. 90(6)
amended by
No. 40/2017
s. 16.

- (6) An appeal under this section may be heard with any other appeal against the conviction or sentence for the offence in relation to a drug of dependence or a psychoactive substance which is the subject-matter of the first-mentioned appeal.
- (7) A person's right of appeal under this section is in addition to any other right of appeal which the person may have.

S. 91
(Heading)
amended by
No. 40/2017
s. 17(1).

91 Destruction of drugs of dependence and psychoactive substances—health and safety interests

S. 91
repealed by
No. 10002
s. 7(1),
new s. 91
inserted by
No. 52/2006
s. 14.

S. 91(1)
amended by
Nos 37/2014
s. 10(Sch.
item 47.41),
40/2017
s. 17(2)(b).

- (1) Without limiting this Part, if a police officer carrying out a function under this Act or any other Act or law—
 - (a) enters—
 - (i) any public land for the purposes of searching that land or premises on that land or any vehicle, boat, vessel or aircraft on that land or on those premises; or
 - (ii) any land or premises other than public land or premises on public land with the written or oral permission of either the owner or occupier of that land or those premises for the purposes of searching that land or premises or any vehicle, boat, vessel or aircraft on that land or on those premises; and

(b) finds on that land or those premises—

(i) a drug of dependence or a substance that contains a drug of dependence; or

(ia) a psychoactive substance; or

S. 91(1)(b)(ia)
inserted by
No. 40/2017
s. 17(2)(a)(i).

(ii) a poison or controlled substance; or

(iii) an instrument, device or substance that is or has been used or is capable of being used for or in the cultivation, manufacture, sale or use or in the preparation for cultivation, manufacture, sale or use of a drug of dependence; or

S. 91(1)(b)(iii)
amended by
No. 40/2017
s. 17(2)(a)(ii).

(iv) an instrument, device or substance that is or has been used or is capable of being used for or in the production, sale, commercial supply or preparation for sale or commercial supply of a psychoactive substance; and

S. 91(1)(b)(iv)
inserted by
No. 40/2017
s. 17(2)(a)(iii).

(c) an analyst or botanist within the meaning of section 120 certifies in writing to the police officer that destruction or disposal of the thing is required in the interests of health or safety—

S. 91(1)(c)
amended by
No. 37/2014
s. 10(Sch.
item 47.41).

the drug of dependence, psychoactive substance, poison, controlled substance, instrument, device or substance, as the case requires, may be destroyed or disposed of in accordance with this section.

(2) For the purposes of this section, the Chief Commissioner of Police or a delegated police officer may authorise the destruction or disposal of, or cause to be destroyed or disposed of, a thing referred to in subsection (1)(b) after causing to be

taken, where practicable, any samples of it as are required for the purposes of this Act.

- (3) A thing referred to in subsection (1)(b)—
- (a) may be disposed of or destroyed on the land or premises on which the thing was found, if practicable; or
 - (b) if it is not practicable to comply with paragraph (a), may be seized and carried away for disposal or destruction at another place.
- (4) If a sample of a thing referred to in subsection (1)(b) taken in accordance with subsection (2) is sufficient to enable an analysis or examination to be made both in the investigation of an offence against a provision of Part IIIA or Part V and on behalf of a person charged with that offence, on request by that person or that person's legal representative, a part of the sample taken sufficient for analysis or examination must be delivered to an analyst or botanist within the meaning of section 120 nominated by that person or that person's legal representative.
- (5) Without limiting any other power under this Act, the Chief Commissioner of Police or a delegated police officer may authorise the disposal or destruction of, or cause to be destroyed or disposed of, any sample of a thing referred to in subsection (1)(b) taken in accordance with this section where that sample of that thing is no longer required for the purpose of any subsequent proceedings.

S. 91(4)
amended by
No. 40/2017
s. 17(3).

92 Delegated police officers

- (1) The Chief Commissioner of Police may delegate, either generally or in a particular case, the function under section 91 of disposing of or destroying a thing referred to in section 91(1)(b) to—
- (a) a police officer of or above the rank of superintendent; or
- (b) a class of police officer of or above the rank of superintendent.
- (2) A delegation under subsection (1) must be in writing.

S. 92
repealed by
No. 10002
s. 7(1),
new s. 92
inserted by
No. 52/2006
s. 14.

S. 92(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item 47.41).

S. 92(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item 47.41).

93 Certificate and report to be provided to Chief Commissioner of Police

- (1) If a delegated police officer destroys or disposes of a thing referred to in section 91(1)(b) in accordance with section 91(2), the officer must, as soon as practicable after doing so, provide the Chief Commissioner of Police with—
- (a) a copy of the certificate of health and safety destruction or disposal; and
- (b) a written report containing the details required by subsection (3).
- (2) If the Chief Commissioner of Police destroys or disposes of a thing referred to in section 91(1)(b) in accordance with section 91(2), the Chief Commissioner of Police must, as soon as practicable after doing so, ensure that a copy of the certificate of health and safety destruction or disposal and a written report containing the details required by subsection (3) are made and retained.

S. 93
repealed by
No. 10002
s. 7(1),
new s. 93
inserted by
No. 52/2006
s. 14.

- (3) A written report under subsection (1) or (2) must contain the following—
 - (a) details of the samples that were taken; and
 - (b) details of the things that were seized, destroyed or disposed of; and
 - (c) details of the circumstances surrounding the seizure, destruction and disposal.
- (4) The Chief Commissioner of Police must keep a copy, or cause a copy to be kept, of each certificate of health and safety destruction or disposal and each report provided to the Chief Commissioner of Police in accordance with subsection (1) or made and retained under subsection (2).

S. 94
repealed by
No. 10002
s. 7(1),
new s. 94
inserted by
No. 52/2006
s. 14.

94 Request for copies

- (1) The following persons may request in writing a copy of a report or a certificate of health and safety destruction or disposal kept by the Chief Commissioner of Police under section 93—
 - (a) the owner or occupier of land or premises referred to in section 91(1)(a)(ii) at the time when anything referred to in section 91(1)(b) was seized, disposed of or destroyed in accordance with section 91 or that person's legal representative;
 - (b) the owner of any vehicle, boat, vessel or aircraft on land or premises referred to in paragraph (a) at the time when any thing referred to in section 91(1)(b) was seized, disposed of or destroyed in accordance with section 91 or that person's legal representative;

(c) a person charged with an offence against a provision of Part IIIA or Part V in respect of anything referred to in section 91(1)(b) which was seized, disposed of or destroyed in accordance with section 91 or that person's legal representative.

S. 94(1)(c)
amended by
No. 40/2017
s. 17(3).

(2) The Chief Commissioner of Police must, as soon as practicable after a request under subsection (1), cause that person to be provided with a copy of the report or the certificate of health and safety destruction or disposal requested.

95 IBAC Commissioner to inspect and report

S. 95
(Heading)
amended by
No. 82/2012
s. 161(1).

S. 95
repealed by
No. 10002
s. 7(1),
new s. 95
inserted by
No. 52/2006
s. 14.

(1) The Commissioner within the meaning of the **Independent Broad-based Anti-corruption Commission Act 2011** must, at least once each financial year, inspect the certificates of health and safety destruction or disposal and reports held by the Chief Commissioner of Police under section 93 for the purpose of reporting on the operation of that section.

S. 95(1)
amended by
Nos 34/2008
s. 143(Sch. 2
item 6),
82/2012
s. 161(2).

(2) The Commissioner within the meaning of the **Independent Broad-based Anti-corruption Commission Act 2011** must report the results of an inspection under subsection (1) to the Minister for Police and Emergency Services.

S. 95(2)
amended by
Nos 34/2008
s. 143(Sch. 2
item 6),
82/2012
s. 161(2).

S. 95(3)
inserted by
No. 82/2012
s. 161(3).

- (3) Any inspection done by the Director, Police Integrity within the meaning of the **Police Integrity Act 2008** (as in force immediately before its repeal) under subsection (1) during the financial year in which this section is amended by the **Integrity and Accountability Legislation Amendment Act 2012** is taken to be an inspection by the IBAC Commissioner required to be done by the IBAC Commissioner under subsection (1) during that financial year.

S. 96
repealed by
No. 10002
s. 7(1),
new s. 96
inserted by
No. 52/2006
s. 14.

96 Annual reports

- (1) As soon as practicable after the end of each calendar year, the Chief Commissioner of Police must submit a report to the Minister for Police and Emergency Services that includes the following information—
- (a) the number of certificates of health and safety destruction or disposal which are provided to the Chief Commissioner of Police under section 93; and
 - (b) any other information relating to the seizure, disposal and destruction of things referred to in section 91(1)(b) that the Minister considers appropriate.
- (2) The Minister for Police and Emergency Services must cause a report under subsection (1) to be laid before each House of the Parliament within 12 sitting days of that House after it is received by the Minister.

Ss 97–101
repealed by
No. 10002
s. 7(1).

* * * * *

Part VIA—Declared testing facilities

Pt 6A
(Heading and
new ss 97, 98)
inserted by
No. 9/2014
s. 8.

97 Declared testing facilities

New s. 97
inserted by
No. 9/2014
s. 8.

- (1) The Chief Commissioner of Police, by notice published in the Government Gazette, may declare a facility to be a declared testing facility.
- (2) A copy of a notice under subsection (1) must be posted on the website of the Victoria Police.
- (3) A declaration under subsection (1) may be made in respect of a facility located within Victoria or in another State or a Territory.
- (4) A declaration under subsection (1) is subject to any conditions specified in the notice regarding the possession, handling, storage and security of substances and items supplied to the facility under section 98.

98 Supply of things to declared testing facility

New s. 98
inserted by
No. 9/2014
s. 8.

- (1) Subject to subsection (3), for the purposes specified in subsection (2), the Chief Commissioner of Police may authorise the supply to a declared testing facility of a thing that is, or is suspected of being—
 - (a) a drug of dependence or a substance that contains a drug of dependence; or
 - (b) a poison or controlled substance; or
 - (c) an instrument, device or substance that is or has been used or is capable of being used for or in the cultivation, manufacture, sale or use or in the preparation for cultivation, manufacture, sale or use of a drug of dependence.

- (2) The purposes for which the Chief Commissioner of Police may authorise the supply of a thing to a declared testing facility are—
 - (a) substance profiling; and
 - (b) analytical testing; and
 - (c) research.
- (3) The Chief Commissioner of Police must not authorise the supply to a declared testing facility outside Victoria of a thing referred to in subsection (1) unless satisfied that the possession of the thing by a person employed or engaged by the declared testing facility is permitted under the laws of the jurisdiction in which the facility is located.
- (4) If a thing has been supplied to a declared testing facility under this section, the person in charge of the facility must arrange for the thing to be returned to, or collected by, the Victoria Police as soon as practicable after the purpose for which it was supplied has been carried out.
- (5) Subsection (4) does not apply to a thing, or part of a thing, that has been destroyed in the process of carrying out the purpose for which it has been supplied.

Part VIAB—Service of documents

Pt 6AB
(Heading and
new s. 99)
inserted by
No. 39/2024
s. 90.

99 Service

New s. 99
inserted by
No. 39/2024
s. 90.

For the purposes of this Act, a notice or other document, other than an infringement notice or a certificate referred to in section 120, may be served on or given to a person—

- (a) by delivering it personally to the person; or
- (b) by sending it by post to the person at the person's usual or last known residential or business address; or
- (c) by sending it by electronic communication to the person's usual or last known electronic address; or
- (d) by leaving it at the person's usual or last known residential or business address with a person on the premises who is apparently at least 16 years old and apparently residing or employed there.

Part VII—Proceedings

S. 102
amended by
No. 10002
s. 9(a)(b).

102 Identity of seller of substances

For the purposes of this Act other than Part V any person on whose behalf a sale or supply is made shall be deemed to be the person who sells or supplies, and where a sale or supply is made by an employee assistant or apprentice of a person, that employee assistant or apprentice shall be liable to the like penalties as the person on whose behalf he makes any sale.

S. 103
substituted by
No. 18/2006
s. 4.

103 Offences by corporations

- (1) In this section, *officer*—
- (a) in relation to a corporation within the meaning of the Corporations Act, has the same meaning as in section 9 of that Act; and
 - (b) in relation to a corporation that is not a corporation within the meaning of that Act, means any person (by whatever name called) who is concerned or takes part in the management of the corporation—
- but does not include an employee of the corporation.
- (2) If a corporation is guilty of an offence against this Act, any officer of the corporation who was in any way, by act or omission, directly or indirectly, knowingly concerned in or party to the commission of the offence is also guilty of that offence and liable to the penalty for that offence.
- (3) If in a proceeding for an offence against this Act it is necessary to establish the intention of a corporation, it is sufficient to show that a servant or agent of the corporation had that intention.

- (4) A statement made by an officer of a corporation is admissible as evidence against the corporation in any proceeding against the corporation for an offence against this Act.

104 Burden of proof

In any proceedings against any person for an offence against this Act the burden of proving any matter of exception qualification or defence shall lie upon the person seeking to avail himself thereof.

*	*	*	*	*	S. 105 amended by Nos 10002 s. 10(1) (a)–(c)(2)–(5), 16/1986 s. 30, repealed by No. 51/1989 s. 149(1).
*	*	*	*	*	Ss 106–109 repealed by No. 10002 s. 11(1).
*	*	*	*	*	Pt 8 (Heading and ss 110–117) amended by Nos 10002 s. 12(1)–(19) (as amended by No. 10087 s. 3(1)(Sch. 1 item 41)), 16/1986 s. 30, 110/1986 s. 140(2), repealed by No. 101/1986 s. 55(1)(d).

Part IX—Evidentiary

118 List of licences and permits

S. 118
amended by
No. 10262 s. 4,
substituted by
No. 42/1993
s. 51.

S. 118(1)
amended by
Nos 12/1994
s. 17(2)(a),
46/1998
s. 7(Sch. 1),
54/1997
s. 6(b),
13/2014 s. 5,
61/2017
s. 137(1).

- (1) The Secretary must keep a list of the persons holding current licences, permits or warrants under this Act or the **Voluntary Assisted Dying Act 2017** except licences, permits or warrants under section 34, 56 or Part IVB or authorities under Part IVA.

- (2) The list must contain—

S. 118(2)(a)
amended by
No. 12/1994
s. 17(2)(b).

- (a) the full name and the residential or business address of each holder of a licence, permit or warrant; and
(b) any other prescribed particulars.

S. 118(3)
amended by
Nos 46/1998
s. 7(Sch. 1),
12/1999
s. 4(Sch. 2
item 4.1),
61/2017
s. 137(2).

- (3) Subject to subsection (3A), the Secretary must ensure that a copy of the list is kept available for inspection by members of the public during normal office hours without charge, at the Secretary's principal office.

S. 118(3A)
inserted by
No. 61/2017
s. 137(3).

- (3A) The Secretary must not make a copy of the list available for inspection by members of the public unless any information about a voluntary assisted dying permit or any other authorisation under the **Voluntary Assisted Dying Act 2017** has been omitted from the list.

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| (4) The Secretary may take any steps that he or she considers appropriate to bring the existence of the list to the notice of members of the public. | S. 118(4)
amended by
No. 46/1998
s. 7(Sch. 1) |
| (5) In any proceedings the production of a document certified in writing purporting to be signed by the Secretary and purporting to be a copy of or an extract from the list as at a particular date is evidence and, in the absence of evidence to the contrary is proof— | S. 118(5)
amended by
Nos 12/1994
s. 17(2)(c)(i),
46/1998
s. 7(Sch. 1). |
| (a) of the matters stated; and | |
| (b) that at that date the persons whose names appear in the document held current licences, permits or warrants under this Act. | S. 118(5)(b)
amended by
No. 12/1994
s. 17(2)(c)(ii). |
| (6) In any proceedings, the absence of a person's name from a document that complies with subsection (5) is evidence and in the absence of evidence to the contrary is proof that on the relevant date the person was not the holder of a licence, permit or warrant under this Act and that is required to be listed under this section. | S. 118(6)
amended by
No. 12/1994
s. 17(2)(d). |
| * * * * * | S. 118(7)
inserted by
No. 20/2016
s. 140,
repealed by
No. 34/2019
s. 42. |
| (8) This section does not apply to a medically supervised injecting centre licence under Part IIA. | S. 118(8)
inserted by
No. 66/2017
s. 8. |

119 Evidentiary

In any legal proceedings under this Act—

S. 119(a)
amended by
Nos 42/1993
s. 52(a)–(c),
23/1994
s. 118(Sch. 1
item 17.14),
74/2000
s. 3(Sch. 1
item 38.3
(a)(b)), 68/2009
s. 97(Sch.
item 47.3),
substituted by
No. 75/2014
s. 22(a).

- (a) the production of a copy of the Government Gazette containing the register as last published in relation to the time in question of veterinary practitioners is, if the name of the accused does not appear in the register, prima facie evidence that the person is not a veterinary practitioner;

S. 119(b)
amended by
No. 23/1994
s. 118(Sch. 1
item 17.15
(a)(b)),
substituted by
No. 75/2014
s. 22(b),
amended by
No. 1/2025
s. 23.

- (b) a certificate referred to in section 244 of the Health Practitioner Regulation National Law is, if it states any person is or is not or was or was not on a certain date or for a certain period a registered medical practitioner, registered Chinese medicine practitioner, registered Chinese herbal dispenser, dentist, pharmacist, registered podiatrist, registered optometrist, nurse practitioner, registered paramedic, registered nurse or registered midwife, prima facie evidence of the facts stated in the certificate;

S. 119(c)(d)
repealed by
No. 75/2014
s. 22(c).

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S. 119(e)
amended by
No. 74/2000
s. 3(Sch. 1
item 38.4
(a)(b)).

- (e) a certificate that any person is or is not or was or was not on a certain date or for a certain period a veterinary practitioner shall if purporting to be signed by the registrar of the Veterinary Practitioners Registration Board of Victoria be prima facie evidence of the facts therein stated;

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|---|---|
| (ea) a certificate that any person is or is not or was or was not on a certain date or for a certain period a holder of an authority under Part IVA or a holder of a licence under Part IVB, if purporting to be signed by the Secretary of the Department of Jobs, Precincts and Regions, shall be prima facie evidence of the facts therein stated; | S. 119(ea) inserted by No. 54/1997 s. 6(c), amended by Nos 56/2003 s. 11(Sch. item 7.2), 13/2014 s. 6, 22/2022 s. 87. |
| (eb) a certificate signed by the Secretary that a facility specified in a certificate was or was not the licensed medically supervised injecting centre at a specified date or that a person specified in the certificate was or was not operating the licensed medically supervised injecting centre on a specified date is prima facie evidence of the facts stated in the certificate; | S. 119(eb) inserted by No. 66/2017 s. 9, amended by No. 7/2023 s. 35(3). |
| (f) a certificate that any person is or is not or was or was not on a certain date or for a certain period a person who holds a licence permit warrant or authority under this Act shall if purporting to be signed by the Secretary be prima facie evidence of the facts therein stated; | S. 119(f) amended by Nos 10262 s. 4, 46/1998 s. 7(Sch. 1), 50/2017 s. 15(1). |
| (g) a certificate signed by the Secretary that a document is an extract from the monitored poisons database is prima facie evidence of the facts stated in that extract. | S. 119(g) inserted by No. 50/2017 s. 15(2). |

120 Analyst's etc. certificates

- (1) In any legal proceedings for an offence against this Act the production of a certificate purporting to be signed by an analyst or by a botanist with respect to any analysis or examination made by him shall, without proof of the signature of the person appearing to have signed the certificate or that he is an analyst or botanist (as the case requires) be sufficient evidence—

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S. 120(1)(a)
amended by
No. 101/1986
s. 58(1)(f).

(a) in the case of a certificate purporting to be signed by an analyst, of the identity or quantity or both the identity and quantity of the thing analysed, of the result of the analysis and of the matters relevant to such proceedings stated in the certificate; and

S. 120(1)(b)
amended by
No. 101/1986
s. 58(1)(f).

(b) in the case of the certificate purporting to be signed by a botanist, of the identity or quantity or both the identity and quantity of the thing examined.

(2) The provisions of subsection (1) do not apply—

S. 120(2)(a)
amended by
No. 68/2009
s. 97(Sch.
item 47.4).

(a) if a copy of the certificate was not served on the accused at least seven days before the hearing; or

S. 120(2)(b)
amended by
No. 68/2009
s. 97(Sch.
item 47.4).

(b) if the accused, at least three days before the hearing, gave notice in writing personally or by post to the informant and to the analyst or botanist (as the case requires) that he requires the analyst or botanist to attend as a witness.

S. 120(3)
amended by
Nos 68/2009
s. 97(Sch.
item 47.4),
13/2010
s. 48(a).

(3) For the purpose of subsection (2) a copy of the certificate shall be deemed to be served on the accused under subsection (2)(a) if—

S. 120(3)(i)
amended by
No. 68/2009
s. 97(Sch.
item 47.4),
re-numbered
as s. 120(3)(a)
by No.
13/2010
s. 48(b)(ii).

(a) not less than ten days before the hearing a copy of the certificate is lodged with the court of hearing which is hereby authorized to make such copy available to the accused; and

- (b) notice in writing has been given to the accused that a copy of such certificate will be so lodged with the court. S. 120(3)(ii) amended by No. 68/2009 s. 97(Sch. item 47.4), re-numbered as s. 120(3)(b) by No. 13/2010 s. 48(b)(iii).
- (4) Service of a copy of a certificate for the purposes of this section may be effected and proved—
- (a) in any manner in which service of a summons may be effected and proved; or
 - (b) where the certificate was served with the summons and proof of service of the summons is by affidavit, by stating in the affidavit that a copy of the certificate was served with the summons.
- (5) Where an analysis or examination has been carried out for the purpose of any legal proceedings for an offence against this Act the court may, in addition to any other order as to costs, make such order as it thinks proper—
- (a) as to the expenses of and remuneration to be paid for the analysis or examination; and
 - (b) where the analyst or botanist has been required by the accused to attend as a witness, as to the conduct money of the analyst or botanist. S. 120(5)(b) amended by No. 68/2009 s. 97(Sch. item 47.5).
- (6) In this section—
- analyst** means a person employed by the Government of Victoria as an analyst or a person of a prescribed class employed or approved under a prescribed law of another State or Territory; S. 120(6) def. of *analyst* amended by Nos 66/1995 s. 3(a), 33/2001 s. 21.
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S. 120(6)
def. of
botanist
substituted by
No. 87/1991
s. 52,
amended by
No. 66/1995
s. 3(b).

botanist means the chief botanist or his or her delegate under the **Royal Botanic Gardens Act 1991** or a person of a prescribed class employed or approved under a prescribed law of another State or Territory.

121 Evidentiary effect of certain statements

For the purposes of this Act a statement of the quantity of the poison or controlled substance or the proportion which the poison or controlled substance bears to the total ingredients of a preparation shall be expressed in accordance with one of the forms specified in Schedule Twelve.

122 Proof that a substance is poison etc.

In any prosecution for a contravention of or failure to comply with any provision of this Act or any regulations thereunder, whenever it is necessary or proper to provide in respect of any particular article or substance that it is a poison or controlled substance then in every such case—

- (a) evidence that any substance commonly sold under the same name or description as the said particular article or substance is a poison or controlled substance shall be prima facie evidence that the said particular article or substance also conforms to the same description accordingly; and
- (b) evidence that any particular article or substance or the container thereof is labelled "Poison" or "Poisonous, not to be taken" or "Schedule 1" or "Schedule 2" or "Schedule 3" or "Schedule 4" or "Schedule 5" or "Schedule 6" or "Schedule 7" "Schedule 8" or "Schedule 9" or (whether alone or in combination with any other words or symbols) "S. 1", "S. 2",

S. 122(b)
amended by
Nos 42/1993
s. 53(a)(b),
20/2016 s. 141,
34/2019 s. 43.

"S. 3", "S. 4", "S. 5", "S. 6", "S. 7", "S. 8"
or "S. 9" shall be prima facie evidence that
the particular article or substance is a poison
or controlled substance.

122A Evidence of market value of drugs of dependence

S. 122A
inserted by
No. 101/1986
s. 55(1)(f).

- (1) In any proceedings under this Act or the
regulations or under the **Confiscation Act 1997**—

S. 122A(1)
amended by
No. 108/1997
s. 152(1)(a).

- (a) a police officer; or

S. 122A(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item 47.41).

- (b) any other person—

whom the court is satisfied is experienced—

- (c) in the investigation of offences under
section 71, 71AA, 71AB, 71AC, 71A, 71B,
72, 72A, 72B, 73, 79(1) or 80(1) of this Act;
or

S. 122A(1)(c)
amended by
Nos 48/1997
s. 47(c),
61/2001
s. 7(e).

- (d) in the assessment of the market value of
drugs of dependence—

may give evidence in accordance with
subsection (2).

- (2) A person mentioned in subsection (1) may give
evidence to the best of that person's information,
knowledge and belief, of the market value of a
drug of dependence at a particular time or during a
particular period, despite any rule of law or
practice relating to hearsay evidence.
- (3) Any evidence given under this section is, in the
absence of evidence to the contrary, conclusive
evidence of the matters testified to.

S. 123
amended by
Nos 10002
s. 14(f)(i)(ii),
12/1994 s. 18.

123 General offence

Every person who contravenes or fails to comply with any provision of this Act or any regulation made under this Act shall be guilty of an offence against this Act and if no penalty is expressly provided with respect to such offence shall be liable to a penalty of not more than 100 penalty units.

Pt 10
(Heading and
ss 124–128)
amended by
Nos 10002
s. 14(g),
101/1986
s. 55(1)(g)(h),
90/1991
s. 36(a)(b),
31/1994
s. 3(Sch. 1
item 18),
48/1997
s. 47(d)(e),
108/1997
s. 152(1)
(b)–(e)(2),
repealed by
No. 10/2007
s. 3.

* * * * *

Part XI—Regulations

129 Regulations

S. 129
amended by
No. 10002
s. 13(1)(a)(f).

- (1) For the purpose of preventing the improper use of drugs of dependence and Schedule 1 poisons, Schedule 4 poisons, Schedule 8 poisons and Schedule 9 poisons or any preparation of them or any of them the Governor in Council may make regulations for or with respect to regulating or controlling the manufacture sale possession administration use supply distribution and storage of those substances and preparations and in particular, without affecting the generality of the foregoing provisions of this section or of any other provisions of this Act, for or with respect to—

S. 129(1)
amended by
Nos 42/1993
s. 54(1),
18/2000
s. 106(1)(a).

- (a) regulating the issue by registered medical practitioners, registered Chinese medicine practitioners, registered optometrists, registered podiatrists, nurse practitioners, paramedic practitioners, registered nurses, registered midwives, dentists or veterinary practitioners of prescriptions for any such substance or preparation and the dispensing of any such prescriptions;

S. 129(1)(a)
amended by
Nos 23/1994
s. 118(Sch. 1
item 17.16),
58/1997
s. 96(Sch.
item 3.4),
56/1996
s. 100(6)(a),
94/2000
s. 52(1)(a),
18/2000
s. 106(1)(b),
25/2007
s. 33(1),
13/2010
s. 45(1),
14/2012
s. 8(1), 1/2025
s. 24(1)(a).

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S. 129(1)(aa)
inserted by
No. 10002
s. 13(1)(b),
amended by
Nos 23/1994
s. 118(Sch. 1
item 17.16),
58/1997
s. 96(Sch.
item 3.4),
56/1996
s. 100(6)(b),
94/2000
s. 52(1)(b),
18/2000
s. 106(1)(c),
11/2002
s. 3(Sch. 1
item 16.2
(a)(b)), 13/2010
s. 45(1),
14/2012
s. 8(1), 1/2025
s. 24(1)(b).

(aa) prohibiting either absolutely or subject to conditions the issue by registered medical practitioners, registered Chinese medicine practitioners, registered optometrists, nurse practitioners, paramedic practitioners, registered nurses, registered midwives, veterinary practitioners and dentists of prescriptions or orders or classes of prescriptions or orders for any such substance or preparation;

S. 129(1)(ab)
inserted by
No. 10002
s. 13(1)(b),
amended by
No. 18/2000
s. 106(1)(d).

(ab) prohibiting either absolutely or subject to conditions the dispensing by pharmacists or registered Chinese herbal dispensers of prescriptions or orders or classes of prescriptions or orders for any such substance or preparation;

S. 129(1)(b)
amended by
No. 10002
s. 13(1)(c).

(b) requiring persons engaged in the manufacture sale supply dispensing, administration, prescription and distribution of any such substance or preparation to keep books and records and furnish information in writing or otherwise;

S. 129(1)(ba)
inserted by
No. 17/2006
s. 5,
amended by
No. 37/2025
s. 11.

(ba) regulating, for the purposes of Division 10A of Part II, the administration of drugs of dependence, Schedule 9 poisons, Schedule 8 poisons and Schedule 4 poisons to persons who are accessing funded aged care services in a residential aged care home;

- (c) the custody accumulation administration use supply and storage of any such substance or preparation;
- (ca) prohibiting either absolutely or subject to conditions or in any specified circumstances or classes of circumstances the prescription, sale, supply, dispensing or administration of any such substance or preparation; S. 129(1)(ca) inserted by No. 10002 s. 13(1)(d).
- (cb) prescribing, for the purposes of Division 9 of Part II, any matter necessary or required in relation to— S. 129(1)(cb) inserted by No. 50/2017 s. 16.
 - (i) the monitored poisons database; or
 - (ii) providing, accessing, using or disclosing information on the monitored poisons database to, or receiving and using information from, entities or health practitioners in Victoria or other States, the Territories or the Commonwealth; or
 - (iii) prescribing locations, geographical areas or regions in which Division 9, or specified provisions of that Division, are to operate, or not to operate, for any specified period of time or subject to specified conditions; or
 - (iv) any other matter under that Division;
- (d) regulating the transfer or conveyance of any such substance or preparation;
- (e) regulating the supply of any such substance or preparation to drug-dependent persons;
- (ea) without limiting section 55Q, any matter or thing required to be prescribed for the purposes of Part IIA; S. 129(1)(ea) inserted by No. 66/2017 s. 10.

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
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S. 129(1)(eb)
inserted by
No. 6/2024
s. 13.

(eb) regulating or prohibiting any matter or thing necessary or required in relation to class approvals or classes of entity;

(f) regulating and controlling advertising by any person in relation to any such substances or preparations or any of them and prescribing the form and contents of such advertisements;

S. 129(1)(fa)
inserted by
No. 61/2017
s. 138.

(fa) regulating the issue of prescriptions or orders or classes of prescriptions or orders by registered medical practitioners and the dispensing or disposal by a pharmacist of any prescriptions, orders or classes of prescriptions or orders for a voluntary assisted dying substance;

S. 129(1)(fb)
inserted by
No. 21/2023
s. 3,
amended by
No. 1/2025
s. 24(1)(c).

(fb) regulating, controlling or authorising the supply, dispensing, administration, use or sale of specified Schedule 4 poisons or specified classes of Schedule 4 poisons by a pharmacist without a prescription or other instruction or authorisation from a registered medical practitioner, registered optometrist, registered podiatrist, nurse practitioner, paramedic practitioner, registered nurse, registered midwife or dentist—

(i) in specified circumstances and subject to any specified conditions; or

(ii) for specified activities; or

(iii) in accordance with the approval of the Secretary under the regulations;

S. 129(1)(fc)
inserted by
No. 21/2023
s. 3,
amended by
No. 1/2025
s. 24(1)(d).

(fc) for the purposes of paragraph (fb)(iii) and without limiting any other power of the Secretary, providing for the Secretary to approve the supply, dispensing, administration, use or sale of Schedule 4

poisons or classes of Schedule 4 poison by a pharmacist without a prescription or other instruction or authorisation from a registered medical practitioner, registered optometrist, registered podiatrist, nurse practitioner, paramedic practitioner, registered nurse, registered midwife or dentist, including but not limited to the following—

- (i) the Schedule 4 poisons or classes of Schedule 4 poisons which may be supplied, dispensed, administered, used or sold;
- (ii) the circumstances in which a pharmacist may supply, dispense, administer, use or sell those Schedule 4 poisons;
- (iii) the activities which may be carried out in relation to those Schedule 4 poisons;
- (iv) any conditions to which the supply, dispensing, administration, use or sale is subject;
- (g) generally prescribing all such matters and things as are necessary or convenient to be prescribed for carrying this Act into effect; and
- (h) prescribing a penalty of not more than 100 penalty units for any contravention of or failure to comply with the regulations made under this section.

S. 129(1)(h)
amended by
No. 10002
s. 13(1)(e).

S. 129(2)
inserted by
No. 10002
s. 13(1)(g),
amended by
Nos 23/1994
s. 118(Sch. 1
item 17.17),
58/1997
s. 96(Sch.
item 3.5),
56/1996
s. 100(6)(c),
94/2000
s. 52(1)(c),
18/2000
s. 106(1)(e),
25/2007
s. 33(2),
13/2010
s. 45(2),
14/2012
s. 8(2), 1/2025
s. 24(2).

- (2) Notwithstanding anything to the contrary in paragraph (h) of subsection (1) or in any regulations made under that subsection, a person who being a registered medical practitioner, registered Chinese medicine practitioner or registered Chinese herbal dispenser, registered optometrist, registered podiatrist, nurse practitioner, paramedic practitioner, registered nurse, registered midwife, veterinary practitioner, dentist or pharmacist, contravenes or fails to comply with a regulation made under that subsection is guilty of an indictable offence and liable to a penalty of not more than 200 penalty units or to imprisonment for a term of not more than five years or to both such penalty and imprisonment.

S. 129A
inserted by
No. 20/2016
s. 142,
repealed by
No. 34/2019
s. 44.

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130 Construction of section 129

The provisions of section 129 with respect to the making of regulations shall (without prejudice to the generality of the powers conferred by the said section) extend and apply to the making of regulations for or with respect to providing that any specified breach of the regulations made under the said section shall be regarded—

- (a) as infamous conduct in a professional respect within the meaning and for the purposes of any Act; or

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S. 130(b)
substituted by
No. 80/2004
s. 150(Sch. 2
item 2.5),
amended by
Nos 97/2005
s. 182(Sch. 4
item 16.5),
13/2010
s. 46(a),
repealed by
No. 27/2012
s. 16.

- (c) as unprofessional conduct within the meaning and for the purposes of the Health Practitioner Regulation National Law.

S. 130(c)
substituted by
No. 94/2000
s. 52(2),
repealed by
No. 97/2005
s. 182(Sch. 4
item 16.6),
new s 130(c)
inserted by
No. 13/2010
s. 46(b).

131 Regulations as to regulated poisons

For the purpose of protecting persons engaged in the manufacture sale use or distribution of regulated poisons or for the protection of the public from regulated poisons the Governor in Council may make regulations for or with respect to—

S. 131
amended by
Nos 10002
s. 14(h),
42/1993
s. 54(2)(a)(b).

- (a) prohibiting the possession manufacture sale supply distribution or use of any regulated poisons either absolutely or except under such circumstances or conditions as may be prescribed (including, without limiting the generality of the foregoing, prohibiting a person from having in his possession, manufacturing, selling, distributing or using any regulated poison or class of regulated poisons unless he is authorized by or

S. 131(a)
amended by
No. 42/1993
s. 54(2)(a)(b).

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licensed or permitted under this Act or the regulations so to do);

S. 131(b)
amended by
No. 42/1993
s. 54(2)(b).

- (b) prescribing any regulated poison to be an hallucinogenic drug for the purposes of Part VI;

S. 131(c)(d)
repealed by
No. 12/1994
s. 10(1).

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S. 131(e)
amended by
No. 10002
s. 13(2),
repealed by
No. 12/1994
s. 10(1).

* * * *

S. 131(f)
amended by
No. 42/1993
s. 54(2)(a).

- (f) prescribing precautions to be taken in and regulating or controlling the manufacture storage use or handling of any such regulated poisons; and

S. 131(g)
amended by
No. 10002
s. 13(2).

- (g) prescribing penalties not exceeding 100 penalty units for breaches of the regulations.

132 General regulations

The Governor in Council may make regulations for or with respect to—

- (a) prescribing forms to be used for the purposes of this Act;
- (b) the colouring of any poison or controlled substance;
- (c) the sale supply and safe custody of poisons or controlled substances including the specifications of cupboards and other receptacles and the manner of storage of any poison or controlled substance;

- (d) prohibiting the sale or supply of any product (whether by wholesale or by retail) or any class of products containing any poison or controlled substances unless the product or class of products is packaged in accordance with regulations made under this section and contains no more than a specified concentration of any specified poison or controlled substance;
- (e) the minimum size of packages or containers in which poisons or controlled substances or any class of poisons or controlled substances may be sold or supplied or offered for sale or supply;
- (f) specifying the containers in which any poison or controlled substance may be sold or supplied and prohibiting the use of such containers for other substances;
- (g) prescribing the Schedule 2, 3, 4 or 8 poisons that a nurse practitioner or category of nurse practitioner is authorised to obtain and have in his or her possession and to use, sell or supply; S. 132(g) repealed by No. 10002 s. 13(3)(a), new s. 132(g) inserted by No. 94/2000 s. 52(3).
- (ga) prescribing the Schedule 2, 3, 4 or 8 poisons that a paramedic practitioner is authorized to obtain, possess, use, sell or supply; S. 132(ga) inserted by No. 1/2025 s. 25(1).
- (h) prescribing the Schedule 2, 3, 4 or 8 poisons that a registered nurse or class of registered nurse is authorised to obtain and have in his or her possession and to use, sell or supply; S. 132(h) repealed by No. 10002 s. 13(3)(a), new s. 132(h) inserted by No. 13/2010 s. 47(a).

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S. 132(i)
repealed by
No. 10002
s. 13(3)(a),
new s. 132(i)
inserted by
No. 14/2012
s. 9(1).

- (i) prescribing the Schedule 2, 3, 4 or 8 poisons that a registered midwife or class of registered midwife is authorised to obtain and have in his or her possession and to use, sell or supply;

S. 132(j)
amended by
No. 42/1993
s. 55(a).

- (j) prohibiting and controlling advertising by any person in relation to Schedule 3 poisons or any class of Schedule 3 poisons and prescribing the form and contents of such advertisements;

S. 132(k)
amended by
Nos 23/1994
s. 118(Sch. 1
item 17.18(b)),
74/2000
s. 3(Sch. 1
item 38.5),
94/2000
s. 52(4)(a),
13/2010
s. 47(b),
14/2012
s. 9(2)(a).

- (k) providing for the dispensing of prescriptions for poisons or controlled substances issued by registered medical practitioners, nurse practitioners, registered nurses, registered midwives, registered optometrists, registered podiatrists, dentists or veterinary practitioners in other States;

- (l) labelling and specifying the particulars (including antidotes) to be included in labels attached to containers of poisons and controlled substances;

S. 132(m)
substituted by
No. 12/1994
s. 10(2)(a).

- (m) applications for licences, permits, warrants and authorities issued under this Act, and the issue, renewal, amendment, suspension or cancellation of them;

S. 132(n)
amended by
Nos 10002
s. 13(3)(b),
12/1994
s. 10(2)(b).

- (n) prescribing terms and conditions limitations and restrictions to which licences warrants and permits issued under this Act shall be subject;

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| (o) prescribing fees for applications for the issue, renewal and amendment of licences, permits, warrants, authorisations and approvals under the Act and pro rata fees for periods of less than 12 months; | S. 132(o) substituted by No. 12/1994 s. 10(2)(c). |
| (oa) prescribing penalties not exceeding 100 penalty units for the breach of terms, conditions, limitations and restrictions of authorisations and approvals; | S. 132(oa) inserted by No. 12/1994 s. 10(2)(c). |
| (p) the inspection of premises mobile facilities stocks books and any other documents relating to poisons or controlled substances; | S. 132(p) amended by No. 75/2014 s. 9. |
| (q) exempting from all or any of the provisions of this Act and the regulations substances or preparations containing any poison or controlled substance which by their nature are not capable of being used in evasion of this Act and the regulations or which are sold or supplied by a pharmacist or registered Chinese herbal dispenser or according to the prescription of a registered medical practitioner, registered Chinese medicine practitioner, registered optometrist, nurse practitioner, paramedic practitioner, registered nurse, registered midwife, registered podiatrist, veterinary practitioner or dentist for an individual and specific case; | S. 132(q) amended by Nos 23/1994 s. 118(Sch. 1 item 17.18(a)), 58/1997 s. 96(Sch. item 3.5), 56/1996 s. 100(7), 94/2000 s. 52(4)(b), 18/2000 s. 106(2)(a)(b), 13/2010 s. 47(c), 14/2012 s. 9(2)(b), 1/2025 s. 25(2). |
| (r) the procedure to be followed in relation to the sale or supply and recording of poisons or controlled substances; | S. 132(r) amended by No. 12/1994 s. 16(3)(a). |
| (s) prescribing substances, or classes of substances, that are not psychoactive substances; | S. 132(s) repealed by No. 12/1994 s. 16(3)(b), new s. 132(s) inserted by No. 40/2017 s. 18. |

- (t) specifying the persons or classes of persons authorized or entitled to purchase obtain use or be in possession of any poison or controlled substance;
- (u) providing that all persons are authorized or entitled to purchase or obtain or have in their possession or use specified poisons or controlled substances or specified classes of poisons or controlled substances;
- S. 132(ua)
inserted by
No. 66/2017
s. 11.

(ua) without limiting section 55Q, any matter or thing required to be prescribed for the purposes of Part IIA;
- (v) providing for the disposal of automatic machines forfeited pursuant to the provisions of this Act;
- (w) prohibiting the sale or supply of any poison or controlled substance by self-service methods other than any methods prescribed;
- S. 132(x)
amended by
No. 10002
s. 13(3)(c).

(x) prescribing a penalty of not more than 100 penalty units for any contravention of or failure to comply with the regulations;
- S. 132(xa)
inserted by
No. 39/2024
s. 91.

(xa) prescribing offences against a provision of Part II or the regulations for the purposes of section 55AAZ(1);
- S. 132(xb)
inserted by
No. 39/2024
s. 91.

(xb) in relation to each offence prescribed for the purposes of section 55AAZ(1), prescribing the penalty for the offence;
- S. 132(y)
amended by
No. 42/1993
s. 55(b)(i)(ii).

(y) the administration and use of Schedule 3 poisons or any class of Schedule 3 poison;
- S. 132(ya)
inserted by
No. 17/2021
s. 5.

(ya) regulating, controlling or authorising the supply, possession, administration and use of naloxone or other Schedule 2 or Schedule 3 poisons for the treatment of opioid overdose, including, but not limited to, different

requirements in relation to the supply, possession, administration and use of naloxone or those other Schedule 2 or Schedule 3 poisons—

- (i) by different persons or classes of persons; or
- (ii) to different persons or classes of persons; or
- (iii) in any specified circumstances; or
- (iv) subject to conditions specified in any authority or approval;
- (z) regulating and controlling the issue by registered medical practitioners, nurse practitioners, paramedic practitioners, registered nurses, registered midwives, registered optometrists, registered podiatrists, dentists or veterinary practitioners of prescriptions for any Schedule 3 poison and the dispensing of any such prescriptions;
- (za) regulating and controlling the sale or supply by pharmacists of Schedule 3 poisons to persons without direction from a registered medical practitioner, nurse practitioner, paramedic practitioner, registered nurse, registered midwife, registered optometrist, registered podiatrist, veterinary practitioner or dentist;

S. 132(z)
amended by
Nos 42/1993
s. 55(c),
23/1994
s. 118(Sch. 1
item 17.18(b)),
74/2000
s. 3(Sch. 1
item 38.5),
94/2000
s. 52(4)(c),
13/2010
s. 47(d),
14/2012
s. 9(2)(c),
1/2025
s. 25(3).

S. 132(za)
amended by
Nos 42/1993
s. 55(d),
23/1994
s. 118(Sch. 1
item 17.18(a)),
74/2000
s. 3(Sch. 1
item 38.6),
94/2000
s. 52(4)(d),
13/2010
s. 47(e),
14/2012
s. 9(2)(d),
1/2025
s. 25(4).

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S. 132(zb)
amended by
No. 42/1993
s. 55(d).

(zb) prescribing the manner in which Schedule 3 poisons may be dispensed by pharmacists and the keeping of records of each transaction effected by a pharmacist;

S. 132(zc)
amended by
Nos 42/1993
s. 55(e)(i)(ii),
23/1994
s. 118(Sch. 1
item 17.18(a)),
74/2000
s. 3(Sch. 1
item 38.6),
94/2000
s. 52(4)(e),
13/2010
s. 47(f),
14/2012
s. 9(2)(e),
1/2025
s. 25(5).

(zc) regulating and controlling the dispensing and sale or supply of Schedule 4 poisons by pharmacists without a prescription from a registered medical practitioner, nurse practitioner, paramedic practitioner, registered nurse, registered midwife, registered optometrist, registered podiatrist, dentist or veterinary practitioner in emergency circumstances to the extent that the quantity of any Schedule 4 poison so dispensed sold or supplied does not exceed three days medication or, where a Schedule 4 poison is or is contained in a pre-packed pharmaceutical preparation, the minimum standard package containing the preparation;

S. 132(zca)
inserted by
No. 42/1993
s. 54(3),
amended by
No. 75/2014
s. 23.

(zca) amending the Poisons Standard in so far as it is incorporated in the Poisons Code;

S. 132(zcb)
inserted by
No. 42/1993
s. 54(3),
repealed by
No. 74/2004
s. 17, new
s. 132(zcb)
inserted by
No. 52/2006
s. 15.

(zcb) for the purposes of Part V, prescribing precursor chemicals and the prescribed quantity of any precursor chemical, including different quantities for different chemicals;

S. 132(zcc)
inserted by
No. 55/2009
s. 9(1).

(zcc) without limiting this section, for the purposes of Part VB, prescribing—
(i) category 1 precursor chemicals;
(ii) category 2 precursor chemicals;

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- (iii) category 3 precursor apparatus;
- (iv) any other matter or thing required to be prescribed for the purposes of that Part;
- (zcd) for the purposes of Part VC, prescribing a number or numbers of hookahs that may be displayed; S. 132(zcd)
inserted by
No. 51/2011
s. 5.
- (zce) any matter or thing required to be prescribed for the purposes of Part IVB; S. 132(zce)
inserted by
No. 13/2014
s. 7.
- (zcf) without limiting section 129, prescribing, for the purposes of Division 9 of Part II, any matter necessary or required in relation to—
 - (i) the monitored poisons database; or
 - (ii) providing, accessing, using or disclosing information on the monitored poisons database to, or receiving and using information from, entities or health practitioners in Victoria or other States, the Territories or the Commonwealth; or
 - (iii) any other matter under that Division;
- (zcg) without limiting section 129, prescribing any matter or thing necessary or required in relation to class approvals or classes of entity; S. 132(zcg)
inserted by
No. 6/2024
s. 14.
- (zd) generally prescribing all such matters and things as are authorized or required to be prescribed or are necessary or convenient to be prescribed for carrying into effect the objects of this Act.

S. 132AA
inserted by
No. 41/2011
s. 5.

132AA Regulations prescribing drugs of dependence

- (1) Subject to subsection (2), the Governor in Council may make regulations for or with respect to—
 - (a) prescribing a substance as a drug of dependence;
 - (b) specifying whether that prescribed drug of dependence is included in Part 1, Part 2 or Part 3 of Schedule Eleven;
 - (c) specifying quantities in relation to that prescribed drug of dependence for the purposes of Schedule Eleven.
- (2) The Minister must not recommend the making of regulations under subsection (1) unless he or she is satisfied that the substance represents—
 - (a) a significant risk to the health of consumers;
or
 - (b) a significant risk to public safety.
- (3) Despite anything to the contrary in section 5 of the **Subordinate Legislation Act 1994**, a regulation made under this section expires 12 months after the day on which the regulation is made.

S. 132A
inserted by
No. 42/1993
s. 56.

132A Regulations may incorporate other documents

- (1) Regulations under any provision of this Act may apply, adopt or incorporate by reference any document formulated or published by a person or body, either—
 - (a) without modification or as modified by the regulations; or
 - (b) as formulated or published on or before the date when the regulations are made; or
 - (c) as formulated or published from time to time.

- (2) Regulations under any provision of this Act may apply, adopt or incorporate by reference the Poisons Code or any part of that Code.
- (3) Section 32 of the **Interpretation of Legislation Act 1984** applies to regulations under any provision of this Act that incorporate by reference any part of the Poisons Code as if that part were a statutory rule.

132B Scope of regulations

The regulations may—

- (a) be of general or limited application; and
- (b) apply to different classes of persons, licences, permits, warrants, authorisations and approvals; and
- (c) provide for different fees for different activities or classes of activity or different cases or classes of cases; and
- (d) in the case of applications for the issue, renewal or amendment of licences, permits or warrants, specify fees that reflect the cost of administration of, and the provision of inspection services in connection with, the licence, permit and warrant system; and
- (e) in the case of fees for applications for the issue, renewal or amendment of licences, permits or warrants, may vary according to the kinds of poisons or controlled substances to which the licence, permit or warrant relates; and
- (f) confer powers or discretions or impose duties on any person; and

**S. 132B
inserted by
No. 12/1994
s. 7.**

**S. 132B(f)
amended by
No. 55/2009
s. 9(2)(a).**

S. 132B(g)
inserted by
No. 55/2009
s. 9(2)(b).

(g) may exempt specified persons or things or classes of person or classes of thing from complying with all or any of the regulations, whether unconditionally or on specified conditions and either wholly or to such an extent as is specified.

133 Strict compliance with prescribed forms not necessary

Forms set out in any regulations made under this Act or forms to the like effect may be used for the purposes thereof and shall be sufficient in law.

S. 133A
inserted by
No. 25/1990
s. 3.

133A Exemption from regulatory impact statement procedure

S. 133A(1)
substituted by
No. 42/1993
s. 57(1),
amended by
Nos 68/1996
s. 15(a),
75/2014 s. 24.

(1) The provisions of the **Subordinate Legislation Act 1994** with respect to the preparation of regulatory impact statements do not apply to a regulation which is consistent with, and gives effect in Victoria to, the Poisons Standard.

S. 133A(2)
amended by
Nos 42/1993
s. 57(2),
68/1996
s. 15(b).

(2) Any regulation to which subsection (1) applies may be disallowed, in whole or in part, by resolution of either House of Parliament in accordance with the requirements of section 23 of the **Subordinate Legislation Act 1994**.

S. 133A(3)
amended by
Nos 42/1993
s. 57(2),
68/1996
s. 15(c).

(3) Disallowance of a regulation under subsection (2) must be taken to be disallowance by Parliament for the purposes of the **Subordinate Legislation Act 1994**.

Part XII—Transitional provisions

Pt 12
(Heading and
ss 134, 135)
substituted as
Pt 12
(Heading and
ss 134–136)
by No.
42/1993 s. 58.

Pt 12
(Heading)
amended by
No. 61/2001
s. 9.

134 References

S. 134
substituted by
No. 42/1993
s. 58.

- (1) In this section *subordinate instrument* has the same meaning as in the **Interpretation of Legislation Act 1984**.

- (2) In—

- (a) an Act other than this Act; or
- (b) a subordinate instrument made under this Act or any other Act; or
- (c) any licence, warrant, permit or other instrument under this Act; or
- (d) any other document whatever—

a reference of a kind listed in Column 1 of the Table must in relation to any period occurring on or after the commencement of this section and unless inconsistent with the context or subject matter be taken to be a reference of the kind listed opposite in Column 2.

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TABLE

Column 1	Column 2
Old Reference	New Reference
Domestic poison	Schedule 5 poison
Special poison (if the reference relates to a Schedule 1 poison)	Schedule 1 poison
Narcotic drug	Schedule 8 poison or Schedule 9 poison
Hallucinogenic drug	Schedule 8 poison or Schedule 9 poison
Dangerous poison (if the reference relates to a Schedule 1 poison)	Schedule 1 poison
Medicinal poison	Schedule 2 poison
Potent substance	Schedule 3 poison
Restricted substance	Schedule 4 poison
Hazardous substance	Schedule 5 poison
Industrial and Agricultural poison	Schedule 6 poison
Dangerous poison (if the reference relates to a Schedule 7 poison)	Schedule 7 poison
Special poison (if the reference relates to a Schedule 7 poison)	Schedule 7 poison
Special poison (if the reference relates to a regulated poison)	Regulated poison
Drug of addiction	Schedule 8 poison or Schedule 9 poison
Substance specified in Schedule One of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 1 poison
Substance specified in Schedule Two of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 2 poison
Substance specified in Schedule Three of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 3 poison
Substance specified in Schedule Four of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 4 poison
Substance specified in Schedule Five of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 5 poison
Substance specified in Schedule Six of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 6 poison

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Column 1	Column 2
Old Reference	New Reference
Substance specified in Part 1 of Schedule Seven of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 7 poison
Substance specified in Part 2 of Schedule Seven of the Drugs, Poisons and Controlled Substances Act 1981	Regulated poison
Substance specified in Schedule Eight of the Drugs, Poisons and Controlled Substances Act 1981	Schedule 8 poison or Schedule 9 poison

- (3) Despite subsection (2), on or after the commencement of section 97 of the **Chinese Medicine Registration Act 2000**, a reference in Column 2 in the Table to a Schedule 1 poison is not to be taken to be a reference to a Schedule 1 poison within the meaning of this Act as amended by the **Chinese Medicine Registration Act 2000**.

S. 134(3)
inserted by
No. 18/2000
s. 107.

135 Instruments to continue

- (1) The amendments made to this Act by the **Health and Community Services (General Amendment) Act 1993** do not affect the continuity of status, operation or effect of any licence, permit, warrant or authority in force under this Act immediately before the commencement of this section.
- (2) Subsection (1) does not affect the operation of section 134.

S. 135
substituted by
No. 42/1993
s. 58.

135A Transitional provisions—Drugs, Poisons and Controlled Substances (Amendment) Act 1994

Despite the repeal of the **Drugs, Poisons and Controlled Substances (Amendment) Act 1994** by the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004**, a warrant to which section 19(2) of the **Drugs, Poisons and Controlled Substances (Amendment) Act 1994** (including a suspended warrant) applied

S. 135A
inserted by
No. 74/2004
s. 18.

immediately before that repeal must be taken to have been issued under this Act and may be amended, suspended or cancelled accordingly.

S. 136
inserted by
No. 42/1993
s. 58.

136 Continuity of Poisons Advisory Committee

The Poisons Advisory Committee is the same body after as before the commencement of the **Health and Community Services (General Amendment) Act 1993**.

S. 137
inserted by
No. 61/2001
s. 10.

137 Transitional provisions—Drugs, Poisons and Controlled Substances (Amendment) Act 2001

- (1) The amendments to this Act made by the **Drugs, Poisons and Controlled Substances (Amendment) Act 2001** apply only to offences alleged to have been committed after the commencement of that Act.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2001**, the offence is alleged to have been committed before the commencement of that Act.

S. 138
inserted by
No. 74/2004
s. 5.

138 Refund of licence fee in relation to Schedule 5 poisons and Schedule 6 poisons

- (1) The Secretary may refund to a licence holder an amount equal to the proportion of the fee paid for a licence in relation to the period that starts on the date of the commencement of the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004** and ends on the expiry of the licence if—

- (a) the licence is issued under Division 4 of Part II for—
 - (i) the sale or supply by wholesale of a Schedule 5 poison or a Schedule 6 poison; or
 - (ii) the manufacture and sale or supply by retail of a Schedule 5 poison or a Schedule 6 poison; or
 - (iii) the manufacture and sale or supply by wholesale of a Schedule 5 poison or a Schedule 6 poison; and
 - (b) at that commencement, the licence has a period of at least 6 months to run before its expiry.
- (2) A refund paid to a licence holder under subsection (1) is to be paid from the Consolidated Fund which is, to the necessary extent, appropriated accordingly.

139 Transitional provisions relating to licences—Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004

S. 139
inserted by
No. 74/2004
s. 5.

- (1) An application for a new licence of a kind referred to in section 20(1)(b) or (c) of this Act as in force immediately before the commencement of the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004** or for the renewal of such a licence must be taken to be an application for a licence or for its renewal (as the case requires) of a kind of licence referred to in the relevant section as amended by the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004**.

(2) A licence—

- (a) of a kind referred to in section 20(1)(b) or (e) of this Act as in force immediately before the commencement of the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004** (including a suspended licence); and
- (b) in existence at the date of that commencement—

must be taken to have been issued under this Act as amended by the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004** and may be renewed, amended, suspended or cancelled accordingly.

- (3) The amendments to section 20(1)(b) and (e) made by the **Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004** do not affect the continuity or suspension of a licence of a kind referred to in section 20(1)(b) or (e) of this Act as in force immediately before the commencement of that Act.

S. 140
inserted by
No. 52/2006
s. 16.

140 Transitional provisions—Drugs, Poisons and Controlled Substances (Amendment) Act 2006

- (1) The amendments made to the definitions of *aggregated commercial quantity*, *aggregated large commercial quantity*, *cultivate*, *narcotic plant* and *traffickable quantity* by section 8 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** apply only to offences alleged to have been committed after the commencement of that section.

- (2) For the purpose of subsection (1), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 8 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**, the offence is alleged to have been committed before that commencement.
- (3) The amendments made to section 71B of this Act by section 10 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** apply only to offences alleged to have been committed after the commencement of section 10 of that Act.
- (4) For the purpose of subsection (3), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 10 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**, the offence is alleged to have been committed before that commencement.
- (5) The amendments made to section 83(3) by section 13 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** apply only to offences alleged to have been committed after the commencement of section 13 of that Act.
- (6) For the purpose of subsection (5), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 13 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**, the offence is alleged to have been committed before that commencement.

- (7) The amendments made to Part 1 of Schedule Eleven by section 18 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** apply only to offences alleged to have been committed after the commencement of that section.
- (8) For the purpose of subsection (7), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 18 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**, the offence is alleged to have been committed before that commencement.
- (9) The amendments made to Part 2 of Schedule Eleven by section 19 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** apply only to offences alleged to have been committed after the commencement of that section.
- (10) For the purpose of subsection (9), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 19 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**, the offence is alleged to have been committed before that commencement.
- (11) The amendments made to Part 3 of Schedule Eleven by section 20 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** apply only to offences alleged to have been committed after the commencement of that section.

- (12) For the purpose of subsection (11), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 20 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**, the offence is alleged to have been committed before that commencement.
- (13) A search warrant issued in or to the effect of the form in Schedule Ten, as in force immediately before the commencement of section 17 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006** and not executed (whether wholly or in part) before the commencement of that section, on and from that commencement may be executed according to its terms despite not being in the form of Schedule Ten as amended by section 17 of the **Drugs, Poisons and Controlled Substances (Amendment) Act 2006**.

141 Drug Rehabilitation and Research Fund

- (1) On 1 July 2007—
- (a) the Drug Rehabilitation and Research Fund is closed; and
 - (b) all money standing to the credit of the Drug Rehabilitation and Research Fund must be paid into the Consolidated Fund.
- (2) In this section, ***Drug Rehabilitation and Research Fund*** means the trust fund established by section 124 of the **Drugs, Poisons and Controlled Substances Act 1981** as in force immediately before 1 July 2007.

S. 141
inserted by
No. 10/2007
s. 4.

S. 142
inserted by
No. 17/2008
s. 13.

142 Transitional provisions—**Drugs, Poisons and Controlled Substances Amendment Act 2008**

- (1) A notice given under section 33 as in force immediately before the commencement of Part 3 of the **Drugs, Poisons and Controlled Substances Amendment Act 2008** is to be taken, on and from that commencement, to be a notification of drug-dependent person for the purposes of section 33 as substituted by that Act.
- (2) A permit issued by the Secretary under section 34 as in force immediately before the commencement of Part 3 of the **Drugs, Poisons and Controlled Substances Amendment Act 2008** is to be taken, on and from that commencement, to be a Schedule 8 permit issued under section 34A or a Schedule 9 permit issued under section 33B, as the case requires, and—
 - (a) may be amended, suspended or revoked as if it had been issued under section 34A or section 33B, as the case requires; and
 - (b) authorises the medical practitioner or nurse practitioner to whom it was issued before that commencement to continue the administration, supply or prescription of the Schedule 8 poison or Schedule 9 poison to which the permit relates in accordance with that permit after that commencement as if the permit had been issued under this Act as amended by Part 3 of the **Drugs, Poisons and Controlled Substances Amendment Act 2008**.

- (3) A notice published by the Secretary under section 35A for the purposes of section 35(2A) as in force immediately before the commencement of Part 3 of the **Drugs, Poisons and Controlled Substances Amendment Act 2008** is to be taken, on and from that commencement, to be a notice published for the purposes of section 34D.

143 Transitional provision—Criminal Procedure Amendment Act 2012

S. 143
inserted by
No. 48/2012
s. 42.

Section 81 as amended by section 41 of the **Criminal Procedure Amendment Act 2012** applies to a search warrant issued on or after the commencement of section 41 of that Act.

144 Transitional provisions—Drugs, Poisons and Controlled Substances Amendment Act 2016

S. 144
inserted by
No. 2/2016
s. 16.

- (1) The amendments made to section 71AB by section 5 of the **Drugs, Poisons and Controlled Substances Amendment Act 2016** apply only to offences alleged to have been committed after the commencement of section 5 of that Act.
- (2) The amendments made to section 71AC by section 6 of the **Drugs, Poisons and Controlled Substances Amendment Act 2016** apply only to offences alleged to have been committed after the commencement of section 6 of that Act.
- (3) The amendments made to section 71B by section 9 of the **Drugs, Poisons and Controlled Substances Amendment Act 2016** apply only to offences alleged to have been committed after the commencement of section 9 of that Act.

- (4) For the purpose of subsections (1), (2) and (3), if an offence is alleged to have been committed between 2 dates, one before and one on or after the commencement of section 5, 6, or 9 of the **Drugs, Poisons and Controlled Substances Amendment Act 2016** (as the case requires), the offence is alleged to have been committed before the applicable commencement.

S. 145
inserted by
No. 40/2017
s. 19.

145 Transitional—Drugs, Poisons and Controlled Substances Miscellaneous Amendment Act 2017

- (1) The amendment made to Schedule Eleven by sections 20 to 23 of the **Drugs, Poisons and Controlled Substances Miscellaneous Amendment Act 2017** apply only to offences alleged to have been committed after the commencement of the applicable section.
- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one on or after the commencement of the applicable section of the **Drugs, Poisons and Controlled Substances Miscellaneous Amendment Act 2017**, the offence is alleged to have been committed before that commencement.

* * * * *

S. 146
inserted by
No. 50/2017
s. 18,
repealed by
No. 9719/1981
s. 146(5).

147 Transitional—Justice Legislation Amendment (Police and Other Matters) Act 2019

- (1) The amendments made to Schedule Eleven by sections 14(a), 15 and 16(a) of the **Justice Legislation Amendment (Police and Other Matters) Act 2019** apply only to offences alleged to have been committed after the commencement of the applicable section.

S. 147
inserted by
No. 3/2019
s. 13.

- (2) For the purposes of subsection (1), if an offence is alleged to have been committed between 2 dates, one before and one on or after the commencement of the applicable section of the **Justice Legislation Amendment (Police and Other Matters) Act 2019**, the offence is alleged to have been committed before that commencement.

148 Transitional provision—Primary Industries Legislation Amendment Act 2019

S. 148
inserted by
No. 40/2019
s. 9.

- (1) The substitution of the definition of *serious offence* in section 61(1) by section 7 of the amending Act does not apply for the purposes of the consideration of an application under section 62 received by the Secretary before the commencement of section 7 of the amending Act.
- (2) In this section—

amending Act means the **Primary Industries Legislation Amendment Act 2019**.

149 Transitional provision—Drugs, Poisons and Controlled Substances Amendment (Medically Supervised Injecting Centre) Act 2023

S. 149
inserted by
No. 7/2023
s. 26.

- (1) This section applies in relation to a person who, immediately before the repeal of section 55B(1)(a)(i) by the **Drugs, Poisons and Controlled Substances Amendment (Medically Supervised Injecting Centre) Act 2023**, was a director for the purposes of this Act by reason of section 55B(1) as in force at that time.
- (2) The repeal of section 55B(1)(a)(i) does not cause the person to cease to be a director under section 55B(1) for the purposes of this Act.

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Schedules

Schedules

Schs 1–9
repealed.¹

* * * *

Sch. 10
substituted by
No. 10002
s. 8(1),
amended by
Nos 16/1986
s. 30, 101/1986
s. 58(1)(g),
57/1989
s. 3(Sch. item
59.15(a)–(c)),
48/1997
s. 44(7)(a)–(c),
63/2003
s. 48(1)(2),
52/2006 s. 17,
25/2009 s. 7,
37/2014
s. 10(Sch.
item 47.42),
6/2018
s. 68(Sch. 2
item 42.2),
33/2018 s. 91,
25/2023
s. 7(Sch. 1
item 10.4).

Schedule Ten—Search warrant

(Section 81)

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To a police officer

WHEREAS I, the undersigned, a *Magistrate in the
State of Victoria, am satisfied by the *evidence on oath or affirmation or
*by affidavit of:

a police officer of or
above the rank of Sergeant or for the time being in charge of a police
station, that there is reasonable ground for believing

that there *is on or in a certain
*are
*will be within the next 72 hours

*land or
*premises situate at or
*vehicle identified by

located in a public place *certain things
*certain documents

to wit:

*(1) upon or in respect of which an offence under the **Drugs Poisons
and Controlled Substances Act 1981** or the Regulations under
that Act, has been or is reasonably suspected to have been
committed or is being or is likely to be committed within the
next 72 hours;

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- * (2) which there is reasonable ground to believe will afford evidence of the commission of an offence under the **Drugs Poisons and Controlled Substances Act 1981** or the Regulations under that Act;
- * (3) which is a document directly or indirectly relating to or concerning a transaction or dealing which is or would be, if carried out, an offence under the **Drugs Poisons and Controlled Substances Act 1981** or the Regulations under that Act or under a provision of a law in force in a place outside Victoria and which corresponds to a provision of Part V of that Act.

These are therefore in *Her Majesty's/*His Majesty's name—

- * (1) to authorize you or any other police officer to enter and search the said *land or *premises or *specified vehicle located in a public place for the *things or *documents specified in this warrant and, if any of those *things or *documents be found, to seize and carry them before the Magistrates' Court so that the matter may be dealt with according to law or to destroy or dispose of them in accordance with section 81 of the **Drugs, Poisons and Controlled Substances Act 1981**.
- * (2) in relation to a specified thing or a specified document to which this warrant relates which is also tainted property within the meaning of the **Confiscation Act 1997**, to direct you or any other police officer to hold or retain that thing or document as if it were tainted property seized under a warrant under section 79 of that Act as and from the date when that thing or document is no longer required for evidentiary purposes under the **Drugs, Poisons and Controlled Substances Act 1981**.

Signed this day of

*Magistrate

*Strike out whichever is not applicable.

Note: Under section 81(3) of the **Drugs, Poisons and Controlled Substances Act 1981**, a police officer to whom a warrant under section 81(1) of that Act is addressed or any other police officer may, at any time or times by day or night but within one month from the date of the warrant and with such assistance as may be necessary—

- (a) enter, if need be by force, the land or premises or specified vehicle located in a public place named in the warrant; and

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- (b) arrest all persons on or in that land or those premises or on or in that vehicle who are found offending against a provision of that Act or the regulations made under that Act; and
- (c) search—
 - (i) the land or premises or any vehicle or any person found on or in that land or those premises or any person found on or in any vehicle on or in that land or those premises;
 - (ii) the specified vehicle located in a public place or any person found on or in that vehicle; and
- (d) seize and carry away or, unless a direction under section 81(1A) of that Act applies, deal with as mentioned in paragraph (c)—
 - (i) any thing in respect of which an offence under that Act or the regulations made under that Act has been or is reasonably suspected to have been committed; and
 - (ii) any thing which there is reasonable ground to believe will afford evidence of the commission of an offence under that Act or the regulations made under that Act; and
 - (iii) any document directly or indirectly relating to or concerning a transaction or dealing which is or would be, if carried out, an offence against that Act or the regulations made under that Act or under a provision of a law in force in a place outside Victoria corresponding to a provision of Part V of that Act; and
- (e) if—
 - (i) the thing is—
 - (A) a drug of dependence or a substance that contains a drug of dependence; or
 - (B) a poison or controlled substance; or
 - (C) an instrument, device or substance that is or has been used or is capable of being used for or in the cultivation, manufacture, sale or use or in the preparation for cultivation, manufacture, sale or use of a drug of dependence; and

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- (ii) an analyst or botanist within the meaning of section 120 of that Act certifies in writing to the police officer executing the warrant that destruction or disposal of the thing is required in the interests of health or safety—

destroy or dispose of the thing after taking, where practicable, any samples of it as are required for the purposes of that Act.

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Sch. 11
substituted by
No. 10002
s. 8(1),
amended by
S.R. No.
1/1985 (paras
(1)–(9)),
substituted by
S.R. No.
268/1985,
amended by
No. 101/1986
s. 58(1)(h)(i)–
(iii), S.R. Nos
138/1989
(para. (3)(a)
(b)), 314/1990
(para. (3)(a)–
(g)), 69/1993
para. (3)(a)(b),
No. 48/1997
ss 45(1)
(a)–(h)(2), 46,
S.R. Nos
107/1999
regs 3(1)
(a)–(e)(2), 4,
85/2000 reg. 3,
Nos 61/2001
s. 8, 63/2003
s. 49, 74/2004
s. 19(a)(b),
52/2006
ss 18–20 (as
amended by
No. 79/2006
s. 87), 57/2012
ss 5–7, 9/2014
ss 13–17,
40/2017
ss 20–23,
3/2019
ss 14–17,
44/2022 s. 90.

Schedule Eleven

Part 1

Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
ACETORPHINE		2·0
N-ACETYLAMPHETAMINE	2·0	2·0
ACETYLDIHYDROCODEINE	10·0	100·0
ACETYLMETHADOL		2·0
N-ACETYLMETHYLAMPHETAMINE	2·0	2·0
ALPRAZOLAM		0·5
ANILERIDINE		25·0
BARBITURATES	2·0	50·0
1, 4-BENZODIAZEPINES not included elsewhere in this Part		10·0
BENZOXAZOCINES	2·0	50·0
BENZETHIDINE		10·0
BENZYL MORPHINE		5·0
BEZITRAMIDE		5·0
BROMAZEPAM		3·0
4-BROMO-2,5- DIMETHOXYAMPHETAMINE	0·5	0·5
4-BROMO-2,5- DIMETHOXYMETHYLAMPHETAMINE	0·5	0·5
* * *		
* * *		
BUFOTENINE		2·0
BUTORPHANOL	1·5	2·0
CHLORAL HYDRATE	2·0	50·0
CHLORDIAZEPOXIDE		5·0
1-CHLORO-1-PHENYL-2- AMINOPROPANE	2·0	2·0

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Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
1-CHLORO-1-PHENYL-2-METHYLAMINO-PROPANE	2·0	2·0
CLOBAZAM		5·0
CLONAZEPAM		2·5
CLONITAZENE		5·0
CODEINE (when in excess of 10·0 grams)	2·0	100·0
CODEINE <i>N</i> -OXIDE		10·0
CODOXIME		10·0
DESOMORPHINE		2·0
DIAMPROMIDE		5·0
DIAZEPAM		2·0
DIETHYLPROPION	2·0	50·0
<i>N, N</i> -DIETHYLTRYPTAMINE	2·0	2·0
DIFENOXIN		5·0
DIHYDROCODEINE (when in excess of 5·0 grams)	2·0	100·0
DIHYDROHYDROXYMORPHINE		2·0
DIHYDROMORPHINE		10·0
DIMENOXADOL		10·0
DIMEPHEPTANOL		10·0
2,5-DIMETHOXY-4-METHYLAMPHETAMINE	0·5	0·5
<i>N, N</i> -DIMETHYLTRYPTAMINE	0·5	0·5
DIOXAPHETYL BUTYRATE		2·0
DIPHENOXYLATE	2·0	3·0
DIPIANONE		10·0
ECGONINE		10·0
ETHYLMORPHINE	2·0	2·0
<i>N</i> -ETHYL-1-PHENYLCYCLOHEXYLAMINE	0·001	0·001

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Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
ETONITAZENE		5.0
Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
ETORPHINE	2.0	2.0
ETOXERIDINE		5.0
FENTANYL	0.05	0.005
FLUNITRAZEPAM		0.5
FLURAZEPAM		3.0
N-FORMYLAMPHETAMINE	2.0	2.0
N-FORMYLMETHYLAMPHETAMINE	2.0	2.0
FURETHIDINE		1.0
GLUTETHIMIDE	2.0	100.0
HYDROCODONE		2.0
HYDROMORPHONE		2.0
HYDROXYAMPHETAMINE	2.0	2.0
N-HYDROXY-3, 4-METHYLENEDIOXYAMPHETAMINE	0.5	0.5
KETOBEMIDONE		2.0
LORAZEPAM		0.5
LYSERGAMIDE	0.01	0.1
LYSERGIC ACID	0.002	0.002
MECLOQUALONE	50.0	50.0
MESCALINE	7.5	7.5
METAZOCINE		7.0
METHADONE	2.0	2.0
METHAQUALONE	2.0	50.0
METHORPHAN		2.0
4-METHOXYAMPHETAMINE	0.5	0.5

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Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
4-METHOXYMETHYLAMPHETAMINE	0.5	0.5
5-METHOXY- <i>N, N</i> - DIETHYLTRYPTAMINE	0.5	0.5
5-METHOXY- <i>N, N</i> - DIMETHYLTRYPTAMINE	0.5	0.5
METHOXYAMPHETAMINES	0.5	0.5

Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
2-METHYLAMINO-PROPIOPHENONE (METHCATHINONE)	2.0	2.0
METHYLDESORPHINE		2.0
METHYLDIHYDROMORPHINE		2.0
3,4-METHYLENEDIOXY- <i>N</i> - ETHYLAMPHETAMINE	0.5	0.5
(3,4-METHYLENEDIOXYPHENYL)-2- BROMOPROPANE	0.5	0.5
<i>N</i> -METHYL-1-(3,4- METHYLENEDIOXYPHENYL)-2- BUTANAMINE (MBDB)	0.5	2.0
1-(3,4-METHYLENEDIOXYPHENYL)-3- BROMOPROPANE	0.5	0.5
(3,4-METHYLENEDIOXYPHENYL)-2- PROPANONE	0.5	0.5
METHYLPHENIDATE	2.0	5.0
METOPON		2.0
MONOACETYLMORPHINE		2.0
MORAMIDE	2.0	2.0
MORPHERIDINE		2.0
MORPHINAN		2.0

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Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
2-METHYLAMINO-PROPIOPHENONE (METHCATHINONE)	2.0	2.0
MORPHINE	1.5	2.0
MORPHINE <i>N</i> -OXIDE		2.0
MORPHINONE		2.0
MYROPHINE		20.0
NALBUPHINE	1.5	2.0
NICOCODINE (when in excess of 0.1 grams)	2.0	2.0
NICODICODINE (when in excess of 0.1 grams)	2.0	2.0
NICOMORPHINE		2.0
NITRAZEPAM		1.0
7-NITRO-1,4-BENZODIAZEPINES not included elsewhere in this Part		2.5
Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
NORACYMETHADOL		2.0
NORCODEINE (when in excess of 10.0 grams)	2.0	100.0
NORMETHADONE		5.0
NORMORPHINE		20.0
NORPIPANONE		10.0
OXAZEPAM		10.0
OXYCODONE		5.0
OXYMORPHONE	2.0	2.0
PENTAZOCINE	5.0	5.0
PETHIDINE	5.0	10.0
PHENYLACYLMORPHAN		2.0

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Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
2-METHYLAMINO-PROPIOPHENONE (METHCATHINONE)	2·0	2·0
PHENADOXONE		10·0
PHENAMPROMIDE		10·0
PHENAZOCINE		1·0
PHENCYCLIDINE	0·1	0·001
PHENDIMETRAZINE		5·0
PHENMETRAZINE		5·0
PHENOMORPHAN		5·0
PHENOPERIDINE		1·0
PHTERMINE	2·0	50·0
1-PHENYL-2-CHLOROPROPANE	2·0	2·0
1-(1-PHENYLCYCLOHEXYL) PYRROLIDINE	0·1	0·001
1-PHENYL-2-NITROPROPENE	2·0	2·0
PHENYLPROPANOLAMINE (when in excess of 20·0 grams)	2·0	100·0
PHENYL-2-PROPANONE OXIME	2·0	2·0
PIMINODINE		10·0

Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
PIPERIDINE DERIVATIVES INCLUDING—ALLYLPRODINE, MEPRODINE, PHENOPERIDINE and PRODINE	1·0	2·0
PIRITRAMIDE		1·0
PROHEPTAZINE		1·0

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Column 1	Column 2	Column 3
<i>Drug</i>	<i>Quantity of pure drug</i>	<i>Quantity of pure drug</i>
	Kilograms	Grams
2-METHYLAMINO-PROPIOPHENONE (METHCATHINONE)	2·0	2·0
PROPERIDINE		25·0
PROPIRAM		2·0
PROPOXYPHENE	2·0	2·0
PSILOCIN	0·1	0·1
PSILOCYBIN	0·1	0·1
TEMAZEPAM		3·0
THEBACON	2·0	2·0
THEBAINE	2·0	2·0
THIAMBUTENE		5·0
1-[1-(2-THIENYL) CYCLOHEXYL] PIPERIDINE	0·1	0·001
TRIMEPERIDINE		10·0

Part 2

Column 1	Column 1A (Large Commercial Quantity)	Column 2 (Commercial Quantity)	Column 3 (Traffickable Quantity)	Column 4 (Small Quantity)
<i>Plant</i>	<i>Quantity</i>	<i>Quantity</i>	<i>Quantity</i>	<i>Quantity</i>
<i>Cannabis L.</i>	250 kg or 1000 plants	25·0 kg or 100 plants	250·0 g or 10 plants	50·0 g
<i>Erythroxylum coca</i> Lam		80·0 kg	800·0 g	
<i>Erythroxylum nova-granatense</i> (Morris) Hier		80·0 kg	800·0 g	
<i>Papaver bracteatum</i> Lindley	1000 plants	10·0 kg or 250 plants	100·0 g or 50 plants	5 plants
<i>Papaver somniferum</i> L., other than its seed	1000 plants	10·0 kg or 250 plants	100·0 g or 50 plants	5 plants

Part 3

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
AMPHETAMINE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g		0·75 g
1-BENZYLPIPERAZINE (also known as BZP)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
BUPRENORPHINE						2·0g		
1,4-BUTANEDIOL (also known as 1,4-BD) (except for a lawful industrial purpose)	-	20·0 kg	-	2·0 kg	600·0 g	50·0 g	-	10·0 g
COCAINE	750·0 g	1·0 kg	250·0 g	500·0 g	30·0 g	3·0 g		1·0 g
DIACETYLMORPHINE (Heroin)	500·0 g	750·0 g	50·0 g	250·0 g	30·0 g	3·0 g	-	1·0 g
EPHEDRINE (when in excess of 10·0 g)	750·0 g		100·0 g				20·0 g	
GAMMA BUTYROLACTONE (also known as GBL) (except for a lawful industrial purpose)	-	20·0 kg	-	2·0 kg	-	50·0 g	-	10·0 g
HARMALINE				1·25 kg		20·0 g		
HARMINE				1·25 kg		20·0 g		
HARMINES (not included elsewhere in this Part)				1·25 kg		20·0 g		
4-HYDROXYBUTANOIC ACID (also known as GHB)	-	20·0 kg	-	2·0 kg	-	50·0 g	-	10·0 g
KETAMINE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
LYSERGIC ACID DIETHYLAMIDE	150·0 mg		50·0 mg		1·5 g	150 mg		20 mg
METHYLAMPHETAMINE	500·0 g	750·0 g	50·0 g	250·0 g	30·0 g	3·0 g	-	0·75 g
METHYLENEDIOXY- AMPHETAMINES	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g		0·75 g
3,4-METHYLENEDIOXY- AMPHETAMINE (MDA)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g		0·75 g
3,4-METHYLENEDIOXY-N- METHYLAMPHETAMINE (MDMA)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g		0·75 g
3,4- METHYLENEDIOXYPYROVA LERONE (also known as MDPV)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
4-METHYLMETHCATHINONE (also known as 4-MMC)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
PHENYL-2-PROPANONE		1·0 kg		500·0 g		3·0 g		
PSEUDOEPHEDRINE (when in excess of 10·0g)	750·0 g		100·0 g				20·0 g	
TETRAHYDROCANNABINOL	3·0 kg	25·0 kg	1·0 kg	10·0 kg	600·0 g	25·0 g		1·0 g
ANABOLIC AND ANDROGENIC STEROIDAL			5·0 kg	5·0 kg	300·0 g	500·0 g		50·0 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
AGENTS, other than in implant preparations for use in animals								
ATAMESTANE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
BOLANDIOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
BOLASTERONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
BOLAZINE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
BOLDENONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
BOLENOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
CALUSTERONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
CHLORANDROSTENOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
CLOSTEBOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
DANAZOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
DIHYDROLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
DIMETHANDROSTANOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
DROSTANOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
ENESTEBOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
EPITIOSTANOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
ETHYLDIENOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
ETHYLOESTRENOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
FLUOXYMESTERONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
FORMEBOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
FURAZABOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
HYDROXYSTENOZOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
MEBOLAZINE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
MEPITIOSTANE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
MESABOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
MESTANOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
MESTEROLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METHANDIENONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METHANDRIOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METHENOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METHYLCLOSTEBOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METHYLTESTOSTERONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METHYLTRIENOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
METRIBOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
MIBOLERONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
NANDROLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
NORANDROSTENOLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
NORBOLETHONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
NORCLOSTEBOL			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g
NORETHANDROLONE			5.0 kg	5.0 kg	300.0 g	500.0 g		50.0 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
NORMETHANDRONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
OVANDROTONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
OXABOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
OXANDROLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
OXYMESTERONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
OXYMETHOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
PRASTERONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
PROPETANDROL			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
QUINBOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
ROXIBOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
SILANDRONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
STANOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
STANOZOLOL			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
STENBOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
TESTOLACTONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
TESTOSTERONE, other than in implant preparations for use in animals			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
THIOMESTERONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
TRENBOLONE, other than in implant preparations for use in animals			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
TRESTOLONE			5-0 kg	5-0 kg	300-0 g	500-0 g		50-0 g
The following SYNTHETIC CANNABINOIDS	-	-	-	-	-	-	-	-
(1-(5-FLUOROPENTYL)-3- (2-IODOBENZOYL)INDOLE) (common name AM-694)	-	10-0 kg	-	1-0 kg	-	3-0 g	-	1-0 g
2-[(1R,3S)-3- HYDROXYCYCLOHEXYL]-5- (2-METHYLNONAN-2- YL)PHENOL (common names cannibicyclohexanol and CP 47,497 C8 homologue)	-	10-0 kg	-	1-0 kg	-	3-0 g	-	1-0 g
2-[(1R,3S)-3- HYDROXYCYCLOHEXYL]-5- (2-METHYLOCTAN-2- YL)PHENOL (common name CP 47,497)	-	10-0 kg	-	1-0 kg	-	3-0 g	-	1-0 g
2-(2-METHOXYPHENYL)-1- (1-PENTYLINDOL-3- YL)ETHANONE (common name JWH-250)	-	10-0 kg	-	1-0 kg	-	3-0 g	-	1-0 g
(1-(2-MORPHOLIN-4- YLETHYL)INDOL-3-YL)- NAPHTHALEN-1-	-	10-0 kg	-	1-0 kg	-	3-0 g	-	1-0 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
YLMETHANONE (common name JWH-200)								
NAPHTHALEN-1-YL- (1-BUTYLINDOL-3- YL)METHANONE (common name JWH-073)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
1-PENTYL-3-(4-METHYL- 1-NAPHTHOYL)INDOLE (common name JWH-122)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
1-PENTYL-3- (1-NAPHTHOYL)INDOLE (common name JWH-018)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
(1-PENTYLINDOL-3-YL)- (2,2,3,3- TETRAMETHYLCYCLOPROP YL) METHANONE (UR-144)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
(1-(5- FLUOROPENTYL)INDOL-3- YL)-(2,2,3,3- TETRAMETHYLCYCLOPROP YL)METHANONE (XLR-11)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-(1-ADAMANTYL)-1- PENTYLINDAZOLE-3- CARBOXAMIDE (AKB48 OR APINACA)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-(1-FENCHYL)-1-(2- MORPHOLINOETHYL)-7- METHOXYINDOLE-3- CARBOXAMIDE (UR-12)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
1-(5-FLUOROPENTYL)- INDOLE-3-CARBOXYLIC ACID 8-QUINOLINYL ESTER (5F-PB-22)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-[1-(AMINOCARBONYL)-2- METHYLPROPYL]-1- PENTYLINDAZOLE-3- CARBOXAMIDE (common name AB-PINACA)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-[1-(AMINOCARBONYL)-2- METHYLPROPYL]-1- (CYCLOHEXYLMETHYL) INDAZOLE-3-CARBOXAMIDE (common name AB-CHMINACA)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-[1-(METHOXYCARBONYL)- 2,2-DIMETHYLPROPYL]-1- (CYCLOHEXYLMETHYL) INDOLE-3-CARBOXAMIDE (common name MMB- CHMINACA)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-[1-(AMINOCARBONYL)-2- METHYLPROPYL]-1-[(4- FLUOROPHENYL)	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
METHYL]-INDAZOLE-3-CARBOXAMIDE (common name AB-FUBINACA)								
The following classes of SYNTHETIC CANNABINOIDS	-	-	-	-	-	-	-	-
3-BENZOYLINDOLES with any modification on the indole nitrogen, whether or not further modified on the indole or phenyl rings (other than a substance included elsewhere in this Part)	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g
3-PHENYLACETYLINDOLES with any modification on the indole nitrogen, whether or not further modified on the indole or phenyl rings (other than a substance included elsewhere in this Part)	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g
6,6-DIMETHYL-6H-DIBENZO[b,d]-PYRANS with any modification at the 3-position by alkyl or alkenyl, whether or not further modified on the cyclic rings, and whether or not the cyclic rings are partially or fully hydrogenated	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g
2-(3-HYDROXYCYCLOHEXYL)-PHENOLS with any modification at the 5-position of the phenolic ring, whether or not further modified on the cyclohexyl ring (other than a substance included elsewhere in this Part)	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g
3-(1-NAPHTHOYL)INDOLES with any modification on the indole nitrogen, whether or not further modified on the indole, naphthoyl or naphthyl rings (other than a substance included elsewhere in this Part)	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g
3-(1-NAPHTHYLMETHANE)INDOLES with any modification on the indole nitrogen, whether or not further modified on the indole, naphthoyl or naphthyl rings	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g
3-(1-NAPHTHOYL)PYRROLES with any modification on the pyrrole nitrogen, whether or not	-	10.0 kg	-	1.0 kg	-	3.0 g	-	1.0 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
further modified on the pyrrole or naphthoyl rings								
1- (1-NAPHTHYLMETHYLENE)I NDENES with any modification at the 3-position of the indene ring, whether or not further modified on the indene or naphthyl rings	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
(INDOL-3-YL)-(2,2,3,3- TETRA- ALKYLCYCLOPROPYL) METHANONES with any modification on the indole nitrogen, whether or not further modified on the indole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
3-(1-ADAMANTOYL)- INDOLES with any modification on the indole nitrogen, whether or not further modified on the indole or adamantane ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-(1-ADAMANTYL)- INDAZOLE-3- CARBOXAMIDES with any modification on the indazole nitrogen, whether or not further modified on the indazole or adamantane ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
N-(1-FENCHYL)-INDOLE-3- CARBOXAMIDES with any modification on the indole nitrogen, whether or not further modified on the indole or fenchane ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
INDOLE-3-CARBOXYLIC ACID, QUINOLINYL ESTERS with any modification on the indole nitrogen, whether or not further modified on the indole or quinolinyl ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
AZAINDOLE-3- CARBOXAMIDES with any modification on the azaindole or amide nitrogens, whether or not further modified on the azaindole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
INDAZOLE-3- CARBOXAMIDES whether or not with any modification on the indazole or amide nitrogens,	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
whether or not further modified on the indazole ring								
INDAZOLE-3-CARBOXYLATES with any modification on the indazole nitrogens or the carboxylate oxygen, whether or not further modified on the indazole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
INDOLE-3-CARBOXAMIDES with any modification on the indole or amide nitrogens, whether or not further modified on the indole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
INDOLE-3-CARBOXYLATES with any modification on the indole nitrogen or the carboxylate oxygen, whether or not further modified on the indole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
PYRAZOLE-3-CARBOXAMIDES with any modification on the pyrazole or amide nitrogens, whether or not further modified on the pyrazole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
PYRAZOLE-5-CARBOXAMIDES with any modification on the pyrazole or amide nitrogens, whether or not further modified on the pyrazole ring	-	10·0 kg	-	1·0 kg	-	3·0 g	-	1·0 g
The following SYNTHETIC SUBSTANCES								
4-BROMO-2,5-DIMETHOXYPHENETHYLAMINE (2C-B / NEXUS)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
4-CHLORO-2,5-DIMETHOXYPHENETHYLAMINE (2C-C)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
2,5-DIMETHOXY-4-IODOPHENETHYLAMINE (2C-I)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
2,5-DIMETHOXY-4-FLUOROPHENETHYLAMINE (2C-F)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
2,5-DIMETHOXYPHENETHYLAMINE (2C-H)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
METHOXETAMINE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g

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Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity
alpha-PYRROLIDINOVALEROPHENONE (ALPHA-PVP)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
5-AMINOPROPYLBENZOFURAN (5-APB)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
6-AMINOPROPYLBENZOFURAN (6-APB)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
METHYLHEXANAMINE (DMAA)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
METHYLONE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
PENTYLONE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
ETHYLONE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
BUTYLONE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
PENTADRONE	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
DIMETHOCAINE	750·0 g	1·0 kg	250·0 g	500·0 g	30·0 g	3·0 g	-	1·0 g
N-(2-METHOXYBENZYL)-2,5-DIMETHOXY-4- IODOPHENETHYLAMINE (25I-NBOMe)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
N-(2-METHOXYBENZYL)-4-BROMO-2,5-DIMETHOXYPHENETHYLAMINE (25B-NBOMe)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
N-(2-METHOXYBENZYL)-4-CHLORO-2,5-DIMETHOXYPHENETHYLAMINE (25C-NBOMe)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
N-(2-METHOXYBENZYL)-2,5-DIMETHOXY-4- FLUOROPHENETHYLAMINE (25F-NBOMe)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
N-(2-METHOXYBENZYL)-2,5-DIMETHOXYPHENETHYLAMINE (25H-NBOMe)	750·0 g	1·0 kg	100·0 g	500·0 g	30·0 g	3·0 g	-	0·75 g
3,4-DICHLORO-N-([1-(DIMETHYLAMINO) CYCLOHEXYL]METHYL) BENZAMIDE (common name AH-7921)	750·0 g	1·0 kg	250·0 g	500·0 g	30·0 g	3·0 g	-	1·0 g
N-([1-AMINOCYCLOHEXYL] METHYL)BENZAMIDES, including those with any modification on the amino- or amido-nitrogens, whether or not	750·0 g	1·0 kg	250·0 g	500·0 g	30·0 g	3·0 g	-	1·0 g

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Column 1	Column 1A (Large Commercial Quantity)	Column 1B (Large Commercial Quantity)	Column 2 (Commercial Quantity)	Column 2A (Commercial Quantity)	Column 2B (Automatic Forfeiture Quantity)	Column 3 (Traffickable Quantity)	Column 3A (Traffickable Quantity)	Column 4 (Small Quantity)
Drug	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity of mixture of substance and drug of dependence	Quantity	Quantity

further modified on the aromatic
or cyclohexyl rings

Note: kg = kilogram

g = gram

mg = milligram

Schedule Twelve—Statements of strength of preparations

Section 121

- (a) In respect of a tablet, capsule, pastille, packaged single dose of powder, or similar discreet product unit, the quantity of each poison or controlled substance in the product unit.
- (b) In respect of a solid preparation intended for extemporaneous preparation of either a single dose or a single stated amount of a liquid for therapeutic use, the quantity of each poison or controlled substance in the immediate container.
- (c) In respect of a liquid for internal therapeutic use, the volume of the normal dose and the quantity of each poison or controlled substance in that volume.
- (d) In respect of any other preparation, the portion of each poison or controlled substance shall be expressed as follows:
 - (i) In respect of a liquid poison or controlled substance in a liquid preparation, the weight or volume of the poison or controlled substance per stated volume of the preparation;
 - (ii) In respect of a liquid poison or controlled substance in a solid or semi-solid preparation, the weight or volume of the poison or controlled substance per stated weight of the preparation;
 - (iii) In respect of a solid or semi-solid poison or controlled substance in a liquid preparation, the weight of the poison or controlled substance per stated volume of the preparation;
 - (iv) In respect of a solid or semi-solid poison or controlled substance in a solid or semi-solid preparation, the weight of the poison or controlled substance per stated weight of the preparation;

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Schedule Twelve—Statements of strength of preparations

- (v) In respect of a gaseous poison or controlled substance in a liquid preparation, the weight of the poison or controlled substance per stated volume of the preparation;
 - (vi) In respect of a gaseous poison or controlled substance in a solid or semi-solid preparation, the weight of the poison or controlled substance per stated weight of the preparation;
 - (vii) In respect of a gaseous poison or controlled substance in a gaseous preparation, the weight of the poison or controlled substance per stated weight of the preparation.
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Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

The **Drugs, Poisons and Controlled Substances Act 1981** was assented to on 12 January 1982 and came into operation on 18 December 1983: Government Gazette 14 December 1983 page 3955.

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

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- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

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2 Table of Amendments

This publication incorporates amendments made to the **Drugs, Poisons and Controlled Substances Act 1981** by Acts and subordinate instruments.

Drugs, Poisons and Controlled Substances Act 1981, No. 9719/1981

Assent Date: 12.1.82
Commencement Date: S. 146(5) inserted on 1.7.18 by No. 50/2017 s. 18:
Special Gazette (No. 190) 24.4.18 p. 1
Note: S. 146(5) repealed s. 146 on 1.7.20
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Drugs, Poisons and Controlled Substances (Amendment) Act 1983, No. 10002/1983 (as amended by Act Nos 10087, 25/1990)

Assent Date: 13.12.83
Commencement Date: 18.12.83: Government Gazette 14.12.83 p. 3954
Current State: All of Act in operation

Statute Law Revision Act 1984, No. 10087/1984

Assent Date: 22.5.84
Commencement Date: 22.5.84: s. 3(2)
Current State: All of Act in operation

Health (Amendment) Act 1985, No. 10262/1985

Assent Date: 10.12.85
Commencement Date: S. 4(Sch.) on 1.3.86: Government Gazette 26.2.86
p. 451
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Courts Amendment Act 1986, No. 16/1986

Assent Date: 22.4.86
Commencement Date: S. 30(Sch.) on 1.7.86: Government Gazette 25.6.86
p. 2180
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Public Contracts (Repeal) Act 1986, No. 21/1986

Assent Date: 22.4.86
Commencement Date: 22.4.86
Current State: All of Act in operation

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Crimes (Confiscation of Profits) Act 1986, No. 101/1986

Assent Date: 16.12.86
Commencement Date: 1.8.87: Government Gazette 22.7.87 p. 1924
Current State: All of Act in operation

Supreme Court Act 1986, No. 110/1986

Assent Date: 16.12.86
Commencement Date: 1.1.87: s. 2
Current State: All of Act in operation

Animal Preparations Act 1987, No. 12/1987

Assent Date: 5.5.87
Commencement Date: S. 37 on 5.5.87: s. 2(1); rest of Act on 29.6.88:
Government Gazette 29.6.88 p. 1893
Current State: All of Act in operation

Drugs, Poisons and Controlled Substances (Amendment) Act 1987, No. 20/1987

Assent Date: 12.5.87
Commencement Date: 12.5.87
Current State: All of Act in operation

Conservation, Forests and Lands Act 1987, No. 41/1987

Assent Date: 19.5.87
Commencement Date: S. 103(Sch. 4 item 12.1) on 1.7.87: Government
Gazette 24.6.87 p. 1694
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Liquor Control Act 1987, No. 97/1987

Assent Date: 1.12.87
Commencement Date: S. 181(2) on 3.5.88: Government Gazette 27.4.88
p. 1044
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Magistrates' Court Act 1989, No. 51/1989

Assent Date: 14.6.89
Commencement Date: S. 149(1) on 1.9.90: Government Gazette 25.7.90
p. 2216
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Children and Young Persons Act 1989, No. 56/1989

Assent Date: 14.6.89
Commencement Date: S. 286(Sch. 2 item 9) on 23.9.91: Government Gazette
28.8.91 p. 2368
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

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Magistrates' Court (Consequential Amendments) Act 1989, No. 57/1989

Assent Date: 14.6.89
Commencement Date: S. 4(1)(a)–(e)(2) on 1.9.89: Government Gazette 30.8.89 p. 2210; rest of Act on 1.9.90: Government Gazette 25.7.90 p. 2217
Current State: All of Act in operation

Water (Consequential Amendments) Act 1989, No. 81/1989

Assent Date: 5.12.89
Commencement Date: 1.11.90: Government Gazette 15.8.90 p. 2473
Current State: All of Act in operation

Drugs, Poisons and Controlled Substances (Amendment) Act 1990, No. 25/1990

Assent Date: 5.6.90
Commencement Date: S. 4(2) on 13.12.83: s. 2(1); rest of Act on 5.6.90: s. 2(2)
Current State: All of Act in operation

Sentencing Act 1991, No. 49/1991

Assent Date: 25.6.91
Commencement Date: 22.4.92: Government Gazette 15.4.92 p. 898
Current State: All of Act in operation

Royal Botanic Gardens Act 1991, No. 87/1991

Assent Date: 10.12.91
Commencement Date: 1.7.92: Government Gazette 1.7.92 p. 1629
Current State: All of Act in operation

Crimes (Confiscation of Profits) (Amendment) Act 1991, No. 90/1991

Assent Date: 10.12.91
Commencement Date: S. 36 on 1.9.92: Government Gazette 12.8.92 p. 2179
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Vermin and Noxious Weeds (Poison Baits) Act 1992, No. 4/1992

Assent Date: 5.5.92
Commencement Date: S. 6 never came into operation and was repealed by s. 97 of Act No. 52/1994 on 16.12.94
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Agricultural and Veterinary Chemicals (Control of Use) Act 1992, No. 46/1992 (as amended by No. 73/1994)

Assent Date: 23.6.92
Commencement Date: S. 78(2)(a) on 15.3.95: Government Gazette 9.3.95 p. 502; s. 78(1)(2)(b) on 1.8.96: Special Gazette (No. 89) 1.8.96 p. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

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Health and Community Services (General Amendment) Act 1993, No. 42/1993

Assent Date: 1.6.93
Commencement Date: Ss 33, 34, 36, 38, 50, 56, 60 on 21.8.94; ss 35, 37, 39–49, 51–55, 57–59, 61 on 10.9.94: Government Gazette 18.8.94 p. 2240
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Amendment) Act 1994, No. 12/1994

Assent Date: 3.5.94
Commencement Date: Pts 1, 2(ss 1–7) on 3.5.94: s. 2(1); ss 8, 11, 18 on 10.9.94; rest of Act on 11.9.94: Government Gazette 18.8.94 p. 2240
Current State: All of Act in operation

Medical Practice Act 1994, No. 23/1994

Assent Date: 17.5.94
Commencement Date: Ss 1, 2 on 17.5.94: s. 2(1); rest of Act on 1.7.94: Government Gazette 23.6.94 p. 1672
Current State: All of Act in operation

Financial Management (Consequential Amendments) Act 1994, No. 31/1994

Assent Date: 31.5.94
Commencement Date: S. 3(Sch. 1 item 18) on 7.7.94: Government Gazette 7.7.94 p. 1878—see **Interpretation of Legislation Act 1984**
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Catchment and Land Protection Act 1994, No. 52/1994

Assent Date: 15.6.94
Commencement Date: S. 97(Sch. 3 item 7) on 16.12.94: s. 2(3)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Amendment) Act 1995, No. 66/1995

Assent Date: 17.10.95
Commencement Date: 17.10.95: s. 2(1)
Current State: All of Act in operation

Optometrists Registration Act 1996, No. 56/1996

Assent Date: 10.12.96
Commencement Date: S. 100 on 1.7.98: s. 2(4)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

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Health Acts (Further Amendment) Act 1996, No. 68/1996

Assent Date: 17.12.96
Commencement Date: Pt 3(ss 8–15) on 17.12.96: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Sentencing and Other Acts (Amendment) Act 1997, No. 48/1997

Assent Date: 11.6.97
Commencement Date: Ss 35–42, 44–47 on 1.9.97: s. 2(2); s. 43 on 11.6.98: Government Gazette 11.6.98 p. 1314
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Amendment) Act 1997, No. 54/1997
(as amended by No. 52/1998)

Assent Date: 21.10.97
Commencement Date: Ss 1–4 on 21.10.97: s. 2(1); ss 5, 6 on 1.10.98: Government Gazette 13.8.98 p. 2182
Current State: All of Act in operation

Veterinary Practice Act 1997, No. 58/1997

Assent Date: 28.10.97
Commencement Date: S. 96(Sch. item 3) on 17.3.98: Government Gazette 12.3.98 p. 520
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Confiscation Act 1997, No. 108/1997

Assent Date: 23.12.97
Commencement Date: S. 152 on 1.7.98: Government Gazette 25.6.98 p. 1561
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Amendment) Act 1998, No. 9/1998

Assent Date: 28.4.98
Commencement Date: Ss 1, 2 on 28.4.98: s. 2(1); rest of Act on 31.12.98: Government Gazette 10.12.98 p. 2998
Current State: All of Act in operation

Public Sector Reform (Miscellaneous Amendments) Act 1998, No. 46/1998

Assent Date: 26.5.98
Commencement Date: S. 7(Sch. 1) on 1.7.98: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

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**Conservation, Forests and Lands (Miscellaneous Amendments) Act 1998,
No. 76/1998**

Assent Date: 10.11.98
Commencement Date: S. 7 on 15.12.98: s. 2(5)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Public Sector Reform (Further Amendments) Act 1999, No. 12/1999

Assent Date: 11.5.99
Commencement Date: S. 4(Sch. 2 item 4) on 11.5.99: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Dental Practice Act 1999, No. 26/1999

Assent Date: 1.6.99
Commencement Date: S. 107(Sch. item 2) on 1.7.00: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Chinese Medicine Registration Act 2000, No. 18/2000

Assent Date: 16.5.00
Commencement Date: Ss 96–107 on 1.1.02: Government Gazette 4.10.01
p. 2511
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Statute Law Revision Act 2000, No. 74/2000

Assent Date: 21.11.00
Commencement Date: S. 3(Sch. 1 item 38) on 22.11.00: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Nurses (Amendment) Act 2000, No. 94/2000

Assent Date: 5.12.00
Commencement Date: Ss 48–52 on 1.11.01: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Health (Amendment) Act 2001, No. 33/2001

Assent Date: 19.6.01
Commencement Date: S. 21 on 20.6.01: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

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Drugs, Poisons and Controlled Substances (Amendment) Act 2001, No. 61/2001

Assent Date: 23.10.01
Commencement Date: 1.1.02: s. 2(2)
Current State: All of Act in operation

Statute Law (Further Revision) Act 2002, No. 11/2002

Assent Date: 23.4.02
Commencement Date: S. 3(Sch. 1 item 16.1) on 1.1.02: s. 2(2)(b); s. 3(Sch. 1 item 16.2) on 24.4.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Volatile Substances) Act 2003, No. 55/2003

Assent Date: 16.6.03
Commencement Date: Ss 3, 4 on 1.7.04: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Fisheries (Amendment) Act 2003, No. 56/2003

Assent Date: 16.6.03
Commencement Date: S. 11(Sch. item 7) on 17.6.03: s. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Confiscation (Amendment) Act 2003, No. 63/2003

Assent Date: 30.9.03
Commencement Date: Ss 45–49 on 1.12.03: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Health Legislation (Amendment) Act 2003, No. 67/2003

Assent Date: 14.10.03
Commencement Date: Ss 3, 13(1) on 15.10.03: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Crimes (Controlled Operations) Act 2004, No. 16/2004

Assent Date: 18.5.04
Commencement Date: S. 53 on 2.11.08: Government Gazette 30.10.08 p. 2530
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
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Drugs, Poisons and Controlled Substances and Therapeutic Goods (Victoria) Acts (Amendment) Act 2004, No. 74/2004

Assent Date: 9.11.04
Commencement Date: Ss 3–19 on 10.11.04: s. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Pharmacy Practice Act 2004, No. 80/2004

Assent Date: 16.11.04
Commencement Date: S. 150(Sch. 2 item 2) on 1.7.05: s. 2(3)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Major Crime Legislation (Seizure of Assets) Act 2004, No. 87/2004

Assent Date: 23.11.04
Commencement Date: S. 25 on 1.1.05: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Public Administration Act 2004, No. 108/2004

Assent Date: 21.12.04
Commencement Date: S. 117(1)(Sch. 3 item 60) on 5.4.05: Government Gazette 31.3.05 p. 602
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Act 2005, No. 93/2005

Assent Date: 29.11.05
Commencement Date: S. 14 on 30.11.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Health Professions Registration Act 2005, No. 97/2005 (as amended by Nos 29/2006, 25/2007)

Assent Date: 7.12.05
Commencement Date: Ss 178–180, 182(Sch. 4 item 16) on 1.7.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Aged Care Services) Act 2006, No. 17/2006

Assent Date: 9.5.06
Commencement Date: 30.5.06: s. 2
Current State: All of Act in operation

Drugs, Poisons and Controlled Substances Act 1981
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Drugs, Poisons and Controlled Substances (Prohibition of Display and Sale of Cocaine Kits) Act 2006, No. 18/2006

Assent Date: 9.5.06
Commencement Date: 10.5.06: s. 2
Current State: All of Act in operation

Children, Youth and Families (Consequential and Other Amendments) Act 2006, No. 48/2006

Assent Date: 15.8.06
Commencement Date: S. 42(Sch. item 11) on 23.4.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances (Amendment) Act 2006, No. 52/2006
(as amended by Nos 79/2006, 10/2007)

Assent Date: 15.8.06
Commencement Date: Ss 7, 9(1), 11 on 19.2.07: Government Gazette 15.2.07 p. 261; ss 4–6, 8, 10, 13, 14, 16–20 on 1.5.07: s. 2(3); ss 9(2), 12, 15 on 1.8.07: Government Gazette 26.7.07 p. 1705
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Public Sector Acts (Further Workplace Protection and Other Matters) Act 2006, No. 80/2006

Assent Date: 10.10.06
Commencement Date: S. 26(Sch. item 29) on 11.10.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment (Repeal of Part X) Act 2007, No. 10/2007

Assent Date: 8.5.07
Commencement Date: Ss 3, 4 on 1.7.07: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Health Professions Registration Amendment Act 2007, No. 25/2007

Assent Date: 26.6.07
Commencement Date: S. 33 on 1.7.07: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

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Drugs, Poisons and Controlled Substances Amendment Act 2008, No. 17/2008

Assent Date: 13.5.08
Commencement Date: Ss 4, 5 on 14.5.08: s. 2(1); ss 6–13 on 1.3.09: s. 2(3)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Police Integrity Act 2008, No. 34/2008

Assent Date: 1.7.08
Commencement Date: S. 143(Sch. 2 item 6) on 5.12.08: Special Gazette (No. 340) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Public Health and Wellbeing Act 2008, No. 46/2008

Assent Date: 2.9.08
Commencement Date: S. 275 on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Amendment Act 2009, No. 25/2009

Assent Date: 17.6.09
Commencement Date: Ss 6, 7 on 3.9.09: Government Gazette 3.9.09 p. 2331
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Further Amendment Act 2009, No. 55/2009

Assent Date: 22.9.09
Commencement Date: Ss 7–9 on 31.5.10: s. 2(4)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 47) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Statute Law Amendment (National Health Practitioner Regulation) Act 2010, No. 13/2010

Assent Date: 30.3.10
Commencement Date: Ss 35–48 on 1.7.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

Pharmacy Regulation Act 2010, No. 39/2010

Assent Date: 30.6.10
Commencement Date: Ss 119, 120 on 24.8.10: Government Gazette 12.8.10 p. 1759
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Severe Substance Dependence Treatment Act 2010, No. 43/2010

Assent Date: 10.8.10
Commencement Date: S. 45 on 1.3.11: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Further Amendment Act 2010, No. 64/2010

Assent Date: 28.9.10
Commencement Date: S. 11 on 1.1.11: Government Gazette 28.10.10 p. 2584
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Statute Law Revision Act 2011, No. 29/2011

Assent Date: 21.6.11
Commencement Date: S. 3(Sch. 1 item 30) on 22.6.11: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment (Drugs of Dependence) Act 2011, No. 41/2011

Assent Date: 6.9.11
Commencement Date: Ss 4, 5 on 7.9.11: s. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Amendment (Protective Services Officers) Act 2011, No. 43/2011

Assent Date: 6.9.11
Commencement Date: Ss 18–20 on 28.11.11: Special Gazette (No. 379) 22.11.11 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment (Prohibition of Display and Sale of Cannabis Water Pipes) Act 2011, No. 51/2011

Assent Date: 18.10.11
Commencement Date: 1.1.12: s. 2
Current State: All of Act in operation

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

Drugs, Poisons and Controlled Substances Amendment (Supply by Midwives) Act 2012, No. 14/2012

Assent Date: 3.4.12
Commencement Date: Ss 4–9 on 30.11.12: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Health Professions Registration (Repeal) Act 2012, No. 27/2012

Assent Date: 29.5.12
Commencement Date: Ss 9–16 on 1.7.12: s. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Criminal Procedure Amendment Act 2012, No. 48/2012

Assent Date: 4.9.12
Commencement Date: Ss 41, 42 on 5.9.12: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment Act 2012, No. 57/2012

Assent Date: 16.10.12
Commencement Date: S. 7 on 8.11.12: s. 2(1); ss 4–6 on 13.12.12: Special Gazette (No. 429) 11.12.12 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Integrity and Accountability Legislation Amendment Act 2012, No. 82/2012

Assent Date: 18.12.12
Commencement Date: S. 161 on 10.2.13: Special Gazette (No. 32) 6.2.13 p. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Statute Law Revision Act 2013, No. 70/2013

Assent Date: 19.11.13
Commencement Date: S. 4(Sch. 2 item 12) on 1.12.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment Act 2014, No. 9/2014

Assent Date: 25.2.14
Commencement Date: Ss 3–17 on 21.5.14: Special Gazette (No. 155) 20.5.14 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

Drugs, Poisons and Controlled Substances (Poppy Cultivation and Processing) Amendment Act 2014, No. 13/2014

Assent Date: 18.3.14
Commencement Date: Ss 4–7 on 16.4.14: Special Gazette (No. 122) 15.4.14 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Victoria Police Amendment (Consequential and Other Matters) Act 2014, No. 37/2014

Assent Date: 3.6.14
Commencement Date: S. 10(Sch. item 47) on 1.7.14: Special Gazette (No. 200) 24.6.14 p. 2
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Fines Reform Act 2014, No. 47/2014

Assent Date: 1.7.14
Commencement Date: S. 260 on 31.12.17: Special Gazette (No. 443) 19.12.17 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Sentencing Amendment (Baseline Sentences) Act 2014, No. 52/2014

Assent Date: 12.8.14
Commencement Date: Ss 17, 18 on 2.11.14: Special Gazette (No. 350) 7.10.14 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Criminal Organisations Control and Other Acts Amendment Act 2014, No. 55/2014

Assent Date: 26.8.14
Commencement Date: Ss 50–53 on 1.10.14: Special Gazette (No. 330) 23.9.14 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Crimes Amendment (Abolition of Defensive Homicide) Act 2014, No. 63/2014

Assent Date: 9.9.14
Commencement Date: S. 7(8)–(11) on 1.11.14: Special Gazette (No. 350) 7.10.14 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

**Drugs, Poisons and Controlled Substances Further Amendment Act 2014,
No. 75/2014**

Assent Date: 21.10.14
Commencement Date: Ss 4–24 on 30.10.14: Special Gazette (No. 400)
29.10.14 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Justice Legislation Amendment (Confiscation and Other Matters) Act 2014,
No. 79/2014**

Assent Date: 21.10.14
Commencement Date: S. 62 on 1.11.14: s. 2(4)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment Act 2016, No. 2/2016

Assent Date: 16.2.16
Commencement Date: Ss 4–16 on 20.10.16: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Access to Medicinal Cannabis Act 2016, No. 20/2016

Assent Date: 19.4.16
Commencement Date: Ss 123, 126, 129–131, 133, 135 on 8.6.16: Special
Gazette (No. 177) 7.6.16 p. 1; ss 101–120, 125, 134,
136–142 on 14.9.16: Special Gazette (No. 284)
13.9.16 p. 1; ss 121, 122, 124, 127, 128, 132 on
21.10.16: Special Gazette (No. 284) 13.9.16 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Sentencing (Community Correction Order) and Other Acts Amendment
Act 2016, No. 65/2016**

Assent Date: 15.11.16
Commencement Date: S. 21 on 20.3.17: Special Gazette (No. 17) 31.1.17 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Sentencing Amendment (Sentencing Standards) Act 2017, No. 34/2017

Assent Date: 15.8.17
Commencement Date: Ss 15, 16 on 29.11.17: Special Gazette (No. 406)
28.11.17 p. 1; ss 36, 37 on 1.2.18: Special Gazette
(No. 28) 30.1.18 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

Drugs, Poisons and Controlled Substances Miscellaneous Amendment Act 2017, No. 40/2017

Assent Date: 12.9.17
Commencement Date: Ss 6, 7, 19, 21–23 on 21.10.17: Special Gazette (No. 340) 10.10.17 p. 1; ss 4, 5, 8–18, 20 on 1.11.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Amendment (Protective Services Officers and Other Matters) Act 2017, No. 45/2017

Assent Date: 26.9.17
Commencement Date: Ss 16–18 on 1.4.18: Special Gazette (No. 136) 27.3.18 p. 3
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment (Real-time Prescription Monitoring) Act 2017, No. 50/2017

Assent Date: 24.10.17
Commencement Date: Ss 4–18 on 1.7.18: Special Gazette (No. 190) 24.4.18 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Voluntary Assisted Dying Act 2017, No. 61/2017

Assent Date: 5.12.17
Commencement Date: Ss 122–138 on 19.6.19: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment (Medically Supervised Injecting Centre) Act 2017, No. 66/2017

Assent Date: 19.12.17
Commencement Date: Ss 4–11 on 28.2.18: Special Gazette (No. 71) 27.2.18 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Oaths and Affirmations Act 2018, No. 6/2018

Assent Date: 27.2.18
Commencement Date: S. 68(Sch. 2 item 42) on 1.3.19: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018, No. 33/2018

Assent Date: 14.8.18
Commencement Date: Ss 90, 91 on 31.7.19: Special Gazette (No. 306) 30.7.19 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Amendment (Police and Other Matters) Act 2019, No. 3/2019

Assent Date: 13.3.19
Commencement Date: Ss 9–18 on 5.6.19: Special Gazette (No. 215) 4.6.19 p. 1
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Health Legislation Amendment and Repeal Act 2019, No. 34/2019

Assent Date: 22.10.19
Commencement Date: Ss 4–44 on 23.10.19: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Primary Industries Legislation Amendment Act 2019, No. 40/2019

Assent Date: 6.11.19
Commencement Date: S. 8 on 17.12.19: Special Gazette (No. 537) 17.12.19 p. 2; ss 7, 9 on 1.2.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Justice Legislation Amendment (Serious Offenders and Other Matters) Act 2019, No. 45/2019

Assent Date: 19.11.19
Commencement Date: S. 49 on 20.11.19: s. 2(1)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Amendment Act 2021, No. 17/2021

Assent Date: 18.5.21
Commencement Date: Ss 4, 5 on 4.8.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Drugs, Poisons and Controlled Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
Endnotes

Agriculture Legislation Amendment Act 2022, No. 22/2022

Assent Date: 15.6.22
Commencement Date: Ss 53, 54 on 1.10.22: Special Gazette (No. 506)
27.9.22 p. 1; ss 55–87 on 1.1.23: Special Gazette
(No. 506) 27.9.22 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Major Crime and Community Safety Legislation Amendment Act 2022,
No. 44/2022**

Assent Date: 27.9.22
Commencement Date: S. 90 on 14.11.22: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Drugs, Poisons and Controlled Substances Amendment (Medically Supervised
Injecting Centre) Act 2023, No. 7/2023**

Assent Date: 16.5.23
Commencement Date: Ss 4–36 on 28.6.23: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Drugs, Poisons and Controlled Substances Amendment (Authorising
Pharmacists) Act 2023, No. 21/2023**

Assent Date: 15.8.23
Commencement Date: S. 3 on 16.8.23: s. 2
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Statute Law Amendment (References to the Sovereign) Act 2023, No. 25/2023

Assent Date: 5.9.23
Commencement Date: S. 7(Sch. 1 item 10) on 6.9.23 : s. 2
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Regulatory Legislation Amendment (Reform) Act 2024, No. 6/2024

Assent Date: 5.3.24
Commencement Date: Ss 11–14 on 6.3.24: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
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Health Legislation Amendment (Regulatory Reform) Act 2024, No. 39/2024

Assent Date: 29.10.24
Commencement Date: S. 113 on 30.10.24: s. 2(1); ss 85–91 on 1.3.25:
Special Gazette (No. 700) 17.12.24 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Drugs, Poisons and Controlled Substances Amendment (Pill Testing) Act 2024,
No. 41/2024**

Assent Date: 6.11.24
Commencement Date: Ss 4–14 on 12.11.24: Special Gazette (No. 610)
12.11.24 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Tobacco Amendment (Tobacco Retailer and Wholesaler Licensing Scheme)
Act 2024, No. 51/2024**

Assent Date: 3.12.24
Commencement Date: S. 71 on 1.7.25: s. 2(2); s. 45 on 1.2.26: Special
Gazette (No. 648) 25.11.25 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Drugs, Poisons and Controlled Substances Amendment (Paramedic
Practitioners) Act 2025, No. 1/2025**

Assent Date: 11.2.25
Commencement Date: Ss 4–25 on 12.11.25: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Drugs, Poisons and Controlled Substances Amendment (Medication
Administration in Residential Aged Care) Act 2025, No. 37/2025**

Assent Date: 16.9.25
Commencement Date: Ss 4–11 on 1.7.26: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

**Justice Legislation Amendment (Police and Other Matters) Act 2025,
No. 55/2025**

Assent Date: 9.12.25
Commencement Date: S. 42 on 30.1.26: Special Gazette (No. 42) 28.1.26 p. 1
Current State: This information relates only to the provision/s
amending the **Drugs, Poisons and Controlled
Substances Act 1981**

Proclamation, S.R. No. 43/1984

Date of Making: 14.2.84
Date of Commencement: 14.2.84

Drugs, Poisons and Controlled Substances Act 1981
No. 9719 of 1981
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Proclamation, S.R. No. 277/1984	
<i>Date of Making:</i>	17.7.84
<i>Date of Commencement:</i>	17.7.84
Proclamation, S.R. No. 1/1985	
<i>Date of Making:</i>	18.12.84
<i>Date of Commencement:</i>	18.12.84
Proclamation, S.R. No. 2/1985	
<i>Date of Making:</i>	12.12.84
<i>Date of Commencement:</i>	12.12.84
Proclamation, S.R. No. 77/1985	
<i>Date of Making:</i>	26.2.85
<i>Date of Commencement:</i>	26.2.85
Proclamation, S.R. No. 90/1985	
<i>Date of Making:</i>	5.12.84
<i>Date of Commencement:</i>	5.12.84
Proclamation, S.R. No. 91/1985	
<i>Date of Making:</i>	20.12.83
<i>Date of Commencement:</i>	20.12.83
Proclamation, S.R. No. 92/1985	
<i>Date of Making:</i>	14.2.84
<i>Date of Commencement:</i>	14.2.84
Proclamation, S.R. No. 93/1985	
<i>Date of Making:</i>	15.5.84
<i>Date of Commencement:</i>	15.5.84
Proclamation, S.R. No. 94/1985	
<i>Date of Making:</i>	13.6.84
<i>Date of Commencement:</i>	13.6.84
Proclamation, S.R. No. 165/1985	
<i>Date of Making:</i>	16.10.84
<i>Date of Commencement:</i>	16.10.84
Proclamation, S. R. No. 187/1985	
<i>Date of Making:</i>	28.5.85
<i>Date of Commencement:</i>	28.5.85
Proclamation, S. R. No. 208/1985	
<i>Date of Making:</i>	4.6.85
<i>Date of Commencement:</i>	4.6.85
Proclamation, S.R. No. 268/1985	
<i>Date of Making:</i>	25.6.85
<i>Date of Commencement:</i>	25.6.85
Proclamation, S.R. No. 92/1986	
<i>Date of Making:</i>	16.4.86
<i>Date of Commencement:</i>	16.4.86

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Proclamation, S.R. No. 179/1986	
<i>Date of Making:</i>	8.7.86
<i>Date of Commencement:</i>	8.7.86
Proclamation, S.R. No. 82/1987	
<i>Date of Making:</i>	14.4.87
<i>Date of Commencement:</i>	14.4.87
Proclamation, S.R. No. 254/1987	
<i>Date of Making:</i>	29.9.87
<i>Date of Commencement:</i>	29.9.87
Proclamation, S.R. No. 366/1987	
<i>Date of Making:</i>	8.12.87
<i>Date of Commencement:</i>	8.12.87
Proclamation, S.R. No. 138/1989	
<i>Date of Making:</i>	14.6.89
<i>Date of Commencement:</i>	14.6.89
Proclamation, S.R. No. 23/1990	
<i>Date of Making:</i>	13.2.90
<i>Date of Commencement:</i>	13.2.90
Proclamation, S.R. No. 250/1990	
<i>Date of Making:</i>	18.9.90
<i>Date of Commencement:</i>	18.9.90
Proclamation, S.R. No. 314/1990	
<i>Date of Making:</i>	7.11.90
<i>Date of Commencement:</i>	7.11.90
Proclamation, S.R. No. 194/1991	
<i>Date of Making:</i>	8.10.91
<i>Date of Commencement:</i>	8.10.91
Proclamation, S.R. No. 230/1992	
<i>Date of Making:</i>	4.8.92
<i>Date of Commencement:</i>	4.8.92
Proclamation, S.R. No. 263/1992	
<i>Date of Making:</i>	8.9.92
<i>Date of Commencement:</i>	8.9.92
Proclamation, S.R. No. 289/1992	
<i>Date of Making:</i>	27.10.92
<i>Date of Commencement:</i>	27.10.92
Proclamation, S.R. No. 305/1992	
<i>Date of Making:</i>	17.11.92
<i>Date of Commencement:</i>	17.11.92
Proclamation, S.R. No. 350/1992	
<i>Date of Making:</i>	22.12.92
<i>Date of Commencement:</i>	27.1.93: para. (1)

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Proclamation, S.R. No. 67/1993	
<i>Date of Making:</i>	4.5.93
<i>Date of Commencement:</i>	4.5.93
Proclamation, S.R. No. 69/1993	
<i>Date of Making:</i>	11.5.93
<i>Date of Commencement:</i>	11.5.93
Proclamation, S.R. No. 86/1993	
<i>Date of Making:</i>	8.6.93
<i>Date of Commencement:</i>	8.6.93
Proclamation, S.R. No. 136/1993	
<i>Date of Making:</i>	20.7.93
<i>Date of Commencement:</i>	20.7.93
Drugs, Poisons and Controlled Substances (Drugs of Dependence) Regulations 1999, S.R. No. 107/1999	
<i>Date of Making:</i>	17.8.99
<i>Date of Commencement:</i>	17.8.99
Drugs, Poisons and Controlled Substances (Drugs of Dependence) Regulations 2000, S.R. No. 85/2000	
<i>Date of Making:</i>	29.8.00
<i>Date of Commencement:</i>	29.8.00

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	22 February 1984, page 575

3 Explanatory details

¹ Schs 1–9 (*Repealed*):

Sch. 1 substituted by S.R. Nos 268/1985, 250/1990 para. (3), amended by S.R. No. 230/1992 para. (3), substituted by S.R. No. 67/1993 para. (3), amended by S.R. No. 86/1993 para. (3), repealed by No. 42/1993 s. 59.

Sch. 2 amended by No. 10002 s. 15(a)(i)(ii), S.R. Nos 77/1985, para. (1), 93/1985 regs 1, 2, 94/1985 para. (a)(i)–(xiv), 165/1985 para. (a), 208/1985 regs 1(a)(b), 2(a)(b), substituted by S.R. No. 268/1985, amended by S.R. Nos 92/1986 reg. 1, 82/1987 reg. 3(a), 254/1987 reg. 3(a), substituted by S.R. No. 250/1990 para. (4), amended by S.R. Nos 194/1991 para. (3), 230/1992 paras (4)(5), 263/1992 para. (3), 289/1992 para. (3), 305/1992 para. (3), 350/1992 para. (4), substituted by S.R. No. 67/1993 para. (4), amended by S.R. Nos 86/1993 para. (4)(a)(b), 136/1993 para. (3), repealed by No. 42/1993 s. 59.

Sch. 3 amended by No. 10002 s. 15(b)(i)–(iv), S.R. Nos 94/1985 para. (b)(i)–(ix), 165/1985 para. (b), 187/1985, 208/1985 reg. 3(a)(b), substituted by S.R. No. 268/1985, amended by S.R. Nos 254/1987 reg. 3(b)(i)–(iii), 23/1990 para. (3)(a), substituted by S.R. No. 250/1990 para. (5), amended by S.R. Nos 194/1991 para. (4), 230/1992 paras (4)(6), 263/1992 para. (4), 289/1992 para. (4), substituted by S.R. No. 67/1993 para. (5), amended by S.R. Nos 86/1993 para. (5)(a)–(c), 136/1993 para. (4), repealed by No. 42/1993 s. 59.

Sch. 4 amended by No. 10002 s. 15(c)(i)–(xxix) (as amended by No. 25/1990 s. 4(2)(a)(i)), GG 29.12.83 p. 4187, S.R. Nos 43/1984 regs 1, 2, 277/1984 para. (a)(i)–(vi), 2/1985 para. (a)(i)–(iv), 77/1985 para. (2), 90/1985 para. (a), 94/1985 para. (c)(i)–(xxi), 165/1985 para. (c)(i)–(iv), 208/1985 regs 4(a)–(i), 5(a)–(l), substituted by S.R. No. 268/1985, amended by S.R. Nos 92/1986 reg. 2, 82/1987 reg. 3(b), 254/1987 reg. 3(c)(i)(ii), 23/1990 para. (3)(b), substituted by S.R. No. 250/1990 para. (6), amended by S.R. Nos 194/1991 para. (5), 230/1992 paras (4)(7), 263/1992 para. (5), 289/1992 para. (5), 305/1992 para. (4), 350/1992 para. (5), substituted by S.R. No. 67/1993 para. (6), amended by S.R. Nos 86/1993 para. (6)(a)–(zm), 136/1993 para. (5)(a)–(p), repealed by No. 42/1993 s. 59.

Sch. 5 amended by No. 10002 s. 15(d)(i)–(ix) (as amended by No. 25/1990 s. 4(2)(a)(ii)), S.R. Nos 94/1985 para. (d)(i)–(iv), 165/1985 para. (d), 208/1985 reg. 6, substituted by S.R. Nos 268/1985, 250/1990 para. (7), amended by S.R. Nos 194/1991 para. (6), 230/1992 paras (4)(8), 263/1992 para. (6), 289/1992 para. (6), 305/1992 para. (5), 350/1992 para. (6), substituted by S.R. No. 67/1993 para. (7), amended by S.R. Nos 86/1993 para. (7)(a)–(d), 136/1993 para. (6)(a)–(h), repealed by No. 42/1993 s. 59.

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Sch. 6 amended by No. 10002 s. 15(e)(i)–(xiii), GGs 29.12.83 pp 4187, 4188, 22.2.84 p. 575, S.R. Nos 43/1984 reg. 3, 2/1985 para. (b)(i)(ii), 90/1985 para. (b), 94/1985 para. (e)(i)–(vi), 165/1985 para. (e)(i)–(iv), 208/1985 regs 7(a)–(h), 8(a)–(h), substituted by S.R. No. 268/1985, amended by No. 12/1987 s. 36(5)(b)(i)(ii)(A)(B), S.R. Nos 254/1987 reg. 3(d)(i)–(iii), 366/1987 reg. 3, substituted by S.R. No. 250/1990 para. (8), amended by S.R. Nos 194/1991 para. (7), 230/1992 paras (4)(9), 263/1992 para. (7), 289/1992 para. (7), 305/1992 para. (6), substituted by S.R. No. 67/1993 para. (8), amended by S.R. Nos 86/1993 para. (8)(a)–(k), 136/1993 para. (7)(a)–(g), repealed by No. 42/1993 s. 59.

Sch. 7 amended by No. 10002 s. 15(f)(i)–(xii), GG 22.2.84 p. 575, S.R. Nos 277/1984 para. (b)(i)–(vi), 2/1985 para. (c)(i), 77/1985 para. (3), 94/1985 paras (f)(i)(g)(i)–(vii), 165/1985 para. (f), 208/1985 regs 9(a)–(c), 10(a)–(e), substituted by S.R. No. 268/1985, amended by S.R. Nos 92/1986 reg. 3, 82/1987 reg. 3(c), 23/1990 para. (3)(c), substituted by S.R. No. 250/1990 para. (9), amended by S.R. Nos 194/1991 paras (8)(9), 230/1992 paras (4)(10)(11), 263/1992 paras (8)(9), 289/1992 paras (8)(9), 305/1992 paras (7)(8), 350/1992 para. (7), substituted by S.R. No. 67/1993 para. (9), amended by S.R. Nos 86/1993 para. (9)(a)–(c), 136/1993 paras (8)(a)–(m), (9)(a)–(v), repealed by No. 42/1993 s. 59.

Sch. 8 amended by S.R. No. 208/1985 reg. 11, substituted by S.R. No. 268/1985, amended by S.R. No. 179/1986 reg. 2, substituted by S.R. No. 250/1990 para. (10), amended by S.R. Nos 194/1991 para. (10), 230/1992 para. (10), 305/1992 para. (9), substituted by S.R. No. 67/1993 para. (10), amended by S.R. Nos 86/1993 para. (10), 136/1993 para. (10)(a)(b), repealed by No. 42/1993 s. 59.

Sch. 9 repealed by No. 42/1993 s. 59.